

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[894 NE2d 1183, 864 NYS2d 794]

WINDY RIDGE FARM et al., Appellants, v ASSESSOR OF THE TOWN
OF SHANDAKEN et al., Respondents.

Decided August 28, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 15, 2007. The Appellate Division affirmed a judgment of the Supreme Court, Ulster County (E. Michael Kavanagh, J.), entered in a proceeding pursuant to CPLR article 78, which had granted respondents' motions to dismiss the petition and amended petition to review the assessment methodology employed by respondent Assessor of the Town of Shandaken.

Windy Ridge Farm v Assessor of Town of Shandaken, 45 AD3d 1099, affirmed.

HEADNOTE

Parties — Necessary Parties — Effect of Expiration of Statute of Limitations

A CPLR article 78 proceeding to review a town assessor's assessment methodology was properly dismissed, without considering the five discretionary factors under CPLR 1001 (b), based on petitioners' failure to join the county and school district as necessary parties prior to the expiration of the four-month limitations period. Where a necessary party is subject to the jurisdiction of the court, CPLR 1001 (b) directs that the court "order him summoned," and the party must be joined. Joinder of a necessary party may be excused "[i]f jurisdiction over him can be obtained only by his consent or appearance," upon the court's consideration of five discretionary factors (CPLR 1001 [b]). Inasmuch as a statute of limitations does not deprive a court of jurisdiction, the county and school district were subject to the court's jurisdiction. Since the county and school district established their right to dismissal of the amended petition against them due to the expiration of the limitations

period, the case against the assessor was properly dismissed due to petitioners' failure to join them as necessary parties (CPLR 1003).

APPEARANCES OF COUNSEL

Cooper Erving & Savage LLP, Albany (*Brian W. Matula* of counsel), for appellants.

Van DeWater and Van DeWater, LLP, Poughkeepsie (*Amea C. Vantassell* of counsel), for Assessor of Town of Shandaken, respondent.

Joshua N. Koplovitz, County Attorney, Kingston, for County of Ulster, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Central to this appeal is petitioners' claim that the Appellate Division erred in failing to apply the discretionary factors enumerated in *Matter of Red Hook/Gowanus Chamber of Commerce v New York City Bd. of Stds. & Appeals* (5 NY3d 452 [2005]) before dismissing the proceeding for failure to join necessary parties Ulster County and the Onteora Central School District. We conclude that the Appellate Division reached the correct result.

CPLR 1001 (b) provides that joinder of a necessary party may be excused "[i]f jurisdiction over him can be obtained only by his consent or appearance," upon the court's consideration of five discretionary factors. Where the party *is* subject to the jurisdiction of the court, however, the statute instructs instead that "the court shall order him summoned" (CPLR 1001 [b]). The CPLR, therefore, "distinguishes between a necessary party 'subject to the jurisdiction of the court' and one over whom jurisdiction can be obtained only by consent or appearance" (*Red Hook*, 5 NY3d at 459).

In *Red Hook*, although the relevant limitations period had expired, the parties assumed that jurisdiction over the necessary party could have been obtained "only by his consent or appearance" (CPLR 1001 [b]). The Court, therefore, explicitly did not answer the question whether a necessary party "by virtue of the lapsed statute of limitations, [is] subject to, or beyond, the 'jurisdiction' of the court as the term is used in CPLR 1001" (*id.* at 459).

We now conclude—and answer the question left open in *Red Hook*—that the County and the District are subject to the juris-

diction of the court. We agree with the Appellate Division's recent analysis in *Matter of Romeo v New York State Dept. of Educ.* (41 AD3d 1102 [3d Dept 2007]), where that court refused to "condone a loose interpretation of 'jurisdiction' in any provision of the CPLR," finding that "[a] statute of limitations does not deprive a court of jurisdiction nor even a litigant of a substantive right, but is merely a defense which may, if properly asserted, deprive a plaintiff of any remedy from a defendant" (*id.* at 1104). Faced with clear language to the contrary, we are unwilling to consider an expired statute "the equivalent" of a jurisdictional defect (*see e.g. Matter of 27th St. Block Assn. v Dormitory Auth. of State of N.Y.*, 302 AD2d 155, 161 [1st Dept 2002]). This, as noted by one recent commentator, is a "gloss on the statute" that we cannot sustain (*see* Alexander, *Supplementary Practice Commentaries*, McKinneys Cons Laws of NY, Book 7B, 2008 Cum Pocket Part, CPLR C1001:2 [2006]).

When a necessary party "is subject to the jurisdiction of the court"—as we conclude that the County and the School District are—the statute directs that the court "order him summoned" (CPLR 1001 [b]). It does not provide for consideration of the discretionary factors. In most cases, therefore, the court would be required to join the necessary parties and remit for further proceedings (*see e.g. Matter of Romeo*, 41 AD3d at 1105). Here, however, following respondent Assessor's motion to dismiss for, among other things, failure to join the County and School District as necessary parties, petitioners filed an amended petition naming as additional respondents the County and School District. They, in turn, moved to dismiss on statute of limitations grounds, and established their right to dismissal of the amended petition against them due to the expiration of the four-month limitations period. Thus, under these circumstances, the case against the Assessor was properly dismissed due to petitioners' failure to join necessary parties (*see* CPLR 1003).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

VIVIA AMALFITANO et al., Respondents, v ARMAND ROSENBERG,
Appellant.

Decided August 28, 2008

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of AMBER C., an Infant. DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES et al., Respondents; THERESA C., Appellant.

Submitted May 19, 2008; decided August 28, 2008

Reported below, 38 AD3d 538.

Motion for leave to appeal, purportedly on behalf of Theresa C., dismissed upon the ground that the proceeding against her abated upon her death.

COMMITTEE TO SAVE ST. BRIGID'S INC. et al., Appellants, v EDWARD CARDINAL EGAN et al., Respondents.

Submitted August 25, 2008; decided August 28, 2008

Reported below, 45 AD3d 375.

Motion by New York State Catholic Conference for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

EPISCOPAL DIOCESE OF ROCHESTER et al., Respondents, v DAVID HARNISH, as Former Rector of All Saints Protestant Episcopal Church, et al., Appellants, et al., Defendants.

In the Matter of ALL SAINTS ANGLICAN CHURCH, Formerly Known as ALL SAINTS PROTESTANT EPISCOPAL CHURCH, Appellant, v EPISCOPAL DIOCESE OF ROCHESTER et al., Respondents.

Submitted August 25, 2008; decided August 28, 2008

Reported below, 43 AD3d 1406.

Motion by Church of the Good Shepherd et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

PAULA FASSO et al., Respondents, and INDEPENDENT HEALTH ASSOCIATION, INC., Intervenor-Appellant, v RALPH J. DOERR, M.D., Respondent.

Submitted June 30, 2008; decided August 28, 2008

Reported below, 46 AD3d 1358.

Motion by Medical Society of the State of New York for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

BETTY L. KIMMEL, Respondent, v STATE OF NEW YORK et al., Appellants, et al., Defendants.

Submitted May 27, 2008; decided August 28, 2008

Reported below, 49 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge PIGOTT taking no part.

COUNTY OF NASSAU, Respondent, v HUGO ROJAS, Appellant.

Submitted June 9, 2008; decided August 28, 2008

Reported below, 49 AD3d 487.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v AMBER BAUMAN and CHARLES EDWARD LAFLEER, Respondents.

Submitted July 21, 2008; decided August 28, 2008

Reported below, 51 AD3d 316.

Motion for assignment of counsel granted only to the extent that Gary Muldoon, Esq., care of Muldoon & Getz, 144 Exchange Boulevard, Suite 402, Rochester, New York 14614 is assigned without fee to represent respondent Charles Edward Lafler on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RIGOBERTO BENITEZ, Appellant.

Submitted July 14, 2008; decided August 28, 2008

Reported below, 47 AD3d 824.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES CARNCROSS, Appellant.

Submitted August 4, 2008; decided August 28, 2008

Reported below, 48 AD3d 1187.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WALKINS CONTRERAS, Appellant.

Submitted July 7, 2008; decided August 28, 2008

Reported below, 47 AD3d 411.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE FUENTES, Appellant.

Submitted July 21, 2008; decided August 28, 2008

Reported below, 48 AD3d 479.

Motion for assignment of counsel granted and Charles T. Glaws, Esq., care of Gruvman, Giordano & Glaws, LLP, 61 Broadway, Suite 2715, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VICTOR GOMEZ, Respondent.

Submitted July 21, 2008; decided August 28, 2008

Reported below, 50 AD3d 407.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v L. DENNIS KOZLOWSKI, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK H. SWARTZ, Appellant.

Submitted August 18, 2008; decided August 28, 2008

Reported below, 47 AD3d 111.

Motion by Association of Corporate Counsel for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD LOWE, Appellant.

Submitted August 11, 2008; decided August 28, 2008

Reported below, 50 AD3d 516.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON NARADZAY, Appellant.

Submitted July 21, 2008; decided August 28, 2008

Reported below, 50 AD3d 1489.

Motion for assignment of counsel granted and Frank H. Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHELLE ROUSE, Appellant.

Submitted August 11, 2008; decided August 28, 2008

Reported below, 47 AD3d 537.

Motion for assignment of counsel denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW C. SMALL, Appellant.

Submitted July 7, 2008; decided August 28, 2008

Reported below, 48 AD3d 1110.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 North Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LORRAINE WASHINGTON, Appellant.

Submitted August 25, 2008; decided August 28, 2008

Reported below, 51 AD3d 521.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEANDRE WILLIAMS, Appellant, v STATE OF NEW YORK, Respondent.

Submitted June 16, 2008; decided August 28, 2008

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

YADID, LLC, Respondent, v GCW BELL CORP. et al., Defendants,
and JACQUES ROMULUS, Appellant.

Submitted May 27, 2008; decided August 28, 2008

Reported below, 48 AD3d 799.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(August 1, 2008 through August 31, 2008)

Bennefield, Matter of, v Kirkpatrick	4th Dept: 52 AD3d 1226	8/12/08
Waheed, Matter of (FJC Sec. Servs., Inc.—Commissioner of Labor)	3d Dept: 51 AD3d 1348	8/27/08

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2008 through August 31, 2008)

People v Ace	4th Dept: 51 AD3d 1379 (Orleans)	denied 8/28/08 (Pigott, J.)
People v Aleman	1st Dept: 48 AD3d 305 (NY)	granted 8/5/08 (Pigott, J.)
People v Alexander	4th Dept: 51 AD3d 1380 (Onondaga)	denied 8/8/08 (Pigott, J.)
People v Alonso	App Term, 1st Dept: 19 Misc 3d 53 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Anderson	4th Dept: 52 AD3d 1320 (Jefferson)	denied 8/19/08 (Ciparick, J.)
People v Anthony	3d Dept: 52 AD3d 864 (Broome)	denied 8/20/08 (Grafteo, J.)
People v Antoniou	3d Dept: 52 AD3d 938 (Sullivan)	withdrawn 8/7/08 (Grafteo, J.)
People v Artis	App Div, 2d Dept: 2008 NY Slip Op 78530(U) (Rockland)	dismissed 8/22/08 (Pigott, J.)

People v Auguste	2d Dept: 52 AD3d 619 (Queens)	denied 8/29/08 (Grafteo, J.)
People v Bader	App Term, 2d Dept: 2008 NY Slip Op 75621(U) (Nassau)	dismissed 8/12/08 (Jones, J.)
People v Ballard	2d Dept: 51 AD3d 1034 (Kings)	denied 8/8/08 (Smith, J.)
People v Barnes (Thomas)	App Div, 1st Dept: 2008 NY Slip Op 70318(U) (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Barnes (Tommy)	App Div, 1st Dept: 2008 NY Slip Op 70318(U) (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Bassoff	2d Dept: 51 AD3d 682 (Nassau)	denied 8/7/08 (Pigott, J.)
People v Bates	4th Dept: 52 AD3d 1247 (Monroe)	denied 8/22/08 (Pigott, J.)
People v Beepat	1st Dept: 51 AD3d 473 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Bell (George)	4th Dept: 50 AD3d 1602 (Erie)	denied 8/5/08 (Pigott, J.)
People v Bell (George)	4th Dept: 50 AD3d 1603 (Erie)	denied 8/5/08 (Pigott, J.)
People v Bennett (Anthony)	4th Dept: 52 AD3d 1185 (Niagara)	denied 8/19/08 (Ciparick, J.)
People v Bennett (Fitzroy)	2d Dept: 50 AD3d 1047 (Kings)	denied 8/8/08 (Pigott, J.)
People v Beriguete	2d Dept: 51 AD3d 939 (Suffolk)	denied 8/18/08 (Ciparick, J.)
People v Bianco	2d Dept: 51 AD3d 940 (Kings)	denied 8/19/08 (Ciparick, J.)
People v Blake	1st Dept: 51 AD3d 507 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Blanding	1st Dept: 51 AD3d 520 (Bronx)	denied 8/13/08 (Pigott, J.)
People v Bonilla	1st Dept: 51 AD3d 585 (NY)	denied 8/29/08 (Grafteo, J.)
People v Bonner	2d Dept: 50 AD3d 1049 (Suffolk)	denied 8/8/08 (Pigott, J.)
People v Borges (Aaron)	4th Dept: 50 AD3d 1595 (Oneida)	denied 8/18/08 (Ciparick, J.)
People v Borges (George)	1st Dept: 52 AD3d 257 (NY)	denied 8/25/08 (Smith, J.)
People v Borrell	2d Dept: 49 AD3d 890 (Queens)	granted 8/19/08 (Pigott, J.)
People v Borthwick	3d Dept: 51 AD3d 1211 (Schoharie)	denied 8/15/08 (Pigott, J.)
People v Boykins	4th Dept: 50 AD3d 1629 (Wyoming)	denied 8/18/08 (Ciparick, J.)
People v Bradley	4th Dept: 52 AD3d 1261 (Monroe)	denied 8/8/08 (Grafteo, J.)
People v Brant	App Term, 2d Dept: 19 Misc 3d 145(A) (Nassau)	denied 8/27/08 (Kaye, Ch.J.)

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People v Brown (John)	1st Dept: 52 AD3d 248 (NY)	denied 8/15/08 (Pigott, J.)
People v Brown (Josh)	2d Dept: 51 AD3d 685 (Queens)	denied 8/5/08 (Smith, J.)
People v Brown (Rahasheem)	3d Dept: 52 AD3d 943 (Schenectady)	denied 8/29/08 (Grafteo, J.)
People v Buari	1st Dept: 50 AD3d 483 (Bronx)	denied 8/18/08 (Ciparick, J.)
People v Buchanan	4th Dept: 53 AD3d 46 (Chautauqua)	withdrawn 8/5/08 (Smith, J.)
People v Candelaria	2d Dept: 50 AD3d 913 (Kings)	denied 8/19/08 (Kaye, Ch.J.)
People v Carpenter	3d Dept: 52 AD3d 1050 (Warren)	denied 8/15/08 (Pigott, J.)
People v Carrasquillo	4th Dept: 50 AD3d 1547 (Monroe)	denied 8/7/08 (Read, J.)
People v Carter	1st Dept: 51 AD3d 576 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Caswell	4th Dept: 49 AD3d 1257 (Cayuga)	denied 8/13/08 (Pigott, J.)
People v Chandler	2d Dept: 51 AD3d 941 (Queens)	denied 8/15/08 (Pigott, J.)
People v Collier	2d Dept: 52 AD3d 526 (Queens)	denied 8/8/08 (Smith, J.)
People v Colon	1st Dept: 51 AD3d 551 (NY)	denied 8/20/08 (Grafteo, J.)
People v Conroy (Bryan)	1st Dept: 52 AD3d 320 (NY)	denied 8/29/08 (Grafteo, J.)
People v Conroy (James)	1st Dept: 53 AD3d 438 (NY)	denied 8/29/08 (Grafteo, J.)
People v Cook	1st Dept: 52 AD3d 255 (NY)	denied 8/29/08 (Grafteo, J.)
People v Correa	4th Dept: 52 AD3d 1260 (Onondaga)	denied 8/4/08 (Grafteo, J.)
People v Council	1st Dept: 52 AD3d 222 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Crisp	4th Dept: 50 AD3d 1550 (Wyoming)	denied 8/4/08 (Grafteo, J.)
People v Cruz	2d Dept: 50 AD3d 914 (Queens)	denied 8/6/08 (Pigott, J.)
People v Curry	2d Dept: 52 AD3d 732 (Rockland)	dismissed 8/22/08 (Pigott, J.)
People v Darpino	3d Dept: 51 AD3d 1059 (Montgomery)	denied 8/11/08 (Pigott, J.)
People v Davis (Donnell)	2d Dept: 50 AD3d 698 (Westchester)	denied 8/8/08 (Pigott, J.)
People v Davis (Sivad)	App Div, 3d Dept: 2008 NY Slip Op 78065(U) (Broome)	dismissed 8/13/08 (Kaye, Ch.J.)

People v Dean (Eric)	4th Dept: 52 AD3d 1308 (Ontario)	denied 8/26/08 (Smith, J.)
People v Dean (Eric)	4th Dept: 52 AD3d 1309 (Ontario)	denied 8/26/08 (Smith, J.)
People v Demick	App Div, 4th Dept: 2008 NY Slip Op 72268(U) (Cattaraugus)	denied 8/29/08 (Read, J.)
People v Devonish	1st Dept: 51 AD3d 482 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Dietrich	4th Dept: 50 AD3d 1537 (Niagara)	denied 8/6/08 (Pigott, J.)
People v Dorrah	4th Dept: 50 AD3d 1619 (Onondaga)	denied 8/27/08 (Kaye, Ch.J.)
People v Dugin	2d Dept: 51 AD3d 687 (Suffolk)	denied 8/5/08 (Smith, J.)
People v East	4th Dept: 52 AD3d 1248 (Erie)	denied 8/25/08 (Smith, J.)
People v Edwards	4th Dept: 52 AD3d 1266 (Onondaga)	denied 8/4/08 (Grafteo, J.)
People v Ely	App Div, 1st Dept: 2008 NY Slip Op 76499(U) (NY)	dismissed 8/29/08 (Ciparick, J.)
People v Espiritusanto	1st Dept: 51 AD3d 483 (NY)	denied 8/18/08 (Ciparick, J.)
People v Farrell	App Div, 1st Dept: 2008 NY Slip Op 72136(U) (NY)	denied 8/15/08 (Pigott, J.)
People v Farrington	3d Dept: 51 AD3d 1221 (Washington)	denied 8/5/08 (Smith, J.)
People v Fields	1st Dept: 51 AD3d 580 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Francis (James)	4th Dept: 53 AD3d 1112 (Ontario)	denied 8/29/08 (Grafteo, J.)
People v Francis (James)	4th Dept: 53 AD3d 1114 (Ontario)	denied 8/29/08 (Grafteo, J.)
People v Francisco	1st Dept: 51 AD3d 575 (NY)	denied 8/13/08 (Pigott, J.)
People v Frempong	1st Dept: 51 AD3d 506 (NY)	denied 8/5/08 (Smith, J.)
People v Fuentes	4th Dept: 52 AD3d 1297 (Onondaga)	denied 8/29/08 (Grafteo, J.)
People v Garner	4th Dept: 52 AD3d 1265 (Erie)	denied 8/19/08 (Kaye, Ch.J.)
People v Gazader	2d Dept: 51 AD3d 1036 (Kings)	denied 8/5/08 (Smith, J.)
People v Gomez (Alex)	1st Dept: 52 AD3d 395 (Bronx)	denied 8/25/08 (Smith, J.)
People v Gomez (Dominick)	3d Dept: 50 AD3d 1391 (Albany)	denied 8/11/08 (Pigott, J.)
People v Gonzalez	App Term, 2d Dept: 19 Misc 3d 145(A) (Suffolk)	denied 8/12/08 (Pigott, J.)
People v Gratton	3d Dept: 51 AD3d 1219 (Cortland)	denied 8/7/08 (Pigott, J.)

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People v Green	1st Dept: 52 AD3d 376 (NY)	denied 8/27/08 (Kaye, Ch.J.)
People v Griner	4th Dept: 50 AD3d 1557 (Monroe)	denied 8/11/08 (Pigott, J.)
People v Halmond	4th Dept: 52 AD3d 1278 (Monroe)	denied 8/19/08 (Ciparick, J.)
People v Hamilton	1st Dept: 52 AD3d 227 (NY)	denied 8/15/08 (Pigott, J.)
People v Harris	App Div, 1st Dept: 2008 NY Slip Op 69150(U) (NY)	dismissed 8/5/08 (Pigott, J.)
People v Harrison (Gerald)	2d Dept: 51 AD3d 816 (Kings)	denied 8/4/08 (Grafteo, J.)
People v Harrison (Royal)	3d Dept: 52 AD3d 969 (Schenectady)	denied 8/4/08 (Grafteo, J.)
People v Harvey	2d Dept: 50 AD3d 1058 (Rockland)	denied 8/5/08 (Pigott, J.)
People v Hayes	2d Dept: 51 AD3d 688 (Orange)	denied 8/12/08 (Pigott, J.)
People v Hernandez	2d Dept: 46 AD3d 574 (Orange)	denied 8/18/08 (Ciparick, J.)
People v Hill	4th Dept: 53 AD3d 1151 (Erie)	withdrawn 8/29/08 (Ciparick, J.)
People v Holliman	App Div, 3d Dept: 2008 NY Slip Op 73984(U) (Schenectady)	dismissed 8/5/08 (Pigott, J.)
People v Hunt	4th Dept: 52 AD3d 1312 (Monroe)	denied 8/29/08 (Grafteo, J.)
People v Hutcherson	App Div, 3d Dept: 2008 NY Slip Op 68494(U) (Broome)	denied 8/8/08 (Pigott, J.)
People v Hylton	1st Dept: 52 AD3d 261 (NY)	denied 8/29/08 (Grafteo, J.)
People v Irvine	3d Dept: 52 AD3d 866 (St. Lawrence)	denied 8/29/08 (Grafteo, J.)
People v Jackson (Brandon)	4th Dept: 49 AD3d 1220 (Erie)	denied 8/8/08 (Smith, J.)
People v Jackson (James)	1st Dept: 50 AD3d 591 (NY)	denied 8/8/08 (Pigott, J.)
People v Jackson (Timothy)	4th Dept: 52 AD3d 1318 (Monroe)	denied 8/7/08 (Grafteo, J.)
People v Jackson (Valeressa)	1st Dept: 52 AD3d 413 (NY)	denied 8/29/08 (Grafteo, J.)
People v Jackson (Wayne)	1st Dept: 51 AD3d 599 (NY)	denied 8/15/08 (Pigott, J.)
People v Jamison	2d Dept: 50 AD3d 1158 (Nassau)	denied 8/19/08 (Ciparick, J.)
People v Jean-Baptiste	2d Dept: 51 AD3d 1037 (Rockland)	denied 8/29/08 (Grafteo, J.)
People v Jean-Laurent	2d Dept: 51 AD3d 818 (Queens)	denied 8/18/08 (Ciparick, J.)

People v Jenkins (Paul)	1st Dept: 50 AD3d 383 (Bronx)	denied 8/6/08 (Pigott, J.)
People v Jenkins (Rodney)	2d Dept: 52 AD3d 527 (Kings)	denied 8/7/08 (Grafteo, J.)
People v Jennings	3d Dept: 52 AD3d 1116 (Albany)	denied 8/14/08 (Grafteo, J.)
People v Jimenez	4th Dept: 52 AD3d 1276 (Onondaga)	denied 8/6/08 (Smith, J.)
People v John	2d Dept: 51 AD3d 819 (Queens)	denied 8/7/08 (Grafteo, J.)
People v Johnson (Damian)	4th Dept: 52 AD3d 1286 (Monroe)	denied 8/15/08 (Pigott, J.)
People v Johnson (Mark)	1st Dept: 51 AD3d 508 (NY)	denied 8/29/08 (Grafteo, J.)
People v Jones	4th Dept: 52 AD3d 1252 (Niagara)	denied 8/4/08 (Grafteo, J.)
People v Khan Li	1st Dept: 50 AD3d 284 (NY)	denied 8/7/08 (Pigott, J.)
People v Lee	4th Dept: 50 AD3d 1603 (Erie)	denied 8/19/08 (Kaye, Ch.J.)
People v LeGrady	2d Dept: 50 AD3d 1059 (Suffolk)	denied 8/5/08 (Pigott, J.)
People v Lewis (Anthony)	1st Dept: 51 AD3d 475 (Bronx)	denied 8/19/08 (Kaye, Ch.J.)
People v Lewis (Eneagua)	App Term, 1st Dept: 19 Misc 3d 136(A) (Bronx)	denied 8/6/08 (Pigott, J.)
People v Lewis (Lawrence)	App Div, 1st Dept: 2008 NY Slip Op 74217(U) (NY)	dismissed 8/4/08 (Kaye, Ch.J.)
People v Lindsey	2d Dept: 52 AD3d 527 (Kings)	denied 8/18/08 (Grafteo, J.)
People v Lynch	2d Dept: 50 AD3d 824 (Kings)	denied 8/6/08 (Pigott, J.)
People v Mallia	3d Dept: 52 AD3d 964 (Broome)	denied 8/7/08 (Grafteo, J.)
People v Maresca	App Term, 1st Dept: 19 Misc 3d 133(A) (Bronx)	denied 8/18/08 (Ciparick, J.)
People v Mattocks	1st Dept: 51 AD3d 301 (NY)	granted 8/6/08 (Pigott, J.)
People v Maxis	2d Dept: 50 AD3d 922 (Kings)	denied 8/19/08 (Grafteo, J.)
People v May	1st Dept: 52 AD3d 147 (NY)	denied 8/18/08 (Ciparick, J.)
People v McAllister	2d Dept: 47 AD3d 731 (Nassau)	denied reconsideration 8/4/08 (Grafteo, J.)
People v McCloud	1st Dept: 50 AD3d 379 (NY)	denied 8/15/08 (Smith, J.)
People v McCutchen	1st Dept: 50 AD3d 591 (NY)	denied 8/5/08 (Pigott, J.)

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People v McKelvin	1st Dept: 50 AD3d 591 (Bronx)	denied 8/19/08 (Kaye, Ch.J.)
People v McKenzie	2d Dept: 51 AD3d 823 (Putnam)	denied 8/11/08 (Pigott, J.)
People v Mendez (Cynthia)	2d Dept: 51 AD3d 948 (Queens)	denied 8/12/08 (Pigott, J.)
People v Mendez (Simon)	4th Dept: 50 AD3d 1526 (Monroe)	denied 8/7/08 (Grafteo, J.)
People v Mendoza	1st Dept: 50 AD3d 478 (Bronx)	denied 8/11/08 (Pigott, J.)
People v Meseck	3d Dept: 52 AD3d 948 (Clinton)	denied 8/6/08 (Smith, J.)
People v Middleton	2d Dept: 52 AD3d 533 (Nassau)	denied 8/7/08 (Grafteo, J.)
People v Miller	2d Dept: 50 AD3d 1161 (Orange)	denied 8/19/08 (Kaye, Ch.J.)
People v Moore	1st Dept: 50 AD3d 591 (NY)	denied 8/8/08 (Pigott, J.)
People v Morrison	2d Dept: 51 AD3d 1041 (Suffolk)	denied 8/12/08 (Pigott, J.)
People v Morse	County Ct, 1/25/08 (St. Lawrence)	denied reconsideration 8/19/08 (Kaye, Ch.J.)
People v Munford	1st Dept: 49 AD3d 444 (NY)	denied reconsideration 8/4/08 (Grafteo, J.)
People v Murillo	2d Dept: 48 AD3d 833 (Nassau)	denied 8/6/08 (Pigott, J.)
People v Murtaugh	4th Dept: 49 AD3d 1242 (Oswego)	denied 8/27/08 (Kaye, Ch.J.)
People v Myles	App Term, 2d Dept: 2008 NY Slip Op 70449(U) (Nassau)	dismissed 8/8/08 (Ciparick, J.)
People v Nash	2d Dept: 52 AD3d 739 (Suffolk)	denied 8/22/08 (Pigott, J.)
People v Negron	1st Dept: 51 AD3d 577 (NY)	denied* 8/7/08 (Grafteo, J.)
People v Nelson (Jonathan)	3d Dept: 51 AD3d 1137 (Chemung)	denied 8/29/08 (Grafteo, J.)
People v Nelson (Quinn)	2d Dept: 52 AD3d 534 (Queens)	denied 8/19/08 (Ciparick, J.)
People v Nieves	2d Dept: 51 AD3d 1042 (Kings)	denied 8/6/08 (Smith, J.)
People v Noka	1st Dept: 51 AD3d 468 (NY)	denied 8/6/08 (Smith, J.)
People v Olivier	2d Dept: 48 AD3d 486 (Kings)	denied 8/13/08 (Pigott, J.)

* Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Guerrero* (45 AD3d 313 [2007], *lv granted* 10 NY3d 863 [2008]).

People v Ostrom	4th Dept: 50 AD3d 1617 (Cayuga)	denied 8/5/08 (Pigott, J.)
People v Owens	4th Dept: 51 AD3d 1369 (Monroe)	denied 8/7/08 (Grafteo, J.)
People v Parker (Anthony)	1st Dept: 50 AD3d 585 (Bronx)	denied 8/5/08 (Pigott, J.)
People v Parker (Karim)	1st Dept: 50 AD3d 603 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Partee	App Div, 1st Dept: 2008 NY Slip Op 77154(U) (NY)	dismissed 8/29/08 (Ciparick, J.)
People v Pate	3d Dept: 52 AD3d 1118 (Chemung)	denied 8/29/08 (Kaye, Ch.J.)
People v Pearson	1st Dept: 50 AD3d 298 (NY)	denied 8/5/08 (Pigott, J.)
People v Perez (Eduardo)	2d Dept: 51 AD3d 824 (Nassau)	denied 8/19/08 (Kaye, Ch.J.)
People v Perez (Manolito)	2d Dept: 51 AD3d 1043 (Orange)	denied 8/19/08 (Ciparick, J.)
People v Peterson	4th Dept: 50 AD3d 1551 (Erie)	denied 8/6/08 (Pigott, J.)
People v Place	3d Dept: 50 AD3d 1313 (Saratoga)	denied 8/6/08 (Pigott, J.)
People v Pookie	4th Dept: 49 AD3d 1257 (Cayuga)	denied 8/13/08 (Pigott, J.)
People v Raiford	App Term, 2d Dept: 2008 NY Slip Op 70449(U) (Nassau)	dismissed 8/8/08 (Ciparick, J.)
People v Ramos (Adam)	3d Dept: 48 AD3d 984 (Fulton)	denied reconsideration 8/7/08 (Read, J.)
People v Ramos (Angelo)	3d Dept: 48 AD3d 984 (Fulton)	denied reconsideration 8/7/08 (Read, J.)
People v Rampersaud	1st Dept: 52 AD3d 336 (Bronx)	denied 8/29/08 (Grafteo, J.)
People v Ramsey	4th Dept: 48 AD3d 1068 (Orleans)	denied reconsideration 8/18/08 (Ciparick, J.)
People v Ricks	4th Dept: 49 AD3d 1265 (Erie)	denied reconsideration 8/13/08 (Pigott, J.)
People v Rivera	1st Dept: 50 AD3d 458 (NY)	denied 8/8/08 (Pigott, J.)
People v Robinson	4th Dept: 52 AD3d 1291 (Monroe)	denied 8/22/08 (Pigott, J.)
People v Rodriguez (Jaime)	2d Dept: 51 AD3d 950 (Kings)	denied 8/18/08 (Ciparick, J.)

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People v Rodriguez (Jose)	1st Dept: 52 AD3d 319 (NY)	denied 8/15/08 (Pigott, J.)
People v Rodriguez (Michael)	1st Dept: 52 AD3d 259 (NY)	denied 8/19/08 (Ciparick, J.)
People v Rodriguez (Victor)	1st Dept: 52 AD3d 249 (NY)	denied 8/6/08 (Smith, J.)
People v Roker	2d Dept: 52 AD3d 538 (Kings)	denied 8/4/08 (Grafteo, J.)
People v Rollerson	4th Dept: 50 AD3d 1558 (Erie)	denied 8/19/08 (Kaye, Ch.J.)
People v Rorris	3d Dept: 52 AD3d 869 (Ulster)	denied 8/6/08 (Smith, J.)
People v Ross	2d Dept: 52 AD3d 624 (Kings)	denied 8/22/08 (Pigott, J.)
People v Sanders	2d Dept: 51 AD3d 825 (Queens)	denied 8/8/08 (Smith, J.)
People v Scanlon	3d Dept: 52 AD3d 1035 (Broome)	denied 8/22/08 (Pigott, J.)
People v Shankle	2d Dept: 46 AD3d 924 (Kings)	denied reconsideration 8/18/08 (Ciparick, J.)
People v Shorts	2d Dept: 52 AD3d 540 (Suffolk)	denied 8/8/08 (Smith, J.)
People v Singletary	3d Dept: 51 AD3d 1334 (Albany)	denied 8/19/08 (Ciparick, J.)
People v Singleton	App Div, 1st Dept, 5/1/08 (Bronx)	dismissed 8/14/08 (Grafteo, J.)
People v Sinkler	App Div, 4th Dept, 6/20/08 (Ontario)	dismissed 8/6/08 (Pigott, J.)
People v Smith (Brett)	1st Dept: 52 AD3d 232 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Smith (Patrick)	App Div, 1st Dept: 2008 NY Slip Op 71187(U) (Bronx)	denied 8/19/08 (Ciparick, J.)
People v Snyder	1st Dept: 51 AD3d 602 (Bronx)	denied 8/6/08 (Smith, J.)
People v Soberanis	1st Dept: 52 AD3d 416 (NY)	denied 8/29/08 (Grafteo, J.)
People v Soler	3d Dept: 52 AD3d 938 (Albany)	denied 8/29/08 (Grafteo, J.)
People v Stevenson	2d Dept: 52 AD3d 746 (Suffolk)	denied 8/19/08 (Kaye, Ch.J.)
People v Stokes	App Div, 4th Dept, 6/26/08 (Erie)	dismissed 8/13/08 (Pigott, J.)
People v Stovall	4th Dept: 52 AD3d 1247 (Niagara)	denied 8/18/08 (Ciparick, J.)
People v Streeter	1st Dept: 52 AD3d 249 (NY)	denied 8/6/08 (Smith, J.)

People v Stuart	1st Dept: 51 AD3d 547 (NY)	denied 8/19/08 (Ciparick, J.)
People v Stuckey	1st Dept: 50 AD3d 447 (Bronx)	denied 8/8/08 (Pigott, J.)
People v Tancredi	1st Dept: 52 AD3d 326 (NY)	denied 8/29/08 (Grafteo, J.)
People v Terborg	4th Dept: 52 AD3d 1277 (Monroe)	denied 8/19/08 (Kaye, Ch.J.)
People v Thomas	2d Dept: 46 AD3d 712 (Queens)	denied reconsideration 8/15/08 (Pigott, J.)
People v Thompson	1st Dept: 51 AD3d 500 (Bronx)	denied 8/4/08 (Grafteo, J.)
People v Timmons	4th Dept: 50 AD3d 1528 (Monroe)	denied 8/6/08 (Pigott, J.)
People v Townsley	4th Dept: 50 AD3d 1610 (Wyoming)	denied 8/12/08 (Pigott, J.)
People v Vargas	1st Dept: 52 AD3d 319 (NY)	denied 8/15/08 (Pigott, J.)
People v Vicente	1st Dept: 50 AD3d 387 (NY)	denied 8/19/08 (Kaye, Ch.J.)
People v Wade	1st Dept: 51 AD3d 601 (NY)	denied 8/19/08 (Ciparick, J.)
People v Walker	App Div, 1st Dept: 2008 NY Slip Op 75055(U) (NY)	dismissed 8/12/08 (Jones, J.)
People v Wall	4th Dept: 48 AD3d 1107 (Oneida)	denied 8/6/08 (Pigott, J.)
People v Washington	4th Dept: 50 AD3d 1539 (Genesee)	denied 8/7/08 (Grafteo, J.)
People v Waters	App Div, 2d Dept: 2007 NY Slip Op 61386(U) (Kings)	dismissed 8/6/08 (Pigott, J.)
People v Wdowik	County Ct, 4/24/08 (Erie)	denied 8/6/08 (Smith, J.)
People v Webber	4th Dept: 50 AD3d 1534 (Wayne)	denied 8/8/08 (Pigott, J.)
People v White	3d Dept: 52 AD3d 950 (Albany)	denied 8/19/08 (Kaye, Ch.J.)
People v Whitmore	App Div, 3d Dept: 2008 NY Slip Op 75332(U) (Broome)	dismissed 8/4/08 (Kaye, Ch.J.)
People v Whittington	1st Dept: 52 AD3d 320 (Bronx)	denied 8/22/08 (Pigott, J.)
People v Wilburn	4th Dept: 50 AD3d 1617 (Monroe)	denied 8/19/08 (Kaye, Ch.J.)
People v Wilks	1st Dept: 50 AD3d 520 (NY)	denied 8/8/08 (Pigott, J.)
People v Williams (Eric)	2d Dept: 50 AD3d 709 (Suffolk)	denied 8/29/08 (Kaye, Ch.J.)

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People v Williams (Linda)	1st Dept: 52 AD3d 208 (NY)	denied 8/18/08 (Ciparick, J.)
People v Williams (Mario)	App Div, 4th Dept, 7/11/08 (Oneida)	dismissed 8/12/08 (Jones, J.)
People v Wilson (Dwayne)	3d Dept: 52 AD3d 941 (Schenectady)	denied 8/8/08 (Smith, J.)
People v Wilson (Everette)	1st Dept: 52 AD3d 239 (NY)	denied 8/22/08 (Pigott, J.)
People v Wilson (James)	4th Dept: 53 AD3d 1108 (Niagara)	denied 8/29/08 (Grafteo, J.)
People v Wimes	4th Dept: 49 AD3d 1286 (Erie)	denied 8/5/08 (Pigott, J.)
People v Winston	4th Dept: 52 AD3d 1274 (Erie)	denied 8/18/08 (Ciparick, J.)
People v Zimmerman	1st Dept: 51 AD3d 536 (NY)	denied 8/18/08 (Ciparick, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(August 1, 2008 through August 31, 2008)

People v Goldstein	3d Dept: 51 AD3d 1271 (Sullivan)	granted 8/27/08 (Lahtinen, J.)
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ELEANOR DUFFY, Appellant, v JAMES M. VOGEL et al., Respondents, et al., Defendant.

Submitted June 16, 2008; decided September 2, 2008

Reported below, 49 AD3d 22.

Motion to dismiss appeal denied.

In the Matter of WOODROW FLEMMING, Appellant, v FRANK RIZZO et al., Respondents.

Submitted June 23, 2008; decided September 2, 2008

Reported below, 2008 NY Slip Op 70840(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

* Includes only applications that were granted.

MONIR HOSSEINIYAR, Respondent, v ALI ALIMEHRI, Appellant.

Submitted June 16, 2008; decided September 2, 2008

Reported below, 48 AD3d 635.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

MICHAEL ISRAEL et al., Respondents, v SURINDER S. CHABRA, Appellant, et al., Defendant.

Decided September 2, 2008

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

MARIO MIGUEL JARAMILLO, Appellant, v WEYERHAEUSER COMPANY et al., Respondents, et al., Defendant.

Decided September 2, 2008

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAIAS UMALI, Appellant.

Submitted June 16, 2008; decided September 2, 2008

Reported below, 37 AD3d 164.

Motion for reargument denied [*see* 10 NY3d 417 (2008)].

JOEL B. WATERMAN, Appellant, v WEINSTEIN MEMORIAL CHAPEL
et al., Respondents.

Submitted May 19, 2008; decided September 2, 2008

Reported below, 49 AD3d 717.

Motion, insofar as it seeks leave to appeal as against defendants Westchester Vault Co., Inc., Anne Cook and Norwalk Wilbert Vault Company of Bridgeport, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal as against the remaining defendants, dismissed upon the ground that appellant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

[896 NE2d 658, 867 NYS2d 23]

In the Matter of INEZ D. BARRON et al., Respondents, v BOARD
OF ELECTIONS IN THE CITY OF NEW YORK, Appellant.

Argued August 26, 2008; decided September 4, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 3, 2008. The Appellate Division modified, on the law, an order of the Supreme Court, Kings County (David I. Schmidt, J.), which, in an Election Law article 16 proceeding, had granted the petition to compel the Board of Elections in the City of New York to conduct a primary election to be held on September 9, 2008 for the party nominations of candidates to fill a vacancy in the public office of Member of the New York State Assembly from the 40th Assembly District for the term of office ending December 31, 2008, and a general election to be held on November 4, 2008 to fill the vacancy in that office for the term of office ending December 31, 2008, and fixed July 2, 2008 as the commencement date for the circulation of designating petitions for the primary election to be held on September 9, 2008. The modification consisted of providing that the period for circulating the designating petitions commence on June 3, 2008 as provided by the Election Law. The Appellate Division affirmed the order as modified.

Matter of Barron v Board of Elections in City of N.Y., 53 AD3d 510, reversed.

HEADNOTE**Public Officers — Vacancy in Office — Member of Assembly**

The Board of Elections in the City of New York was not required to conduct primary and general elections to fill a vacancy in the public office of Member of the New York State Assembly for the 40th District for the term of office ending December 31, 2008, where the vacancy occurred on April 8, 2008. Although Public Officers Law § 42 (1) generally provides for the filling of vacancies at the next general election if the vacancy occurs before September 20th, subdivision (4) modifies the general rule for vacancies occurring in the office of Member of the Assembly. Under subdivision (4), a special election to fill a vacancy occurring in such office can be held only in limited circumstances, not present here, and if such special election is not held as required by law, the office—meaning the new upcoming Assembly term, not the vacancy—shall be filled at the next general election. The words “term,” “office” and “vacancy” were not used by the Legislature interchangeably in the statute.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (Pamela Seider Dolgow, Stephen Kitzing and John Hogrogian of counsel), for appellant.

Aaron D. Maslow, Brooklyn, for respondents.

Todd S. Valentine, Albany, for State Board of Elections, amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, without costs, and the petition dismissed.

On April 8, 2008, Member of Assembly Diane Gordon representing the 40th Assembly District in Kings County was convicted of various felonies, and by operation of law her office became vacant (Public Officers Law § 30 [1] [e]). On April 16, 2008, the State Board of Elections certified the vacancy, for a term ending December 31, 2008, to the Board of Elections in the City of New York.

Respondent Inez D. Barron, who was circulating designating petitions as candidate for the office of Member of Assembly for the 40th Assembly District for the term commencing January 1, 2009, also circulated petitions for the vacancy term ending December 31, 2008 of the same office. After learning that the Board did not intend to conduct an election to fill the term created by the vacancy, Barron and two candidates commenced a special proceeding, pursuant to Election Law §§ 16-100 and 16-104, to compel the Board to conduct primary and general elections to fill the vacancy term ending December 31, 2008.

Supreme Court, after a hearing, ordered the Board to conduct primary and general elections to fill the vacancy. In addition, the court set July 2, 2008 as the starting date for the circulation of designating petitions to eliminate the perceived unfair head start Barron had in acquiring signatures. The Appellate Division affirmed the order requiring the simultaneous elections but modified the date for commencement of the circulation of designating petitions to June 3, 2008, consistent with Election Law § 6-134 (4) and § 6-158 (1). We now reverse.

Public Officers Law § 42 (1) states the general rule for the filling of vacancies. It provides:

“A vacancy occurring before September twentieth of any year in any office authorized to be filled at a general election, except in the offices of governor or lieutenant-governor, shall be filled at the general election held next thereafter, unless otherwise provided by the constitution, or unless previously filled at a special election.”

Public Officers Law § 42 (4) further provides a special rule applicable only to members of Congress, state senators and assembly members:

“A special election shall not be held to fill a vacancy in the office of . . . member of assembly, unless the vacancy occurs before the first day of April of the last year of the term of office, or unless the vacancy occurs . . . after such first day of April and a special session of the legislature be called to meet between such first day of April and the next general election or be called after September nineteenth in such year. If a special election to fill an office shall not be held as required by law, the office shall be filled at the next general election.”

Although subdivision (1) generally provides for the filling of vacancies at the next general election if the vacancy occurs before September 20th, subdivision (4) modifies the general rule for vacancies occurring in the office of Member of Assembly. Under subdivision (4), a special election to fill a vacancy occurring in such office can be held only in limited circumstances and if such special election is not held as required by law, the office—meaning the new upcoming Assembly term, not the vacancy—shall be filled at the next general election.

Our holding is consistent with the intent of Public Officers Law § 42. Historically, the Legislature recessed or adjourned its

regular session before April first of each year—the end of the fiscal year (*see* Zimmerman, Government and Politics of New York State, at 122 [1981]). While longer legislative sessions are commonplace today, they were rare when the predecessor to section 42 (4) was enacted in 1896 (L 1896, ch 909, as amended). The wording of the section has remained unchanged in the intervening years. Thus, unless a special session of the Legislature is called—in which case a special election would be authorized under subdivision (4)—the language of the statute indicates that the Legislature intended to allow a vacancy in the office of Member of Assembly occurring after April first in the last year of a term of office to remain unfilled for the remainder of the unexpired term, since no additional business was contemplated for the remainder of the year. Indeed, it would be anomalous to require the Board of Elections to assume the burden and expense of simultaneously conducting a regular general election for the term commencing January first and a separate general election to fill the vacancy for the last two months of the year (particularly when the statute potentially leaves the office vacant for a period of up to seven months).

Here, the vacancy occurred after April first in the last year of the term of office; accordingly, Public Officers Law § 42 (4) applies. In other words, the office will remain vacant for the remainder of the unexpired term but will be filled at the next general election by the successful candidate running for the regular term of office commencing January first of the following year.

Respondent's argument that the words "term," "office" and "vacancy" are used by the Legislature interchangeably in the statute is unpersuasive. In subdivisions (1) and (4), the Legislature used the word "vacancy" to refer to the unexpired term of office as a result of a vacancy (*see* Public Officers Law § 42 [1], [4]). However, elsewhere in the statute, the word "office" clearly refers to the position—in this case, Member of the Assembly for the 40th District—not the unexpired term. Thus, in specifying in subdivision (4) that "the office shall be filled at the next general election," the Legislature was not directing a separate election for the unexpired term (*see* Public Officers Law § 42 [4]). Rather, it was indicating that none of the triggers for a special election to fill the vacancy having occurred, the position would be filled in the usual course with the successor assuming office on January first at the commencement of the next legislative term.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

In the Matter of INEZ D. BARRON et al., Respondents, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Appellant.

Submitted August 26, 2008; decided September 4, 2008

Reported below, 53 AD3d 510.

Motion by Todd Valentine, Esq., as Coexecutive Director of State Board of Elections, to file a letter amicus curiae on the appeal herein granted and the letter accepted as filed.

In the Matter of LEE A. GOLDBERG, Respondent, v THELEN REID BROWN RAYSMAN & STEINER LLP et al., Appellants.

Submitted July 7, 2008; decided September 4, 2008

Reported below, 52 AD3d 392.

Motion for leave to appeal denied. Cross motion to vacate stay denied. Cross motion for imposition of sanctions denied.

GERALD GOLDMAN et al., Appellants, v AKIN GUMP STRAUSS HAUER & FELD LLP et al., Respondents.

Submitted June 16, 2008; decided September 4, 2008

Reported below, 46 AD3d 481.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellants' motions for leave to amend the complaint and for renewal, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LOUIS ANTHONY GRAFFEO, Respondent, v DEBRA CAROL PACIELLO, Also Known as DEBRA CAROL GRAFFEO, Appellant.

Submitted July 7, 2008; decided September 4, 2008

Reported below, 46 AD3d 613.

Motion for reargument of motion for leave to appeal denied [*see* 10 NY3d 891 (2008)]. Motion for a stay dismissed as academic.

IDT CORPORATION, Respondent, v MORGAN STANLEY DEAN WITTER & CO. et al., Appellants.

Submitted June 30, 2008; decided September 4, 2008

Reported below, 45 AD3d 419.

Motion to dismiss appeal denied.

In the Matter of DARYLL BOYD JONES, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted July 14, 2008; decided September 4, 2008

Reported below, 51 AD3d 294.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

JOSEPH KASSIS et al., Appellants, v THE OHIO CASUALTY INSURANCE COMPANY, Respondent.

Submitted September 2, 2008; decided September 4, 2008

Reported below, 51 AD3d 1366.

Motion by Siller Wilk LLP for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of GILBERT LAU, Appellant, v LUCINDO SUAREZ et al., Respondents.

Submitted July 28, 2008; decided September 4, 2008

Reported below, 44 AD3d 312.

Motion for reargument denied [*see* 10 NY3d 714 (2008)]. Motion for poor person relief dismissed as academic.

LUNA LIGHTING, INC., Appellant, v JUST INDUSTRIES, INC., Respondent, et al., Defendants.

Submitted July 21, 2008; decided September 4, 2008

Reported below, 45 AD3d 814.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 10 NY3d 712 (2008)].

JEROME MCSORLEY, Appellant, v KAY L. SPEAR, Respondent.

Submitted August 11, 2008; decided September 4, 2008

Reported below, 50 AD3d 652.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 10 NY3d 715 (2008)].

DIANE MORRIS, Appellant, v SOLOW MANAGEMENT CORPORATION TOWNHOUSE COMPANY, L.L.C., et al., Respondents, et al., Defendants.

Submitted June 23, 2008; decided September 4, 2008

Reported below, 46 AD3d 330.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ELAINE PACHTER, Respondent, v BERNARD HODES GROUP, INC., Appellant.

Submitted July 21, 2008; decided September 4, 2008

Motion for reargument denied [*see* 10 NY3d 609 (2008)].

JOAN E. PEEBLES, Respondent, v ROBERT M. PEEBLES JR. et al., Respondents, et al., Defendants, and DAVID PEEBLES, Appellant.

Submitted July 14, 2008; decided September 4, 2008

Motion for reargument of motion for leave to appeal denied [*see* 10 NY3d 893 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN
CARLOS ALEMAN, Appellant.

Submitted September 2, 2008; decided September 4, 2008

Reported below, 48 AD3d 305.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON-
ALD FRANCE, Appellant.

Submitted September 2, 2008; decided September 4, 2008

Reported below, 50 AD3d 266.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

In the Matter of the Estate of ELLEN PITERNAK, Deceased. ROBERT J. PITERNAK et al., Appellants; ELLEN CINQUE, Respondent.

Submitted August 18, 2008; decided September 4, 2008

Reported below, 51 AD3d 931.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SEASIA D. MR. ANONYMOUS et al., Appellants; KAREEM W., Respondent. TENISHA D., Nonparty Respondent.

Submitted July 21, 2008; decided September 4, 2008

Reported below, 46 AD3d 878.

Motion for reargument denied [*see* 10 NY3d 879 (2008)].

In the Matter of RICHARD STEVENS (Admitted as RICHARD ZELMA), a Disbarred Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted July 28, 2008; decided September 4, 2008

Reported below, 2008 NY Slip Op 74221(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SANTOS SUAREZ, Appellant, v JOHN BYRNE, as Acting Justice of the Supreme Court, Bronx County, et al., Respondents.

Submitted July 7, 2008; decided September 4, 2008

Reported below, 40 AD3d 546.

Motion for reargument denied [*see* 10 NY3d 523 (2008)].

TAG 380, LLC, Respondent, v COMMET 380, INC., Appellant.
(And a Third-Party Action.)

Submitted July 14, 2008; decided September 4, 2008

Reported below, 40 AD3d 1.

Motion for reargument denied [*see* 10 NY3d 507 (2008)].

In the Matter of TAX LIENS. VINCENT TERIO, Appellant; COUNTY OF PUTNAM, Respondent.

Submitted June 30, 2008; decided September 4, 2008

Reported below, 2008 NY Slip Op 65254(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of VINCENT TERIO, Appellant, v SYSTEMS & SERVICES TECHNOLOGIES, INC., Respondent.

Submitted June 30, 2008; decided September 4, 2008

Reported below, 52 AD3d 519.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

In the Matter of YUJO VELASQUEZ, Appellant, v EDWARD DAVID-OWITZ, as Justice of the Supreme Court, Bronx County, et al., Respondents. (And Another Proceeding.)

Submitted June 30, 2008; decided September 4, 2008

Reported below, 2008 NY Slip Op 71558(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

[895 NE2d 518, 865 NYS2d 589]

In the Matter of MARY ELLIS, Respondent, v KEVIN P. MAHON et al., Appellants.

Decided September 9, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 4, 2008, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Westchester County). The Appellate Division order, insofar as appealed from, (1) granted the petition, on the law and in the exercise of discretion, to review a determination of respondent Commissioner of the Westchester County Department of Social Services, which had adopted the hearing officer's finding and recommendation, made after a hearing, finding petitioner guilty of acts of incompetence and terminating her employment as an eligibility examiner II, to the extent of annulling the penalty and reinstating petitioner to her position with back pay and benefits, and (2) remitted the matter to respondents for the imposition of an appropriate penalty less severe than either termination or suspension of petitioner's employment.

Matter of Ellis v Mahon, 49 AD3d 538, reversed.

HEADNOTE

Civil Service — Disciplinary Punishment — Termination of Employment

In a CPLR article 78 proceeding to review a determination of respondent Commissioner of the Westchester County Department of Social Services which had adopted the finding and recommendation of a hearing officer finding petitioner guilty of acts of incompetence and terminating her employment, the Appellate Division lacked discretionary authority or interest of justice jurisdiction to review and annul the penalty imposed. Further, it could not be concluded that the penalty of termination shocked the judicial conscience where petitioner, employed as an eligibility examiner, processed food stamp applications in particularly late fashion, even after multiple warnings concerning her poor performance.

APPEARANCES OF COUNSEL

Charlene M. Indelicato, County Attorney, White Plains (*Thomas G. Gardiner* of counsel), for appellants.

Lovett & Gould, LLP, White Plains (*Jane Bilus Gould* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the petition dismissed in its entirety.

Petitioner, employed as an eligibility examiner tasked with processing food stamp applications, consistently processed such applications in particularly late fashion, even after multiple warnings concerning her poor performance. Accordingly, we cannot conclude that the penalty of termination shocks the judicial conscience (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233-234 [1974]). We reiterate that the Appellate Division has no discretionary authority or interest of justice jurisdiction in this CPLR article 78 proceeding to review the penalty imposed by respondent Commissioner of the Westchester County Department of Social Services (*see Matter of Torrance v Stout*, 9 NY3d 1022, 1023 [2008]; *Matter of Rutkunas v Stout*, 8 NY3d 897, 899 [2007]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, etc.

[894 NE2d 1192, 864 NYS2d 802]

VICTOR PERI et al., Respondents, v CITY OF NEW YORK, Appellant, et al., Defendants.

Decided September 9, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 23, 2007. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Paul A. Victor, J.; 8 Misc 3d 369), which had granted a motion by defendant LSL Services for summary judgment, to the extent of dismissing claims on behalf of plaintiff Jose Peri, granted the motion by defendant City of New York for partial summary judgment to the extent of dismissing all claims except those relating to plaintiffs' second period of occupancy in its building, and granted plaintiffs' cross motion to the extent of deeming later notices of claim against the City timely served. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Plaintiffs commenced this action seeking damages for injuries sustained when the infant plaintiffs allegedly ingested lead paint while living in a city-owned building.

The Appellate Division majority concluded that whether the City had notice of an infant resident was a triable issue of fact which precluded summary judgment; that uncontroverted affidavits by plaintiff mother and her sister, the tenant of record, created issues of fact as to whether the City had notice that a child under seven resided in the city-owned building; that the affidavits indicated that the building superintendent saw the child at the sister's apartment and that he recognized the sister; and that the City failed to show that the affidavits contradicted plaintiff mother's deposition testimony.

Peri v City of New York, 44 AD3d 526, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Lead Paint Poisoning

In an action arising from the infant plaintiffs' alleged ingestion of lead paint while residing in a building owned by the City of New York, an Appel-

late Division order which affirmed an order dismissing plaintiffs' claim against the City, except those claims relating to plaintiffs' second period of occupancy in the City's building, and granted plaintiffs' cross motion to the extent of deeming the notices of claim timely served, was affirmed for the reasons stated at the Appellate Division. That Court concluded that whether the City had notice of an infant resident was a triable issue of fact which precluded summary judgment; and that the small size of the building, and the fact that the superintendent was familiar with plaintiffs from a prior period of occupancy, as well as the uncontroverted affidavits and deposition testimony indicating that the superintendent was aware of the plaintiffs' presence on the premises at the time in question, all served to create an issue of fact on the question of notice to the City.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Karen M. Griffin* of counsel), for appellant.

Fitzgerald & Fitzgerald, P.C., Yonkers (*John M. Daly* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative for the reasons stated in the memorandum at the Appellate Division (44 AD3d 526 [1st Dept 2007]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[896 NE2d 75, 866 NYS2d 592]

ANTHONY QUATTROCCHI, Respondent, v F.J. SCIAME CONSTRUCTION CORP., Respondent. F.J. SCIAME CONSTRUCTION CO., INC., Sued Herein as F.J. SCIAME CONSTRUCTION CORP., Third-Party Plaintiff-Respondent, v COMPLETE CONSTRUCTION CONSORTIUM, INC., Third-Party Defendant-Respondent, and UNITED AIRCONDITIONING CORP., Third-Party Defendant-Appellant.

Decided September 9, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 9, 2007. The Appellate Division

modified, on the law, an order of the Supreme Court, New York County (Harold Beeler, J.), which had denied the motions of third-party defendant United Airconditioning Corp. and third-party plaintiff F.J. Sciamé Construction Co., Inc. for summary judgment and granted partial summary judgment to plaintiff on his Labor Law § 240 (1) claim. The modification consisted of denying partial summary judgment on plaintiff's Labor Law § 240 (1) claim. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, New York County, properly made?"

Quattrocchi v F.J. Sciamé Constr. Corp., 44 AD3d 377, affirmed.

HEADNOTE

Labor — Safe Place to Work — Falling Object

In an action to recover damages for injuries sustained when plaintiff allegedly was struck by falling planks that had been placed over open doors as a makeshift shelf to facilitate the installation of an air conditioner above a doorway, plaintiff was properly denied partial summary judgment on his Labor Law § 240 (1) claim. "Falling object" liability under Labor Law § 240 (1) is not limited to cases in which the falling object is in the process of being hoisted or secured. Here, triable questions of fact existed, including whether the planks were adequately secured in light of the purposes of the plank assembly and whether plaintiff caused the accident by jostling the doors after disregarding a warning not to enter the doorway area.

APPEARANCES OF COUNSEL

Smith Mazure Director Wilkins Young & Yagerman, P.C., New York City (*Joel M. Simon* of counsel), for third-party appellant.

Sacks and Sacks LLP, New York City (*Scott N. Singer* of counsel), for respondent.

Quirk and Bakalor, P.C., New York City (*Dara L. Rosenbaum*), for Complete Construction Consortium, Inc., third-party respondent.

Nicoletti Hornig & Sweeney, New York City (*Barbara A. Sheehan* of counsel), for F.J. Sciamé Construction Co., Inc., for third-party respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed, with costs, and the certified question answered in the affirmative.

As our holding in *Outar v City of New York* indicates, "falling object" liability under Labor Law § 240 (1) is not limited to

cases in which the falling object is in the process of being hoisted or secured (5 NY3d 731 [2005], *affg* 11 AD3d 593 [2d Dept 2004]). In this case, plaintiff alleges that he was struck by falling planks that had been placed over open doors as a makeshift shelf to facilitate the installation of an air conditioner above a doorway. We agree with the Appellate Division majority that triable questions of fact preclude summary judgment on plaintiff's Labor Law § 240 (1) claim, including whether the planks were adequately secured in light of the purposes of the plank assembly and whether plaintiff caused the accident by jostling the doors after disregarding a warning not to enter the doorway area. Accordingly, the Appellate Division properly modified Supreme Court's order to the extent of denying partial summary judgment on plaintiff's Labor Law § 240 (1) claim.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

AG CAPITAL FUNDING PARTNERS, L.P., et al., Appellants, v STATE STREET BANK AND TRUST COMPANY, Respondent. (And Other Actions.)

Submitted August 4, 2008; decided September 9, 2008

Reported below, 40 AD3d 392.

Motion for reargument denied [*see* 11 NY3d 146 (2008)].

ARLENE C. FARKAS, Appellant-Respondent, v BRUCE R. FARKAS, Respondent-Appellant.

Submitted August 25, 2008; decided September 9, 2008

Reported below, 40 AD3d 207.

Motion to strike a portion of appellant-respondent's brief denied with \$100 costs and necessary reproduction disbursements.

ARLENE C. FARKAS, Appellant-Respondent, v BRUCE R. FARKAS,
Respondent-Appellant.

Submitted September 8, 2008; decided September 9, 2008

Reported below, 40 AD3d 207.

Motion to strike appellant-respondent's supplemental submission denied with \$100 costs and necessary reproduction disbursements.

VICKY R. GABAY, Respondent, v IRVING BENDER et al., as
Personal Representatives of WILLIAM GOTTLIEB and MOLLY
BENDER, Deceased, Appellants. ALLAN H. CARLIN, ESQ.,
Nonparty Appellant.

Submitted May 19, 2008; decided September 9, 2008

Reported below, 34 AD3d 207; 2007 NY Slip Op 71813(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of SHAWN GREEN, Appellant, v DONALD SELSKY, as
Director of Special Housing and Inmate Disciplinary
Programs, et al., Respondents.

Submitted August 4, 2008; decided September 9, 2008

Reported below, 50 AD3d 1405.

Motion for reargument of motion for leave to appeal denied
[see 10 NY3d 716 (2008)].

In the Matter of VIVIAN L. HAUSCH, a Suspended Attorney, Appellant.

Submitted July 21, 2008; decided September 9, 2008

Reported below, 2008 NY Slip Op 64537(U).

Motion for reargument of motion for leave to appeal denied
[see 10 NY3d 713 (2008)].

JPMORGAN CHASE BANK, N.A., Appellant, v ROCAR REALTY
NORTHEAST, INC., Respondent, et al., Defendant.

Submitted June 16, 2008; decided September 9, 2008

Reported below, 47 AD3d 425.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SAMSON ODUMBO, Respondent, v GAMAGE D. PERERA, Appellant.

Submitted July 21, 2008; decided September 9, 2008

Reported below, 50 AD3d 658.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ONE BEACON INSURANCE COMPANY, as Subrogee of Dooney &
Bourke, Inc., Respondent, v FRENCH INSTITUTE ALLIANCE
FRANCAIS NYC, Appellant, et al., Defendants.

Submitted June 23, 2008; decided September 9, 2008

Reported below, 50 AD3d 388.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEN-
NETH GOODWIN, Appellant.

Submitted July 28, 2008; decided September 9, 2008

Reported below, 49 AD3d 619.

Motion for reargument denied [*see* 10 NY3d 713 (2008)]. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWAYNE
MIDDLETON, Appellant.

Submitted June 19, 2008; decided September 9, 2008

Reported below, 50 AD3d 1114.

Motion for leave to appeal granted. Motion for poor person relief granted.

OWEN J. PETERSON et al., Appellants, v COMMERCE STREET PROPERTIES, INC., Respondent.

Submitted June 30, 2008; decided September 9, 2008

Reported below, 49 AD3d 836.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JAMES SHOYAK, Appellant, v LONG ISLAND COMMERCIAL BANK, Respondent.

Submitted June 16, 2008; decided September 9, 2008

Reported below, 50 AD3d 1118.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's cross motion for leave to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

[896 NE2d 660, 867 NYS2d 25]

STANLEY OKUN, Respondent, v PAUL TANNERS, Appellant.

Decided September 11, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 17, 2008. The Appellate Division affirmed an order of the Supreme Court, New York County (Charles E. Ramos, J.), which had granted defendant's motion to dismiss the action as abandoned unless plaintiff paid defendant's attorney \$1,000 and granted plaintiff's cross motion to restore the action to the trial calendar upon the same condi-

tion. The following question was certified by the Appellate Division: “Was the order of this Court, which affirmed the order of the Supreme Court, properly made?”

Plaintiff filed a note of issue in a breach of contract action in July 2004. In May 2005, Supreme Court struck the action from the trial calendar based on plaintiff’s counsel’s failure to appear at four pretrial conferences. In January 2007, defendant moved to dismiss the action based on plaintiff’s failure to move to restore the action within one year. Plaintiff cross-moved to restore the action.

Okun v Tanners, 47 AD3d 475, reversed.

HEADNOTE

Dismissal and Nonsuit — Restoring Action to Calendar

In a breach of contract action wherein a note of issue was filed in July 2004, Supreme Court struck the action from the trial calendar in May 2005 based on plaintiff’s counsel’s failure to appear at four pretrial conferences, and defendant moved in January 2007 to dismiss the action as abandoned based on plaintiff’s failure to restore the action to the calendar within one year, plaintiff’s cross motion to restore was denied and defendant’s motion to dismiss on the ground of abandonment was dismissed as unnecessary. Plaintiff’s conclusory and unsubstantiated claim of law office failure did not constitute a reasonable excuse for the 20-month delay in pursuing the action. Further, plaintiff’s inactivity between the time the action was marked off the calendar and defendant’s motion to dismiss failed to rebut the presumption of abandonment (CPLR 3404).

APPEARANCES OF COUNSEL

Rosenberg Feldman Smith, LLP, New York City (*Michael H. Smith* and *Richard B. Feldman* of counsel), for appellant.

Shaw, Licitra, Gulotta, Esernio & Henry, P.C., Garden City (*Thomas M. Hoey, Jr.*, of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, plaintiff’s cross motion to restore the action to the calendar denied and defendant’s motion to dismiss the action as abandoned dismissed as unnecessary. The certified question should be answered in the negative.

Under the circumstances, plaintiff’s conclusory and unsubstantiated claim of law office failure does not constitute a reasonable excuse for the 20-month delay in pursuing the action. Further, plaintiff’s inactivity between the time the action was marked off the calendar and defendant’s motion to dismiss fails

to rebut the presumption of abandonment that arose pursuant to CPLR 3404.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[896 NE2d 77, 866 NYS2d 594]

DAMON FRUTCHEY, an Infant, by GREGG FRUTCHEY, His Parent and Guardian, et al., Appellants, v JACQUELINE FELICITA, Defendant, and MICHAEL V. DeLOSA et al., Respondents.

Decided September 11, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 21, 2007. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Chemung County (Robert C. Mulvey, J.), which had denied a motion by defendants Michael V. DeLosa and Allen's Plumbing, Heating and Air Conditioning, Inc. for summary judgment dismissing the complaint against them, (2) granted the motion, (3) awarded summary judgment to the moving defendants, and (4) dismissed the complaint against them.

Plaintiffs commenced this action to recover damages for injuries arising out of a three-car accident which occurred on a slush-covered roadway. It was snowing at the time of the accident. Defendant, in whose vehicle the infant plaintiff was a passenger, lost control of her eastbound vehicle and entered the westbound lane. She collided with a nonparty driver's westbound vehicle and caromed off that vehicle back into the eastbound lane. She then collided with codefendant corporation's vehicle, whose driver had been traveling westbound behind the nonparty's vehicle but had moved into the eastbound lane to avoid the collision.

Frutchev v Felicita, 45 AD3d 1141, reversed.

HEADNOTE

Motor Vehicles — Collision — Proximate Cause

In an action arising out of a three-car accident, which occurred on a slush-covered roadway while it was snowing, defendant corporation and its driver

were not entitled to summary judgment dismissing the complaint against them. Defendant driver lost control of her eastbound vehicle, in which the infant plaintiff was a passenger, collided with a nonparty's westbound vehicle, caromed off that vehicle back into the eastbound lane, and collided with codefendant corporation's vehicle, whose driver had been traveling westbound behind the nonparty but had moved into the eastbound lane to avoid the collision. Plaintiffs raised triable issues of fact concerning whether the codefendant's driver acted negligently in traveling at an excessive speed and in following too closely to the nonparty's vehicle, given the road and weather conditions and, if so, whether such negligence was a proximate cause of the accident.

APPEARANCES OF COUNSEL

Friedlander, Friedlander & Arcesi, P.C., Waverly (William S. Friedlander of counsel), for appellants.

Coughlin & Gerhart LLP, Binghamton (Keith A. O'Hara of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the motion by defendants Michael V. DeLosa and Allen's Plumbing, Heating and Air Conditioning, Inc. for summary judgment denied. Plaintiffs raised triable issues of fact concerning whether (1) defendant DeLosa acted negligently in traveling at an excessive speed and in following too closely to Nichols's vehicle, given the road and weather conditions and, (2) if so, such negligence was a proximate cause of the accident (see *Herbert v Morgan Drive-A-Way*, 202 AD2d 886, 888-889 [1994, Yesawich Jr., J., dissenting], *revd on dissenting mem* 84 NY2d 835 [1994]; *Esposito v Wright*, 28 AD3d 1142, 1144 [4th Dept 2006]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[896 NE2d 661, 867 NYS2d 26]

FILIP DI SANZA, Appellant, v CITY OF NEW YORK et al., Defendants, and CONSOLIDATED EDISON COMPANY OF NEW YORK, Respondent.

Decided September 11, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 29, 2008. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Marilyn Shafer, J.), which, to the extent appealed from, had granted a motion by defendant Consolidated Edison Company of New York for summary judgment dismissing the complaint as against it.

Plaintiff allegedly tripped on metal sidewalk grating owned by defendant power company. The Appellate Division concluded that defendant had established its prima facie entitlement to summary judgment by demonstrating that it neither created nor had actual or constructive notice of the one-inch bulge in the sidewalk grating; that defendant satisfied its burden by submitting the uncontested testimony of an employee that he had inspected the grate less than five months before the accident and found no defect; that none of plaintiff's submissions in opposition created an issue of fact; and that the photograph of the grate, taken after the accident, did not indicate a condition that must have been of long duration.

Di Sanza v City of New York, 47 AD3d 535, affirmed.

HEADNOTE

Negligence — Maintenance of Premises

In a personal injury action in which plaintiff allegedly tripped on a metal sidewalk grating owned by defendant power company, defendant's evidentiary submissions, including uncontested testimony of an employee that he had inspected the grate less than five months before the accident and found no defect, were sufficient to establish its prima facie entitlement to judgment as a matter of law on the ground that it neither created nor had actual or constructive notice of the one-inch bulge in the sidewalk grating. Plaintiff's introduction of postaccident photographs, which were not probative of the duration of the bulge, and the conclusory affidavit from his expert, were insufficient to raise a triable issue of fact.

APPEARANCES OF COUNSEL

Susan R. Nudelman, Dix Hills, for appellant.

Richard W. Babinecz, New York City, and *Helman R. Brook* for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. We agree with the majority at the Appellate Division that, under the particular circumstances of this case, defendant Consolidated Edison Company of New York's evidentiary submissions were sufficient to establish its prima facie entitlement to judgment as a matter of law on the ground that it neither created nor had actual or constructive notice of the one-inch bulge in the sidewalk grating. We further conclude that plaintiff's introduction of the postaccident photographs, which were not probative of the duration of the bulge, and the conclusory affidavit from his expert were insufficient to raise a triable issue of fact (*see Batton v Elghanayan*, 43 NY2d 898, 900 [1978] [photographs are not always sufficient to prove constructive notice]; *see also Diaz v New York Downtown Hosp.*, 99 NY2d 542, 544-545 [2002]; *Romano v Stanley*, 90 NY2d 444, 451-452 [1997] [conclusory expert affidavit, devoid of evidentiary foundation, insufficient to defeat summary judgment]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of ROBERT B. BERNSTEIN, Appellant, v PAUL J. FEINER, as Town Supervisor of the Town of Greenburgh, et al., Respondents. JAY LEON et al., Intervenors.

Submitted August 18, 2008; decided September 11, 2008

Reported below, 50 AD3d 212.

Motion to intervene herein granted.

ALEXANDER BREYTMAN, Appellant, v OLINVILLE REALTY, LLC, et al., Respondents.

ALEXANDER BREYTMAN, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted June 2, 2008; decided September 11, 2008

Reported below, 46 AD3d 484.

Motion, insofar as it seeks leave to appeal from Supreme Court's order denying reargument, dismissed upon the ground that it does not lie (*see* CPLR 5602); motion, insofar as it seeks leave to appeal from the Appellate Division order as against defendants Olinville Realty, LLC, Weiner Realty LLC, Pinnacle Bronx LLC and Anthony Mota, dismissed upon the ground that as to said parties, the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal from the Appellate Division order otherwise denied. Motion to enlarge the record etc. denied.

BRIGGS AVENUE LLC, Appellant, v INSURANCE CORPORATION OF HANNOVER, Respondent.

Submitted September 8, 2008; decided September 11, 2008

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

EURycleia PARTNERS, LP, et al., Appellants, v SEWARD & KISSEL, LLP, Respondent, et al., Defendants.

Submitted June 16, 2008; decided September 11, 2008

Reported below, 46 AD3d 400.

Motion by Marc I. Steinberg and Daniel J. Morrissey for leave to file a brief amici curiae on the motion for leave to appeal herein denied.

In the Matter of MUJAHID FARID, Appellant, v ROBERT DENNISON, as Chair of the Board of Parole, et al., Respondents.

Submitted August 25, 2008; decided September 11, 2008

Reported below, 51 AD3d 1306.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

HAIYAN LU, M.D., Appellant, v HENRY M. SPINELLI, M.D., et al., Respondents.

Submitted August 18, 2008; decided September 11, 2008

Reported below, 44 AD3d 546.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 10 NY3d 716 (2008)].

In the Matter of PHILLIP JEAN-LAURENT, Appellant, v JOSEPH DAVID, as Superintendent of Greene Correctional Facility, Respondent.

Submitted September 2, 2008; decided September 11, 2008

Reported below, 51 AD3d 1229.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of LARRY JOLLEY, Appellant, v IND-VENTURE COMMUNICATIONS, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 25, 2008; decided September 11, 2008

Reported below, 46 AD3d 1141.

Appeal, insofar as taken from the Appellate Division order denying appellant's motion for reconsideration or leave to appeal to the Court of Appeals, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order of affirmance, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Divi-

sion absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

CHRISTINE KOPSACHILIS, Respondent, v 130 EAST 18 OWNERS CORP. et al., Appellants.

Submitted September 8, 2008; decided September 11, 2008

Reported below, 43 AD3d 744.

Motion by Riverbay Corporation for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of LEMAR H. FORESTDALE, INC., et al., Respondents; ERVIN H., JR., Appellant. (Proceeding No. 1.)

In the Matter of KENMAR H. FORESTDALE, INC., et al., Respondents; ERVIN H., JR., Appellant. (Proceeding No. 2.)

Submitted July 7, 2008; decided September 11, 2008

Reported below, 52 AD3d 602.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed appeals from parts of Family Court orders entered on consent, dismissed upon the ground that as to that part of the Appellate Division order, appellant is not a party aggrieved; motion for leave to appeal otherwise denied.

THOMAS J. MAZERBO, Respondent, v MARK MURPHY, Appellant.

Submitted August 25, 2008; decided September 11, 2008

Reported below, 52 AD3d 1064.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JOSEPH W. MCGARR, as Executor of KATHLEEN M. MOONEY,
Deceased, Appellant, v THE GUARDIAN LIFE INSURANCE COM-
PANY OF AMERICA et al., Defendants, and JAMES DOWNING,
Respondent.

Submitted July 14, 2008; decided September 11, 2008

Reported below, 48 AD3d 363.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

GARY MELIUS et al., Appellants, v WILBUR F. BRESLIN et al.,
Respondents, et al., Defendants.

Submitted August 11, 2008; decided September 11, 2008

Reported below, 46 AD3d 524.

Motion for reargument of motion for leave to appeal denied
with \$100 costs and necessary reproduction disbursements [*see*
10 NY3d 715 (2008)].

TOWN OF NASSAU, Respondent, v STEPHEN O. NALLEY, Doing
Business as IMPACT AUTO, Appellant.

Submitted July 21, 2008; decided September 11, 2008

Reported below, 52 AD3d 1013.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

NEW HAMPSHIRE INSURANCE COMPANY, as Subrogee of Links
Club, Inc., Appellant, v MARIA SERENA BARTHA et al.,
Respondents, et al., Defendants.

Submitted July 16, 2008; decided September 11, 2008

Reported below, 51 AD3d 480.

Motion, insofar as it seeks leave to appeal as against Maria
Serena Bartha, as to whom the action remains pending in her
representative capacity as administratrix of the estate of Nicho-
las Bartha, dismissed upon the ground that as to her the order
sought to be appealed from does not finally determine the ac-
tion within the meaning of the Constitution; motion, insofar as

it seeks leave to appeal from that portion of the Appellate Division order that denied appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SUDEEP BHATTACHARJEE, Appellant.

Submitted September 8, 2008; decided September 11, 2008

Reported below, 51 AD3d 684.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE VARGAS, Appellant.

Submitted September 8, 2008; decided September 11, 2008

Reported below, 52 AD3d 850.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WOODROW FLEMING, Appellant, v R. WOODS, as Superintendent of Upstate Correctional Facility, Respondent.

Submitted July 7, 2008; decided September 11, 2008

Reported below, 2007 NY Slip Op 87791(U).

Motion for reargument denied [*see* 10 NY3d 799 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL-TONY VELEZ, Appellant, v DALE ARTUS, as Superintendent of Clinton Correctional Facility, Respondent.

Submitted August 4, 2008; decided September 11, 2008

Reported below, 49 AD3d 1109.

Motion for reargument of motion for leave to appeal denied [see 10 NY3d 716 (2008)].

In the Matter of ENRIQUE RIVERA, Respondent, v NEIL JON FIRETOG, as Justice of the Supreme Court of the State of New York, Respondent, and CHARLES J. HYNES, as District Attorney, Appellant.

Submitted September 8, 2008; decided September 11, 2008

Reported below, 44 AD3d 957.

Motion by New York State Association of Criminal Defense Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

CHRISTOPHER SELLETTI, Respondent, v THOMAS F. LIOTTI, Appellant.

Submitted July 7, 2008; decided September 11, 2008

Reported below, 45 AD3d 668, 669.

Motion for leave to appeal dismissed upon the ground that appellant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

SYNDICATED COMMUNICATION VENTURE PARTNERS IV, LP, Appellant, v BAYSTAR CAPITAL, L.P., Now Known as NORTHBAY OPPORTUNITIES, L.P., et al., Respondents, et al., Defendants. (And a Third-Party Action.)

Submitted September 2, 2008; decided September 11, 2008

Reported below, 51 AD3d 546.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of 10 EAST REALTY, LLC, et al., Respondents, v INCORPORATED VILLAGE OF VALLEY STREAM et al., Appellants.

Submitted September 8, 2008; decided September 11, 2008

Reported below, 49 AD3d 764.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of SAMBASIVA RAO VENIGALLA et al., Respondents,
v DATTATREYUDU NORI et al., Appellants. ATTORNEY GENERAL OF STATE OF NEW YORK, Intervenor.

Submitted July 28, 2008; decided September 11, 2008

Reported below, 41 AD3d 725.

Motion for reargument denied [*see* 11 NY3d 55 (2008)].

[896 NE2d 86, 866 NYS2d 601]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MENASHE
SHEMESH, Respondent.

Decided September 16, 2008

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 15, 2008. The Appellate Division affirmed an order of the Supreme Court, New York County (Michael J. Obus, J.), which had granted defendant's motion to dismiss the indictment, with leave to re-present.

Defendant, who was charged with perjury, experienced two changes of counsel over the two-week period between when he notified the People that he intended to appear and testify before the grand jury, and the start of the eight-day Passover holiday, during which time he was unavailable to testify due to his religious beliefs. The People refused defendant's offer to testify on the day after Passover, the last day of the grand jury term, presented the case without defendant's testimony, and the grand jury voted to indict. Supreme Court granted defendant's motion to dismiss the indictment, with leave to re-present, on the grounds that the People violated his right to testify before the grand jury.

The Appellate Division concluded that the indictment was correctly dismissed with leave to re-present; and that, given the narrow time frame wherein defendant had to obtain new counsel, and the onset of the eight-day religious holiday, the

People did not offer defendant a reasonable or meaningful opportunity to testify before the grand jury.

People v Shemesh, 51 AD3d 239, affirmed.

HEADNOTE

Grand Jury — Right to Appear before Grand Jury

In a perjury prosecution, the Appellate Division properly affirmed an order which had granted defendant's motion to dismiss the indictment, with leave to re-present. There was record support for the finding below that the District Attorney failed to accord the defendant reasonable time to exercise his right to appear as a witness before the grand jury. Defendant experienced two changes of counsel over the two-week period between when he notified the People that he intended to appear and testify before the grand jury, and the start of the eight-day Passover holiday, during which time defendant was unavailable to testify due to his religious beliefs. The People refused defendant's offer to testify on the day after Passover, the last day of the grand jury term, presented the case without defendant's testimony, and the grand jury voted to indict.

APPEARANCES OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City
(*Frank Glaser* and *Mark Dwyer* of counsel), for appellant.

Arnold J. Levine, New York City, for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. There is record support for the finding below that the District Attorney failed to accord the defendant reasonable time to exercise his right to appear as a witness before the grand jury.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[896 NE2d 86, 866 NYS2d 601]

In the Matter of GARY DeFILIPPO, Appellant, v STEPHEN J. ROONEY et al., Respondents.

Decided September 16, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from a judgment of that Court, entered December 11, 2007, in a proceeding

pursuant to CPLR article 78. The Appellate Division (1) denied a petition to bar retrial of the petitioner in a criminal action pending in Supreme Court, Richmond County on the ground that retrial would violate his right not to be twice placed in jeopardy for the same offense, and (2) dismissed the proceeding on the merits. The following question was certified by the Appellate Division: “Was the decision and judgment of this court, dated December 11, 2007, properly made?”

Matter of DeFilippo v Rooney, 46 AD3d 681, affirmed.

HEADNOTES

Crimes — Double Jeopardy — Mistrial

1. In a proceeding to bar retrial of petitioner in an underlying criminal prosecution on double jeopardy grounds, the Appellate Division correctly concluded that petitioner failed to meet his burden of demonstrating that any alleged prosecutorial misconduct was conducted in a deliberate attempt to provoke him to move for a mistrial.

Proceeding against Body or Officer — Prohibition

2. In a proceeding to bar retrial of petitioner in an underlying criminal prosecution, the Appellate Division properly concluded that petitioner failed to demonstrate a clear legal right to the remedy of prohibition.

APPEARANCES OF COUNSEL

Hankin Handwerker & Mazel LLP, New York City (*Michael Handwerker* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Ann Bordley* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, without costs, and the certified question not answered on the ground that it is unnecessary.

[1, 2] The Appellate Division correctly concluded that petitioner failed to meet his burden of demonstrating that the alleged prosecutorial misconduct was conducted in a deliberate attempt to provoke him to move for a mistrial (*see Matter of Gorghan v DeAngelis*, 7 NY3d 470 [2006]). The Appellate Division also properly concluded that petitioner failed to demonstrate a clear legal right to the remedy of prohibition (*see Matter of Rush v Mordue*, 68 NY2d 348, 352 [1986]; *Matter of State of New York v King*, 36 NY2d 59, 62 [1975]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, etc.

[896 NE2d 87, 866 NYS2d 602]

In the Matter of LEOPOLD SIAO-PAO, Appellant, v ROBERT DENNISON, as Acting Chairman of the New York State Division of Parole, Respondent.

Decided September 16, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 11, 2008. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 2006 NY Slip Op 30377[U]), entered in a proceeding pursuant to CPLR article 78, which had denied the petition to annul the Parole Board's determination denying petitioner's parole request.

Matter of Siao-Pao v Dennison, 51 AD3d 105, affirmed.

HEADNOTE

Parole — Denial — Consideration of Parole Board's Written Determination

In denying a petition to annul the Parole Board's determination which had denied petitioner's parole request, the courts below applied the correct legal standards and properly considered the Board's written determination, which, when evaluated in the context of the parole hearing transcript, demonstrated that the Board considered the required statutory factors (Executive Law § 259-i). The Board's written determination, while less detailed than it might have been, was not merely "conclusory" and so did not violate Executive Law § 259-i (2) (a) (i).

APPEARANCES OF COUNSEL

Feinman & Grossbard, P.C., White Plains (*Steven N. Feinman* of counsel), for appellant, and *Leopold Siao-Pao*, appellant pro se.

Andrew M. Cuomo, Attorney General, New York City (*Robert C. Weisz* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

The courts below applied the correct legal standards and properly considered the Board of Parole's written determination, which, when evaluated in the context of the parole hearing transcript, demonstrated that the Board considered the required statutory factors (*see* Executive Law § 259-i; *Matter of Silmon v Travis*, 95 NY2d 470, 476 [2000]). The Board's written determination, while less detailed than it might be, is not merely "conclusory" and so does not violate Executive Law § 259-i (2) (a) (i).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

[897 NE2d 1044, 868 NYS2d 563]

WILLIAM McCLEERY et al., Appellants, v CONSOLIDATED EDISON OF NEW YORK, INC., et al., Respondents.

Decided September 16, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 11, 2008. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Milton A. Tingling, J.), which had granted defendants' motion for summary judgment dismissing the complaint.

Plaintiff construction worker allegedly was injured while standing in the street replacing gas lines. Defendant power company's driver stopped to give plaintiff pipe hangers. According to plaintiff, he was standing between his work truck and defendant's van when he took the hangers, walked away two or three steps, turned his back toward defendant's van to work on a vise, was knocked over and his foot was crushed.

The Appellate Division majority concluded that defendants made out a prima facie case of entitlement to summary judgment; and that, even if plaintiff's evidence had been sufficient to raise a question concerning how the accident occurred, in the absence of any proof as to how plaintiff sustained his injury, it

failed to raise a triable issue of fact with respect to the alleged negligent operation of defendant's vehicle.

The dissent concluded that issues of fact were presented regarding exactly how plaintiff's foot was crushed and whether the driver was negligent.

McCleery v Consolidated Edison of N.Y., Inc., 49 AD3d 312, reversed.

HEADNOTE

Negligence — Proximate Cause

In an action to recover damages for injuries plaintiff construction worker sustained when defendant power company's driver stopped his van in the street near plaintiff's work truck to give plaintiff pipe hangers, and plaintiff, who was standing between his truck and defendant's van, took the hangers, walked away two or three steps, turned his back toward the van to work on a vise, was knocked over and his foot was crushed, an Appellate Division order, which affirmed an order granting defendants summary judgment, was reversed. The plaintiff presented issues of fact as to how his foot was crushed and whether his injuries were a result of the power company driver's negligence.

APPEARANCES OF COUNSEL

Thomas Torto, New York City, for appellants.

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, New York City (*Richard Lerner* and *Melissa Murphy-Petros* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and defendants' motion for summary judgment denied. We agree with the dissenting justices at the Appellate Division that the injured plaintiff presented issues of fact as to how his foot was crushed and whether his injuries were a result of the Consolidated Edison driver's negligence, which preclude the grant of summary judgment to defendants.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of BOARD OF EDUCATION OF THE EAST MEADOW UNION FREE SCHOOL DISTRICT, EAST MEADOW, NEW YORK, et al., Appellants, v EAST MEADOW TEACHERS ASSOCIATION et al., Respondents.

Submitted July 14, 2008; decided September 16, 2008

Reported below, 46 AD3d 810.

Motion, insofar as it seeks leave to appeal against East Meadow Teachers Association, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of BRITTNY MM., a Person in Need of Supervision. MICHELE CLARK, as Probation Officer of the Columbia County Probation Department, Respondent; BRITTNY MM., Appellant.

Submitted September 8, 2008; decided September 16, 2008

Reported below, 51 AD3d 1303.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ALAN CHERNOW, Respondent, v HEMAN CHERNOW, Appellant.

Submitted June 30, 2008; decided September 16, 2008

Reported below, 51 AD3d 705.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JESUS FUENTES, as a Parent of a Disabled Child, Appellant, v BOARD OF EDUCATION OF THE CITY OF NEW YORK et al., Respondents.

Decided September 16, 2008

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27),

accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

REGINA GLAZER, Appellant, v CHOONG-HEE LEE et al., Respondents.

Submitted July 21, 2008; decided September 16, 2008

Reported below, 51 AD3d 970.

Motion, insofar as it seeks leave to appeal against Michael A. Werner, M.D. and M.A.Z.E. Laboratories, dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

HSBC BANK USA, N.A., Respondent, v BARBARA SCHARF, Appellant, et al., Defendants.

Submitted July 21, 2008; decided September 16, 2008

Reported below, 2008 NY Slip Op 65013(U).

Motion for reargument of motion for leave to appeal denied [*see* 10 NY3d 892 (2008)].

INFINITY CONSULTING GROUP, INC., Appellant, v TOWN OF HUNTINGTON, Respondent.

Submitted September 8, 2008; decided September 16, 2008

Reported below, 49 AD3d 813.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that appellant has failed to demonstrate timeliness (*see* Rules of Ct of Appeals [22 NYCRR] §§ 500.9, 500.10).

In the Matter of KIMBERLY KAMINESTER, Respondent, v INALEE FOLDES, Appellant.

Submitted July 7, 2008; decided September 16, 2008

Reported below, 51 AD3d 528.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that remanded for a hearing on contempt, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LISA E.G. et al., as Parents and Natural Guardians of the Person and Property of JENNIFER G., an Infant, Appellants, v THE GENESEE HOSPITAL et al., Respondents.

Submitted July 21, 2008; decided September 16, 2008

Reported below, 48 AD3d 1064.

Motion, insofar as it seeks leave to appeal against defendants Karin R. Dickinson, M.D., and Genesee Valley Obstetrics & Gynecology, P.C., dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LOMBARD & CO., INC., Respondent, v GERMAN DE LA ROCHE, Appellant.

Submitted June 2, 2008; decided September 16, 2008

Reported below, 46 AD3d 393.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MAINLINE ELECTRIC CORP., Respondent, v EAST QUOGUE UNION FREE SCHOOL DISTRICT, Appellant.

Submitted July 21, 2008; decided September 16, 2008

Reported below, 46 AD3d 859.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANNETTE MEISELMAN, Appellant, v LONNIE FOGEL et al., Respondents.

Submitted September 8, 2008; decided September 16, 2008

Reported below, 50 AD3d 979.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

ELHADI ELSHEIK MOHAMED et al., Appellants, v LARRY DEFRIN et al., Respondents, and CHRISTOFOROS BLANIS, Appellant, et al., Defendants.

Submitted July 14, 2008; decided September 16, 2008

Reported below, 45 AD3d 252.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOHN MOODY, Respondent, v SVETLANA SOROKINA, Appellant. RICHARD ALDERMAN, Respondent.

Submitted September 8, 2008; decided September 16, 2008

Reported below, 50 AD3d 1522.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MAREK SZPAKOWSKI et al., Respondents, v SHELBY REALTY, LLC, Respondent, and FORTHRIGHT DEVELOPMENT COMPANY, LLC, Appellant, et al., Defendant. (And a Third-Party Action.)

Submitted July 21, 2008; decided September 16, 2008

Reported below, 48 AD3d 268.

Motion, insofar as it seeks leave to appeal against Shelby Realty, LLC, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine

the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MYRA WARMAN, Appellant, v HAIM SHIMON WARMAN, Respondent.

Submitted July 14, 2008; decided September 16, 2008

Reported below, 52 AD3d 596.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

WELLS FARGO BANK, Respondent, v BARBARA SCHARF, Appellant, et al., Defendants.

Submitted July 21, 2008; decided September 16, 2008

Reported below, 2008 NY Slip Op 65027(U).

Motion for reargument of motion for leave to appeal denied [see 10 NY3d 886 (2008)].

APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2008 through September 30, 2008)

First Hudson Capital, LLC v Seaborn	1st Dept: 54 AD3d 251	9/30/08
Kramer v W10Z/515 Real Estate Ltd. Partnership	1st Dept: 44 AD3d 457	9/26/08

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2008 through September 30, 2008)

People v Abplanalp	County Ct, 5/5/08 (Tompkins)	denied 9/8/08 (Read, J.)
People v Adams	3d Dept: 51 AD3d 1136 (Montgomery)	denied 9/11/08 (Kaye, Ch.J.)
People v Ahdil	1st Dept: 51 AD3d 449 (NY)	denied 9/16/08 (Pigott, J.)
People v Akomah	2d Dept: 52 AD3d 521 (Kings)	denied 9/17/08 (Pigott, J.)
People v Almeter	County Ct, 3/25/08 (Genesee)	granted 9/16/08 (Pigott, J.)

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People v Alston	2d Dept: 53 AD3d 585 (Queens)	denied 9/22/08 (Pigott, J.)
People v Alvarez (Enrique)	1st Dept: 51 AD3d 167 (NY)	denied 9/10/08 (Jones, J.)
People v Alvarez (Giancarlo)	1st Dept: 51 AD3d 470 (NY)	denied 9/10/08 (Jones, J.)
People v Amin	2d Dept: 53 AD3d 665 (Queens)	denied 9/29/08 (Grafteo, J.)
People v Antongorgi	App Div, 2d Dept: 2008 NY Slip Op 80243(U) (Kings)	dismissed 9/30/08 (Smith, J.)
People v Avitto	2d Dept: 52 AD3d 619 (Kings)	denied 9/18/08 (Pigott, J.)
People v Bacchus	2d Dept: 50 AD3d 818 (Queens)	denied 9/2/08 (Jones, J.)
People v Bader	App Term, 2d Dept: 2008 NY Slip Op 75621(U) (Nassau)	denied reconsideration 9/10/08 (Jones, J.)
People v Baez	2d Dept: 52 AD3d 840 (Nassau)	denied 9/17/08 (Pigott, J.)
People v Bailey	1st Dept: 50 AD3d 343 (NY)	granted 9/24/08 (Jones, J.)
People v Ballesteros	1st Dept: 51 AD3d 483 (Bronx)	denied 9/10/08 (Jones, J.)
People v Banzaca	1st Dept: 51 AD3d 462 (NY)	denied 9/2/08 (Jones, J.)
People v Barber	4th Dept: 52 AD3d 1283 (Genesee)	denied 9/19/08 (Jones, J.)
People v Bedford	4th Dept: 52 AD3d 1266 (Monroe)	denied 9/9/08 (Read, J.)
People v Belgrave (Sylveste)	2d Dept: 51 AD3d 939 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v Belgrave (Sylvester)	2d Dept: 51 AD3d 939 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v Ben-Ezra	App Term, 2d Dept: 19 Misc 3d 139(A) (Rockland)	denied 9/8/08 (Read, J.)
People v Bennett	4th Dept: 52 AD3d 1236 (Ontario)	denied 9/24/08 (Read, J.)
People v Biamonte	App Term, 2d Dept: 19 Misc 3d 139(A) (Suffolk)	denied 9/12/08 (Jones, J.)
People v Biggs	2d Dept: 52 AD3d 620 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v Blackman	App Div, 2d Dept: 2008 NY Slip Op 75706(U) (Queens)	dismissed 9/18/08 (Smith, J.)
People v Bligen	App Div, 1st Dept: 2008 NY Slip Op 68442(U) (NY)	denied 9/9/08 (Read, J.)
People v Boyd	4th Dept: 50 AD3d 1578 (Oneida)	denied 9/8/08 (Read, J.)

People v Brady	App Div, 2d Dept: 2008 NY Slip Op 80835(U) (Kings)	dismissed 9/25/08 (Grafteo, J.)
People v Brand	App Div, 3d Dept: 2008 NY Slip Op 73288(U) (Clinton)	denied 9/30/08 (Ciparick, J.)
People v Brewer	4th Dept: 50 AD3d 1577 (Onondaga)	denied 9/10/08 (Jones, J.)
People v Brooker	1st Dept: 51 AD3d 547 (NY)	denied 9/9/08 (Read, J.)
People v Brown (Anthony)	1st Dept: 52 AD3d 301 (NY)	denied 9/18/08 (Smith, J.)
People v Brown (Devon)	1st Dept: 52 AD3d 204 (Bronx)	denied 9/17/08 (Pigott, J.)
People v Brown (Edward)	1st Dept: 52 AD3d 230 (Bronx)	denied 9/18/08 (Smith, J.)
People v Brown (Josh)	2d Dept: 51 AD3d 685 (Queens)	denied reconsideration 9/30/08 (Smith, J.)
People v Brown (Shawn)	App Term, 1st Dept: 22 Misc 3d 129(A) (NY)	denied 9/10/08 (Jones, J.)
People v Brunelle	3d Dept: 47 AD3d 1067 (Broome)	denied 9/2/08 (Jones, J.)
People v Bryan	2d Dept: 50 AD3d 1049 (Westchester)	denied 9/2/08 (Jones, J.)
People v Buniek	2d Dept: 52 AD3d 621 (Westchester)	denied 9/22/08 (Pigott, J.)
People v Cabezudo	2d Dept: 51 AD3d 814 (Suffolk)	denied 9/10/08 (Read, J.)
People v Cardon	2d Dept: 51 AD3d 941 (Queens)	denied 9/10/08 (Jones, J.)
People v Cardona	2d Dept: 51 AD3d 941 (Queens)	denied 9/10/08 (Jones, J.)
People v Carpenter	3d Dept: 51 AD3d 1149 (Columbia)	denied 9/30/08 (Jones, J.)
People v Carrieri	2d Dept: 49 AD3d 660 (Queens)	denied 9/10/08 (Kaye, Ch.J.)
People v Chenevert	4th Dept: 52 AD3d 1259 (Monroe)	denied 9/11/08 (Kaye, Ch.J.)
People v Choonoo	App Div, 2d Dept: 2008 NY Slip Op 75708(U) (Queens)	dismissed 9/11/08 (Grafteo, J.)
People v Church	App Div, 3d Dept: 2008 NY Slip Op 75366(U) (Tompkins)	denied 9/17/08 (Pigott, J.)
People v Colangelo	4th Dept: 52 AD3d 1253 (Wayne)	denied 9/10/08 (Jones, J.)
People v Collado	1st Dept: 47 AD3d 547 (NY)	granted 9/10/08 (Jones, J.)
People v Collier	3d Dept: 52 AD3d 1121 (Albany)	denied 9/19/08 (Smith, J.)
People v Colligan	App Term, 2d Dept: 20 Misc 3d 130(A) (Orange)	denied 9/24/08 (Smith, J.)

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People v Cook	App Div, 4th Dept, 6/30/08 (Monroe)	dismissed 9/2/08 (Jones, J.)
People v Cooper	2d Dept: 52 AD3d 622 (Queens)	denied 9/17/08 (Smith, J.)
People v Covington	2d Dept: 52 AD3d 526 (Queens)	denied 9/12/08 (Kaye, Ch.J.)
People v Cox	App Term, 2d Dept: 19 Misc 3d 139(A) (Nassau)	denied 9/8/08 (Read, J.)
People v Cruz	1st Dept: 51 AD3d 599 (NY)	denied 9/9/08 (Read, J.)
People v Cubino	1st Dept: 50 AD3d 312 (NY)	denied 9/2/08 (Jones, J.)
People v Daley	2d Dept: 50 AD3d 1051 (Kings)	denied 9/10/08 (Jones, J.)
People v Damphier	3d Dept: 51 AD3d 1146 (Montgomery)	denied 9/10/08 (Jones, J.)
People v Dantzler	2d Dept: 53 AD3d 504 (Kings)	denied 9/26/08 (Smith, J.)
People v Davis (Jared)	2d Dept: 49 AD3d 895 (Queens)	denied 9/10/08 (Jones, J.)
People v Davis (Reginald)	4th Dept: 50 AD3d 1589 (Oneida)	denied 9/9/08 (Read, J.)
People v Davis (Wayne)	App Term, 2d Dept: 19 Misc 3d 145(A) (Kings)	granted 9/25/08 (Smith, J.)
People v Dawkins	App Div, 2d Dept: 2008 NY Slip Op 81427(U) (Kings)	dismissed 9/30/08 (Jones, J.)
People v Delayo	3d Dept: 52 AD3d 1114 (Schenectady)	denied 9/26/08 (Smith, J.)
People v Delesline	1st Dept: 52 AD3d 302 (Bronx)	denied 9/17/08 (Smith, J.)
People v Delinois	2d Dept: 52 AD3d 840 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v DePrima	2d Dept: 52 AD3d 527 (Queens)	denied 9/9/08 (Read, J.)
People v DeVivo	3d Dept: 53 AD3d 787 (Broome)	denied 9/22/08 (Pigott, J.)
People v Dewitt	4th Dept: 52 AD3d 1184 (Cayuga)	denied 9/29/08 (Grafteo, J.)
People v Diberardino	1st Dept: 51 AD3d 572 (NY)	denied 9/8/08 (Read, J.)
People v Dowett	App Term, 1st Dept: 20 Misc 3d 127(A) (Bronx)	denied 9/24/08 (Smith, J.)
People v Dunbar	County Ct, 12/28/07 (Yates)	denied 9/2/08 (Jones, J.)
People v Edwards	1st Dept: 51 AD3d 540 (NY)	denied 9/17/08 (Read, J.)
People v Elardo	4th Dept: 52 AD3d 1272 (Cayuga)	denied 9/19/08 (Jones, J.)

People v Elardo-Bilynski	4th Dept: 52 AD3d 1272 (Cayuga)	denied 9/19/08 (Jones, J.)
People v Figueroa	App Term, 2d Dept: 20 Misc 3d 130(A) (Orange)	denied 9/25/08 (Smith, J.)
People v Florestal	1st Dept: 53 AD3d 164 (NY)	denied 9/11/08 (Grafteo, J.)
People v Flowers	2d Dept: 52 AD3d 748 (Orange)	denied 9/30/08 (Smith, J.)
People v Forest	2d Dept: 52 AD3d 733 (Kings)	denied 9/30/08 (Jones, J.)
People v Foster	3d Dept: 52 AD3d 957 (Albany)	denied 9/8/08 (Read, J.)
People v Frazier	4th Dept: 52 AD3d 1317 (Monroe)	denied 9/11/08 (Read, J.)
People v Friedman	App Div, 2d Dept: 2008 NY Slip Op 82137(U) (Queens)	dismissed 9/30/08 (Ciparick, J.)
People v Fuller	3d Dept: 50 AD3d 1171 (Essex)	denied 9/17/08 (Smith, J.)
People v Garcia	2d Dept: 52 AD3d 734 (Kings)	denied 9/30/08 (Jones, J.)
People v Garner	4th Dept: 52 AD3d 1329 (Erie)	denied 9/12/08 (Kaye, Ch.J.)
People v German	1st Dept: 52 AD3d 343 (NY)	denied 9/30/08 (Jones, J.)
People v Gilbo	3d Dept: 52 AD3d 952 (St. Lawrence)	denied 9/18/08 (Smith, J.)
People v Girdler	2d Dept: 50 AD3d 1157 (Nassau)	denied 9/10/08 (Jones, J.)
People v Gomez	App Term, 2d Dept: 19 Misc 3d 139(A) (Nassau)	denied 9/10/08 (Jones, J.)
People v Gonzalez (Edwardo)	1st Dept: 50 AD3d 597 (NY)	denied 9/2/08 (Jones, J.)
People v Gonzalez (Elsa)	4th Dept: 52 AD3d 1228 (Monroe)	denied 9/17/08 (Smith, J.)
People v Gonzalez (Ygnacio)	1st Dept: 50 AD3d 435 (NY)	denied 9/19/08 (Jones, J.)
People v Granby	2d Dept: 50 AD3d 920 (Suffolk)	denied 9/2/08 (Jones, J.)
People v Grant	2d Dept: 51 AD3d 816 (Orange)	denied 9/22/08 (Pigott, J.)
People v Green (David)	4th Dept: 52 AD3d 1263 (Monroe)	denied 9/9/08 (Read, J.)
People v Green (David)	4th Dept: 52 AD3d 1267 (Monroe)	denied 9/9/08 (Read, J.)
People v Green (David)	4th Dept: 52 AD3d 1268 (Monroe)	denied 9/9/08 (Read, J.)
People v Greene (Preston)	4th Dept: 38 AD3d 1338 (Monroe)	dismissed 9/9/08 (Read, J.)

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People v Greene (Preston)	4th Dept: 52 AD3d 1316 (Monroe)	denied 9/9/08 (Read, J.)
People v Grimes	4th Dept: 53 AD3d 1055 (Onondaga)	denied 9/30/08 (Jones, J.)
People v Hairston	2d Dept: 53 AD3d 669 (Suffolk)	denied 9/29/08 (Grafteo, J.)
People v Hall (Lammar)	4th Dept: 50 AD3d 1467 (Monroe)	denied 9/10/08 (Kaye, Ch.J.)
People v Hall (Randy)	4th Dept: 48 AD3d 1032 (Steuben)	denied 9/26/08 (Smith, J.)
People v Hamilton	4th Dept: 53 AD3d 1107 (Niagara)	denied 9/19/08 (Smith, J.)
People v Hammon	2d Dept: 47 AD3d 644 (Kings)	denied 9/10/08 (Jones, J.)
People v Hammond	2d Dept: 47 AD3d 644 (Kings)	denied 9/10/08 (Jones, J.)
People v Harris	3d Dept: 51 AD3d 1335 (Albany)	denied 9/19/08 (Jones, J.)
People v Hasenflue	3d Dept: 48 AD3d 888 (Ulster)	denied 9/2/08 (Jones, J.)
People v Henry	2d Dept: 52 AD3d 841 (Westchester)	denied 9/29/08 (Grafteo, J.)
People v Hicks	2d Dept: 52 AD3d 736 (Queens)	denied 9/19/08 (Jones, J.)
People v Hines	4th Dept: 52 AD3d 1243 (Monroe)	denied 9/17/08 (Pigott, J.)
People v Hunt	3d Dept: 50 AD3d 1246 (Saratoga)	denied 9/12/08 (Kaye, Ch.J.)
People v Irizarry	1st Dept: 51 AD3d 541 (Bronx)	denied 9/9/08 (Read, J.)
People v Jackson (Fitzroy)	App Div, 2d Dept: 2008 NY Slip Op 73876(U) (Richmond)	denied reconsideration 9/12/08 (Grafteo, J.)
People v Jackson (Terrisina)	3d Dept: 52 AD3d 1052 (Broome)	denied 9/12/08 (Kaye, Ch.J.)
People v Jackson (Willie)	4th Dept: 41 AD3d 1268 (Erie)	denied reconsideration 9/12/08 (Jones, J.)
People v Jiminez	App Term, 1st Dept: 18 Misc 3d 141(A) (NY)	denied 9/9/08 (Read, J.)
People v Jogie	2d Dept: 51 AD3d 1038 (Nassau)	denied 9/17/08 (Smith, J.)
People v Johnson (Lyndon)	2d Dept: 50 AD3d 701 (Westchester)	denied 9/2/08 (Jones, J.)
People v Johnson (Mark)	1st Dept: 52 AD3d 402 (NY)	denied 9/12/08 (Grafteo, J.)
People v Jones	App Term, 1st Dept: 22 Misc 3d 129(A) (NY)	denied 9/11/08 (Kaye, Ch.J.)
People v Joseph	2d Dept: 50 AD3d 1159 (Kings)	denied 9/2/08 (Jones, J.)

People v Jouvert	1st Dept: 50 AD3d 504 (NY)	denied 9/12/08 (Jones, J.)
People v June	4th Dept: 46 AD3d 1476 (Erie)	denied reconsideration 9/12/08 (Jones, J.)
People v Kearns	4th Dept: 50 AD3d 1514 (Yates)	denied 9/8/08 (Read, J.)
People v Kelly	App Div, 2d Dept: 2008 NY Slip Op 78536(U) (Orange)	dismissed 9/30/08 (Ciparick, J.)
People v Kennedy	1st Dept: 50 AD3d 284 (Bronx)	denied 9/10/08 (Jones, J.)
People v King	4th Dept: 53 AD3d 1105 (Onondaga)	denied 9/22/08 (Pigott, J.)
People v Kirkland	3d Dept: 53 AD3d 673 (Warren)	denied 9/30/08 (Jones, J.)
People v Laws	App Div, 4th Dept, 8/11/08 (Wayne)	dismissed 9/22/08 (Kaye, Ch.J.)
People v Levan	County Ct, 5/14/08 (Erie)	denied 9/19/08 (Jones, J.)
People v Lewis	1st Dept: 50 AD3d 595 (NY)	denied 9/2/08 (Jones, J.)
People v Lomnicki	1st Dept: 50 AD3d 470 (NY)	denied 9/12/08 (Jones, J.)
People v Lopez (Benjamin)	2d Dept: 53 AD3d 556 (Westchester)	denied 9/29/08 (Grafteo, J.)
People v Lopez (Claudio)	2d Dept: 50 AD3d 1160 (Queens)	denied 9/10/08 (Jones, J.)
People v Lowman	4th Dept: 49 AD3d 1262 (Ontario)	withdrawn 9/30/08 (Ciparick, J.)
People v MacLean	4th Dept: 48 AD3d 1215 (Livingston)	denied reconsideration 9/8/08 (Read, J.)
People v Madrid (Manuel)	2d Dept: 52 AD3d 530 (Queens)	denied 9/30/08 (Ciparick, J.)
People v Madrid (Napoleon)	2d Dept: 52 AD3d 532 (Nassau)	denied 9/30/08 (Jones, J.)
People v Maisonet	1st Dept: 46 AD3d 373 (NY)	denied 9/8/08 (Read, J.)
People v Malave	4th Dept: 52 AD3d 1313 (Monroe)	denied 9/11/08 (Read, J.)
People v Maldonado	1st Dept: 52 AD3d 344 (NY)	denied 9/8/08 (Read, J.)
People v Maricevic	3d Dept: 52 AD3d 1043 (Schoharie)	denied 9/9/08 (Read, J.)
People v Marinaro	2d Dept: 45 AD3d 867 (Kings)	denied 9/2/08 (Jones, J.)

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People v Marte	1st Dept: 50 AD3d 316 (NY)	denied 9/10/08 (Jones, J.)
People v Martin	3d Dept: 52 AD3d 943 (Broome)	denied 9/30/08 (Jones, J.)
People v Martinez (Argely)	2d Dept: 53 AD3d 508 (Rockland)	denied 9/26/08 (Smith, J.)
People v Martinez (Cesar)	1st Dept: 51 AD3d 569 (NY)	dismissed 9/22/08 (Pigott, J.)
People v Martinez (David)	1st Dept: 52 AD3d 68 (NY)	denied 9/8/08 (Read, J.)
People v Mateo	4th Dept: 53 AD3d 1111 (Cayuga)	denied 9/9/08 (Read, J.)
People v McAllister	App Div, 1st Dept: 2008 NY Slip Op 76475(U) (NY)	dismissed 9/5/08 (Read, J.)
People v McClain	2d Dept: 53 AD3d 556 (Queens)	denied 9/19/08 (Smith, J.)
People v McClellan	4th Dept: 49 AD3d 1203 (Erie)	denied 9/12/08 (Jones, J.)
People v McCloud	4th Dept: 52 AD3d 1253 (Erie)	dismissed 9/17/08 (Smith, J.)
People v Meehan	App Div, 3d Dept: 2008 NY Slip Op 78043(U) (Broome)	dismissed 9/24/08 (Read, J.)
People v Melendez	App Div, 1st Dept: 2008 NY Slip Op 74201(U) (NY)	denied 9/8/08 (Read, J.)
People v Melino	3d Dept: 52 AD3d 1054 (Albany)	denied 9/9/08 (Read, J.)
People v Minton	1st Dept: 52 AD3d 234 (Bronx)	denied 9/11/08 (Kaye, Ch.J.)
People v Mitchell	4th Dept: 39 AD3d 1285 (Erie)	denied 9/2/08 (Jones, J.)
People v Mobley	4th Dept: 49 AD3d 1343 (Erie)	denied 9/9/08 (Pigott, J.)
People v Mohomed	4th Dept: 52 AD3d 1262 (Erie)	denied 9/30/08 (Ciparick, J.)
People v Monk	2d Dept: 50 AD3d 925 (Rockland)	denied 9/30/08 (Ciparick, J.)
People v Morales (Norbey)	2d Dept: 53 AD3d 630 (Queens)	denied 9/30/08 (Smith, J.)
People v Morales (Roberto)	App Div, 2d Dept: 2008 NY Slip Op 62834(U) (Rockland)	denied reconsideration 9/2/08 (Jones, J.)
People v Moran	4th Dept: 50 AD3d 1559 (Oneida)	denied 9/30/08 (Jones, J.)
People v Mostovoi	App Term, 2d Dept, 3/10/08 (Westchester)	denied 9/12/08 (Jones, J.)
People v Motz	3d Dept: 52 AD3d 1029 (Sullivan)	denied 9/19/08 (Jones, J.)

People v Munson	4th Dept: 52 AD3d 1283 (Monroe)	denied 9/15/08 (Smith, J.)
People v Murphy (Kevin)	3d Dept: 51 AD3d 1057 (Albany)	denied 9/10/08 (Jones, J.)
People v Murphy (Nicholas)	2d Dept: 52 AD3d 846 (Queens)	denied 9/19/08 (Smith, J.)
People v Nunez	4th Dept: 51 AD3d 1398 (Monroe)	denied 9/2/08 (Jones, J.)
People v Nur	1st Dept: 52 AD3d 351 (NY)	denied 9/12/08 (Kaye, Ch.J.)
People v Ocampo	2d Dept: 52 AD3d 741 (Suffolk)	denied 9/30/08 (Ciparick, J.)
People v Ocasio	4th Dept: 53 AD3d 1111 (Erie)	denied 9/12/08 (Grafteo, J.)
People v O'Connor	App Term, 2d Dept: 19 Misc 3d 139(A) (Westchester)	denied 9/8/08 (Read, J.)
People v Odom	4th Dept: 53 AD3d 1084 (Wyoming)	denied 9/30/08 (Jones, J.)
People v Oehler	3d Dept: 52 AD3d 955 (Warren)	denied 9/19/08 (Smith, J.)
People v Ojo	4th Dept: 43 AD3d 1367 (Jefferson)	denied reconsideration 9/10/08 (Jones, J.)
People v Ortiz	1st Dept: 49 AD3d 279 (NY)	denied reconsideration 9/29/08 (Grafteo, J.)
People v Pantojas	2d Dept: 53 AD3d 669 (Rockland)	denied 9/24/08 (Read, J.)
People v Pardew	App Term, 1st Dept: 20 Misc 3d 129(A) (NY)	denied 9/26/08 (Smith, J.)
People v Parker	4th Dept: 50 AD3d 1607 (Monroe)	denied 9/10/08 (Jones, J.)
People v Parkman	App Term, 1st Dept: 20 Misc 3d 52 (Bronx)	denied 9/8/08 (Read, J.)
People v Parson	App Term, 1st Dept: 18 Misc 3d 139(A) (Bronx)	granted 9/25/08 (Smith, J.)
People v Pasley	1st Dept: 51 AD3d 525 (NY)	denied 9/10/08 (Jones, J.)
People v Passino (Jeffrey)	4th Dept: 50 AD3d 1536 (Oswego)	denied 9/19/08 (Jones, J.)
People v Perez	2d Dept: 51 AD3d 1042 (Kings)	denied 9/19/08 (Jones, J.)
People v Perry	App Div, 2d Dept: 2008 NY Slip Op 73216(U) (Queens)	dismissed 9/9/08 (Read, J.)
People v Petrillo (JoEllen)	County Ct, 4/17/08 (Ontario)	denied 9/2/08 (Jones, J.)

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People v Petrillo (JoEllen)	County Ct, 4/17/08 (Ontario)	denied reconsideration 9/18/08 (Jones, J.)
People v Pillich	4th Dept: 48 AD3d 1061 (Erie)	denied 9/2/08 (Jones, J.)
People v Pina	1st Dept: 50 AD3d 534 (NY)	denied 9/10/08 (Jones, J.)
People v Pino	App Div, 2d Dept: 2008 NY Slip Op 61780(U) (Queens)	dismissed 9/19/08 (Smith, J.)
People v Ploska	2d Dept: 52 AD3d 742 (Putnam)	denied 9/30/08 (Smith, J.)
People v Polanco (Junior)	1st Dept: 52 AD3d 291 (NY)	denied 9/19/08 (Jones, J.)
People v Polanco (Nelson)	3d Dept: 52 AD3d 947 (Albany)	denied 9/18/08 (Smith, J.)
People v Poledore	1st Dept: 51 AD3d 401 (NY)	denied 9/10/08 (Jones, J.)
People v Powell	1st Dept: 51 AD3d 541 (NY)	withdrawn 9/5/08 (Read, J.)
People v Pratcher	2d Dept: 50 AD3d 1063 (Suffolk)	denied 9/2/08 (Jones, J.)
People v Pressley	2d Dept: 47 AD3d 732 (Dutchess)	dismissed 9/2/08 (Jones, J.)
People v Putnam	County Ct, 6/25/08 (Monroe)	denied 9/17/08 (Smith, J.)
People v Ramnarain	1st Dept: 52 AD3d 348 (NY)	denied 9/11/08 (Grafteo, J.)
People v Ramos	2d Dept: 51 AD3d 824 (Rockland)	denied 9/10/08 (Read, J.)
People v Randall	App Term, 1st Dept: 22 Misc 3d 130(A) (NY)	denied 9/12/08 (Jones, J.)
People v Rasmussen	4th Dept: 50 AD3d 1603 (Erie)	denied 9/9/08 (Read, J.)
People v Rawling	2d Dept: 48 AD3d 710 (Queens)	denied reconsideration 9/8/08 (Read, J.)
People v Rawlings	2d Dept: 48 AD3d 710 (Queens)	denied reconsideration 9/8/08 (Read, J.)
People v Richards	1st Dept: 49 AD3d 405 (NY)	denied 9/12/08 (Jones, J.)
People v Richthammer	County Ct, 7/15/08 (Erie)	denied 9/29/08 (Grafteo, J.)
People v Robinson (Latee)	1st Dept: 51 AD3d 575 (Bronx)	denied 9/30/08 (Ciparick, J.)

People v Robinson (Malik)	1st Dept: 51 AD3d 460 (NY)	denied 9/10/08 (Jones, J.)
People v Robinson (Matthew)	3d Dept: 53 AD3d 681 (Albany)	denied 9/9/08 (Read, J.)
People v Robles	3d Dept: 53 AD3d 686 (Schenectady)	denied 9/29/08 (Smith, J.)
People v Rodriguez (Carlos)	1st Dept: 52 AD3d 268 (NY)	denied 9/17/08 (Pigott, J.)
People v Rodriguez (George)	2d Dept: 49 AD3d 903 (Rockland)	denied 9/12/08 (Jones, J.)
People v Rodriguez (George)	2d Dept: 51 AD3d 1043 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v Rodriguez (Jorge)	2d Dept: 49 AD3d 903 (Rockland)	denied 9/12/08 (Jones, J.)
People v Rodriguez (Jose)	2d Dept: 51 AD3d 950 (Kings)	denied 9/19/08 (Jones, J.)
People v Rodriguez (Pedro)	1st Dept: 52 AD3d 341 (NY)	denied 9/24/08 (Pigott, J.)
People v Rolfe	4th Dept: 53 AD3d 1106 (Niagara)	denied 9/22/08 (Pigott, J.)
People v Romano	2d Dept: 50 AD3d 1162 (Queens)	denied 9/11/08 (Grafteo, J.)
People v Ruffino	2d Dept: 52 AD3d 624 (Orange)	denied 9/15/08 (Smith, J.)
People v Rushion	2d Dept: 52 AD3d 625 (Kings)	denied 9/9/08 (Read, J.)
People v Sabinon	1st Dept: 52 AD3d 422 (NY)	denied 9/8/08 (Read, J.)
People v Salgado	1st Dept: 52 AD3d 257 (NY)	denied 9/19/08 (Jones, J.)
People v Sanney	4th Dept: 53 AD3d 1111 (Livingston)	denied 9/24/08 (Smith, J.)
People v Savinon	1st Dept: 52 AD3d 422 (NY)	denied 9/8/08 (Read, J.)
People v Sayles	App Div, 2d Dept: 2008 NY Slip Op 82431(U) (Rockland)	dismissed 9/30/08 (Jones, J.)
People v Schwab	4th Dept: 50 AD3d 1598 (Erie)	denied 9/8/08 (Read, J.)
People v Sepulveda	2d Dept: 52 AD3d 539 (Westchester)	denied 9/12/08 (Kaye, Ch.J.)
People v Shanti	1st Dept: 51 AD3d 547 (NY)	denied 9/9/08 (Read, J.)
People v Shearer	2d Dept: 52 AD3d 626 (Westchester)	denied 9/24/08 (Smith, J.)
People v Silvestry	2d Dept: 50 AD3d 931 (Queens)	granted 9/26/08 (Pigott, J.)
People v Siriani (Kyle)	2d Dept: 47 AD3d 647 (Kings)	denied 9/2/08 (Jones, J.)

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People v Siriani (Kyle)	App Div, 2d Dept: 2008 NY Slip Op 73883(U) (Kings)	dismissed 9/10/08 (Jones, J.)
People v Small	2d Dept: 50 AD3d 1065 (Kings)	denied 9/10/08 (Kaye, Ch.J.)
People v Snider (Alonza)	1st Dept: 49 AD3d 459 (NY)	denied 9/30/08 (Jones, J.)
People v Snider (Alonzo)	1st Dept: 49 AD3d 459 (NY)	denied 9/30/08 (Jones, J.)
People v Solano	2d Dept: 52 AD3d 848 (Queens)	denied 9/30/08 (Jones, J.)
People v Spencer	2d Dept: 51 AD3d 694 (Kings)	denied reconsideration 9/11/08 (Read, J.)
People v Street	2d Dept: 52 AD3d 746 (Suffolk)	denied 9/19/08 (Jones, J.)
People v Stubbs	2d Dept: 48 AD3d 490 (Orange)	denied 9/8/08 (Read, J.)
People v Swan	4th Dept: 50 AD3d 1566 (Cayuga)	granted 9/15/08 (Smith, J.)
People v Swift	App Div, 4th Dept: 2008 NY Slip Op 79082(U) (Steuben)	dismissed 9/3/08 (Kaye, Ch.J.)
People v Taylor	1st Dept: 50 AD3d 358 (NY)	denied 9/12/08 (Jones, J.)
People v Thomas (Derrick)	2d Dept: 52 AD3d 626 (Queens)	denied 9/17/08 (Pigott, J.)
People v Thomas (Patrick)	2d Dept: 50 AD3d 1068 (Kings)	denied 9/11/08 (Kaye, Ch.J.)
People v Thomas (Timothy)	4th Dept: 53 AD3d 1099 (Monroe)	denied 9/29/08 (Smith, J.)
People v Thompson	2d Dept: 51 AD3d 951 (Kings)	denied 9/19/08 (Jones, J.)
People v Torres	App Div, 1st Dept: 2008 NY Slip Op 72681(U) (NY)	denied 9/11/08 (Read, J.)
People v Towsley	4th Dept: 53 AD3d 1083 (Oswego)	denied 9/29/08 (Grafteo, J.)
People v Valencia	2d Dept: 50 AD3d 1163 (Queens)	denied 9/8/08 (Read, J.)
People v Velez	2d Dept: 53 AD3d 509 (Kings)	denied 9/24/08 (Smith, J.)
People v Vines	2d Dept: 51 AD3d 827 (Nassau)	denied 9/30/08 (Ciparick, J.)
People v Walker (Johnny)	4th Dept: 50 AD3d 1452 (Orleans)	denied 9/10/08 (Jones, J.)
People v Walker (Thomas)	2d Dept: 53 AD3d 560 (Queens)	denied 9/29/08 (Smith, J.)
People v Wallace	3d Dept: 53 AD3d 795 (Otsego)	denied 9/25/08 (Smith, J.)
People v Walters	4th Dept: 52 AD3d 1273 (Monroe)	denied 9/11/08 (Kaye, Ch.J.)

People v Washington (Darius)	1st Dept: 52 AD3d 271 (NY)	denied 9/11/08 (Kaye, Ch.J.)
People v Washington (Donald)	4th Dept: 53 AD3d 1120 (Erie)	denied 9/25/08 (Smith, J.)
People v Washington (Johnny)	4th Dept: 50 AD3d 1616 (Monroe)	denied 9/2/08 (Jones, J.)
People v Waugh	3d Dept: 52 AD3d 853 (Albany)	denied 9/17/08 (Smith, J.)
People v Weber	App Div, 3d Dept: 2008 NY Slip Op 82480(U) (Rensselaer)	dismissed 9/25/08 (Smith, J.)
People v Weekes	3d Dept: 52 AD3d 1032 (Broome)	denied 9/17/08 (Smith, J.)
People v Wells	App Div, 1st Dept: 2008 NY Slip Op 76490(U) (NY)	dismissed 9/17/08 (Smith, J.)
People v White	App Div, 4th Dept, 7/28/08 (Erie)	dismissed 9/25/08 (Grafteo, J.)
People v Williams (Darren)	2d Dept: 52 AD3d 748 (Orange)	denied 9/30/08 (Smith, J.)
People v Williams (Shane)	2d Dept: 53 AD3d 591 (Suffolk)	denied 9/11/08 (Grafteo, J.)
People v Wilson	4th Dept: 50 AD3d 1609 (Ontario)	denied 9/10/08 (Jones, J.)
People v Winslow	App Div, 2d Dept: 2008 NY Slip Op 73886(U) (Queens)	dismissed 9/5/08 (Read, J.)
People v Woodhouse	2d Dept: 51 AD3d 952 (Kings)	denied 9/10/08 (Jones, J.)
People v Woods	3d Dept: 51 AD3d 1061 (Albany)	denied 9/11/08 (Read, J.)
People v Wynter	App Div, 2d Dept: 2008 NY Slip Op 73888(U) (Nassau)	dismissed 9/15/08 (Smith, J.)
People v Young	3d Dept: 51 AD3d 1055 (Broome)	denied 9/9/08 (Read, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(September 1, 2008 through September 30, 2008)

People v Buchanan	4th Dept: 53 AD3d 46 (Chautauqua)	granted 9/15/08 (Fahey, J.)
People v Passino (Kristerfer)	3d Dept: 53 AD3d 204 (Washington)	granted 9/23/08 (Spain, J.)

* Includes only applications that were granted.

[897 NE2d 1050, 868 NYS2d 569]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMIE SMITH, Appellant.

Argued September 4, 2008; decided October 16, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 23, 2007. The Appellate Division affirmed an order of the Suffolk County Court (James Hudson, J.), which, after a hearing, had designated defendant a level two sex offender pursuant to Correction Law article 6-C.

People v Smith, 44 AD3d 920, reversed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act

In adjudicating defendant a level two sex offender (Correction Law art 6-C), County Court failed to adequately set forth the findings of fact and conclusions of law (Correction Law § 168-n [3]) on which it based its decision to assess defendant 20 points under risk factor 7 pertaining to defendant's relationship with the victim, the evidence upon which the court found that the victim was a stranger or determined that defendant had "established or promoted" the relationship for the primary purpose of victimization. Defendant had pleaded guilty to rape after admitting that he was 31 years old when he engaged in sexual intercourse with the 16-year-old victim. His classification turned on whether he should have been assessed additional points based on this relationship.

APPEARANCES OF COUNSEL

Legal Aid Society of Suffolk, Inc., Appeals Bureau, Riverhead (*Robert C. Mitchell* and *James H. Miller, III*, of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (*Michael J. Miller* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and the case remitted to County Court for further proceedings in accordance with this memorandum.

Defendant pleaded guilty to one count of rape in the third degree (Penal Law § 130.25 [2]) after admitting that he was 31 years old when he engaged in sexual intercourse with the

16-year-old victim. At a subsequent hearing held pursuant to the Sex Offender Registration Act (*see* Correction Law art 6-C), defendant conceded that the risk assessment instrument properly imposed 70 points, the maximum point total for presumptive risk level one sex offender status. His classification turned on whether he should receive additional points under risk factor 7 on the basis that his crime “was directed at a stranger or a person with whom a relationship had been established or promoted for the primary purpose of victimization” (Sex Offender Registration Act: Risk Assessment Guidelines and Commentary, at 12 [2006]). County Court assessed 20 points under this risk factor, thereby designating defendant a level two sex offender, and the Appellate Division affirmed.

Correction Law § 168-n (3) requires the sentencing court to “render an order setting forth its determinations and the findings of fact and conclusions of law on which the determinations are based.” In reaching its decision, which must be based on clear and convincing evidence, the judge “shall review any victim’s statement and any relevant materials and evidence submitted by the sex offender and the district attorney and the recommendation and any materials submitted by the board, and may consider reliable hearsay evidence submitted by either party, provided that it is relevant to the determinations” (Correction Law § 168-n [3]).

Here, County Court did not adequately set forth the findings of fact and conclusions of law on which it based its decision to assess defendant 20 points under the risk factor pertaining to defendant’s relationship with the victim—the evidence upon which the court found that the victim was a stranger or determined that defendant had “established or promoted” the relationship for the primary purpose of victimization. We therefore remit this case to County Court to specify its findings of fact and conclusions of law (*see People v Kraeger*, 27 AD3d 1160 [4th Dept 2006]; *People v Marr*, 20 AD3d 692 [3d Dept 2005]; *see also Matter of Jose L.I.*, 46 NY2d 1024 [1979]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[897 NE2d 1049, 868 NYS2d 568]

In the Matter of CITY OF ELMIRA et al., Respondents, v JOHN DOE, Appellant.

Argued September 3, 2008; decided October 16, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 5, 2007 (as amended by unpublished order entered July 23, 2007). The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, Chemung County (Peter C. Buckley, J.), which had denied petitioners' application to unseal the record of certain criminal proceedings. The modification consisted of (1) reversing so much of the order as denied petitioners' application to unseal preexisting documents generated in petitioners' regular course of business during its investigation of other defendants, rather than in connection with the prosecution of the criminal proceeding against respondent, and (2) granting the application to that extent.

Respondent police officer was subject to criminal charges and a disciplinary proceeding arising from the same matters. After the criminal charges were dismissed, petitioners sought to unseal the criminal records for use in the disciplinary proceeding.

Matter of City of Elmira v Doe, 39 AD3d 942, affirmed.

HEADNOTE

Records — Sealing of Records upon Termination of Criminal Action in Favor of Accused

In a special civil proceeding brought pursuant to CPL 160.50 to vacate a sealing order after the dismissal of criminal charges against respondent police officer, petitioners, who had commenced a disciplinary proceeding against respondent arising from the same matters underlying the criminal charges, were entitled to certain sealed records, including property tags, bags and logs showing the chain of custody of money surrendered by persons arrested by respondent, and other records generated in the investigations of those arrests. These records were not "official records" within the meaning of CPL 160.50 (1) (c) and, thus, were not subject to a CPL 160.50 seal.

APPEARANCES OF COUNSEL

Schlather, Geldenhuys, Stumbar & Salk, Ithaca (*Diane V. Bruns* of counsel), for appellant.

J. William O'Brien II, Corporation Counsel, Elmira (*John J. Ryan, Jr.*, of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division, insofar as appealed from, should be affirmed, without costs.

In this special civil proceeding brought pursuant to CPL 160.50 to vacate a sealing order, the primary issue before this Court is whether some of the sealed materials constitute “official records” within the meaning of CPL 160.50 (1) (c).^{*} We agree with the Appellate Division that certain sealed records in this case (i.e., property tags, bags and logs showing the chain of custody of money surrendered by persons arrested by respondent, and other records generated in the investigations of those arrests) are not official records subject to a CPL 160.50 seal. Respondent’s remaining argument that the Appellate Division erred in granting “resettlement and reargument” is without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order, insofar as appealed from, affirmed, without costs, in a memorandum.

CITY OF NEW YORK, Appellant, v SMOKE-SPIRITS.COM, INC., et al., Respondents, et al., Defendants. (And Other Actions.)

Decided October 16, 2008

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

^{*} All parties now acknowledge that CPL 160.50 (1) (d) is not applicable; accordingly, we may not pass on those aspects of the rulings below. Throughout this proceeding, neither party addressed whether CPL 160.50 (1) (c) is a proper basis upon which to obtain sealed documents in this procedural context. They simply contest whether the subject materials constitute “official records.” Thus, as this threshold issue was not preserved for appellate review, we must here accept without comment the general applicability of CPL 160.50 (1) (c) as a basis for vacatur.

JEANNE DELAURENTIS, Appellant, v VITO F. DELAURENTIS, JR.,
Respondent.

Submitted July 28, 2008; decided October 16, 2008

Reported below, 47 AD3d 750.

Motion for the imposition of sanctions denied.

In the Matter of FIVECO, INC., Doing Business as MER'S, INC.,
Appellant, v BRUCE HABER, Respondent.

Submitted August 11, 2008; decided October 16, 2008

Reported below, 42 AD3d 454.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [*see* 11 NY3d 140 (2008)].

JERICO GROUP, LTD., Appellant, v MIDTOWN DEVELOPMENT,
L.P., Respondent.

Submitted July 14, 2008; decided October 16, 2008

Reported below, 47 AD3d 463.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

LEE N. KOEHLER, Appellant, v THE BANK OF BERMUDA LIMITED,
Respondent.

Decided October 16, 2008

Certification of question by the United States Court of Ap-
peals for the Second Circuit, pursuant to section 500.27 of the
Rules of Practice of the Court of Appeals (22 NYCRR 500.27),
accepted and the issues presented are to be considered after
briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO,
READ, SMITH, PIGOTT and JONES.

In the Matter of the Claim of YVONNE PEARSON, Appellant, v
BESTCARE et al., Respondents. WORKERS' COMPENSATION
BOARD, Respondent.

Submitted July 28, 2008; decided October 16, 2008

Reported below, 48 AD3d 862.

Motion for reargument of motion for leave to appeal denied
[see 10 NY3d 715 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DZEMIL
BALIC, Appellant.

Submitted July 28, 2008; decided October 16, 2008

Reported below, 52 AD3d 201.

Motion for leave to appeal granted. Motion for poor person
relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v AMBER
BAUMAN and CHARLES EDWARD LAFLE, Respondents.

Submitted September 22, 2008; decided October 16, 2008

Reported below, 51 AD3d 316.

Motion for assignment of counsel granted and Timothy P.
Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh
Street, Rochester, New York 14614 assigned as counsel to re-
spondent Amber Bauman on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIONIS
COLLADO, Appellant.

Submitted September 29, 2008; decided October 16, 2008

Reported below, 47 AD3d 547.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 74 Trinity Place, 11th
Floor, New York, NY 10006 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DALE F. LEESON, Appellant.

Submitted September 29, 2008; decided October 16, 2008

Reported below, 48 AD3d 1294.

Motion for assignment of counsel granted and John E. Tyo, Esq., care of Zimmerman & Tyo, 6 East Main Street, P.O. Box 7, Shortsville, New York 14548 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN MATTOCKS, Appellant.

Submitted September 22, 2008; decided October 16, 2008

Reported below, 51 AD3d 301.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE MINGO, Appellant.

Submitted September 22, 2008; decided October 16, 2008

Reported below, 49 AD3d 148.

Motion by James Ching for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KRISTERFER PASSINO, Appellant.

Submitted October 14, 2008; decided October 16, 2008

Reported below, 53 AD3d 204.

Motion for assignment of counsel granted and M. Elizabeth Coreno, Esq., care of Jones Ferradino, 68 West Avenue, P.O. Box 4400, Saratoga Springs, New York 12866 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS PEREZ, Appellant.

Submitted October 6, 2008; decided October 16, 2008

Reported below, 52 AD3d 1244.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT TOCCI, Appellant.

Submitted September 15, 2008; decided October 16, 2008

Reported below, 52 AD3d 541.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BILLY WITHERSPOON, Appellant.

Submitted October 6, 2008; decided October 16, 2008

Reported below, 48 AD3d 599.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE RGH LIQUIDATING TRUST, on Behalf of RELIANCE GROUP HOLDINGS, INC., and Another, Appellant, v DELOITTE & TOUCHE LLP et al., Respondents.

Submitted August 4, 2008; decided October 16, 2008

Reported below, 47 AD3d 516.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARK RUFEB, Respondent, v SETH M. SCHWARTZ et al., Appellants.

Submitted July 28, 2008; decided October 16, 2008

Reported below, 50 AD3d 1000.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge KAYE taking no part.

DAVID SIMONS, Appellant, v LYCEE FRANCAIS DE NEW YORK et al., Respondents.

Submitted July 28, 2008; decided October 16, 2008

Reported below, 47 AD3d 416.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 10 NY3d 714 (2008)].

[897 NE2d 1054, 868 NYS2d 573]

SORBARA CONSTRUCTION CORPORATION, Appellant, v AIU INSURANCE COMPANY, Respondent, et al., Defendants.

Argued September 3, 2008; decided October 21, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 19, 2007. The Appellate Division affirmed an order of the Supreme Court, New York County (Marcy Friedman, J.; op 2006 NY Slip Op 30440[U]), which had denied plaintiff's motion for summary judgment and granted defendant AIU Insurance Company's cross motion for summary judgment to the extent of declaring that the defendant had no obligation to defend or indemnify plaintiff in an underlying personal injury action.

Sorbara Constr. Corp. v AIU Ins. Co., 41 AD3d 245, affirmed.

HEADNOTE

Insurance — Duty to Defend and Indemnify

Defendant insurer was not required to defend or indemnify plaintiff insured in an underlying personal injury action. Plaintiff's failure to give defendant

notice of the accident until 5½ years after its occurrence when plaintiff was sued in a third-party action was unreasonable as a matter of law. Failure to give notice of an occurrence as soon as practicable relieves the insurer of its obligations under the contract, regardless of whether the insurer was prejudiced by the delay. Notice provided under the workers' compensation policy at the time of the incident did not constitute notice under the liability policy even though both policies were written by the same carrier. Similarly, an additional insured's notice to the carrier under a different policy did not excuse the insured's obligation.

APPEARANCES OF COUNSEL

Herzfeld & Rubin, P.C., New York City (*David B. Hamm* and *Miriam Skolnik* of counsel), for appellant.

Hodgson Russ LLP, Buffalo (*Kevin D. Szczepanski* and *Patrick M. Tomovic* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

It is well settled that when a policy of liability insurance requires that notice of an occurrence be given "as soon as practicable," such notice must be provided within a reasonable period of time; failure to give such notice relieves the insurer of its obligations under the contract, regardless of whether the insurer was prejudiced by the delay (*Great Canal Realty Corp. v Seneca Ins. Co., Inc.*, 5 NY3d 742, 743 [2005]; *Argo Corp. v Greater N.Y. Mut. Ins. Co.*, 4 NY3d 332, 339 [2005]).

Contrary to the insured's contention in this case, notice provided under the workers' compensation policy at the time of the incident did not constitute notice under the liability policy even though both policies were written by the same carrier (see generally *Nationwide Ins. Co. v Empire Ins. Group*, 294 AD2d 546, 548 [2d Dept 2002]; *57th St. Mgt. Corp. v Zurich Ins. Co.*, 208 AD2d 801, 802 [2d Dept 1994]). Each policy imposes upon the insured a separate, contractual duty to provide notice. Similarly, an additional insured's notice to the carrier under a different policy does not excuse the insured's obligation to provide timely notice under its policy (see *Travelers Ins. Co. v Volmar Constr. Co.*, 300 AD2d 40 [1st Dept 2002]).

Here, the insured did not give notice to the insurer until it was sued in a third-party action—some 5½ years after the accident. Under the circumstances of this case, such notice was unreasonable as a matter of law and relieved the insurer of its obligation to defend or indemnify the insured.

The insured's remaining contention is without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

MARIA TERESA BACANI et al., Appellants, v LISA ROSENBERG, M.D., et al., Respondents.

Submitted August 11, 2008; decided October 21, 2008

Reported below, 52 AD3d 417.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VICTOR BATSCHEVER, Appellant, v AVERY E. OKIN, Respondent.

Submitted July 21, 2008; decided October 21, 2008

Reported below, 2008 NY Slip Op 66098(U), 75672(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

STEPHEN F. BRUMMER, Plaintiff, v TOWN OF TONAWANDA et al., Defendants. CHRISTOPHER A. SPENCE, P.C., Appellant; THE BARNES FIRM, P.C., Successor to CELLINO & BARNES, Respondent.

Submitted July 28, 2008; decided October 21, 2008

Reported below, 48 AD3d 1127.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

In the Matter of CAROLYN Z. and Another, Children Alleged to be Neglected. ST. LAWRENCE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAGE Z., Appellant.

Submitted August 18, 2008; decided October 21, 2008

Reported below, 53 AD3d 875.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ROBERT DELBENE et al., Respondents, v NATE ESTES et al., Appellants.

Submitted August 18, 2008; decided October 21, 2008

Reported below, 52 AD3d 647.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JUDITH L. HANCOCK, Respondent, v ARTS4ALL, LTD., Also Known as A4A MOBILE, LTD., Appellant.

Submitted August 4, 2008; decided October 21, 2008

Reported below, 50 AD3d 390.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ANGELO IANNONE, Appellant, v ING FINANCIAL SERVICES, LLC, et al., Respondents.

Submitted August 25, 2008; decided October 21, 2008

Reported below, 49 AD3d 391.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. The doctrine of implied severance is not applicable (*see Burke v Crosson*, 85 NY2d 10, 16-17 [1995]).

Chief Judge KAYE taking no part.

In the Matter of JAZMONE S., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
PHILIP J., Appellant. (Proceeding No. 1.)

In the Matter of ASHLEY J., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
PHILIP J., Appellant. (Proceeding No. 2.)

In the Matter of ZALIKA J., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
PHILIP J., Appellant. (Proceeding No. 3.)

In the Matter of ETHAN J., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
PHILIP J., Appellant. (Proceeding No. 4.)

Submitted July 21, 2008; decided October 21, 2008

Reported below, 2008 NY Slip Op 73484(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of JENNY A., Appellant, v CAYUGA COUNTY DEPARTMENT OF HEALTH AND HUMAN SERVICES, Respondent.

Submitted July 28, 2008; decided October 21, 2008

Reported below, 50 AD3d 1583.

Motion for leave to appeal dismissed upon the ground that appellant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

In the Matter of EDWARD KOEHL, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted August 11, 2008; decided October 21, 2008

Reported below, 52 AD3d 1070.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of WALTER SELF, Appellant, v NEW YORK STATE
DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted July 21, 2008; decided October 21, 2008

Reported below, 2008 NY Slip Op 75333(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies to the Court of Appeals from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

DANTE SMITH et al., Appellants, v 2328 UNIVERSITY AVENUE
CORP. et al., Defendants, and NL INDUSTRIES, INC., Respon-
dent.

Submitted August 4, 2008; decided October 21, 2008

Reported below, 52 AD3d 216.

Motion by the New York City Coalition to End Lead Poisoning et al. for leave to file affirmations amici curiae on the motion for leave to appeal herein granted and the affirmations are accepted as filed.

Judge SMITH taking no part.

[898 NE2d 561, 869 NYS2d 378]

CRAIG CRAWFORD, Respondent, v LIZ CLAIBORNE, INC., et al., Ap-
pellants.

Argued September 10, 2008; decided October 23, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 1, 2007. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, New York County (Jane S. Solomon, J.), which had granted defendants' motion for summary judgment dismissing the complaint, (2) denied the motion, (3) reinstated the complaint, and (4) remanded the matter for further proceedings before a different Justice. The following question was certified

by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Crawford v Liz Claiborne, Inc., 45 AD3d 284, reversed.

HEADNOTE

Judgments — Summary Judgment — Timeliness of Motion

In a Human Rights Law action commenced in Supreme Court, defendants timely filed a motion for summary judgment 62 days after plaintiff filed the note of issue. At the time that the IAS Judge issued a preliminary conference order (PCO) directing that motions be made “per local rule,” Rules of the Justices of the Supreme Court, Civil Branch, New York County, rule 17 provided that summary judgment motions be made no later than 60 days after the filing of the note of issue. The IAS Judge had no individual part rule regarding summary judgment motions. Shortly before plaintiff filed her note of issue, rule 17 was amended to provide a 120-day window and the IAS Judge had modified her part rules to provide for a 60-day summary judgment window. Inasmuch as the IAS Judge had no individual part rule at the time of the PCO, “per local rule” could only have referred to rule 17. In that the 120-day amended rule 17 was in effect at the time the note of issue was filed, defendants’ motion was timely.

APPEARANCES OF COUNSEL

Orrick Herrington & Sutcliffe, LLP, New York City (*Michael Delikat* and *John D. Giansello* of counsel), for appellants.

Thompson Wigdor & Gilly, LLP, New York City (*Douglas H. Wigdor* and *Renan F. Varghese* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the case remitted to the Appellate Division for further proceedings in accordance with this decision and the certified question answered in the negative.

On September 24, 2004, plaintiff Craig Crawford brought a Human Rights Law action in Supreme Court, New York County, against his employer, Liz Claiborne, Inc., and other parties alleging discrimination based on sexual orientation. On April 11, 2005, the IAS Judge issued a preliminary conference order (PCO) directing that dispositive motions be made “per local rule.”

At the time of the issuance of the PCO, rule 17 of the Rules of the Justices of the Supreme Court, Civil Branch, New York County (Local Rules) provided that “[u]nless specified otherwise in a particular case, pursuant to CPLR 3212 (a) all motions for summary judgment must be made no later than 60 days after the filing of the note of issue.” The IAS Judge had individual

part rules in addition to the Local Rules, but at the time the PCO was issued had no individual part rule regarding summary judgment motions.

On April 17, 2006, before the note of issue was filed, the Local Rules were amended, including an amended rule 17 providing that

“[u]nless otherwise provided in a particular case in the preliminary conference order or other directive of the Justice assigned, a motion for summary judgment shall be made no later than 120 days after the filing of the note of issue, except with leave of court for good cause shown.”

Around the same time, the IAS Judge modified her individual part rules adding the language “[a]bsent court order, post note of issue dispositive motions shall be made within 60 days thereof.”

Thus, when the instant note of issue was filed on May 15, 2006, the Local Rules differed from the IAS Judge’s individual part rules regarding the deadline for filing a summary judgment motion. Under the IAS Judge’s individual part rules, a motion for summary judgment would be due on July 17, 2006, whereas the parties would have 60 additional days under the amended Local Rules.

Defendants’ motion for summary judgment was made on July 19, 2006. On July 20, 2006, plaintiff moved by order to show cause to strike defendants’ motion as untimely. The IAS Judge denied the application and instructed plaintiff to raise the issue of timeliness in his response to the summary judgment motion. Thereafter, plaintiff opposed the motion solely on the ground of untimeliness without addressing the merits. At oral argument on September 18, 2006, the IAS Judge determined that the motion was untimely but found that defendants showed “good cause” for the delay in filing the motion. In that the motion was otherwise unopposed on the merits, the IAS Judge granted summary judgment for defendants.

Relying on *Brill v City of New York* (2 NY3d 648 [2004]), the Appellate Division, in a 3-2 decision, reversed, reinstated the complaint, and remanded the case to the Supreme Court (45 AD3d 284, 287 [1st Dept 2007]). Defendants appeal to this Court by leave of the Appellate Division on a certified question.

We hold that defendants’ motion for summary judgment, made 62 days after the filing of the note of issue, was timely

and that *Brill* is inapplicable to this case. At the time the PCO was entered, the IAS Judge had no individual part rule; thus, “per local rule” could only have referred to the Local Rules of Supreme Court, New York County. In that the 120-day amended Local Rule was in effect at the time the note of issue was filed, defendants’ motion was actually timely.

Given this conclusion, we need not address the secondary issue of whether the Appellate Division properly reassigned the case to a different Justice on remand. However, as the Appellate Division has not had an opportunity to pass on the propriety of Supreme Court’s grant of summary judgment on the merits, we remit this case to the Appellate Division for that purpose.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[897 NE2d 1071, 868 NYS2d 588]

In the Matter of STEPHEN R. HUNTER, Respondent, v ORANGE COUNTY BOARD OF ELECTIONS, Respondent, and ROBERT A. ONOFRY, Appellant.

Argued October 22, 2008; decided October 23, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 17, 2008. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Orange County (Joseph G. Owen, J.), entered in a proceeding pursuant to Election Law § 16-102, which, after a hearing, in effect, had granted that branch of cross petitioner Robert A. Onofry’s motion to dismiss the petition pursuant to CPLR 3211 (a) (7), dismissed the petition and granted that branch of the cross petition to declare Robert A. Onofry the rightfully nominated candidate of the Independence Party for the public office of Surrogate, County of Orange, in the primary election held on September 9, 2008, (2) granted that branch of the petition to set aside the results of the primary election, and to direct that a new primary election be held, (3) denied that branch of the cross petition to declare cross petitioner the rightfully nominated candidate, (4) denied that branch of the cross petitioner’s motion to dismiss the petition and (5) directed the Orange County

Board of Elections to hold a new primary election for that nomination. The following question was certified by the Appellate Division: “Was the decision and order of this Court properly made?”

In a primary election held on September 9, 2008, to nominate the candidate of the Independence Party for the public office of Surrogate, County of Orange, the voting machines in eight election districts where no members of the Independence Party signed in to vote recorded a total of seven votes for cross petitioner Robert A. Onofry and a total of two votes for petitioner Stephen R. Hunter. In seven other election districts where at least one member of the Independence Party did sign in to vote, there were 17 more votes recorded by the voting machines than Independence Party voter signatures. Including the irregular votes and three challenged absentee ballots, cross petitioner received 222 votes and petitioner received 213 votes.

Matter of Hunter v Orange County Bd. of Elections, 55 AD3d 760, reversed.

HEADNOTE

Elections — Primary Elections

A proceeding pursuant to Election Law § 16-102 to set aside the results of a primary election for the nomination of the Independence Party candidate for the public office of Surrogate, County of Orange, was remitted to Supreme Court with directions to dismiss the proceeding. The voting machines in eight election districts where no members of the Independence Party signed in to vote recorded a total of seven votes for the cross petitioner and a total of two votes for petitioner. In seven other election districts where at least one member of the Independence Party did sign in to vote, there were 17 more votes recorded by the voting machines than Independence Party voter signatures. Including the irregular votes and three challenged absentee ballots, cross petitioner received 222 votes and petitioner received 213 votes. Under these circumstances, it was impossible to render meaningful relief in compliance with the Election Law.

APPEARANCES OF COUNSEL

Vincent J. Messina, Jr., Central Islip, for appellant.

Jonathan G. Jacobson, New Windsor, for Stephen R. Hunter, respondent.

David L. Darwin, County Attorney, Goshen (*Sharon Worthy-Spiegl* of counsel), for Orange County Board of Elections, respondent.

John Ciampoli, Albany, for Orange County Interim County Organization of the New York State Independence Party and another, amici curiae.

OPINION OF THE COURT

Order reversed, without costs, and matter remitted to Supreme Court, Orange County, with directions to dismiss the proceeding. Under the circumstances of this case, it would be impossible, if this Court were to entertain the merits, to render meaningful relief in compliance with the Election Law.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of the Claim of VIOREL CINCU, Appellant. SUTTON HOUSE, INC., Respondent; COMMISSIONER OF LABOR, Respondent.

Submitted September 2, 2008; decided October 23, 2008

Reported below, 43 AD3d 528.

Motion for reargument of motion for leave to appeal denied [see 10 NY3d 714 (2008)].

In the Matter of DAVID CLINTON, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted September 29, 2008; decided October 23, 2008

Reported below, 54 AD3d 104.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

JOHN R. CONSEDINE, Respondent, v PORTVILLE CENTRAL SCHOOL DISTRICT et al., Appellants.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 49 AD3d 1290 (Appeal No. 3).

Motion by New York State School Boards Association for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

AJET DELAJ et al., Appellants, v KENNETH R. JAMESON, Defendant. MARK E. SEITELMAN LAW OFFICES, P.C., Nonparty Respondent.

Submitted September 2, 2008; decided October 23, 2008

Reported below, 51 AD3d 450.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

In the Matter of NICOLE GALE, Respondent, v JOHN LOTITO III, Appellant.

Submitted May 27, 2008; decided October 23, 2008

Reported below, 50 AD3d 903.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MIKE HENRIQUEZ, Appellant, v KEITH DUBRAY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted July 28, 2008; decided October 23, 2008

Reported below, 51 AD3d 1350.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of STEPHEN R. HUNTER, Respondent, v ORANGE COUNTY BOARD OF ELECTIONS, Respondent, and ROBERT A. ONOFRY, Appellant.

Submitted October 22, 2008; decided October 23, 2008

Reported below, 55 AD3d 760.

Motion, insofar as the Orange County Interim County Organization of the New York State Independence Party et al., seek

leave to intervene, denied; motion, insofar as said movants seek leave to appear amici curiae on the appeal herein, granted.

KATHRYN JORDAN, Appellant, v BATES ADVERTISING HOLDINGS, INC., Formerly Known as AC & R ADVERTISING, INC., Respondent, et al., Defendant. KLEIN ZELMAN ROTHERMEL LLP, Nonparty Intervenor-Respondent.

Submitted September 22, 2008; decided October 23, 2008

Reported below, 46 AD3d 440.

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 701 (2008)].

In the Matter of WALTER KEARNEY, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Submitted July 28, 2008; decided October 23, 2008

Reported below, 2008 NY Slip Op 75394(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SHAWN MOYNIHAN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted August 4, 2008; decided October 23, 2008

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that the direct appeal does not lie (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]). Motion for poor person relief dismissed as academic.

NEW YORK STATE CRIME VICTIMS BOARD, Respondent, v BRUCE LORICK, Appellant.

Submitted September 22, 2008; decided October 23, 2008

Reported below, 2008 NY Slip Op 76745(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of OMNI RECYCLING OF WESTBURY, INC., Respondent, v TOWN OF OYSTER BAY et al., Appellants.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 41 AD3d 482.

Motion by the Association of Towns of the State of New York for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO BORRELL, Also Known as JULIO CESAR BORRELL, Appellant.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 49 AD3d 890.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM MITCHELL, Appellant.

Submitted September 29, 2008; decided October 23, 2008

Reported below, 2008 NY Slip Op 76931(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order of the Appellate Division entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

In the Matter of RONALD V. POMERANCE, Appellant, v ROGER PAUL McTIERNAN, JR., et al., Respondents.

Submitted July 28, 2008; decided October 23, 2008

Reported below, 51 AD3d 525.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

NORMA ROSE et al., Appellants, v BROWN & WILLIAMSON TOBACCO CORPORATION, as Successor in Interest to AMERICAN TOBACCO, et al., Respondents, et al., Defendant.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 53 AD3d 80.

Motion by Product Liability Advisory Council, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

NORMA ROSE et al., Appellants, v BROWN & WILLIAMSON TOBACCO CORPORATION, as Successor in Interest to AMERICAN TOBACCO, et al., Respondents, et al., Defendant.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 53 AD3d 80.

Motion by Professor James A. Henderson, Jr. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

NORMA ROSE et al., Appellants, v BROWN & WILLIAMSON TOBACCO CORPORATION, as Successor in Interest to AMERICAN TOBACCO, et al., Respondents, et al., Defendant.

Submitted October 20, 2008; decided October 23, 2008

Reported below, 53 AD3d 80.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

[898 NE2d 571, 869 NYS2d 388]

WENDY LITWACK, Appellant, v PLAZA REALTY INVESTORS, INC., et al., Respondents.

Argued September 11, 2008; decided October 28, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 3, 2007. The Appellate Division affirmed two orders of the Supreme Court, New York County (Marilyn Shafer, J.), which, among other things, had granted defendants summary judgment dismissing the complaint. The following question was certified by the Appellate Division: “Was the order of the Supreme Court, as affirmed by the decision and order of this Court, properly made?”

Litwack v Plaza Realty Invs., Inc., 40 AD3d 250, affirmed.

HEADNOTE

Negligence — Maintenance of Premises

Defendant apartment owners and managers were entitled to summary judgment dismissing plaintiff tenant’s personal injury action to recover damages for a toxic mold condition in her apartment. Plaintiff failed to raise any triable factual issues regarding whether defendants created, or had notice of persistent water leaks that foreseeably could result in, a hazardous mold condition. In April, plaintiff notified landlord about a small spot with surrounding wetness in her wall. Once the steam was turned on in October, and a cracked steam pipe was repaired, there was no further complaint. Additionally, in response to plaintiff’s complaint that during summer months the air conditioners dripped, building staff from time to time changed the filters. However, plaintiff never complained that the air conditioners dampened her carpet, or that the areas smelled musty or moldy. Further, she vacated the apartment three months before notifying defendants of the claimed mold condition.

APPEARANCES OF COUNSEL

William D. Fireman, P.C., New York City (*William D. Fireman* and *Adam Silvera* of counsel), for appellant.

Molod Spitz & DeSantis, P.C., New York City (*Marcy Sonneborn* and *Salvatore J. DeSantis* of counsel), for respondents.

Arnold E. DiJoseph, P.C., New York City (*Arnold E. DiJoseph, III*, of counsel) for New York State Trial Lawyers’ Association, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

In April 1999, plaintiff complained to the apartment building doorman about a four-to-six inch “brown wet, dark brownish” spot in the middle of her dining room wall. Within a week, a building handyman removed about five inches of sheetrock, revealing a potential tiny crack in a steam pipe. When the steam was turned on in October, revealing the precise location of a hair-width, one-eighth-inch long crack, a plumber was able to replace that section of the pipe, and a building handyman repaired the wall. Plaintiff additionally complained that, during summer months, air conditioners in her apartment dripped; in response, building staff from time to time changed the filters. In either the fall or winter of 1999, plaintiff began to feel ill, and in July 2001 doctors advised her to have her apartment environmentally tested. Testing confirmed the presence of toxic mold, and plaintiff vacated the apartment that month. Thereafter, in October 2001, plaintiff notified the landlords of the claimed mold condition.

After plaintiff brought suit for, among other things, negligence, defendants landlords moved for summary judgment. Supreme Court granted summary judgment, concluding that plaintiff did not give defendants sufficient notice of the toxic mold condition and holding that “there was no proof of continuous complaints about the repeated entry of water, based on repair work undertaken by the owner, which could warrant an issue as to the foreseeability of a mold hazard.” The Appellate Division affirmed, with one Justice dissenting, on the ground that, as a matter of law, the evidence was insufficient to put defendants on notice of a hazardous mold condition, and certified the following question: “Was the order of the Supreme Court, as affirmed by the decision and order of this Court, properly made?” We conclude that it was.

A landlord may be liable for failing “to repair a dangerous condition, of which it has notice, on leased premises if the landlord assumes a duty to make repairs and reserves the right to enter in order to inspect or to make such repairs” (*Chapman v Silber*, 97 NY2d 9, 19 [2001]). Plaintiff bears the burden of proving that the landlord had notice of the dangerous condition and a reasonable opportunity to repair it (*Juarez v Wavecrest Mgt. Team*, 88 NY2d 628, 642 [1996]).

Here, even applying plaintiff’s proposed notice standard—whether defendants created, or had notice of persistent water leaks that foreseeably could result in, a hazardous mold condition—plaintiff failed to raise any triable factual issues. In April

1999, the crack and spot with surrounding wetness were small; once the steam was turned on and the repair could be made in October, there was no further complaint. Additionally, plaintiff never complained that the air conditioners dampened her carpet, or that the areas smelled musty or moldy; indeed, she vacated the apartment three months before notifying defendants of the claimed mold condition. Thus, summary judgment dismissing the complaint was warranted.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order affirmed, etc.

[898 NE2d 21, 869 NYS2d 8]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LIONEL JONES, Appellant.

Argued September 11, 2008; decided October 28, 2008

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered February 1, 2008. The Appellate Division affirmed a judgment of the Erie County Court (Timothy J. Drury, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the fourth degree.

People v Jones, 48 AD3d 1116, affirmed.

HEADNOTES

Crimes — Jurors — Selection of Jury — *Batson* Procedure

1. In a criminal prosecution, defendant failed to meet his burden of establishing a prima facie case of discrimination pursuant to *Batson v Kentucky* (476 US 79 [1986]). Although a defendant need not establish a pattern of discrimination, sketchy assertions, standing alone, are insufficient. Here, defense counsel's contentions that the prosecutor's peremptory challenge of an African-American prospective juror was based on her race because the challenged juror's answers were "neutral" and "would not give [the prosecutor] any reason to believe that she could [not] be impartial" were vague and conclusory.

Crimes — Unlawful Search and Seizure

2. In a criminal prosecution, the hearing court's determination that the police possessed founded suspicion of criminality justifying a common-law inquiry involved a mixed question of law and fact supported by the record. Thus, the issue was beyond review by the Court of Appeals.

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Nicholas T. Texido* and *David C. Schopp* of counsel), for appellant.

Frank J. Clark, District Attorney, Buffalo (*Michael J. Hillery* and *J. Michael Marion* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Defendant Lionel Jones failed to meet his burden of establishing a prima facie case of discrimination pursuant to *Batson v Kentucky* (476 US 79 [1986]). While the party making a *Batson* challenge need not establish a pattern of discrimination to satisfy the step-one burden (see *People v Smocum*, 99 NY2d 418, 421-422 [2003]), “sketchy assertions” and declarations that the prospective juror “indicated no reason why [the juror] could not serve fairly” are, standing alone, generally insufficient to establish a prima facie case of discrimination (*People v Childress*, 81 NY2d 263, 267-268 [1993] [internal quotation marks omitted]). Defense counsel’s contentions that the prosecutor’s peremptory challenge of an African-American prospective juror must have been based on her race because the challenged juror’s answers were “neutral” and “would not give [the prosecutor] any reason to believe that she could [not] be impartial” are exactly the kind of vague and conclusory assertions this Court rejected in *Childress*.

[2] Finally, the hearing court’s determination that the police possessed founded suspicion of criminality justifying a common-law inquiry, a mixed question of law and fact, is supported by the record (*People v Battaglia*, 86 NY2d 755, 756 [1995]). Accordingly, this Court’s review process is exhausted.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[897 NE2d 1059, 868 NYS2d 578]

EDWARD COHEN et al., Respondents, v MEMORIAL SLOAN-KETTERING CANCER CENTER et al., Appellants.

Decided October 28, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, entered Feb-

ruary 5, 2008. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Walter B. Tolub, J.; op 2007 NY Slip Op 34351[U]), which had granted defendants' motion for summary judgment dismissing the cause of action under Labor Law § 241 (6) and denied plaintiffs' cross motion for summary judgment on their Labor Law § 240 (1) claim. The modification consisted of granting plaintiffs' cross motion for summary judgment on their Labor Law § 240 (1) claim. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, properly made?"

Plaintiff laborer was injured when he fell while descending a ladder after installing ceiling racks. The ladder was placed in a position where two unconnected pipes protruded from a wall near the lower two rungs.

Cohen v Memorial Sloan-Kettering Cancer Ctr., 50 AD3d 227, reversed.

HEADNOTE

Labor — Safe Place to Work

Defendants' motion for summary judgment dismissing plaintiff laborer's Labor Law § 240 (1) claim was granted. Plaintiff, who had been installing ceiling racks, fell while descending a ladder which was placed in a position where two unconnected pipes protruded from the wall near the lower two rungs. No Labor Law § 240 (1) liability exists where an injury results from a separate hazard wholly unrelated to the risk which brought about the need for the safety device in the first place. The pipes' presence was not the risk which brought about the need for the ladder, but was one of the usual and ordinary dangers at a construction site to which the protections of Labor Law § 240 (1) do not extend.

APPEARANCES OF COUNSEL

Mauro Goldberg & Lilling, Great Neck (*Matthew W. Naparty* of counsel), and *Kopff, Nardelli & Dopf LLP*, New York City (*Martin B. Adams* of counsel), for appellants.

David P. Kownacki, New York City, for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, plaintiffs' cross motion for summary judgment on their Labor Law § 240 (1) claim denied, defendants' motion for summary judgment dismissing the Labor Law § 240 (1) claim granted, and the certified question answered in the negative.

No Labor Law § 240 (1) liability exists where an injury results from a separate hazard wholly unrelated to the risk which brought about the need for the safety device in the first place (see *Nieves v Five Boro A.C. & Refrig. Corp.*, 93 NY2d 914 [1999]; *Melber v 6333 Main St.*, 91 NY2d 759, 763-764 [1998]). Here, the presence of two unconnected pipes protruding from a wall was not “the risk which brought about the need for the [ladder] in the first instance” (*Nieves*, 93 NY2d at 916 [citations omitted]), but was one of “the usual and ordinary dangers at a construction site” (*id.*) to which the “extraordinary protections of Labor Law § 240 (1) [do not] extend” (*id.* at 915).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

TRICIA BARON, Plaintiff, v RICHARD J. GRANT, Appellant, and
FIRST UNION AUTO FINANCE, INC., Respondent.

Submitted April 28, 2008; decided October 28, 2008

Reported below, 48 AD3d 608.

Motion for leave to appeal dismissed upon the ground that movant has failed to show that the order sought to be appealed from is final as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (3).

SALLY ANN BLAZYNSKI et al., Appellants, v A. GARELECK & SONS,
INC., et al., Respondents, et al., Defendants.

Submitted July 28, 2008; decided October 28, 2008

Reported below, 48 AD3d 1168, 1170.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed Supreme Court’s order denying appellants’ motion for leave to renew, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

STEVIE BROOKS, Respondent, v HARLEY I. LEWIN, ESQ., et al.,
Defendants. CURTIS & ASSOCIATES, P.C., Nonparty Appel-
lant.

Submitted September 2, 2008; decided October 28, 2008

Reported below, 48 AD3d 289.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of RICHARD J. CONDON, as Special Commissioner of Investigation for the New York City School District, Respondent, v THE INTER-RELIGIOUS FOUNDATION FOR COMMUNITY ORGANIZATION, INC., Appellant.

In the Matter of RICHARD J. CONDON, as Special Commissioner of Investigation for the New York City School District, Respondent, v LUCIUS WALKER, JR., Appellant.

Submitted August 18, 2008; decided October 28, 2008

Reported below, 51 AD3d 465.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

ALBINA EMANVILOVA et al., Appellants, v JOSEPH PALLOTTA et al., Respondents.

In the Matter of AMERICAN TRANSIT INSURANCE COMPANY, Respondent, v ALBINA EMANVILOVA et al., Appellants, and IGOR LOKTEV, Respondent, and ALLSTATE INSURANCE CO., Proposed Respondent. (And Another Proceeding.)

Submitted September 2, 2008; decided October 28, 2008

Reported below, 49 AD3d 413.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

ERNIE OTTO CORPORATION, Appellant, v INLAND SOUTHEAST THOMPSON MONTICELLO, LLC, Defendant, and KIM HINE, Doing Business as KIM'S GIFTS and KIM'S MOUNTAIN GIFT CORPORATION, Respondent.

Submitted September 15, 2008; decided October 28, 2008

Reported below, 53 AD3d 924.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EXXONMOBIL CORPORATION, Appellant, v CERTAIN UNDERWRITERS AT LLOYD'S, LONDON, et al., Respondents.

Submitted September 2, 2008; decided October 28, 2008

Reported below, 50 AD3d 434.

Motion by United Policyholders for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

MARK HYNES, Appellant, v SONIDO, INC., Respondent.

Submitted August 25, 2008; decided October 28, 2008

Reported below, 50 AD3d 314.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of MICHAEL S. KIMM, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted October 20, 2008; decided October 28, 2008

Reported below, 54 AD3d 62.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE
ALCARAZ, Appellant.

Submitted August 25, 2008; decided October 28, 2008

Reported below, 20 Misc 3d 140(A).

Motion for leave to appeal from the order of the Appellate Term dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* ERWIN JACKSON,
Appellant, v NASSAU COUNTY SHERIFF'S DEPARTMENT, Re-
spondent.

Submitted September 8, 2008; decided October 28, 2008

Reported below, 2008 NY Slip Op 80017(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of ROBERT SCOTT, Appellant, v DEPARTMENT OF
CORRECTIONAL SERVICES, Respondent.

Submitted August 25, 2008; decided October 28, 2008

Reported below, 50 AD3d 1446.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of VINCENT TERIO, Appellant, v SYSTEMS & SER-
VICES TECHNOLOGIES, INC., Respondent.

In the Matter of TAX LIENS. VINCENT TERIO, Appellant; COUNTY
OF PUTNAM, Respondent.

Submitted September 29, 2008; decided October 28, 2008

Reported below, 52 AD3d 519, 2008 NY Slip Op 65254(U).

Motion for reargument denied [*see* 11 NY3d 753 (2008)].

3657 REALTY Co., LLC, Respondent, v IDA MAE JONES, Appellant.

Submitted September 22, 2008; decided October 28, 2008

Reported below, 52 AD3d 272.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2008 through October 31, 2008)

Mingo, Matter of, v Annucci	3d Dept: 2008 NY Slip Op 75375(U)	10/16/08
Morris Erbesh NNE, Inc. v Schwartz	2d Dept: 52 AD3d 791	10/22/08

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2008 through October 31, 2008)

People v Adams (Christopher)	App Div, 3d Dept, 7/11/08 (Montgomery)	denied 10/24/08 (Kaye, Ch.J.)
People v Adams (William)	1st Dept: 52 AD3d 243 (NY)	denied 10/8/08 (Smith, J.)
People v Allen (Garner)	2d Dept: 53 AD3d 619 (Suffolk)	denied 10/23/08 (Read, J.)
People v Allen (Gregory)	2d Dept: 53 AD3d 582 (Queens)	denied 10/17/08 (Grafteo, J.)
People v Arevalo	2d Dept: 54 AD3d 380 (Nassau)	denied 10/3/08 (Grafteo, J.)
People v Barnes (Germaine)	App Div, 2d Dept: 2008 NY Slip Op 83772(U) (Queens)	dismissed 10/30/08 (Grafteo, J.)
People v Barnes (Thomas)	App Div, 1st Dept: 2008 NY Slip Op 70318(U) (NY)	denied reconsideration 10/23/08 (Kaye, Ch.J.)
People v Barnes (Tommy)	App Div, 1st Dept: 2008 NY Slip Op 70318(U) (NY)	denied reconsideration 10/23/08 (Kaye, Ch.J.)

People v Barringer	3d Dept: 54 AD3d 442 (Broome)	denied 10/23/08 (Kaye, Ch.J.)
People v Bazemore	2d Dept: 52 AD3d 727 (Kings)	denied 10/30/08 (Ciparick, J.)
People v Beech	2d Dept: 53 AD3d 552 (Kings)	denied 10/31/08 (Ciparick, J.)
People v Bermudez	App Term, 1st Dept: 14 Misc 3d 134(A) (Bronx)	denied 10/1/08 (Pigott, J.)
People v Bhattacharjee	2d Dept: 51 AD3d 684 (Dutchess)	denied 10/17/08 (Grafteo, J.)
People v Bornhoeft	2d Dept: 53 AD3d 666 (Orange)	denied 10/22/08 (Kaye, Ch.J.)
People v Borrell	2d Dept: 49 AD3d 890 (Queens)	granted 10/15/08 (Pigott, J.)
People v Branch	App Div, 1st Dept: 2008 NY Slip Op 77722(U) (NY)	denied 10/3/08 (Pigott, J.)
People v Breazil	2d Dept: 52 AD3d 523 (Kings)	denied 10/10/08 (Kaye, Ch.J.)
People v Broadnax	4th Dept: 52 AD3d 1306 (Onondaga)	denied 10/30/08 (Ciparick, J.)
People v Brown (Henry)	4th Dept: 52 AD3d 1248 (Orleans)	denied 10/30/08 (Ciparick, J.)
People v Brown (Michael)	2d Dept: 50 AD3d 1154 (Queens)	granted 10/3/08 (Grafteo, J.)
People v Butler	2d Dept: 49 AD3d 894 (Kings)	denied reconsideration 10/23/08 (Read, J.)
People v Byrd	2d Dept: 53 AD3d 622 (Westchester)	denied 10/23/08 (Read, J.)
People v Caban	1st Dept: 51 AD3d 455 (NY)	denied 10/1/08 (Ciparick, J.)
People v Cahill	4th Dept: 46 AD3d 1455 (Onondaga)	denied 10/23/08 (Read, J.)
People v Cameron	1st Dept: 51 AD3d 578 (Bronx)	denied 10/29/08 (Jones, J.)
People v Carmody	4th Dept: 53 AD3d 1048 (Niagara)	denied 10/7/08 (Jones, J.)
People v Carncross	4th Dept: 48 AD3d 1187 (Onondaga)	denied 10/9/08 (Smith, J.)
People v Carpenter	2d Dept: 52 AD3d 729 (Suffolk)	denied 10/23/08 (Kaye, Ch.J.)
People v Cazares	1st Dept: 52 AD3d 438 (NY)	denied 10/23/08 (Read, J.)
People v Cephas	App Div, 1st Dept: 2008 NY Slip Op 75644(U) (NY)	denied 10/23/08 (Read, J.)
People v Chandler	2d Dept: 51 AD3d 941 (Queens)	denied reconsideration 10/7/08 (Pigott, J.)

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People v Chao Wang Lin	2d Dept: 53 AD3d 552 (Queens)	denied 10/3/08 (Pigott, J.)
People v Cheeseboro	2d Dept: 52 AD3d 526 (Kings)	denied 10/23/08 (Kaye, Ch.J.)
People v Clark (James)	3d Dept: 52 AD3d 951 (Hamilton)	denied 10/24/08 (Kaye, Ch.J.)
People v Clark (William)	3d Dept: 52 AD3d 860 (Saratoga)	denied 10/23/08 (Kaye, Ch.J.)
People v Coldiron	4th Dept: 53 AD3d 1140 (Erie)	denied 10/21/08 (Read, J.)
People v Colligan	App Term, 2d Dept: 20 Misc 3d 130(A) (Orange)	denied reconsideration 10/6/08 (Smith, J.)
People v Collins	3d Dept: 53 AD3d 932 (Madison)	denied 10/31/08 (Ciparick, J.)
People v Cook	App Div, 4th Dept, 6/30/08 (Monroe)	denied reconsideration 10/7/08 (Jones, J.)
People v Correa	2d Dept: 53 AD3d 587 (Kings)	denied 10/31/08 (Ciparick, J.)
People v Crosby	2d Dept: 54 AD3d 771 (Queens)	dismissed 10/21/08 (Read, J.)
People v Curry	2d Dept: 52 AD3d 731 (Rockland)	denied 10/3/08 (Pigott, J.)
People v Day	1st Dept: 51 AD3d 584 (Bronx)	denied 10/29/08 (Jones, J.)
People v Decker	2d Dept: 51 AD3d 686 (Richmond)	granted 10/28/08 (Jones, J.)
People v Dedeo	App Div, 3d Dept: 2008 NY Slip Op 82525(U) (Columbia)	dismissed 10/9/08 (Smith, J.)
People v Diaz (Christopher)	4th Dept: 52 AD3d 1230 (Monroe)	denied 10/29/08 (Jones, J.)
People v Diaz (Leandro)	2d Dept: 53 AD3d 504 (Queens)	denied 10/22/08 (Kaye, Ch.J.)
People v Dillon	3d Dept: 53 AD3d 692 (St. Lawrence)	denied 10/23/08 (Read, J.)
People v Dimmick	4th Dept: 53 AD3d 1113 (Niagara)	denied 10/10/08 (Kaye, Ch.J.)
People v Doyle	2d Dept: 53 AD3d 588 (Rockland)	denied 10/31/08 (Ciparick, J.)
People v Dukes (Jessie)	4th Dept: 53 AD3d 1101 (Monroe)	denied 10/6/08 (Kaye, Ch.J.) (Appeal No. 1)
People v Dukes (Jessie)	4th Dept: 53 AD3d 1101 (Monroe)	denied 10/6/08 (Kaye, Ch.J.) (Appeal No. 2)

People v Echavarria	3d Dept: 53 AD3d 859 (Clinton)	denied 10/3/08 (Pigott, J.)
People v Ephraim	2d Dept: 52 AD3d 841 (Westchester)	denied 10/10/08 (Pigott, J.)
People v Espiritusanto	4th Dept: 53 AD3d 1106 (Monroe)	denied 10/24/08 (Kaye, Ch.J.)
People v Estrada	App Div, 1st Dept: 2008 NY Slip Op 83144(U) (NY)	dismissed 10/22/08 (Jones, J.)
People v Felder	App Div, 2d Dept: 2008 NY Slip Op 80582(U) (Nassau)	dismissed 10/30/08 (Grafteo, J.)
People v Figueroa	3d Dept: 53 AD3d 779 (Sullivan)	denied 10/7/08 (Jones, J.)
People v Fisher	3d Dept: 52 AD3d 1120 (Fulton)	denied 10/10/08 (Pigott, J.)
People v Ford	1st Dept: 52 AD3d 391 (Bronx)	denied 10/7/08 (Jones, J.)
People v Gayle	3d Dept: 53 AD3d 857 (Chemung)	denied 10/3/08 (Pigott, J.)
People v Giovanni	3d Dept: 53 AD3d 778 (Saratoga)	denied 10/31/08 (Ciparick, J.)
People v Glenn	2d Dept: 53 AD3d 622 (Queens)	denied 10/22/08 (Kaye, Ch.J.)
People v Gramson	1st Dept: 50 AD3d 294 (NY)	denied 10/23/08 (Kaye, Ch.J.)
People v Green	2d Dept: 53 AD3d 622 (Queens)	denied 10/22/08 (Kaye, Ch.J.)
People v Guillo	4th Dept: 53 AD3d 1106 (Monroe)	denied 10/24/08 (Kaye, Ch.J.)
People v Gutter	3d Dept: 51 AD3d 1141 (Schenectady)	denied reconsideration 10/21/08 (Read, J.)
People v Hall	2d Dept: 52 AD3d 734 (Nassau)	denied 10/31/08 (Ciparick, J.)
People v Harewood	4th Dept: 53 AD3d 1123 (Monroe)	denied 10/23/08 (Kaye, Ch.J.)
People v Hoffler	3d Dept: 53 AD3d 116 (Rensselaer)	denied 10/29/08 (Jones, J.)
People v Hughes	App Div, 2d Dept: 2008 NY Slip Op 70959(U) (Queens)	denied reconsideration 10/15/08 (Read, J.)
People v Hurley	App Div, 1st Dept: 2008 NY Slip Op 76046(U) (NY)	denied 10/21/08 (Read, J.)
People v Ibralic	3d Dept: 54 AD3d 1073 (Albany)	denied 10/29/08 (Smith, J.)
People v Ilori	1st Dept: 52 AD3d 419 (NY)	denied 10/30/08 (Ciparick, J.)

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People v Jackson (Anthony)	App Div, 1st Dept: 2008 NY Slip Op 82070(U) (NY)	dismissed 10/29/08 (Smith, J.)
People v Jackson (Lloyd)	1st Dept: 52 AD3d 400 (NY)	denied 10/31/08 (Ciparick, J.)
People v Jacobs	1st Dept: 52 AD3d 432 (Bronx)	denied 10/10/08 (Kaye, Ch.J.)
People v Johnson	3d Dept: 52 AD3d 1040 (Schoharie)	denied 10/7/08 (Jones, J.)
People v Jones	App Div, 1st Dept: 2008 NY Slip Op 77719(U) (Bronx)	denied 10/3/08 (Pigott, J.)
People v Kanios	2d Dept: 53 AD3d 555 (Queens)	denied 10/24/08 (Kaye, Ch.J.)
People v Keno	1st Dept: 52 AD3d 432 (NY)	denied 10/23/08 (Kaye, Ch.J.)
People v Lamica	4th Dept: 53 AD3d 1109 (Niagara)	denied 10/31/08 (Ciparick, J.)
People v Lanier	2d Dept: 53 AD3d 588 (Queens)	denied 10/22/08 (Kaye, Ch.J.)
People v Laverpool	2d Dept: 52 AD3d 622 (Kings)	denied* 10/23/08 (Kaye, Ch.J.)
People v Laws	County Ct, 2/19/08 (Wayne)	dismissed 10/21/08 (Jones, J.)
People v Leath	2d Dept: 53 AD3d 630 (Queens)	denied 10/23/08 (Smith, J.)
People v Lee (Eddie)	App Div, 4th Dept, 9/4/08 (Monroe)	dismissed 10/23/08 (Ciparick, J.)
People v Lee (Melvin)	4th Dept: 50 AD3d 1603 (Erie)	denied reconsideration 10/22/08 (Kaye, Ch.J.)
People v Marte	2d Dept: 52 AD3d 737 (Kings)	granted 10/1/08 (Pigott, J.)
People v Marvin (Daniel)	4th Dept: 53 AD3d 1120 (Niagara)	denied 10/30/08 (Ciparick, J.) (Appeal No. 1)
People v Marvin (Daniel)	4th Dept: 53 AD3d 1120 (Niagara)	denied 10/30/08 (Ciparick, J.) (Appeal No. 2)
People v McCallar	4th Dept: 53 AD3d 1063 (Erie)	denied 10/9/08 (Smith, J.)
People v McIntosh	1st Dept: 53 AD3d 1 (Bronx)	denied 10/30/08 (Ciparick, J.)
People v McKoy	4th Dept: 52 AD3d 1246 (Ontario)	denied 10/30/08 (Jones, J.)
People v McLaurin	1st Dept: 52 AD3d 380 (NY)	denied 10/30/08 (Ciparick, J.)

* Denied without prejudice to renew within 30 days after the Court of Appeals' determination of the appeal in *People v Dorm* (47 AD3d 503 [2008], *lv granted* 10 NY3d 862 [2008]).

People v Mead	3d Dept: 53 AD3d 927 (Washington)	denied 10/22/08 (Kaye, Ch.J.)
People v Melendez	2d Dept: 51 AD3d 1040 (Kings)	denied reconsideration 10/21/08 (Read, J.)
People v Morales	2d Dept: 53 AD3d 589 (Nassau)	denied 10/1/08 (Pigott, J.)
People v Morel	1st Dept: 52 AD3d 374 (NY)	denied 10/29/08 (Jones, J.)
People v Moses	4th Dept: 52 AD3d 1286 (Seneca)	denied 10/23/08 (Read, J.)
People v Murder	3d Dept: 53 AD3d 116 (Rensselaer)	denied 10/29/08 (Jones, J.)
People v Narcissi	2d Dept: 52 AD3d 738 (Queens)	denied 10/23/08 (Read, J.)
People v Nicholson	3d Dept: 50 AD3d 1397 (Rensselaer)	denied 10/6/08 (Kaye, Ch.J.)
People v Nudd	4th Dept: 53 AD3d 1115 (Niagara)	denied 10/7/08 (Jones, J.)
People v Ortiz	App Div, 1st Dept: 2008 NY Slip Op 83144(U) (NY)	dismissed 10/22/08 (Jones, J.)
People v Osorio	2d Dept: 49 AD3d 562 (Nassau)	denied 10/1/08 (Pigott, J.)
People v Parker	2d Dept: 54 AD3d 779 (Kings)	dismissed 10/23/08 (Smith, J.)
People v Pergya	2d Dept: 53 AD3d 631 (Kings)	denied 10/21/08 (Read, J.)
People v Perrilla	App Div, 1st Dept: 2008 NY Slip Op 75658(U) (Bronx)	denied 10/23/08 (Read, J.)
People v Perrineau	3d Dept: 52 AD3d 1056 (Ulster)	denied 10/31/08 (Ciparick, J.)
People v Poblah	App Div, 2d Dept: 2008 NY Slip Op 81613(U) (Nassau)	dismissed 10/17/08 (Grafteo, J.)
People v Polanco	1st Dept: 50 AD3d 587 (NY)	denied 10/30/08 (Ciparick, J.)
People v Ponder	App Div, 4th Dept: 2008 NY Slip Op 81367(U) (Monroe)	dismissed 10/7/08 (Pigott, J.)
People v Quagliata	2d Dept: 53 AD3d 670 (Nassau)	denied 10/3/08 (Grafteo, J.)
People v Quay	3d Dept: 52 AD3d 1021 (Albany)	denied 10/30/08 (Ciparick, J.)
People v Rodriguez (Jonathan)	1st Dept: 52 AD3d 399 (NY)	denied 10/30/08 (Ciparick, J.)
People v Rodriguez (Nelson)	App Div, 1st Dept: 2007 NY Slip Op 79734(U) (Bronx)	denied reconsideration 10/22/08 (Kaye, Ch.J.)

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People v Rosado	1st Dept: 53 AD3d 455 (NY)	denied 10/9/08 (Smith, J.)
People v Sanabria	2d Dept: 52 AD3d 743 (Dutchess)	denied 10/1/08 (Pigott, J.)
People v Santos	App Div, 1st Dept: 2008 NY Slip Op 77136(U) (Bronx)	denied 10/23/08 (Smith, J.)
People v Shippy	2d Dept: 53 AD3d 590 (Nassau)	denied 10/17/08 (Grafteo, J.)
People v Sides	4th Dept: 53 AD3d 1114 (Monroe)	denied 10/3/08 (Pigott, J.)
People v Simpson	2d Dept: 52 AD3d 846 (Westchester)	denied 10/23/08 (Kaye, Ch.J.)
People v Smith (Andre)	2d Dept: 39 AD3d 773 (Westchester)	denied reconsideration 10/3/08 (Pigott, J.)
People v Smith (Rance)	2d Dept: 54 AD3d 694 (Nassau)	dismissed 10/7/08 (Ciparick, J.)
People v Solano	4th Dept: 53 AD3d 1114 (Monroe)	denied 10/31/08 (Ciparick, J.)
People v Stephen	2d Dept: 54 AD3d 782 (Kings)	dismissed 10/7/08 (Ciparick, J.)
People v Stokes	App Div, 4th Dept, 6/26/08 (Erie)	denied reconsideration 10/7/08 (Pigott, J.)
People v Summers	App Div, 1st Dept: 2008 NY Slip Op 77719(U) (Bronx)	denied 10/3/08 (Pigott, J.)
People v Suphal (Ivan)	2d Dept: 51 AD3d 1044 (Kings)	denied 10/3/08 (Pigott, J.)
People v Suphal (Michael)	2d Dept: 51 AD3d 1044 (Kings)	denied 10/3/08 (Pigott, J.)
People v Szwalla	App Div, 3d Dept: 2008 NY Slip Op 82574(U) (Broome)	dismissed 10/23/08 (Read, J.)
People v Tabares	1st Dept: 52 AD3d 437 (NY)	denied 10/23/08 (Read, J.)
People v Tatro	3d Dept: 53 AD3d 781 (Albany)	denied 10/29/08 (Jones, J.)
People v Taylor (Jeremy)	4th Dept: 52 AD3d 1327 (Steuben)	denied 10/23/08 (Read, J.)
People v Taylor (Stephen)	County Ct, 8/13/08 (Monroe)	denied 10/22/08 (Kaye, Ch.J.)
People v Tetrault	2d Dept: 53 AD3d 558 (Suffolk)	denied 10/7/08 (Jones, J.)
People v Tomlinson	3d Dept: 53 AD3d 798 (Montgomery)	denied 10/24/08 (Kaye, Ch.J.)
People v Trammell	4th Dept: 53 AD3d 1114 (Monroe)	denied 10/23/08 (Kaye, Ch.J.)

People v Tucker	3d Dept: 51 AD3d 1270 (Washington)	denied 10/7/08 (Jones, J.)
People v Turnbull	2d Dept: 52 AD3d 747 (Putnam)	denied 10/1/08 (Pigott, J.)
People v Urias	App Term, 2d Dept: 20 Misc 3d 134(A) (Queens)	denied 10/1/08 (Pigott, J.)
People v Vail	3d Dept: 54 AD3d 442 (Broome)	denied 10/23/08 (Kaye, Ch.J.)
People v Valdez	1st Dept: 53 AD3d 172 (NY)	denied 10/31/08 (Ciparick, J.)
People v Vankenie	2d Dept: 52 AD3d 849 (Kings)	denied 10/23/08 (Kaye, Ch.J.)
People v Vasquez	2d Dept: 53 AD3d 560 (Kings)	denied 10/1/08 (Pigott, J.)
People v Walker	2d Dept: 54 AD3d 779 (Kings)	dismissed 10/23/08 (Smith, J.)
People v Walter	4th Dept: 52 AD3d 1291 (Cayuga)	denied 10/1/08 (Pigott, J.)
People v Williams (Craig)	3d Dept: 51 AD3d 1141 (Schenectady)	denied reconsideration 10/21/08 (Read, J.)
People v Williams (Eric)	2d Dept: 50 AD3d 709 (Suffolk)	denied reconsideration 10/22/08 (Kaye, Ch.J.)
People v Williams (Gary)	2d Dept: 52 AD3d 748 (Kings)	denied 10/23/08 (Kaye, Ch.J.)
People v Williams (Wesley)	2d Dept: 53 AD3d 560 (Kings)	denied 10/31/08 (Ciparick, J.)
People v Williams (Winston)	2d Dept: 37 AD3d 626 (Orange)	denied 10/24/08 (Kaye, Ch.J.)
People v Williams (Wykim)	2d Dept: 52 AD3d 851 (Queens)	denied 10/23/08 (Kaye, Ch.J.)
People v Wilson	2d Dept: 49 AD3d 673 (Kings)	denied reconsideration 10/30/08 (Jones, J.)
People v Winslow	2d Dept: 52 AD3d 851 (Queens)	denied 10/23/08 (Read, J.)
People v Zeigler	App Div, 1st Dept: 2008 NY Slip Op 76487(U) (NY)	denied 10/23/08 (Read, J.)
People v Zigler	App Div, 1st Dept: 2008 NY Slip Op 76487(U) (NY)	denied 10/23/08 (Read, J.)

In the Matter of DOUGLAS B. BOWER, Respondent, v BOARD OF
EDUCATION, CAZENOVIA CENTRAL SCHOOL DISTRICT, et al.,
Appellants.

Submitted September 8, 2008; decided November 20, 2008

Reported below, 53 AD3d 967.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
an action or proceeding within the meaning of the Constitution.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE
GENÈVE, Respondent, and CLUB NAÚTICO ESPAÑOL DE VELA,
Intervenor-Defendant.

Submitted October 17, 2008; decided November 20, 2008

Reported below, 55 AD3d 26.

Motion by Reale Yacht Club Canottieri Savoia et al. for leave
to file a brief amici curiae on the appeal herein granted. Three
copies of the brief must be served and an original and 24 copies
filed within seven days.

KERUSA Co. LLC, Respondent, v W10Z/515 REAL ESTATE LIMITED
PARTNERSHIP et al., Appellants.

Submitted November 3, 2008; decided November 20, 2008

Reported below, 50 AD3d 503.

Motion by the Real Estate Board of New York, Inc. for leave
to file a brief amicus curiae on the appeal herein granted. Two
copies of the brief must be served and 24 copies filed within
seven days.

In the Matter of LCO BUILDING LLC, Formerly Known as 189
VAN RENSSELAER, Appellant, v BRUNA MICHAUX, as Assessor
of City of Buffalo, et al., Respondents.

Submitted September 8, 2008; decided November 20, 2008

Reported below, 53 AD3d 1062.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LMK PSYCHOLOGICAL SERVICES, P.C., et al., Respondents, v STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, Appellant.

Submitted October 27, 2008; decided November 20, 2008

Reported below, 46 AD3d 1290.

Motion by Government Employees Insurance Company et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

ROBERT McCORMICK et al., Respondents, v SARAH PICKERT, Appellant.

Submitted September 8, 2008; decided November 20, 2008

Reported below, 51 AD3d 1109.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see* Karger, Powers of the New York Court of Appeals § 5:3, at 109 [3d ed rev]).

In the Matter of FAITH ANN PEASLEE and Others.

GEORGE M. REIBER, Appellant, v GMAC, LLC, et al., Respondents.

Decided November 20, 2008

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC
BAILEY, Appellant.

Submitted October 27, 2008; decided November 20, 2008

Reported below, 50 AD3d 343.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
BROOKS, Appellant.

Submitted October 27, 2008; decided November 20, 2008

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL
J. BROWN, Appellant.

Submitted October 27, 2008; decided November 20, 2008

Reported below, 50 AD3d 1154.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WAYNE
DAVIS, Appellant.

Submitted November 17, 2008; decided November 20, 2008

Reported below, 19 Misc 3d 145(A).

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NOEL
MARTE, Appellant.

Submitted October 27, 2008; decided November 20, 2008

Reported below, 52 AD3d 737.

Motion for assignment of counsel granted and Lynn W.L. Fa-

hey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL MELEANCE, Appellant.

Submitted November 17, 2008; decided November 20, 2008

Reported below, 52 AD3d 845.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

RIVERSIDE CAPITAL ADVISORS, INC., Appellant, and WINCHESTER GLOBAL TRUST COMPANY LIMITED, Respondent, v FIRST SECURED CAPITAL CORP. et al., Appellants, et al., Defendants. THOMAS B. DONOVAN et al., Nonparty Appellants.

Submitted August 25, 2008; decided November 20, 2008

Reported below, 28 AD3d 452.

Motion for leave to appeal dismissed upon the ground that the “Third Amended Order and Judgment” sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TOA CONSTRUCTION CO., INC., Respondent, v MICHAEL TSI-TSIRE, Appellant, et al., Respondents.

Submitted November 17, 2008; decided November 20, 2008

Reported below, 54 AD3d 109.

Motion by the National Alliance on Mental Illness of New York City, Inc. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

ZULMA VILLALBA, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION et al., Respondents.

Submitted September 8, 2008; decided November 20, 2008

Reported below, 50 AD3d 279.

Motion by the Council of School Supervisors and Administrators for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

[901 NE2d 186, 872 NYS2d 695]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DER-MOT MACSHANE, Appellant.

Decided November 24, 2008

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, entered October 5, 2007. The Appellate Term affirmed a judgment of the Justice Court of the Town of Carmel, Putnam County (James F. Reitz, J.), which had convicted defendant, upon a jury verdict, of harassment in the second degree.

People v MacShane, 17 Misc 3d 78, affirmed.

HEADNOTES

Crimes — Jurors — Selection of Jury

1. Defendant failed to meet his burden of establishing, during jury selection, a prima facie case of discrimination under step one of the three-step protocol in *Batson v Kentucky* (476 US 79 [1986]). Thus, although the Appellate Term incorrectly proceeded to steps two and three of the *Batson* inquiry for the first time on defendant's appeal from his judgment of conviction, reversal of the conviction was not required. Defense counsel asserted that the prosecutor had eliminated two male prospective jurors "for no good reason" because "she wants a female jury." However, he failed to articulate facts and circumstances that raised an inference that the prosecutor excused those jurors for a discriminatory reason. Accordingly, the prosecutor was not required to provide gender-neutral reasons for her challenges to those prospective jurors.

Judges — Recusal

2. In a criminal prosecution, Appellate Term erred by seemingly considering a confidential opinion of the Advisory Committee on Judicial Ethics when deciding that the trial judge did not abuse his discretion in denying defendant's recusal motion. The opinion was not part of the record on appeal. However, the court correctly concluded that there was no legal disqualification under Judiciary Law § 14, and that the trial judge did not abuse his discretion when he made the discretionary recusal decision within the personal conscience of the court.

APPEARANCES OF COUNSEL

Norman A. Olch, New York City, for appellant.

Adam B. Levy, District Attorney, Carmel (Mary Jane MacCrae of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be affirmed.

[1] Defendant Dermot MacShane failed to meet his burden of establishing a prima facie case of discrimination under step one of the three-step protocol in *Batson v Kentucky* (476 US 79 [1986]). As this Court has held, “sketchy assertions” and the fact that the prospective jurors “indicated no reason why they could not serve fairly” are, standing alone, generally insufficient to establish a prima facie case of discrimination (see *People v Childress*, 81 NY2d 263, 267, 268 [1993]).

Here, defense counsel simply asserted that the prosecutor had eliminated two male prospective jurors “for no good reason” because “she wants a female jury.” He did not articulate facts and circumstances that raised an inference that the prosecutor excused these jurors for a discriminatory reason; instead, defense counsel merely identified a general motive to discriminate untethered to the particular jurors at issue. Specifically, defense counsel did not compare the challenged jurors to similarly-situated unchallenged prospective jurors, point to factors in the challenged jurors’ background that made them likely to be pro-prosecution, or enunciate any factor that suggested that the prosecutor exercised the challenges due to the prospective jurors’ gender. Accordingly, the prosecutor was not required to provide gender-neutral reasons for her challenges to these prospective jurors. While the Appellate Term incorrectly proceeded to steps two and three of the *Batson* inquiry for the first time on appeal, reversal is not required because defendant failed to meet his burden of establishing a prima facie case of discrimination under step one.

[2] The Appellate Term also erred by seemingly considering a confidential opinion of the Advisory Committee on Judicial Ethics when deciding that the trial judge did not abuse his discretion by denying defendant’s recusal motion. The confidential opinion was not part of the record on appeal. The Appellate Term correctly concluded, however, that there was no legal disqualification under section 14 of the Judiciary Law, and that the trial judge did not abuse his discretion when he made “[t]his discretionary decision . . . within the personal conscience of the court” (see *People v Moreno*, 70 NY2d 403, 405 [1987]).

Defendant's remaining contention is without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[901 NE2d 732, 873 NYS2d 239]

THOSE CERTAIN UNDERWRITERS AT LLOYDS, LONDON, et al., Appellants, v OCCIDENTAL GEMS, INC., Respondent, and INTERINGS, INC., et al., Appellants.

Argued October 21, 2008; decided November 24, 2008

SUMMARY

APPEALS, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 28, 2007. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Leland DeGrasse, J.; op 2006 NY Slip Op 30530[U] [2006]), which had denied plaintiffs' motion to confirm the report of the special referee directing disclosure, and granted defendant Occidental Gems, Inc.'s cross motion to vacate that report. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by this Court, properly made?"

Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc., 41 AD3d 362, affirmed.

HEADNOTES

References — Confirmation of Report

1. Where a trial court appoints a special referee pursuant to CPLR 3104 ("Supervision of disclosure"), and not CPLR 4320 ("Reference to report"), there is no requirement that the referee's order be confirmed by the court in the absence of a request for review by a party.

Disclosure — Scope of Disclosure

2. An order of the Appellate Division that affirmed an order of the Supreme Court which had denied plaintiffs' motion to confirm the report of a special referee regarding disclosure was affirmed. The trial court has broad discretion in supervising disclosure, and its determinations will not be disturbed absent a clear abuse of that discretion. Deference regarding disclosure extends to a trial court's decision to confirm a referee's report, so long as the report has record support. However, the Appellate Division is vested with its own discretion and corresponding power to substitute its own discretion for that of the

trial court, even in the absence of abuse. Here, the Appellate Division correctly exercised its discretion and found that Supreme Court properly determined that the evidence did not support the special referee's report recommending that defendant be compelled to produce a resident of Belgium for an oral deposition and testimony and documents relating to a Belgian arbitration in which defendant was not a party.

APPEARANCES OF COUNSEL

Abrams, Gorelick, Friedman & Jacobson, P.C., New York City (*Daniel J. Friedman* and *Gabrielle H. Puchalsky* of counsel), for Those Certain Underwriters at Lloyds, London and another, appellants.

K&L Gates LLP, New York City (*Michael R. Gordon* and *Elizabeth M. Harris* of counsel), for Interings, Inc. and others, appellants.

Mound Cotton Wollan & Greengrass, New York City (*Daniel Markewich* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

We are called upon to determine whether the Appellate Division correctly affirmed Supreme Court's order denying plaintiffs' motion to confirm a special referee's report which recommended that defendant Occidental Gems, Inc. (Occidental) be compelled to produce (1) Vijay Mehta, a resident of Belgium, for an oral deposition in New York and (2) testimony and documents relating to a Belgian arbitration in which Occidental is not a party. We conclude that this question should be answered in the affirmative.

[1] This dispute arises from a fidelity loss claim filed with plaintiffs (various insurance underwriters) by Occidental seeking to recover approximately \$10.5 million in losses. Plaintiffs refused to pay the claim and brought a declaratory judgment action in Supreme Court alleging that the losses by Occidental were not covered under the applicable insurance policies. Pursuant to CPLR 3104, Supreme Court appointed a special referee to oversee discovery. Subsequently, plaintiffs moved, pursuant to CPLR 3126, for an order of preclusion. This motion was referred to the special referee. Upon reviewing the submitted exhibits and after hearing arguments, the special referee issued a report recommending that plaintiffs' motion be granted to the extent of requiring Occidental to (1) produce Mr. Mehta in New

York to be deposed and (2) provide testimony and documents relating to a Belgian arbitration. The special referee further recommended that “this report be approved and confirmed, upon proper application to the court pursuant to CPLR § 4403, and that the underlying relief held in abeyance be disposed of in accordance with the foregoing findings.”* Plaintiffs moved to confirm the report and defendant Occidental cross-moved for an order vacating it.

After determining that the evidence did not support the special referee’s recommendations, Supreme Court denied plaintiffs’ motion to confirm the referee’s report and granted Occidental’s cross motion to vacate. In a 3-2 decision, the Appellate Division, upon its own review of the evidence, upheld the decision of Supreme Court. In so concluding, the court reaffirmed that a trial court is vested with broad discretion in supervising the discovery process and its determination will not be disturbed absent an improvident exercise of that discretion. The dissenting justices agreed with the factual findings that supported the special referee’s recommendations.

Plaintiffs argue that: (1) a trial court cannot disaffirm a special referee’s findings of fact where there is support in the record for those findings; and (2) when the trial court appoints a special referee it waives its discretion and limits its review. We disagree.

[2] Generally, the trial court “is afforded broad discretion in supervising disclosure and its determinations will not be disturbed unless that discretion has been clearly abused. The deference afforded to the trial court regarding disclosure extends to its decision to confirm a referee’s report, so long as the report is supported by the record” (*Di Mascio v General Elec. Co.*, 307 AD2d 600, 601 [3d Dept 2003] [internal citations omitted]). However, the Appellate Division is vested with its own discretion and corresponding power to substitute its own discretion for that of the trial court, even in the absence of abuse (*see Andon v 302-304 Mott St. Assoc.*, 94 NY2d 740, 745 [2000] [internal citations omitted]).

* [1] This reference was made pursuant to CPLR 3104 (“Supervision of disclosure”), not CPLR 4320 (“Reference to report”); accordingly, the special referee’s recommendation that her report be confirmed did not comport with the procedure set forth in CPLR 3104 (d) (any party or witness can make a motion in the court in which the action is pending to seek review of a referee’s order). Bottom line, where the reference is made under CPLR 3104, there is no requirement that the referee’s order be confirmed by the court in the absence of a request for review by a party.

Here, the Appellate Division exercised such discretion and found that Supreme Court properly determined that the evidence did not support the special referee's recommendation.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum; Chief Judge KAYE taking no part.

Order affirmed, etc.

In the Matter of LORRAINE ABEIDO, Respondent, v MOHSEN ABEIDO, Appellant.

Submitted September 22, 2008; decided November 24, 2008

Reported below, 54 AD3d 330.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MALIK ALLAH, Appellant, v DONALD SELSKY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted September 22, 2008; decided November 24, 2008

Reported below, 50 AD3d 1410.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LORETTA L. HAVENS, Respondent, v COUNTY OF SARATOGA et al., Appellants.

Submitted September 29, 2008; decided November 24, 2008

Reported below, 50 AD3d 1223.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LOMBARD & CO., INC., Respondent, v GERMAN De La ROCHE, Appellant.

Submitted October 27, 2008; decided November 24, 2008

Reported below, 46 AD3d 393.

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 782 (2008)].

SAMSON ODUMBO, Respondent, v GAMAGE D. PERERA, Appellant.

Submitted October 14, 2008; decided November 24, 2008

Reported below, 50 AD3d 658.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 11 NY3d 761 (2008)].

In the Matter of the Claim of RAJAGOPALA S. RAGHAVENDRA, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted September 22, 2008; decided November 24, 2008

Reported below, 53 AD3d 1005.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE TRUSTEES OF PRINCETON UNIVERSITY, Respondent, v NATIONAL UNION FIRE INSURANCE CO. OF PITTSBURGH, PA., Appellant, et al., Defendant.

Submitted October 14, 2008; decided November 24, 2008

Reported below, 52 AD3d 247.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOEL B. WATERMAN, Appellant, v WEINSTEIN MEMORIAL CHAPEL et al., Respondents.

Submitted October 27, 2008; decided November 24, 2008

Reported below, 49 AD3d 717.

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 745 (2008)].

In the Matter of GOLDIE WILLOUGHBY, Appellant, v MARTIN P. MURPHY et al., Respondents.

Submitted September 22, 2008; decided November 24, 2008

Reported below, 54 AD3d 419.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

[900 NE2d 544, 872 NYS2d 63]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v RAYMOND C. GEORGE, Respondent-Appellant.

Argued October 21, 2008; decided November 25, 2008

SUMMARY

CROSS APPEALS, by the People by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, and by defendant by permission of an Associate Judge of the Court of Appeals, from an order of that Appellate Division, entered August 9, 2007. The Appellate Division modified, on the law, a judgment of the Schoharie County Court (George R. Bartlett, III, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree. The modification consisted of reducing defendant's conviction of murder in the second degree to manslaughter in the second degree, vacating the sentence imposed thereon and remitting the matter to County Court for resentencing. The Appellate Division affirmed the judgment as modified.

Defendant shot the victim in the abdomen during an altercation on defendant's property after the victim arrived there in the company of defendant's estranged wife. The Appellate Division majority concluded that defendant's conviction, which preceded a change in the law regarding depraved indifference murder, was on direct appeal and not final; and that the Court was thus constrained to apply the recent changes in the law following the decision in *People v Sanchez* (98 NY3d 373 [2002]) regarding depraved indifference to human life. The majority further concluded that the evidence did not support a conviction of depraved indifference murder, but was legally sufficient to convict defendant of the lesser included offense of manslaughter in second degree. While defendant acted recklessly by engaging in conduct creating a grave risk of death to another, a critical

statutory element that separates second degree manslaughter from depraved indifference murder, defendant's underlying depraved indifference was not sufficiently shown, despite evidence that he prevented prompt calls to 911 after the shooting and told an EMT that he would shoot "any[one] who messe[d] with [his] wife."

People v George, 43 AD3d 560, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review

1. In a criminal prosecution, defendant properly preserved for review by the Court of Appeals his challenge to the legal sufficiency of his depraved indifference murder conviction.

Courts — Retroactive Application of Judicial Decision — Depraved Indifference Murder

2. In a prosecution based on defendant's shooting of the victim in the abdomen during an altercation on defendant's property, the Appellate Division properly evaluated defendant's sufficiency challenge in light of current decisional law on depraved indifference murder. Defendant's conviction, which preceded a change in the law regarding depraved indifference murder, was on direct appeal to the Appellate Division and, thus, not a final conviction.

Crimes — Murder — Depraved Indifference Murder

3. In a prosecution based on defendant's shooting of the victim in the abdomen during an altercation on defendant's property after the victim arrived there in the company of defendant's estranged wife, the evidence was insufficient to establish that defendant acted with depraved indifference to human life, but was legally sufficient to convict him of the lesser included offense of manslaughter in the second degree (Penal Law § 125.15 [1]).

APPEARANCES OF COUNSEL

McNamee, Lochner, Titus & Williams, P.C., Albany (*David J. Wukitsch* of counsel), for respondent-appellant.

James Sacket, District Attorney, Schoharie, for appellant-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Contrary to the People's contention, defendant properly preserved for our review his challenge to the legal sufficiency of his depraved indifference murder conviction (*see People v Hawkins*, 11 NY3d 484 [2008] [decided today]).

[2, 3] The Appellate Division properly evaluated defendant's sufficiency challenge in light of our current decisional law on depraved indifference murder (*see People v Jean-Baptiste*, 11

NY3d 539 [2008] [decided herewith]). We agree with the Appellate Division that the evidence was insufficient to establish that defendant acted with depraved indifference to human life, but was legally sufficient to convict him of the lesser included offense of manslaughter in the second degree (Penal Law § 125.15 [1]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[900 NE2d 545, 872 NYS2d 64]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERTO CASTELLANO, Also Known as ROBERTO CASTELAN, Appellant.

Argued October 21, 2008; decided November 25, 2008

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 12, 2007. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Caesar Cirigliano, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree.

People v Castellano, 41 AD3d 184, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review — Legal Sufficiency of Evidence

Defendant failed to preserve for review by the Court of Appeals his argument that the evidence presented at trial was insufficient to support his conviction for depraved indifference murder.

APPEARANCES OF COUNSEL

Patterson Belknap Webb & Tyler LLP, New York City (*Matthew J. Shepherd*, *Lisa E. Cleary*, *Norman Kee* and *Leonard Braman* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Mary Jo Blanchard*, *Joseph N. Ferdenzi*, *Karen Swiger* and *Lawrence H. Cunningham* of counsel), for respondent.

OPINION OF THE COURT

Order affirmed. Defendant's argument that the evidence presented at trial was insufficient to support his conviction for

depraved indifference murder is unpreserved for this Court's review (*see People v Hawkins*, 11 NY3d 484 [2008] [decided today]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of CHARLES BERKMAN, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted October 20, 2008; decided November 25, 2008

Reported below, 55 AD3d 114.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

MICHAEL CARDO, Appellant, v BOARD OF MANAGERS, JEFFERSON VILLAGE CONDO 3, Respondent.

Submitted October 20, 2008; decided November 25, 2008

Reported below, 2008 NY Slip Op 81230(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CRAIG CRAWFORD, Respondent, v LIZ CLAIBORNE, INC., et al., Appellants.

Submitted October 20, 2008; decided November 25, 2008

Reported below, 45 AD3d 284.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 11 NY3d 810 (2008)].

MARCO JULIO ENRIQUEZ, Respondent, v HOME LAWN CARE AND LANDSCAPING, INC., et al., Defendants, and JAMES EGLOFF, Appellant.

Submitted October 14, 2008; decided November 25, 2008

Reported below, 49 AD3d 496.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VICKY R. GABAY, Respondent, v IRVING BENDER et al., as Personal Representatives of WILLIAM GOTTLIEB and MOLLY BENDER, Deceased, Appellants. ALLAN H. CARLIN, ESQ., Nonparty Appellant.

Submitted October 20, 2008; decided November 25, 2008

Reported below, 34 AD3d 207; 2007 NY Slip Op 71813(U).

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 760 (2008)].

INFINITY CONSULTING GROUP, INC., Appellant, v TOWN OF HUNTINGTON, Respondent.

Submitted October 20, 2008; decided November 25, 2008

Reported below, 49 AD3d 813.

Motion for reconsideration of this Court's September 16, 2008 dismissal order denied [see 11 NY3d 781 (2008)].

NEXTEL OF NEW YORK, INC., Respondent, v 87-10 51ST AVENUE OWNERS CORPORATION, Appellant.

Submitted October 14, 2008; decided November 25, 2008

Reported below, 54 AD3d 316.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(November 1, 2008 through November 30, 2008)

MEMORANDA

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Richards (Richard), Matter of, v West	3d Dept: 2008 NY Slip Op 82539(U)	11/7/08
Ward, Matter of, v Spitzer	3d Dept: 2008 NY Slip Op 79279(U)	11/7/08

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2008 through November 30, 2008)

McGill v United Parcel Serv., Inc.	4th Dept: 53 AD3d 1077	11/13/08
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2008 through November 30, 2008)

People v Alvarez	1st Dept: 54 AD3d 612 (NY)	denied 11/28/08 (Read, J.)
People v Archie	3d Dept: 52 AD3d 1022 (Schenectady)	denied 11/13/08 (Read, J.)
People v Bailey	2d Dept: 54 AD3d 419 (Queens)	denied 11/4/08 (Ciparick, J.)
People v Ballas	App Term, 1st Dept: 20 Misc 3d 127(A) (NY)	denied 11/7/08 (Jones, J.)
People v Banks	2d Dept: 53 AD3d 586 (Kings)	denied 11/4/08 (Ciparick, J.)
People v Barnes (Arrello)	App Div, 2d Dept: 2008 NY Slip Op 82134(U) (Queens)	dismissed 11/8/08 (Pigott, J.)
People v Barnes (Escalante)	App Div, 2d Dept: 2008 NY Slip Op 82134(U) (Queens)	dismissed 11/8/08 (Pigott, J.)
People v Barnes (Germaine)	2d Dept: 53 AD3d 620 (Queens)	denied 11/19/08 (Kaye, Ch.J.)
People v Beltre	2d Dept: 54 AD3d 870 (Suffolk)	denied 11/12/08 (Smith, J.)
People v Bessaha	2d Dept: 54 AD3d 381 (Nassau)	denied 11/28/08 (Read, J.)
People v Booker	3d Dept: 53 AD3d 697 (Rensselaer)	denied 11/12/08 (Jones, J.)
People v Boston	2d Dept: 52 AD3d 728 (Queens)	denied 11/19/08 (Kaye, Ch.J.)
People v Brown	App Div, 2d Dept: 2008 NY Slip Op 84732(U) (Queens)	dismissed 11/19/08 (Jones, J.)
People v Bullock	2d Dept: 54 AD3d 959 (Suffolk)	denied 11/25/08 (Smith, J.)
People v Cannie	1st Dept: 54 AD3d 654 (NY)	denied 11/13/08 (Grafteo, J.)

People v Casilla	4th Dept: 53 AD3d 1108 (Onondaga)	denied 11/20/08 (Kaye, Ch.J.)
People v Chandler	App Term, 1st Dept: 20 Misc 3d 139(A) (NY)	denied 11/4/08 (Ciparick, J.)
People v Cheatham	1st Dept: 54 AD3d 297 (NY)	denied 11/5/08 (Ciparick, J.)
People v Coles	2d Dept: 54 AD3d 874 (Rockland)	dismissed 11/13/08 (Ciparick, J.)
People v Collins	2d Dept: 54 AD3d 771 (Kings)	denied 11/28/08 (Read, J.)
People v Connelly	2d Dept: 54 AD3d 348 (Kings)	denied 11/26/08 (Pigott, J.)
People v Copeman	3d Dept: 53 AD3d 854 (St. Lawrence)	denied 11/4/08 (Ciparick, J.)
People v D'Alessandro	App Div, 1st Dept: 2008 NY Slip Op 80474(U) (NY)	granted 11/26/08 (Grafteo, J.)
People v DeGrijze	App Div, 2d Dept: 2008 NY Slip Op 83889(U) (Queens)	dismissed 11/13/08 (Pigott, J.)
People v Dunn	County Ct, 8/13/08 (Orleans)	denied 11/21/08 (Grafteo, J.)
People v Dyla	2d Dept: 52 AD3d 732 (Nassau)	denied 11/12/08 (Jones, J.)
People v Estanislao	App Div, 1st Dept: 2008 NY Slip Op 77659(U) (NY)	denied 11/8/08 (Pigott, J.)
People v Farmer	2d Dept: 54 AD3d 871 (Kings)	denied 11/24/08 (Smith, J.)
People v Faulkner	3d Dept: 54 AD3d 1134 (Albany)	denied 11/24/08 (Grafteo, J.)
People v Feng Chen	App Term, 1st Dept: 20 Misc 3d 128(A) (NY)	denied 11/4/08 (Ciparick, J.)
People v Fiore	County Ct, 6/11/08 (Rensselaer)	denied 11/4/08 (Ciparick, J.)
People v Flemming	App Div, 1st Dept: 2008 NY Slip Op 86728(U) (NY)	dismissed 11/21/08 (Ciparick, J.)
People v Fortenberry	County Ct, 10/3/08 (Erie)	denied 11/21/08 (Grafteo, J.)
People v Franco	1st Dept: 55 AD3d 319 (NY)	dismissed 11/7/08 (Jones, J.)
People v Friel	2d Dept: 53 AD3d 667 (Nassau)	denied 11/7/08 (Jones, J.)
People v Gainey	2d Dept: 54 AD3d 772 (Queens)	denied 11/5/08 (Smith, J.)
People v Galea	2d Dept: 54 AD3d 686 (Nassau)	denied 11/24/08 (Smith, J.)
People v Gant	2d Dept: 54 AD3d 772 (Suffolk)	denied 11/25/08 (Pigott, J.)

MEMORANDA

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People v Garcia	1st Dept: 226 AD2d 229 (Bronx)	denied 11/24/08 (Read, J.)
People v Gomez (Alex)	2d Dept: 54 AD3d 689 (Queens)	denied 11/28/08 (Read, J.)
People v Gomez (Alez)	2d Dept: 54 AD3d 689 (Queens)	denied 11/28/08 (Read, J.)
People v Grigg	2d Dept: 53 AD3d 629 (Suffolk)	denied 11/19/08 (Kaye, Ch.J.)
People v Hall	4th Dept: 53 AD3d 1080 (Onondaga)	denied 11/4/08 (Ciparick, J.)
People v Hamilton	2d Dept: 54 AD3d 773 (Kings)	denied 11/25/08 (Smith, J.)
People v Hancock	2d Dept: 54 AD3d 773 (Dutchess)	denied 11/5/08 (Ciparick, J.)
People v Harris	App Div, 2d Dept: 2008 NY Slip Op 75838(U) (Kings)	denied 11/20/08 (Kaye, Ch.J.)
People v Herion	2d Dept: 54 AD3d 773 (Kings)	denied 11/13/08 (Pigott, J.)
People v Hernandez	2d Dept: 54 AD3d 774 (Queens)	dismissed 11/4/08 (Pigott, J.)
People v Herrera	2d Dept: 54 AD3d 873 (Suffolk)	dismissed 11/24/08 (Read, J.)
People v Hoti	1st Dept: 52 AD3d 211 (NY)	granted 11/5/08 (Pigott, J.)
People v Hudson	2d Dept: 54 AD3d 774 (Suffolk)	denied 11/21/08 (Grafteo, J.)
People v Jackson	App Div, 1st Dept: 2008 NY Slip Op 85537(U) (NY)	dismissed 11/24/08 (Smith, J.)
People v Jeffrey B.	4th Dept: 53 AD3d 1107 (Livingston)	denied 11/4/08 (Ciparick, J.)
People v Jenkins	App Div, 1st Dept: 2008 NY Slip Op 76489(U) (Bronx)	denied 11/12/08 (Smith, J.)
People v Johnson	1st Dept: 52 AD3d 402 (NY)	denied reconsideration 11/21/08 (Grafteo, J.)
People v Jones	App Div, 4th Dept, 9/18/08 (Oneida)	dismissed 11/25/08 (Pigott, J.)
People v Kerins	1st Dept: 54 AD3d 633 (NY)	denied 11/21/08 (Grafteo, J.)
People v King	2d Dept: 54 AD3d 874 (Rockland)	dismissed 11/13/08 (Ciparick, J.)
People v Lambert	2d Dept: 54 AD3d 420 (Kings)	denied 11/8/08 (Pigott, J.)
People v Lange	App Term, 2d Dept: 21 Misc 3d 6 (Westchester)	denied 11/21/08 (Grafteo, J.)

People v Lark	1st Dept: 54 AD3d 596 (NY)	denied 11/4/08 (Ciparick, J.)
People v Llop	1st Dept: 54 AD3d 606 (NY)	denied 11/24/08 (Read, J.)
People v Loucks	App Div, 3d Dept: 2008 NY Slip Op 85084(U) (Albany)	dismissed 11/28/08 (Read, J.)
People v Marte	App Div, 1st Dept: 2007 NY Slip Op 76235(U) (Bronx)	dismissed 11/13/08 (Grafteo, J.)
People v Martin	2d Dept: 54 AD3d 776 (Kings)	denied 11/28/08 (Read, J.)
People v McCall	2d Dept: 51 AD3d 822 (Rockland)	denied 11/4/08 (Ciparick, J.)
People v McCarthy	2d Dept: 53 AD3d 589 (Queens)	denied 11/12/08 (Jones, J.)
People v McFadden	App Term, 2d Dept: 20 Misc 3d 143(A) (Queens)	denied 11/24/08 (Read, J.)
People v Medina (Anthony)	App Div, 1st Dept: 2008 NY Slip Op 78314(U) (Bronx)	denied 11/5/08 (Smith, J.)
People v Medina (Carlos)	4th Dept: 53 AD3d 1046 (Oneida)	denied 11/20/08 (Kaye, Ch.J.)
People v Meijuan Shao	App Term, 2d Dept: 20 Misc 3d 133(A) (Dutchess)	denied 11/4/08 (Ciparick, J.)
People v Midura	2d Dept: 54 AD3d 877 (Kings)	denied 11/25/08 (Smith, J.)
People v Mitchell	2d Dept: 54 AD3d 779 (Queens)	denied 11/26/08 (Pigott, J.)
People v Monfiston	1st Dept: 54 AD3d 597 (NY)	denied 11/24/08 (Grafteo, J.)
People v Moore	App Div, 1st Dept: 2008 NY Slip Op 85537(U) (NY)	dismissed 11/24/08 (Smith, J.)
People v Morgan	2d Dept: 48 AD3d 703 (Rockland)	denied reconsideration 11/19/08 (Kaye, Ch.J.)
People v Mosley	4th Dept: 55 AD3d 1371 (Chautauqua)	denied 11/21/08 (Grafteo, J.)
People v Muench	2d Dept: 54 AD3d 1060 (Suffolk)	denied 11/21/08 (Grafteo, J.)
People v Nikc	2d Dept: 52 AD3d 740 (Kings)	denied 11/21/08 (Grafteo, J.)
People v Ninja	3d Dept: 53 AD3d 697 (Rensselaer)	denid 11/12/08 (Jones, J.)
People v Nix	2d Dept: 53 AD3d 557 (Kings)	denied 11/4/08 (Pigott, J.)
People v O'Brien	2d Dept: 52 AD3d 535 (Suffolk)	denied 11/4/08 (Ciparick, J.)
People v Ojeda	App Div, 1st Dept, 9/28/06 (Bronx)	denied 11/3/08 (Pigott, J.)

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People v Parascandola	2d Dept: 54 AD3d 382 (Kings)	denied 11/4/08 (Ciparick, J.)
People v Patel	County Ct, 6/10/08 (Oneida)	denied 11/3/08 (Ciparick, J.)
People v Pedraza	App Div, 1st Dept: 2008 NY Slip Op 65725(U) (Bronx)	denied 11/4/08 (Ciparick, J.)
People v Pedrosa	App Div, 1st Dept: 2008 NY Slip Op 65725(U) (Bronx)	denied 11/4/08 (Ciparick, J.)
People v Pelligrino	2d Dept: 50 AD3d 827 (Kings)	denied 11/21/08 (Grafteo, J.)
People v Prince	2d Dept: 54 AD3d 972 (Queens)	denied 11/21/08 (Grafteo, J.)
People v Reyes	2d Dept: 54 AD3d 781 (Kings)	denied 11/21/08 (Grafteo, J.)
People v Richardson	3d Dept: 55 AD3d 934 (Albany)	dismissed 11/13/08 (Ciparick, J.)
People v Riddick	2d Dept: 54 AD3d 690 (Queens)	denied 11/8/08 (Pigott, J.)
People v Robertson	3d Dept: 53 AD3d 791 (Broome)	denied 11/21/08 (Grafteo, J.)
People v Robinson (Brandon)	4th Dept: 55 AD3d 1359 (Monroe)	denied 11/24/08 (Grafteo, J.)
People v Robinson (Donald)	2d Dept: 53 AD3d 63 (Kings)	denied 11/19/08 (Kaye, Ch.J.)
People v Rodriguez (Jesse)	App Div, 1st Dept: 2008 NY Slip Op 83979(U) (NY)	dismissed 11/5/08 (Smith, J.)
People v Rodriguez (Jessie)	App Div, 1st Dept: 2008 NY Slip Op 83979(U) (NY)	dismissed 11/5/08 (Smith, J.)
People v Romano	2d Dept: 50 AD3d 1162 (Queens)	denied reconsideration 11/21/08 (Grafteo, J.)
People v Rosario	App Div, 1st Dept: 2008 NY Slip Op 76465(U) (NY)	denied 11/4/08 (Ciparick, J.)
People v Rozario	App Term, 2d Dept: 20 Misc 3d 76 (Dutchess)	denied 11/4/08 (Pigott, J.)
People v St. Laurent	County Ct, 8/8/08 (Cattaraugus)	denied 11/24/08 (Read, J.)
People v Schreter	2d Dept: 50 AD3d 930 (Suffolk)	denied 11/28/08 (Read, J.)
People v Smith	2d Dept: 54 AD3d 879 (Kings)	denied 11/25/08 (Smith, J.)
People v Soler	1st Dept: 55 AD3d 312 (NY)	denied 11/24/08 (Grafteo, J.)
People v Soller	1st Dept: 55 AD3d 312 (NY)	denied 11/24/08 (Grafteo, J.)
People v Sonachansingh	3d Dept: 52 AD3d 1022 (Schenectady)	denied 11/13/08 (Read, J.)

People v Spence	App Div, 2d Dept: 2008 NY Slip Op 84732(U) (Queens)	dismissed 11/19/08 (Jones, J.)
People v Stallings	2d Dept: 54 AD3d 1064 (Westchester)	denied 11/24/08 (Grafteo, J.)
People v Sterrett	4th Dept: 53 AD3d 1098 (Erie)	denied 11/7/08 (Jones, J.)
People v Steward	2d Dept: 54 AD3d 880 (Nassau)	denied 11/24/08 (Grafteo, J.)
People v Switzer	4th Dept: 55 AD3d 1394 (Monroe)	denied 11/21/08 (Grafteo, J.)
People v Taffinder	2d Dept: 54 AD3d 883 (Suffolk)	denied 11/5/08 (Ciparick, J.)
People v Tancredi	1st Dept: 52 AD3d 326 (NY)	denied reconsideration 11/21/08 (Grafteo, J.)
People v Thomas	3d Dept: 53 AD3d 864 (Broome)	denied 11/4/08 (Ciparick, J.)
People v Thompson	2d Dept: 54 AD3d 975 (Kings)	denied 11/21/08 (Grafteo, J.)
People v Tocci	2d Dept: 52 AD3d 541 (Nassau)	denied 11/25/08 (Smith, J.)
People v Troiano	3d Dept: 2008 NY Slip Op 85188(U) (Greene)	denied 11/28/08 (Read, J.)
People v Vargas	2d Dept: 52 AD3d 850 (Suffolk)	denied 11/4/08 (Ciparick, J.)
People v Vasquez	2d Dept: 54 AD3d 783 (Queens)	dismissed 11/24/08 (Read, J.)
People v Wahedi (Abdul)	2d Dept: 54 AD3d 783 (Suffolk)	denied 11/24/08 (Grafteo, J.)
People v Wahedi (Sammy)	2d Dept: 54 AD3d 783 (Suffolk)	denied 11/24/08 (Grafteo, J.)
People v Walker	2d Dept: 53 AD3d 672 (Queens)	denied 11/4/08 (Ciparick, J.)
People v Warren	2d Dept: 49 AD3d 569 (Nassau)	denied 11/4/08 (Ciparick, J.)
People v Weay	2d Dept: 54 AD3d 695 (Queens)	denied 11/21/08 (Grafteo, J.)
People v Wells	1st Dept: 53 AD3d 181 (NY)	denied 11/19/08 (Kaye, Ch.J.)
People v Whitfield	2d Dept: 52 AD3d 748 (Orange)	denied 11/4/08 (Pigott, J.)
People v Wilson	3d Dept: 53 AD3d 928 (Albany)	denied 11/7/08 (Jones, J.)
People v Woods	4th Dept: 55 AD3d 1302 (Erie)	denied 11/21/08 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(November 1, 2008 through November 30, 2008)

People v Arafet

3d Dept: 54 AD3d 517 (Schenectady)

granted 11/6/08
(Rose, J.)

[901 NE2d 740, 873 NYS2d 247]

In the Matter of PARTNERSHIP 92 LP et al., Appellants, v STATE
OF NEW YORK DIVISION OF HOUSING AND COMMUNITY RE-
NEWAL, Respondent.

Decided December 2, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 20, 2007. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, New York County (Karen S. Smith, J.; op 22 Misc 3d 1102[A], 2005 NY Slip Op 52399[U]), which had denied a petition to annul a determination of respondent Division of Housing and Community Renewal (DHCR) directing petitioner landlord to refund rent overcharges to the tenant in the amount of \$58,169.89, but declining to impose treble damages on the ground that the presumption of willfulness was rebutted by petitioner landlord, and dismissed the proceeding.

The Appellate Division majority concluded that DHCR properly applied the Rent Regulation Reform Act of 1997 (RRRA), which prohibits examination of rental events occurring more than four years prior to the filing of a complaint, to the overcharge complaint filed in 1987; that DHCR correctly determined that a prior five-year tenancy, in which the tenant never occupied the apartment but re-leased it at a profit to corporate entities, was illusory; and that DHCR's determination not to look back to the last rent-stabilized tenant's rent to resolve the overcharge complaint because of the illusory tenancy was not arbitrary, capricious or without rational basis.

Matter of Partnership 92 LP v State of N.Y. Div. of Hous. & Community Renewal, 46 AD3d 425, affirmed.

* Includes only applications that were granted.

HEADNOTE**Landlord and Tenant — Rent Regulation**

In a proceeding seeking to annul a determination of respondent Division of Housing and Community Renewal (DHCR) directing the landlord to refund rent overcharges, DHCR properly applied the Rent Regulation Reform Act of 1997, which prohibits examination of rental events occurring more than four years prior to the filing of a complaint, to the overcharge complaint filed in 1987. The proceeding was pending before DHCR at the time of the Act's enactment. Moreover, DHCR had record support to conclude that, in arguing for a higher base rent, the owner had relied on an illusory tenancy given that the tenant never occupied the apartment in the prior five-year tenancy but released it at a profit to corporate entities. Thus, DHCR appropriately applied the default formula to set the base rent since no reliable rent records were available.

APPEARANCES OF COUNSEL

Shaw & Binder, P.C., New York City (*Robert H. Gordon* of counsel), for appellants.

David B. Cabrera, New York City, and *Martin B. Schneider* for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

By its terms, the Rent Regulation Reform Act of 1997 (L 1997, ch 116) applies to any proceeding that was pending before the New York State Division of Housing and Community Renewal at the time of its enactment, as this case was (*see Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144, 149 [2002]). Moreover, there was ample basis on this record for the Division to conclude that, in arguing for a higher base rent, the owner had relied on an illusory tenancy. It was therefore appropriate for the agency to apply the default formula to set the base rent since no reliable rent records were available (*see Thornton v Baron*, 5 NY3d 175, 181 [2005]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

PETER G. CAFFERTY et al., Appellants, v JOHN E. CAHILL, as Real Property Tax Service Director for Broome County, et al., Respondents, et al., Defendants.

Submitted September 15, 2008; decided December 2, 2008

Reported below, 53 AD3d 1007.

On the Court's own motion, appeal insofar as taken from that portion of the Appellate Division order that affirmed Supreme Court's denial of appellants' motion to amend the complaint, dismissed, without costs, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of appellants' motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of THERESA CANNALONGA, Appellant, v ROBERT DOAR, as Commissioner of the Office of Temporary and Disability Assistance of the New York State Department of Family Assistance, et al., Respondents.

Submitted October 6, 2008; decided December 2, 2008

Reported below, 51 AD3d 552.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying appellant's motion for class certification, dismissed upon the ground that such part of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of THERESA CANNALONGA, Appellant, v ROBERT DOAR, as Commissioner of the Office of Temporary and Disability Assistance of the New York State Department of Family Assistance, et al., Respondents.

Submitted October 27, 2008; decided December 2, 2008

Reported below, 51 AD3d 552.

Motion by the Empire Justice Center for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DERAFFELE MANUFACTURING CO., INC., Respondent, v KALOAKAS MANAGEMENT CORP. et al., Appellants.

Submitted September 22, 2008; decided December 2, 2008

Reported below, 48 AD3d 807.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of appellants' motion to renew, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ANNA MARIE DESIMONE, Respondent, v ROYAL GM, INC., et al., Appellants.

Submitted October 14, 2008; decided December 2, 2008

Reported below, 49 AD3d 490.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying appellants' postjudgment motion to set aside the verdict, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MICHAEL D. DIEDERICH, JR., Appellant, v NYACK HOSPITAL et al., Respondents, et al., Defendants.

Submitted October 14, 2008; decided December 2, 2008

Reported below, 49 AD3d 491.

Motion, insofar as it seeks leave to appeal against Tyrone McNeill, the Orangetown Police Department and the Town of Orangetown, dismissed upon the ground that as to these parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge JONES taking no part.

In the Matter of the Claim of JAMES HARE, Appellant, v CHAMPION INTERNATIONAL et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 3, 2008; decided December 2, 2008

Reported below, 50 AD3d 1254.

Appeal, insofar as taken from the order of the Appellate Division denying reconsideration or leave to appeal to the Court of Appeals, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order of affirmance, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of JOY BUILDERS, INC., et al., Appellants, v TOWN OF CLARKSTOWN et al., Respondents.

Submitted November 17, 2008; decided December 2, 2008

Reported below, 54 AD3d 761.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MEHRDAD KAHEN et al., Respondents, v TYRONE WOUTERSZ et al., Respondents, and ROSEMARY TORIOLA, Appellant.

Submitted November 10, 2008; decided December 2, 2008

Reported below, 2007 NY Slip Op 74558(U), 75608(U), 83372(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of LAND MASTER MONTG I, LLC, et al., Respondents, v TOWN OF MONTGOMERY et al., Appellants, et al., Respondents. (Matter No. 1.)

In the Matter of ROSWIND FARMLAND CORP. et al., Respondents, v TOWN OF MONTGOMERY et al., Appellants, et al., Respondents. (Matter No. 2.)

Submitted November 17, 2008; decided December 2, 2008

Reported below, 54 AD3d 408.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MAMARONECK BEACH & YACHT CLUB, INC., et al., Respondents, v ZONING BOARD OF APPEALS OF VILLAGE OF MAMARONECK et al., Appellants, et al., Respondents.

Submitted September 15, 2008; decided December 2, 2008

Reported below, 53 AD3d 494.

Motion by Federated Conservationists of Westchester County, Inc. for leave to file a brief amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed.

ANNETTE MEISELMAN, Appellant, v LONNIE FOGEL et al., Respondents.

Submitted November 13, 2008; decided December 2, 2008

Reported below, 50 AD3d 979.

Motion for reconsideration of this Court's September 16, 2008 dismissal order denied [*see* 11 NY3d 783 (2008)].

MHR CAPITAL PARTNERS LP et al., Appellants, v PRESSTEK, INC., Respondent, et al., Defendant.

Submitted September 29, 2008; decided December 2, 2008

Reported below, 55 AD3d 12.

Motion to dismiss the appeal herein denied.

POLINA MULLAYEVA, Appellant, v ROBERT MULLAYEV, Respondent.

Submitted October 6, 2008; decided December 2, 2008

Reported below, 2008 NY Slip Op 77027(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602).

ST. LAWRENCE FACTORY STORES, Appellant, v OGDENSBURG BRIDGE AND PORT AUTHORITY, Respondent.

Submitted September 15, 2008; decided December 2, 2008

Reported below, 49 AD3d 1069; 202 AD2d 844.

Motion by Richard A. Lord, Esq. for leave to file a memorandum of law amicus curiae on the motion for leave to appeal herein denied.

ST. LAWRENCE FACTORY STORES, Appellant, v OGDENSBURG BRIDGE AND PORT AUTHORITY, Respondent.

Submitted September 8, 2008; decided December 2, 2008

Reported below, 49 AD3d 1069; 202 AD2d 844.

Motion by General Building Contractors of New York State, Inc. for leave to file a memorandum of law amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

In the Matter of the Estate of JAMES E. SELVY, Deceased. ALLAN SELVY, Appellant; VALERIE TAYLOR et al., Respondents.

Submitted October 14, 2008; decided December 2, 2008

Reported below, 2008 NY Slip Op 79883(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of TIMOTHY SHOCKOME, Respondent, v YEVGENIA SHOCKOME, Appellant.

Submitted September 15, 2008; decided December 2, 2008

Reported below, 53 AD3d 618.

Motion by Justice for Children for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of ROSEMARY TORIOLA, Appellant, v SUPREME COURT STATE OF NEW YORK APPELLATE TERM 2ND AND 11TH JUDICIAL DISTRICTS et al., Respondents.

Submitted November 10, 2008; decided December 2, 2008

Reported below, 51 AD3d 937; 2008 NY Slip Op 73485(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const art VI, § 3 [b]; CPLR 5601).

[901 NE2d 743, 873 NYS2d 250]

SARAMILIA GASTON et al., Respondents, v AMERICAN TRANSIT INSURANCE COMPANY, Appellant.

Argued February 14, 2008; decided December 16, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 1, 2007. The Appellate Division affirmed an order of the Supreme Court, Kings County (David B. Vaughan, J.), which had granted plaintiffs' motion for summary judgment and denied defendant's cross motion for summary judgment dismissing the complaint.

Gaston v American Tr. Ins. Co., 40 AD3d 578, modified.

HEADNOTES

Judgments — Collateral Estoppel

1. In an Insurance Law § 3420 action to recover an unsatisfied judgment against defendant's insured, collateral estoppel was erroneously applied to preclude defendant from litigating the issue of whether the car that collided

with the bus in which the injured plaintiffs were traveling was insured on the date of the accident. Three prior judgments involving different parties' claims arising from the same bus accident had been submitted to the court. Two default judgments resolved the coverage issue against the insurer. In a third proceeding, the same coverage question had been adjudicated, resulting in a judgment in the insurer's favor. In light of these conflicting judgments on the same issue, application of the doctrine of collateral estoppel was not warranted.

Appeal — Court of Appeals — Relief Available upon Modification of Order Affirming Grant of Motion for Summary Judgment and Denial of Cross Motion for Summary Judgment

2. In an Insurance Law § 3420 action where the Court of Appeals modified an Appellate Division order, which had affirmed Supreme Court's order granting plaintiffs' motion for summary judgment and denying defendant's cross motion for summary judgment dismissing the complaint, by denying plaintiffs' motion for summary judgment, the Court declined to grant defendant insurer's cross motion for summary judgment inasmuch as plaintiffs' arguments in opposition to the cross motion were not addressed by the courts below.

APPEARANCES OF COUNSEL

Marjorie E. Bornes, New York City, for appellant.

William D. Fireman, P.C., New York City (*William D. Fireman* and *Steven Herschkowitz* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying plaintiffs' motion for summary judgment and, as so modified, affirmed.

[1, 2] In this Insurance Law § 3420 action, defendant insurer should not have been collaterally estopped from litigating the issue of whether the car that collided with the bus in which the injured plaintiffs were traveling was insured on the date of the accident. Three prior judgments involving different parties' claims arising from the same bus accident were submitted to the court. The plaintiffs* proffered two default judgments that resolved the coverage issue against the insurer while the insurer demonstrated that the same coverage question had been adjudicated in a third proceeding resulting in a judgment in the insurer's favor. In light of these conflicting judgments on the same issue, application of the doctrine of collateral estoppel was

* Plaintiff Nicole Jean died during the pendency of this appeal. Following proceedings in Surrogate's Court, Supreme Court substituted Stephanie Jean, the administratrix of her estate, as a plaintiff and amended the caption to reflect both the substitution and the fact that the former infant plaintiff, Saramilia Gaston, is now over the age of 18.

not warranted (*see* Restatement [Second] of Judgments § 29 [4]). Since plaintiffs' arguments in opposition to the insurer's cross motion for summary judgment were not addressed by either of the courts below, we decline to grant the insurer's cross motion for summary judgment.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

[901 NE2d 741, 873 NYS2d 248]

In the Matter of OMNI RECYCLING OF WESTBURY, INC., Respondent, v TOWN OF OYSTER BAY et al., Appellants.

Argued November 18, 2008; decided December 16, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 5, 2007. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment of the Supreme Court, Nassau County (Roy S. Mahon, J.; op 2006 NY Slip Op 52683[U]), entered in a proceeding pursuant to CPLR article 78, which had denied the petition to annul a resolution of respondent Town Board of the Town of Oyster Bay authorizing respondent Town of Oyster Bay to enter into a contract with respondent recycling company. The modification consisted of deleting the provision of the judgment denying that branch of the petition which was to annul the resolution, substituting therefor a provision granting that branch of the petition, and annulling the resolution and the contract between the Town and respondent recycling company.

Matter of Omni Recycling of Westbury, Inc. v Town of Oyster Bay, 41 AD3d 482, reversed.

HEADNOTE

Municipal Corporations — Bids and Bidders — Recycling Contract

Respondent Town, which passed a resolution authorizing the use of the request for proposals (RFP) procedures under General Municipal Law § 104-b for the procurement of goods and services not subject to competitive bidding, properly awarded a contract to respondent recycling company using an RFP that had been issued by the Town's Department of Public Works. Public work contracts that require the exercise of specialized or technical skills, expertise or knowledge are not subject to the sealed, competitive bidding requirements

under General Municipal Law § 103 and may be awarded using the RFP process. Based on the particular services to be rendered in the RFP, including recycling newspaper, mixed paper, corrugated cardboard, commingled glass, ferrous and nonferrous metal and rigid plastic containers, the recycling contract fell within the special skills exception to the “lowest responsible bidder” requirement of section 103 (1).

APPEARANCES OF COUNSEL

Giaimo Associates, LLP, Kew Gardens (*Joseph O. Giaimo* of counsel), for Giove Company, Inc., appellant.

Gregory J. Giammalvo, Town Attorney, Oyster Bay (*Frank M. Scalera* of counsel), for Town of Oyster Bay and another, appellants.

Anthony E. Core, P.C., Westbury (*Anthony E. Core* and *Jacqueline Caputo* of counsel), for respondent.

Michael E. Kenneally, Jr., Albany, for Association of Towns of the State of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the petition denied in the entirety.

It has long been recognized that public work contracts that require the exercise of specialized or technical skills, expertise or knowledge are not subject to the sealed, competitive bidding requirements under General Municipal Law § 103* (*see e.g. People v Flagg*, 17 NY 584 [1858]) and may instead be awarded using the request for proposals (RFP) process set forth in General Municipal Law § 104-b. In May 2004, respondent Town of Oyster Bay passed a resolution authorizing the use of section 104-b procedures for the procurement of goods and services not subject to competitive bidding, and the Town’s Department of Public Works issued an RFP for “Services for the Recycling of Newspaper, Mixed Paper and Corrugated Cardboard” and “Services for the Recycling of Commingled Glass, Ferrous and Non-Ferrous Metal and Rigid Plastic Containers.” Proposals were

* General Municipal Law § 103 (1) provides, in part, that “[e]xcept as otherwise expressly provided by an act of the legislature or by a local law adopted prior to September first, nineteen hundred fifty-three, all contracts for public work involving an expenditure of more than twenty thousand dollars and all purchase contracts involving an expenditure of more than ten thousand dollars, shall be awarded . . . to the lowest responsible bidder furnishing the required security after advertisement for sealed bids in the manner provided by this section.”

solicited from nine companies, which were eventually narrowed to petitioner Omni Recycling of Westbury, Inc. and respondent Giove Company. The Town obtained independent review of the two submissions by a consultant, conducted a public hearing and awarded the contract to Giove.

Omni then initiated this proceeding, arguing that the Town should have used the competitive bidding process under section 103. We conclude, however, that based on the description of the particular services to be rendered in the RFP, this recycling contract fell within the special skills exception to the “lowest responsible bidder” requirement of section 103 (1) and therefore was properly awarded using an RFP process consistent with the section 104-b procedures adopted by the Town.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

FRANK ADAMO, as Executor of the Estate of NORMA ROSE, Deceased, et al., Appellants, v BROWN & WILLIAMSON TOBACCO CORPORATION, as Successor in Interest to AMERICAN TOBACCO, et al., Respondents, et al., Defendant.

Submitted December 8, 2008; decided December 16, 2008

Reported below, 53 AD3d 80.

Motion to substitute Frank Adamo, as Executor of the Estate of Norma Rose, as a party appellant herein for appellant Norma Rose granted.

VIVIA AMALFITANO et al., Respondents, v ARMAND ROSENBERG, Appellant.

Submitted December 1, 2008; decided December 16, 2008

Motion by James J. Melcher for leave to file a brief amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed.

DORIS BROWNLEY et al., Appellants, v ROBERT DOAR, as Commissioner of the New York State Office of Temporary and Disability Assistance, Respondent, et al., Defendants.

Submitted November 24, 2008; decided December 16, 2008

Reported below, 44 AD3d 313.

Motion by Community Service Society of New York et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

PAULA FASSO et al., Respondents, and INDEPENDENT HEALTH ASSOCIATION, INC., Intervenor-Appellant, v RALPH J. DOERR, M.D., Respondent.

Submitted December 1, 2008; decided December 16, 2008

Reported below, 46 AD3d 1358.

Motion by the New York State Health Plan Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted December 1, 2008; decided December 16, 2008

Reported below, 55 AD3d 26.

Motion by Team French Spirit et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted December 8, 2008; decided December 16, 2008

Reported below, 55 AD3d 26.

Motion by City of Valencia, Spain for leave to appear amicus curiae on the appeal herein granted only to the extent that the

proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

IRVING HOSTEN, Appellant, v DELE OLADAPO, Respondent.

Submitted October 27, 2008; decided December 16, 2008

Reported below, 52 AD3d 658; 2008 NY Slip Op 82980(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

MARIO MIGUEL JARAMILLO, Appellant, v WEYERHAEUSER COMPANY et al., Respondents, et al., Defendant.

Submitted November 24, 2008; decided December 16, 2008

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PAUL BOYD, Respondent.

Submitted November 24, 2008; decided December 16, 2008

Reported below, 51 AD3d 325.

Motion for assignment of counsel granted and Dominic J. Sichenzia, Esq., One Old Country Road, Suite 390, Carle Place, New York 11514 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAJRO HOTI, Appellant.

Submitted December 1, 2008; decided December 16, 2008

Reported below, 52 AD3d 211.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th

Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY GILL,
Respondent, v GARY GREENE, as Superintendent of Great
Meadow Correctional Facility, Appellant.

Submitted December 8, 2008; decided December 16, 2008

Reported below, 48 AD3d 1003.

Motion to vacate this Court's November 21, 2008 preclusion
order granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY GILL,
Respondent, v GARY GREENE, as Superintendent of Great
Meadow Correctional Facility, Appellant.

Submitted December 1, 2008; decided December 16, 2008

Reported below, 48 AD3d 1003.

Motion by District Attorneys Association of the State of New
York for leave to file a brief amicus curiae on the appeal herein
granted. Three copies of the brief must be served and an origi-
nal and 24 copies filed within seven days.

[902 NE2d 952, 874 NYS2d 399]

In the Matter of PAUL G. KENNY, Appellant, v THOMAS P. DI-
NAPOLI, as New York State Comptroller, Respondent.

Decided December 17, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order
of the Appellate Division of the Supreme Court in the Third
Judicial Department, entered April 24, 2008, in a proceeding
pursuant to CPLR article 78 (transferred to the Appellate Divi-
sion by order of the Supreme Court, entered in Albany County).
The Appellate Division confirmed a determination of respon-
dent New York State Comptroller, which had denied petitioner's

application for accidental disability retirement benefits, and dismissed the petition.

Petitioner police detective allegedly sustained injuries when he slipped on a wet ramp while exiting a restaurant. Petitioner testified that he knew it was raining before he arrived at the restaurant and recognized that the ground was still wet when he and his coworkers finished their lunch, exited the restaurant and started to walk to their vehicle.

Matter of Kenny v DiNapoli, 50 AD3d 1445, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement

In a CPLR article 78 proceeding, the Appellate Division properly confirmed respondent State Comptroller's determination denying petitioner police detective's application for accidental disability retirement benefits. For purposes of such benefits, an injury which occurs without an unexpected event as the result of activity undertaken in the performance of ordinary employment duties, considered in view of the particular employment, is not an accidental injury. Respondent's conclusion that the incident was not an unexpected event was supported by substantial evidence in the record. Petitioner, who slipped on a wet ramp while exiting a restaurant, knew that the ramp was wet and therefore knew of the hazard that led to his injury before the incident occurred.

APPEARANCES OF COUNSEL

Annette G. Hasapidis, South Salem, for appellant.

Andrew M. Cuomo, Attorney General, Albany (*William E. Storrs*, *Barbara D. Underwood*, *Andrew D. Bing* and *Peter H. Schiff* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, with costs.

In the context of accidental disability retirement benefits, we have defined an accident as a "sudden, fortuitous mischance, unexpected, out of the ordinary, and injurious in impact" and we have indicated that "an injury which occurs without an unexpected event as the result of activity undertaken in the performance of ordinary employment duties, considered in view of the particular employment in question, is not an accidental injury" (*Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y.*, Art. II, 57 NY2d 1010, 1012 [1982]). In this case, the Comptroller denied the ap-

plication for accidental disability retirement benefits because petitioner, who slipped on a wet ramp while exiting a restaurant, knew that the ramp was wet and therefore knew of the hazard that led to his injury before the incident occurred. In other words, the Comptroller was not persuaded that the incident involved an “unexpected event.” Because the Comptroller’s conclusion is supported by substantial evidence in the record, the determination was properly confirmed.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, with costs, in a memorandum.

[903 NE2d 256, 874 NYS2d 859]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v ALFRED FORD, Respondent-Appellant.

Argued November 19, 2008; decided December 17, 2008

SUMMARY

CROSS APPEALS, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 23, 2007. The Appellate Division modified, on the law, a judgment of the Supreme Court, Bronx County (Robert H. Straus, J., on severance motion; Bruce Allen, J., at jury trial and sentence), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts), robbery in the second degree (two counts) and criminal possession of a controlled substance in the seventh degree. The modification consisted of reducing the conviction for robbery in the first degree under the fifth count of the indictment to robbery in the third degree and remanding for resentencing on that conviction, and remanding for resentencing on the second-degree robbery conviction and controlled substance conviction. The Appellate Division affirmed the judgment as modified.

People v Ford, 44 AD3d 515, modified.

HEADNOTES

Crimes — Instructions — First-Degree Robbery

1. A robbery in the first degree jury charge, which parroted the statute by stating that in order to find defendant guilty the jury would have to conclude

that in the course of the crime the defendant “used or threatened the immediate use of a knife . . . [and] that under the circumstances *the* knife was a dangerous instrument,” failed to instruct the jury that “actual possession” of a dangerous instrument was a required element of the crime. Although not explicit in the statute, actual possession is a requirement based on judicial interpretation in decisional law. The charge did not use the term “actual possession,” or in any other way convey that requirement to the jury. More than a subtle verbal clue, such as referencing “*the* knife,” was necessary.

Crimes — Robbery — Sufficiency of Evidence

2. In a prosecution for robbery in the first degree in which the trial court’s charge failed to convey to the jury that “actual possession” of a dangerous weapon was a required element of the crime, defendant’s conviction of that crime was nonetheless supported by legally sufficient evidence when viewed in light of the court’s charge as given without exception because defendant failed to object to the charge. During the course of the robbery, defendant stated, “I got a knife,” while simultaneously moving his hand toward his pants pocket. These acts, considered together, provided legally sufficient evidence to establish that defendant “used or threatened the immediate use” of a knife in the course of the robbery, as the trial court charged.

Crimes — Consolidation and Severance

3. Defendant failed to establish good cause in support of his request to sever the trials of charges in a single indictment related to two successive robberies (CPL 200.20 [3] [a]). There was no material variance in the quantity of proof for the separate incidents. Moreover, the evidence as to the two crimes was presented separately and was readily capable of being segregated in the minds of the jury. The incidents occurred on different dates and the evidence as to each incident was presented through different witnesses.

APPEARANCES OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City (Patrick J. Hynes and Hilary Hassler of counsel), for appellant-respondent.

Legal Aid Society Criminal Appeals Bureau, New York City (Steven Banks, Andrew Fine and John Schoeffel of counsel), and Kaye Scholer LLP (Max R. Schwartz, Michael A. Rogoff, Paula R. Ramer and John S. Cahalan of counsel), for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by reinstating defendant’s conviction for first-degree robbery and remitting to that court for consideration of the facts (*see* CPL 470.25 [2] [d]; 470.40 [2] [b]), and, as so modified, affirmed.

A grand jury returned a single indictment charging defendant Alfred Ford with first-degree robbery and lesser offenses related to two successive robberies in May 2004 in elevators of residential buildings on Park Avenue in Manhattan. Before trial, defen-

dant unsuccessfully sought to sever the trials of the two crimes on the ground that the proof of his identity in the second robbery was stronger than that in the first, and the jury would thus be unable to consider the proof of each incident separately. Ultimately, defendant was convicted of two counts of first-degree robbery, one with respect to each incident.

On appeal, defendant contended that Penal Law § 160.15 (3)¹ requires the People to establish defendant's "actual possession" of a dangerous instrument, and there was insufficient evidence that he had actually possessed a knife during one of the robberies. Second, he argued that the trial court erroneously denied his severance motion. The People responded that, viewing the evidence in light of the unobjected-to instruction—which did not require the jury to find that defendant actually possessed the knife—the evidence of first-degree robbery was legally sufficient. Alternatively, the People argued that the evidence was legally sufficient to establish that defendant actually possessed a knife. As for severance, the People took the position that joinder was proper because there was no material variance in the quantity of proof relating to each crime, and the jury would be able to consider the evidence as to each crime separately.

The Appellate Division modified the judgment of conviction, reduced the defendant's conviction for first-degree robbery to third-degree robbery, and remanded the case to Supreme Court for resentencing on that count. The court concluded that although the charge as given alerted the jury to the "actual possession" element of the crime, the evidence of actual possession was legally insufficient. Further, the Appellate Division rejected defendant's severance claim. A Judge of this Court granted both the People and defendant leave to appeal.

[1] In its charge to the jury, the trial court explained that, to find defendant guilty of first-degree robbery, the jury would have to find

“[f]irst, that on May 31, 2004 . . . the defendant
. . . forcibly stole property from [the victim];
second, that in the course of the commission of the

1. Penal Law § 160.15 (3) provides that “[a] person is guilty of robbery in the first degree when he forcibly steals property and when, in the course of the commission of the crime or of immediate flight therefrom, he or another participant in the crime . . . [u]ses or threatens the immediate use of a dangerous instrument” (emphasis added). In *People v Pena* (50 NY2d 400, 407 [1980]), we indicated that the “use or threatened use” language requires proof of actual possession.

crime or in the immediate flight therefrom, the defendant used or threatened the immediate use of a knife; [and] third, that under the circumstances the knife was a dangerous instrument.”

The Appellate Division concluded that this charge adequately alerted the jury to the “actual possession” element of the crime, principally by virtue of the single reference to “‘the knife,’ rather than a hypothetical knife” (*People v Ford*, 44 AD3d 515, 516 [1st Dept 2007]). We cannot agree. More than a subtle verbal clue was necessary for the jury to be put on notice of its obligation to decide whether defendant actually possessed a knife; it is not enough for an instruction merely to imply the elements of a crime. Simply put, the charge in this case did not use the term “actual possession,” or in any other way convey that requirement to the jury. Although the jury instruction parroted the statute, we have previously noted that the “actual possession” requirement is not explicit in the statute, but rather is based on judicial interpretation in decisional law (*see Pena*, 50 NY2d at 407; *see generally People v Johnson*, 70 NY2d 819 [1987]).

[2] Because there was no objection to the charge, however, the legal sufficiency of defendant’s conviction must be viewed in light of the court’s charge as given without exception (*see People v Sala*, 95 NY2d 254 [2000]; *People v Dekle*, 56 NY2d 835 [1982]). Viewed as such, the evidence was legally sufficient to establish defendant’s guilt of first-degree robbery. During the course of the robbery, defendant stated, “I got a knife,” while simultaneously moving his hand toward his pants pocket. These acts, considered together, provide legally sufficient evidence to establish that defendant “used or threatened the immediate use” of a knife in the course of the robbery, as the trial court charged.² As a result, defendant’s conviction for first-degree robbery should be reinstated.

Our recent decision in *People v Jean-Baptiste* (11 NY3d 539 [2008]) does not warrant a different result. There, defendant’s motion to dismiss for legal insufficiency—which related to the elements of the crime—apprised the trial judge of any potential error in the charge. The judge in responding made a clear disposition on the law; he incorporated into the charge what he had already told defense counsel reflected the law. Under these cir-

2. Because of our disposition of this appeal, we need not decide and express no opinion as to whether the proof in this case was sufficient to establish actual possession.

cumstances, an objection to the charge itself would have been superfluous and futile, and would not have advanced the sound policy reasons underlying the preservation requirement (*see People v Hawkins*, 11 NY3d 484 [2008]).

Here, by contrast, the legal sufficiency objection was based on the perceived inadequacy of the proof, not on an interpretation of an element of the offense. The objection to sufficiency was merely “denied”; the trial judge did not clearly make a distinction between whether he was denying the motion because the evidence was insufficient to establish possession, or because he considered proof of actual possession to be unnecessary. As a result, defense counsel was required to object to the jury charge—which, as already noted, did not instruct the jurors that they had to find that defendant actually possessed the knife in order to convict him of first-degree robbery—in order to avoid having the sufficiency of the evidence supporting his conviction evaluated in light of the charge as given.

[3] Finally, we reject defendant’s claim that the trial court erroneously denied his severance motion. Defendant failed to establish good cause for severance under section 200.20 (3) (a) of the Criminal Procedure Law because there was no material variance in the quantity of proof for the separate incidents. Moreover, the evidence as to the two crimes was presented separately and was readily capable of being segregated in the minds of the jury. The incidents occurred on different dates and the evidence as to each incident was presented through entirely different witnesses.

JONES, J. (dissenting in part). The question before the Court—whether there was legally sufficient evidence to support defendant’s first-degree robbery conviction (*see* Penal Law § 160.15 [3])—is here on the People’s appeal. Defendant was charged in a single indictment with two robberies, one occurring on May 24 and one on May 31, 2004. I agree with the majority in holding that the trial court properly exercised its discretion in denying defendant’s motion to sever the trials of the two robberies under CPL 200.20 (3) (a).

However, I disagree with the majority’s conclusion, with respect to the May 31, 2004 robbery, that there was legally sufficient evidence that defendant committed a robbery in the first degree (Penal Law § 160.15 [3] [which requires use or threatened use of a “dangerous instrument”]) and that the Appellate Division erred by concluding that the “charge adequately alerted

the jury to the ‘actual possession’ element of the crime.” The majority argues that defendant failed to preserve his claim of legal insufficiency because he did not object to the jury charge. Specifically, the majority contends that although defendant moved for a trial order of dismissal based on insufficient evidence of a knife, he was required to object to the jury charge as given, and that having failed to object to the jury charge, defendant loses his claim of legal insufficiency. Put differently, the majority contends that to preserve his claim of insufficiency, defendant should have requested that the court instruct the jury that robbery in the first degree required proof of an actual knife.

The jury charge was not incorrect.* The trial court, as part of its charge to the jury, instructed that a “dangerous instrument means any instrument, which under the circumstances in which it is used, is readily capable of causing death or other serious physical injury.” Reading this definition in conjunction with the portion of the charge quoted by the majority (majority mem at 877-878) makes clear that in order for defendant to be convicted of robbery in the first degree, the People must prove that he actually possessed a knife.

The majority’s approach leads to a bizarre result. Under their view, the lack of evidence of a “dangerous instrument” (a knife) is held to be legally sufficient “evidence” because the jury charge was erroneous and defendant failed to make an objection, ask for a correction or seek clarification he was entitled to. If the court had given the clearer charge, defendant would be allowed to argue sufficiency—an issue that he preserved—under the correct view of the law. However, because the charge didn’t “adequately alert the jury” to the correct view of the law, the case must be decided as though the incorrect view of the law, left open by the charge, was correct. This, frankly, makes no sense.

In support of their position, the majority cites *People v Sala* (95 NY2d 254 [2000]) and *People v Dekle* (56 NY2d 835 [1982]). The majority’s reliance on *Sala* and *Dekle* is misplaced and their position is in conflict with *People v Jean-Baptiste* (11 NY3d 539 [2008]), a case recently decided by this Court. In *Jean-Baptiste*, we noted (at 544) that

“the defendant made a specific motion to dismiss
for legal insufficiency at trial, anticipating the

* In fact, the People, who are appellants here, never objected to the jury charge as given.

change in the law brought by [*People v Feingold* (7 NY3d 288, 294 [2006])], which overruled *People v Register* (60 NY2d 270 [1983]) and held that ‘depraved indifference to human life is a culpable mental state’]. The principle the People cite is inapplicable when, as in this case, defense counsel made a specific motion for a trial order of dismissal. Having made that motion, defense counsel did not additionally have to take an exception to the court’s depraved indifference murder charge” (citation omitted).

As *Jean-Baptiste* points out, *Sala* and *Dekle* are distinguishable from that case—as they are from this one—because in those two cases the defendants advanced a different legal theory on appeal than the one they advanced before the trial court.

The instant case is analogous to *Jean-Baptiste*. Defendant Ford made a motion for a trial order of dismissal. As in *Jean-Baptiste*, the instant charge as given was not erroneous or at very least, did not misstate the law. Additionally, the objection made at trial as to the legal insufficiency was clearly stated and understood by the court and the People and was the same argument made on appeal.

In this case, the People charge that defendant possessed a knife as a dangerous instrument. They rely on defendant’s statement to the victim that he had a knife, along with a gesture towards his pants pocket, to meet the statutory requirement of possession of a dangerous instrument. The victim testified that he never saw a knife; nor was a knife recovered, even though defendant was arrested a short time after the crime. Also, the injuries sustained by the victim were from punches delivered by the defendant.

A verbal threat by a defendant that he possesses a dangerous instrument, standing alone, is clearly insufficient to establish the “dangerous instrument” element of robbery in the first degree (see *People v Moore*, 185 AD2d 825 [2d Dept 1992]; *People v White*, 155 AD2d 934 [4th Dept 1989]; *People v Robare*, 109 AD2d 923 [3d Dept 1985]). There must be proof of an actual knife. Assuming that there could be cases in which a defendant’s admission would be sufficient proof that a knife was actually present, this is not such a case. In *White*, the defendant threatened the victim by saying that he had a razor, but the victim never saw a razor nor was a razor recovered (see 155 AD2d at 934). The court, in reducing the burglary in the first

degree conviction to burglary in the third degree, held “there was no valid line of reasoning and permissible inferences to lead a rational person to the conclusion that defendant had actual possession of a razor” (*id.*, citing *People v Bleakley*, 69 NY2d 490, 495 [1987]). The same can be said of the possession of a knife under these facts.

As the Appellate Division aptly pointed out, a defendant to be guilty of this offense must not only use or threaten the use of a dangerous instrument, he must actually possess a dangerous instrument (*see People v Pena*, 50 NY2d 400, 407 [1980], *cert denied* 449 US 1087 [1981]).

Based on the foregoing, I would affirm the order of the Appellate Division and find that the defendant was only guilty of robbery in the third degree.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO and READ concur in memorandum; Judge JONES dissents in part and votes to affirm in an opinion in which Judges SMITH and PIGOTT concur.

Order modified, etc.

[901 NE2d 749, 873 NYS2d 256]

TODD SCHOSEK, as Administrator of the Estate of JESSE J. SCHOSEK, Deceased, et al., Appellants, v AMHERST PAVING, INC., et al., Respondents.

Decided December 17, 2008

SUMMARY

APPEALS from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 3, 2008. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed an order of the Supreme Court, Erie County (Patrick H. NeMoyer, J.), which had granted defendant Amherst Paving, Inc.’s motion for summary judgment dismissing the complaint against it.

Plaintiffs commenced these actions seeking damages arising out of a motor vehicle accident that occurred after decedent driver allegedly lost control of her vehicle when she drove onto the shoulder of a roadway and attempted to return to the traveled portion of the roadway. Defendant paving company had contracted with defendant County to repave the roadway. The County had halted the paving operation in order to make unre-

lated repairs to the shoulder of the roadway, and at the time of the accident there was a height differential of approximately 4¹/₂ inches between the paved portion of the roadway and the gravel shoulder of the roadway.

Schosek v Amherst Paving, Inc., 53 AD3d 1037, reversed.

HEADNOTE

Highways — Maintenance

In actions arising out of a motor vehicle accident that occurred after decedent driver allegedly lost control of her vehicle when she drove onto the shoulder of the roadway and attempted to return to the traveled portion of the roadway, that part of defendant paving company's motion for summary judgment seeking to dismiss the complaint against it was denied. At the time of the incident, defendant County had halted defendant paving company's operation in order to make unrelated repairs to the shoulder of the roadway, and there was a height differential of 4¹/₂ inches between the paved portion of the roadway and the gravel shoulder of the roadway. A triable issue of fact existed as to whether the paving company created or exacerbated a dangerous condition.

APPEARANCES OF COUNSEL

Michael L. Kobiolka, Eden, for Todd Schosek, appellant.

Michael G. Cooper, Hamburg, for Kelly Schosek, appellant.

Kenney Shelton Liptak Nowak LLP, Buffalo (*Brian MacDonald* of counsel), for Amherst Paving, Inc., respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, with costs, and that part of defendant Amherst Paving, Inc.'s motion that sought summary judgment dismissing the complaint against it denied. A triable issue of fact exists as to whether Amherst Paving created or exacerbated a dangerous condition.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

ARRELLO BARNES, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 3, 2008; decided December 17, 2008

Reported below, 2008 NY Slip Op 85094(U).

On the Court's own motion, appeal dismissed, without costs,

upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

KEVIN GLASSMAN, Respondent, v PRO HEALTH AMBULATORY SURGERY CENTER, INC., et al., Appellants.

Submitted December 1, 2008; decided December 17, 2008

Reported below, 55 AD3d 538; 23 AD3d 522, 523.

Motion by the New York State Association of Ambulatory Surgery Centers, Inc. for leave to file a memorandum of law amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

KEVIN GLASSMAN, Respondent, v PRO HEALTH AMBULATORY SURGERY CENTER, INC., et al., Appellants.

Submitted November 3, 2008; decided December 17, 2008

Reported below, 55 AD3d 538; 23 AD3d 522, 523.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of IFTIKHAR AHMAD KHAN, Appellant, v OMNE STAFFING, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 10, 2008; decided December 17, 2008

Reported below, 2008 NY Slip Op 78070(U).

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 707 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DANTE GRIFFIN, Appellant, v NEW YORK STATE DIVISION OF PAROLE et al., Respondents.

Submitted November 10, 2008; decided December 17, 2008

Reported below, 55 AD3d 1452.

Motion for leave to appeal dismissed upon the ground that re-lator has been released on postrelease supervision and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

DEONARINE RAMNARAIN, Appellant, v CHANDRADAT RAMNARAIN,
Respondent, et al., Defendant.

Submitted November 3, 2008; decided December 17, 2008

Reported below, 46 AD3d 655.

Motion, insofar as it seeks leave to appeal from the December 2007 Appellate Division order, dismissed upon the ground that it does not lie, appellant previously having moved for leave to appeal to the Court of Appeals from the Appellate Division order from which leave to appeal is currently sought (10 NY3d 785 [2008]); motion, insofar as it seeks leave to appeal from the September 2008 Supreme Court order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution and thus does not constitute a final judgment within the meaning of CPLR 5602 (a) (1) (ii).

In the Matter of LEOPOLD SIAO-PAO, Appellant, v ROBERT DEN-
NISON, as Acting Chairman of the New York State Division
of Parole, Respondent.

Submitted November 3, 2008; decided December 17, 2008

Reported below, 51 AD3d 105.

Motion for reargument denied [*see* 11 NY3d 777 (2008)].

ALICE WHALEN, Respondent, v DeGRAFF, FOY, CONWAY, HOLT-
HARRIS & MEALEY, Now Known as DeGRAFF, FOY, KUNZ &
DEVINE, LLP, Appellant.

Submitted November 3, 2008; decided December 17, 2008

Reported below, 53 AD3d 912.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[903 NE2d 261, 874 NYS2d 864]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TEBRUE JAMES, Appellant.

Argued November 19, 2008; decided December 18, 2008

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 22, 2008. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree.

People v James, 47 AD3d 506, affirmed.

HEADNOTE

Crimes — Lesser Included Offense — Robbery

In a criminal prosecution, the trial court did not err in declining to submit to the jury a charge of robbery in the third degree as a lesser included offense of robbery in the first degree. To establish a charge on a lesser included offense, a defendant must show both that the greater crime cannot be committed without having concomitantly committed the lesser by the same conduct, and that a reasonable view of the evidence supports a finding that he or she committed the lesser, but not the greater, offense. Although robbery in the third degree is a lesser included crime of robbery in the first degree, there was no reasonable view of the evidence to support a jury finding that defendant committed the former and not the latter. The victim testified that defendant had a gun. No other evidence, viewed reasonably, contradicted that testimony. Although a coperpetrator and lookout person claimed not to have seen defendant with a gun from his vantage points, even he acknowledged overhearing a codefendant say to the victim that defendant had a gun.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Barbara Zolot* and *Robert S. Dean* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Christopher P. Marinelli* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Because there was no reasonable view of the evidence to sup-

port a conviction of the lesser included offense of robbery in the third degree (Penal Law § 160.05), Supreme Court did not err in declining to submit that charge to the jury.

Defendant and three companions—Davis, Scott and Flores—approached the victim as he left his high school in Manhattan. After briefly conversing with him, Scott and Flores crossed the street to act as lookouts, while defendant and Davis closely surrounded and backed him against a wall. Defendant pressed his hip into the victim's waist, revealing what appeared to be a gun. At trial, the victim testified that he clearly saw the barrel and handle of a black gun. Defendant and Davis then took the victim's money and iPod.

Scott, who testified at trial for the People under a cooperation agreement, said that during the robbery he continued to look up and down the street, but he later crossed the street to tell defendant and Davis to hurry up. Although he claimed never to have seen defendant display a gun, he heard Davis say to the victim, "better give up all of [your] stuff, because [defendant] had a gun." After the robbery was complete, the victim called 911. The police arrived and defendant and his cohorts were apprehended nearby and identified by the victim. Defendant had \$53—the amount of money taken from the victim—and Flores had the victim's iPod. No handgun was recovered. Defendant, Davis and Flores were tried jointly. Defendant argued that a conviction on the lesser charge would be permissible if the jury were to credit Scott's testimony that he saw no gun and conclude that defendant robbed the victim without a gun. Supreme Court denied defendant's request to charge the jury on robbery in the third degree as a lesser included offense of robbery in the first degree (Penal Law § 160.15 [4]), referring to the second count of the indictment—robbery in the second degree (Penal Law § 160.10 [1]) (aided by another actually present).

Defendant was convicted of both robbery in the first degree and robbery in the second degree. The Appellate Division affirmed the conviction, with one Justice dissenting, holding that while robbery in the third degree is a lesser included offense of robbery in the first degree, there was no reasonable view of the evidence to support the lesser included charge. Further, the Appellate Division held that the jury could not be permitted to parse the victim's testimony to conclude that defendant did not use a gun during the robbery.

To establish a charge on a lesser included offense, a defendant must show both that the greater crime cannot be committed without having concomitantly committed the lesser by the same conduct, and that a reasonable view of the evidence supports a finding that he or she committed the lesser, but not the greater, offense (see *People v Van Norstrand*, 85 NY2d 131, 135 [1995], citing *People v Glover*, 57 NY2d 61, 63 [1982]; *People v Scarborough*, 49 NY2d 364 [1980]; CPL 1.20 [37]; 300.50 [1]).

Although robbery in the third degree is a lesser included crime of robbery in the first degree, here there is no reasonable view of the evidence to support a jury finding that defendant committed robbery in the third degree and not robbery in the first degree. The victim testified that defendant had a gun. No other evidence, viewed reasonably, contradicted that testimony. Although Scott claimed not to have seen defendant with a gun from his vantage points—across the street and upon nearing defendant—even he acknowledged overhearing Davis say to the victim that defendant had a gun.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[901 NE2d 752, 873 NYS2d 258]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIONIS COLLADO, Appellant.

Decided December 18, 2008

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 29, 2008. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Arlene R. Silverman, J., at suppression hearing; William A. Wetzel, J., at jury trial and sentence), which had convicted defendant, upon a jury verdict, of two counts of robbery in the second degree.

People v Collado, 47 AD3d 547, modified.

HEADNOTE

Crimes — Sentence — Postrelease Supervision — Failure of Sentencing Court to Pronounce Term of Postrelease Supervision — Remittal for Resentencing

In a criminal prosecution in which Supreme Court failed to pronounce the term of defendant's mandatory postrelease supervision in his presence, the matter was remitted to that court for a resentencing proceeding.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Bruce D. Austern* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Paula-Rose Stark* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified to the extent of remitting this matter to Supreme Court for resentencing, and otherwise affirmed.

Because Supreme Court failed to pronounce the term of defendant's mandatory postrelease supervision in his presence, this matter must be remitted to Supreme Court for a resentencing proceeding (*see People v Sparber*, 10 NY3d 457, 469-471 [2008]). We have considered defendant's remaining arguments, concerning the propriety of his arrest, and conclude that they are meritless.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified by remitting to Supreme Court, New York County, for resentencing and, as so modified, affirmed, in a memorandum.

[901 NE2d 752, 873 NYS2d 259]

INES DEJESUS, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Decided December 18, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July

8, 2008. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Bronx County (John A. Barone, J.), which had denied defendant's motion for summary judgment dismissing the complaint, (2) granted the motion, and (3) dismissed the complaint.

Plaintiff, a home health aide who worked for one of defendant owner's tenants, was allegedly injured when she slipped and fell on a small piece of carpet that was lying in the walkway to an outdoor dump site as she returned from leaving a bag of trash at the site.

The Appellate Division majority concluded that the evidence was insufficient to raise a triable issue of fact as to whether defendant knew or should have known of the piece of carpet; that this was not a case where, despite its conceded knowledge that garbage was being left in the area next to the dump site, defendant negligently failed to take any measures to avoid the creation of a dangerous condition; and that the piece of carpet, which was about 10 feet away from where plaintiff left her garbage, could have been deposited there only minutes or seconds before the accident and any other conclusion would be pure speculation.

DeJesus v New York City Hous. Auth., 53 AD3d 410, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Slip and Fall

In an action to recover for injuries plaintiff sustained when she slipped and fell on a small piece of carpet lying in the walkway to an outdoor dump site on defendant's premises as she returned from leaving a trash bag at the site, an Appellate Division order which had granted defendant's motion for summary judgment dismissing the complaint against it was affirmed. Plaintiff failed to raise a triable issue of fact that defendant caused or created, or had constructive notice of a dangerous recurring condition.

APPEARANCES OF COUNSEL

Trolman, Glaser & Lichtman, P.C., New York City (*Michael T. Altman* of counsel), for appellant.

Cullen and Dykman LLP, Brooklyn (*Joseph Miller* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. In this slip and fall case, plaintiff failed to raise a triable issue of fact that defendant caused or created, or had constructive notice of a dangerous recurring condition.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of ANONYMOUS, an Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted November 17, 2008; decided December 18, 2008

Appeal, insofar as taken from that portion of the Appellate Division order that denied a motion to transfer the matter to the First Department and to issue certain subpoenas, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANONYMOUS, an Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted December 8, 2008; decided December 18, 2008

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

VICTOR BAT SHEVER, Appellant, v AVERY E. OKIN, Respondent.

Submitted November 17, 2008; decided December 18, 2008

Reported below, 2008 NY Slip Op 66098(U), 75672(U).

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 807 (2008)].

In the Matter of CHET ALLEN BOTTORFF, Appellant, v ANTHONY F. SHAHEEN, as Justice of the Supreme Court, Oneida County, et al., Respondents.

Submitted December 1, 2008; decided December 18, 2008

Reported below, 2008 NY Slip Op 81344(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of BRUCE B., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted November 10, 2008; decided December 18, 2008

Reported below, 54 AD3d 1031.

Motion for leave to appeal dismissed upon the ground of mootness.

CREDIT-BASED ASSET SERVICING AND SECURITIZATION, LLC, Respondent, v MARIE LOUISE CHAUDRY, Appellant, et al., Defendants.

Submitted November 24, 2008; decided December 18, 2008

Reported below, 304 AD2d 708.

Motion for reargument dismissed as untimely (*see* 22 NYCRR 500.24 [b]) [*see* 7 NY3d 915 (2006); 100 NY2d 615 (2003)].

In the Matter of JOY GARTMOND, Appellant, v THOMAS CONWAY, Respondent.

Submitted December 8, 2008; decided December 18, 2008

Reported below, 54 AD3d 952.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE MAYE, Appellant.

Submitted November 10, 2008; decided December 18, 2008

Reported below, 43 AD3d 556.

Motion to vacate preclusion order denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CARPEAH R. NY-
ENEKOR, Appellant, v CARL E. DUBOIS, Respondent.

Submitted December 8, 2008; decided December 18, 2008

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CARPEAH R. NY-
ENEKOR, Appellant, v PEGGI HEALY, Respondent.

Submitted December 8, 2008; decided December 18, 2008

Reported below, 2008 NY Slip Op 84455(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

SAMUEL SCHWARTZ, Appellant, v CHATCHAVAN SUEBSANGUAN,
Defendant, and GORDON D. LUTCHMAN et al., Respondents.

Submitted November 17, 2008; decided December 18, 2008

Reported below, 15 AD3d 565.

Motion for reargument dismissed as untimely (*see* 22 NYCRR 500.24 [b]) [*see* 6 NY3d 805 (2008)].

In the Matter of VANESSA ANN G.-L. NASSAU COUNTY DEPART-
MENT OF SOCIAL SERVICES, Appellant; CALVIN L.L., Respon-
dent, et al., Intervenors.

Submitted November 17, 2008; decided December 18, 2008

Reported below, 50 AD3d 1036.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. The Appellate Division order denying the motion to dispense with the father's consent to the adoption was rendered within the termination of parental rights proceeding and that proceeding remains pending.

[901 NE2d 756, 873 NYS2d 756]

In the Matter of NORA S. ANDERSON.

Decided December 29, 2008

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8) of whether Honorable Nora S. Anderson should be suspended from her office of Surrogate, New York County.

HEADNOTE**Judges — Suspension from Office**

The Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8) (a), (c), suspended a Surrogate from office.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Nora S. Anderson is suspended, with pay, from the office of Surrogate, New York County, effective January 1, 2009, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge KAYE.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(December 1, 2008 through December 31, 2008)

Best, Matter of, v Queens County Supreme Ct.	2d Dept: 54 AD3d 438	12/5/08
First Hudson Capital, LLC v Seaborn	1st Dept: 54 AD3d 251	12/31/08

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2008 through December 31, 2008)

New York State Tug Hill Commn., Matter of, v New York State Div. of Human Rights	4th Dept: 52 AD3d 1169	12/10/08
People v Parson	App Term, 1st Dept: 18 Misc 3d 139(A)	12/11/08

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2008 through December 31, 2008)

People v Adames	2d Dept: 53 AD3d 503 (Kings)	denied 12/2/08 (Pigott, J.)
People v Adams	2d Dept: 55 AD3d 616 (Kings)	denied 12/29/08 (Grafteo, J.)
People v Alejandro	1st Dept: 55 AD3d 479 (NY)	dismissed 12/18/08 (Smith, J.)
People v Allen	App Term, 1st Dept: 21 Misc 3d 129(A) (Bronx)	denied 12/18/08 (Smith, J.)
People v Almonte	App Div, 2d Dept: 2008 NY Slip Op 85645(U) (Queens)	dismissed 12/1/08 (Pigott, J.)
People v Anderson	4th Dept: 55 AD3d 1272 (Livingston)	denied 12/18/08 (Pigott, J.)
People v Andrew	1st Dept: 54 AD3d 618 (NY)	denied 12/9/08 (Smith, J.)
People v Balanean (Cornel)	4th Dept: 55 AD3d 1353 (Oneida)	denied 12/12/08 (Pigott, J.)
People v Balanean (Cornel)	4th Dept: 55 AD3d 1354 (Oneida)	denied 12/12/08 (Pigott, J.)
People v Bam Bam	App Div, 3d Dept: 2008 NY Slip Op 88539(U) (Sullivan)	denied 12/31/08 (Grafteo, J.)
People v Barnes	2d Dept: 53 AD3d 665 (Queens)	denied 12/5/08 (Jones, J.)
People v Bermeo	1st Dept: 55 AD3d 418 (Bronx)	denied 12/29/08 (Pigott, J.)
People v Black	4th Dept: 55 AD3d 1369 (Oneida)	denied 12/29/08 (Grafteo, J.)
People v Bligen	App Div, 1st Dept: 2008 NY Slip Op 86732(U) (NY)	dismissed 12/29/08 (Grafteo, J.)
People v Bostic (Deron)	4th Dept: 55 AD3d 1360 (Erie)	denied 12/9/08 (Smith, J.) (Appeal No. 1)
People v Bostic (Deron)	4th Dept: 55 AD3d 1360 (Erie)	denied 12/9/08 (Smith, J.) (Appeal No. 2)
People v Bostic (Deron)	4th Dept: 55 AD3d 1360 (Erie)	denied 12/9/08 (Smith, J.) (Appeal No. 3)
People v Brown (Arthur)	4th Dept: 55 AD3d 1370 (Onondaga)	denied 12/12/08 (Smith, J.)
People v Brown (Ricardo)	2d Dept: 54 AD3d 780 (Westchester)	denied 12/9/08 (Smith, J.)
People v Broxton	2d Dept: 54 AD3d 958 (Queens)	denied 12/11/08 (Grafteo, J.)
People v Burgess	2d Dept: 54 AD3d 870 (Queens)	denied 12/18/08 (Smith, J.)

People v Burrell	App Div, 1st Dept: 2008 NY Slip Op 87925(U) (NY)	dismissed 12/30/08 (Smith, J.)
People v Caban	1st Dept: 51 AD3d 455 (NY)	granted upon reconsideration 12/18/08 (Ciparick, J.)
People v Cain	4th Dept: 55 AD3d 1271 (Niagara)	denied 12/18/08 (Pigott, J.)
People v Canty	1st Dept: 55 AD3d 330 (NY)	denied 12/11/08 (Grafteo, J.)
People v Cardoza	2d Dept: 55 AD3d 748 (Queens)	denied 12/10/08 (Grafteo, J.)
People v Carr	2d Dept: 52 AD3d 621 (Suffolk)	denied 12/22/08 (Ciparick, J.)
People v Carrasquillo	2d Dept: 54 AD3d 870 (Kings)	denied 12/18/08 (Pigott, J.)
People v Carrion	1st Dept: 54 AD3d 640 (Bronx)	denied 12/29/08 (Grafteo, J.)
People v Carvajal	1st Dept: 55 AD3d 360 (NY)	denied 12/29/08 (Grafteo, J.)
People v Cass	App Div, 2d Dept: 2008 NY Slip Op 86808(U) (Kings)	dismissed 12/17/08 (Jones, J.)
People v Castillo-Cordero	2d Dept: 54 AD3d 1054 (Queens)	denied 12/4/08 (Pigott, J.)
People v Chaffee	4th Dept: 55 AD3d 1397 (Onondaga)	denied 12/4/08 (Pigott, J.)
People v Chisholm	2d Dept: 54 AD3d 769 (Nassau)	denied 12/18/08 (Pigott, J.)
People v Clark	3d Dept: 52 AD3d 860 (Saratoga)	denied reconsideration 12/9/08 (Kaye, Ch.J.)
People v Clas	2d Dept: 54 AD3d 770 (Suffolk)	denied 12/17/08 (Ciparick, J.)
People v Clay	2d Dept: 54 AD3d 960 (Queens)	denied 12/30/08 (Smith, J.)
People v Cole	4th Dept: 55 AD3d 1382 (Erie)	denied 12/22/08 (Ciparick, J.)
People v Coppin	1st Dept: 55 AD3d 374 (NY)	denied 12/18/08 (Pigott, J.)
People v Cox	2d Dept: 54 AD3d 684 (Kings)	denied 12/8/08 (Jones, J.)
People v Crawford (Brandon)	4th Dept: 55 AD3d 1335 (Erie)	denied 12/9/08 (Smith, J.)
People v Crawford (Rasheen)	1st Dept: 55 AD3d 323 (Bronx)	denied 12/29/08 (Pigott, J.)
People v Crawford (Ra-Sheen)	1st Dept: 55 AD3d 323 (Bronx)	denied 12/29/08 (Pigott, J.)
People v Deal	2d Dept: 54 AD3d 963 (Suffolk)	denied 12/12/08 (Smith, J.)

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People v Demolaire	2d Dept: 55 AD3d 621 (Queens)	denied 12/29/08 (Pigott, J.)
People v Dennard	4th Dept: 55 AD3d 1419 (Onondaga)	denied 12/22/08 (Ciparick, J.)
People v Dick	2d Dept: 55 AD3d 622 (Kings)	denied 12/18/08 (Pigott, J.)
People v Dorzilor	App Term, 1st Dept: 21 Misc 3d 127(A) (NY)	denied 12/12/08 (Pigott, J.)
People v Dunn	2d Dept: 54 AD3d 871 (Kings)	denied 12/17/08 (Ciparick, J.)
People v DuPree	4th Dept: 43 AD3d 1314 (Chautauqua)	denied 12/18/08 (Pigott, J.)
People v Eason	2d Dept: 55 AD3d 622 (Suffolk)	denied 12/22/08 (Ciparick, J.)
People v Eddo	2d Dept: 55 AD3d 922 (Kings)	denied 12/30/08 (Smith, J.)
People v Edwards	2d Dept: 54 AD3d 1055 (Kings)	denied 12/18/08 (Pigott, J.)
People v Erving	1st Dept: 55 AD3d 419 (NY)	denied 12/29/08 (Grafteo, J.)
People v Ferguson- Johnson (Isaiah)	4th Dept: 55 AD3d 1335 (Ontario)	denied 12/4/08 (Pigott, J.)
People v Ferguson- Johnson (Isaiah)	4th Dept: 55 AD3d 1340 (Ontario)	denied 12/4/08 (Pigott, J.)
People v Flemming	App Div, 1st Dept: 2008 NY Slip Op 86728(U) (NY)	denied reconsideration 12/17/08 (Ciparick, J.)
People v Funches	App Div, 1st Dept: 2008 NY Slip Op 84313(U) (NY)	denied 12/29/08 (Grafteo, J.)
People v George	1st Dept: 50 AD3d 453 (NY)	denied 12/1/08 (Pigott, J.)
People v Gill	2d Dept: 54 AD3d 965 (Kings)	denied 12/29/08 (Grafteo, J.)
People v Gilmour	3d Dept: 56 AD3d 811 (Ulster)	denied 12/5/08 (Grafteo, J.)
People v Godbold	1st Dept: 55 AD3d 339 (NY)	denied 12/12/08 (Pigott, J.)
People v Goss	App Div, 1st Dept: 2008 NY Slip Op 84611(U) (NY)	denied 12/30/08 (Smith, J.)
People v Grant	2d Dept: 54 AD3d 872 (Kings)	denied 12/9/08 (Smith, J.)
People v Green (Cassidy)	4th Dept: 55 AD3d 1395 (Monroe)	denied 12/9/08 (Smith, J.)
People v Green (Kareem)	1st Dept: 54 AD3d 603 (NY)	denied 12/9/08 (Smith, J.)
People v Hanlon	4th Dept: 55 AD3d 1300 (Erie)	denied 12/22/08 (Ciparick, J.)
People v Hardy	4th Dept: 49 AD3d 1232 (Orleans)	granted 12/4/08 (Kaye, Ch.J.)

People v Harrell	1st Dept: 54 AD3d 629 (NY)	denied 12/12/08 (Pigott, J.)
People v Herrera	1st Dept: 54 AD3d 629 (NY)	denied 12/12/08 (Pigott, J.)
People v Hogan	4th Dept: 55 AD3d 1352 (Monroe)	denied 12/31/08 (Smith, J.)
People v Holmes	2d Dept: 55 AD3d 624 (Kings)	denied 12/12/08 (Pigott, J.)
People v Hunter	3d Dept: 55 AD3d 1052 (Warren)	denied 12/29/08 (Grafteo, J.)
People v Jenkins (David)	1st Dept: 55 AD3d 304 (NY)	denied 12/29/08 (Grafteo, J.)
People v Jenkins (David)	App Term, 2d Dept: 21 Misc 3d 134(A) (Nassau)	denied 12/29/08 (Grafteo, J.)
People v Jenkins (James)	App Div, 1st Dept: 2008 NY Slip Op 88368(U) (NY)	denied 12/31/08 (Grafteo, J.)
People v Jeske	3d Dept: 55 AD3d 1057 (Washington)	denied 12/29/08 (Grafteo, J.)
People v Johnson (Darnell)	1st Dept: 55 AD3d 377 (NY)	denied 12/29/08 (Grafteo, J.)
People v Johnson (Donald)	1st Dept: 54 AD3d 636 (Bronx)	denied 12/22/08 (Ciparick, J.)
People v Jones (Gerald)	1st Dept: 55 AD3d 349 (NY)	denied 12/12/08 (Smith, J.)
People v Jones (Robert)	App Div, 3d Dept: 2008 NY Slip Op 88539(U) (Sullivan)	denied 12/31/08 (Grafteo, J.)
People v Jones (Shannon)	County Ct, 7/29/08 (Wayne)	denied 12/1/08 (Pigott, J.)
People v Kinloch	App Div, 2d Dept: 2008 NY Slip Op 89805(U) (Queens)	dismissed 12/18/08 (Grafteo, J.)
People v Lebron	1st Dept: 54 AD3d 591 (NY)	denied 12/18/08 (Pigott, J.)
People v Lee (Joseph)	4th Dept: 55 AD3d 1418 (Monroe)	denied 12/18/08 (Smith, J.)
People v Lee (Julius)	2d Dept: 54 AD3d 689 (Kings)	denied 12/12/08 (Pigott, J.)
People v Lewis	App Div, 2d Dept: 2008 NY Slip Op 83635(U) (Orange)	dismissed 12/17/08 (Ciparick, J.)
People v Lott	4th Dept: 55 AD3d 1274 (Erie)	denied 12/11/08 (Grafteo, J.)
People v Mackie	1st Dept: 54 AD3d 651 (NY)	denied 12/17/08 (Ciparick, J.)
People v Mahoney	App Term, 2d Dept: 21 Misc 3d 135(A) (Suffolk)	denied 12/29/08 (Grafteo, J.)
People v Majors	4th Dept: 55 AD3d 1288 (Monroe)	denied 12/11/08 (Grafteo, J.)
People v Maldonado	1st Dept: 55 AD3d 431 (NY)	denied 12/18/08 (Smith, J.)

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People v Martin (Daniel)	2d Dept: 54 AD3d 971 (Nassau)	denied 12/31/08 (Grafteo, J.)
People v Martin (Rob)	4th Dept: 55 AD3d 1304 (Ontario)	denied 12/12/08 (Pigott, J.)
People v Mathis	2d Dept: 55 AD3d 628 (Kings)	denied 12/22/08 (Ciparick, J.)
People v McCarley	4th Dept: 55 AD3d 1396 (Erie)	denied 12/23/08 (Smith, J.)
People v McDowell	1st Dept: 54 AD3d 297 (NY)	denied 12/17/08 (Ciparick, J.)
People v McMillan	3d Dept: 55 AD3d 1064 (Schenectady)	denied 12/10/08 (Grafteo, J.)
People v Metellus	1st Dept: 54 AD3d 601 (NY)	denied 12/8/08 (Jones, J.)
People v Molina	App Div, 2d Dept: 2008 NY Slip Op 86563(U) (Orange)	dismissed 12/5/08 (Grafteo, J.)
People v Moore	2d Dept: 54 AD3d 878 (Kings)	denied 12/1/08 (Pigott, J.)
People v Moreau	2d Dept: 55 AD3d 630 (Queens)	denied 12/31/08 (Grafteo, J.)
People v Morris	2d Dept: 54 AD3d 1060 (Queens)	denied 12/16/08 (Smith, J.)
People v Muslija	App Div, 2d Dept, 10/6/08 (Queens)	denied 12/29/08 (Grafteo, J.)
People v Nehrass	4th Dept: 55 AD3d 1409 (Erie)	denied 12/16/08 (Smith, J.)
People v Ousmane	1st Dept: 54 AD3d 603 (NY)	denied 12/9/08 (Smith, J.)
People v Payne	2d Dept: 54 AD3d 690 (Kings)	denied 12/5/08 (Jones, J.)
People v Pearson	2d Dept: 54 AD3d 1060 (Queens)	denied 12/18/08 (Ciparick, J.)
People v Peralta	1st Dept: 54 AD3d 653 (NY)	denied 12/17/08 (Ciparick, J.)
People v Perez	2d Dept: 54 AD3d 1061 (Queens)	denied 12/29/08 (Grafteo, J.)
People v Phillips	3d Dept: 55 AD3d 1145 (Greene)	denied 12/29/08 (Grafteo, J.)
People v Pinnock	2d Dept: 54 AD3d 780 (Westchester)	denied 12/9/08 (Smith, J.)
People v Pomie	2d Dept: 55 AD3d 630 (Kings)	denied 12/31/08 (Smith, J.)
People v Porter	4th Dept: 55 AD3d 1313 (Niagara)	denied 12/10/08 (Grafteo, J.)
People v Proctor	App Div, 1st Dept: 2008 NY Slip Op 81152(U) (NY)	dismissed 12/5/08 (Grafteo, J.)
People v Raso	1st Dept: 55 AD3d 346 (Bronx)	denied 12/31/08 (Smith, J.)

People v Reiley	2d Dept: 55 AD3d 854 (Kings)	denied 12/5/08 (Grafteo, J.)
People v Rembert	2d Dept: 52 AD3d 537 (Westchester)	denied 12/5/08 (Jones, J.)
People v Rivera (Adrian)	1st Dept: 55 AD3d 416 (Bronx)	denied 12/29/08 (Grafteo, J.)
People v Rivera (William)	1st Dept: 55 AD3d 507 (Bronx)	denied 12/29/08 (Grafteo, J.)
People v Roberts	App Term, 1st Dept: 21 Misc 3d 129(A) (Bronx)	denied 12/23/08 (Smith, J.)
People v Rodriguez	App Div, 1st Dept: 2008 NY Slip Op 84611(U) (NY)	denied 12/30/08 (Smith, J.)
People v Rosario	1st Dept: 55 AD3d 451 (Bronx)	denied 12/29/08 (Pigott, J.)
People v Ruffell	4th Dept: 55 AD3d 1271 (Livingston)	denied 12/17/08 (Ciparick, J.)
People v Russell	3d Dept: 55 AD3d 940 (Warren)	denied 12/29/08 (Grafteo, J.)
People v Ryerson	1st Dept: 54 AD3d 635 (NY)	denied 12/29/08 (Grafteo, J.)
People v Saez	1st Dept: 55 AD3d 327 (Bronx)	denied 12/9/08 (Smith, J.)
People v Sanchez (Zaida)	1st Dept: 56 AD3d 335 (NY)	denied 12/29/08 (Grafteo, J.)
People v Sanchez (Zaida)	1st Dept: 56 AD3d 335 (Bronx)	denied 12/29/08 (Grafteo, J.)
People v Santiago	App Div, 1st Dept: 2008 NY Slip Op 87029(U) (NY)	dismissed 12/17/08 (Ciparick, J.)
People v Saunders	1st Dept: 54 AD3d 612 (Bronx)	denied 12/8/08 (Jones, J.)
People v Shabba	3d Dept: 55 AD3d 1064 (Schenectady)	denied 12/10/08 (Grafteo, J.)
People v Sharp	4th Dept: 56 AD3d 1230 (Erie)	denied 12/17/08 (Ciparick, J.)
People v Simmons	2d Dept: 54 AD3d 1063 (Rockland)	denied 12/12/08 (Pigott, J.)
People v Smith	2d Dept: 54 AD3d 1064 (Kings)	denied 12/31/08 (Grafteo, J.)
People v Sopko	4th Dept: 56 AD3d 1240 (Erie)	denied 12/31/08 (Grafteo, J.)
People v Stokes (Darryl)	4th Dept: 55 AD3d 1419 (Erie)	denied 12/18/08 (Ciparick, J.)
People v Stokes (Latherio)	4th Dept: 55 AD3d 1335 (Monroe)	denied 12/18/08 (Pigott, J.)
People v Stuckey	2d Dept: 54 AD3d 783 (Kings)	denied 12/5/08 (Jones, J.)
People v Subgidio	2d Dept: 56 AD3d 496 (Rockland)	dismissed 12/8/08 (Jones, J.)

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People v Sullivan	2d Dept: 54 AD3d 882 (Kings)	denied 12/17/08 (Ciparick, J.)
People v Sweney	4th Dept: 55 AD3d 1350 (Erie)	denied 12/16/08 (Smith, J.)
People v Ubaney	County Ct, 9/25/08 (Chautauqua)	denied 12/18/08 (Pigott, J.)
People v Velasquez	4th Dept: 56 AD3d 1190 (Ontario)	denied 12/29/08 (Grafteo, J.)
People v Velez	2d Dept: 53 AD3d 509 (Kings)	denied reconsideration 12/16/08 (Smith, J.)
People v Ventura	App Div, 1st Dept: 2008 NY Slip Op 73631(U) (Bronx)	denied 12/16/08 (Smith, J.)
People v Whitlock	4th Dept: 55 AD3d 1271 (Erie)	denied 12/19/08 (Ciparick, J.)
People v Williams (Anthony)	App Div, 3d Dept: 2008 NY Slip Op 82719(U) (Albany)	denied 12/17/08 (Ciparick, J.)
People v Williams (Dontay)	County Ct, 7/29/08 (Wayne)	denied 12/1/08 (Pigott, J.)
People v Williams (Kevin)	2d Dept: 54 AD3d 886 (Queens)	denied 12/17/08 (Ciparick, J.)
People v Williams (Marcus)	4th Dept: 55 AD3d 1398 (Monroe)	denied 12/29/08 (Pigott, J.)
People v Williams (Michael)	1st Dept: 54 AD3d 599 (Bronx)	denied 12/11/08 (Grafteo, J.)
People v Williamson (Randolph)	1st Dept: 54 AD3d 617 (Bronx)	denied 12/10/08 (Grafteo, J.)
People v Williamson (Raymond)	1st Dept: 54 AD3d 617 (Bronx)	denied 12/10/08 (Grafteo, J.)
People v Witherspoon	2d Dept: 48 AD3d 599 (Kings)	denied 12/17/08 (Ciparick, J.)
People v Wright	2d Dept: 54 AD3d 887 (Kings)	denied 12/12/08 (Pigott, J.)
People v Wright-Livingston	County Ct, 10/14/08 (Erie)	denied 12/9/08 (Smith, J.)
People v Wynn	4th Dept: 55 AD3d 1378 (Erie)	denied 12/24/08 (Pigott, J.)
People v Yanes	1st Dept: 56 AD3d 335 (NY)	denied 12/29/08 (Grafteo, J.)
People v Young (Gregory)	County Ct, 9/9/08 (Erie)	denied 12/29/08 (Grafteo, J.)
People v Young (Larry)	4th Dept: 55 AD3d 1234 (Erie)	denied 12/22/08 (Ciparick, J.)

[901 NE2d 756, 873 NYS2d 263]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ELVIS SIL-
VESTRY, Respondent.

Decided January 13, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 15, 2008. The Appellate Division affirmed an order of the Supreme Court, Queens County (Michael Aloise, J.), which, after a hearing, had granted that branch of the defendant's omnibus motion which was to suppress physical evidence.

The Appellate Division concluded that a police officer did not have reasonable suspicion to believe that the defendant had committed or was about to commit a crime to justify a stop and frisk of the defendant.

People v Silvestry, 50 AD3d 931, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure

In a criminal prosecution, the lower courts' determination that the police lacked reasonable suspicion to believe that the defendant had committed or was about to commit a crime to justify a stop and frisk involved a mixed question of law and fact and was supported by record evidence. Thus, the issue was beyond review by the Court of Appeals.

APPEARANCES OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (*Edward D. Saslaw* of counsel), for appellant.

Sally Butler, Bayside, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Whether the circumstances of a particular case rise to the level of reasonable suspicion is a mixed question of law and fact, beyond our review if the determination is supported by the record. Here record evidence supports the lower courts' determination that the police lacked such suspicion (*People v De Bour*, 40 NY2d 210 [1976]).

The People's other contentions lack merit.

Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

ROBERT CALLAHAN et al., Appellants, v HUGH L. CAREY et al., Defendants, and EDWARD I. KOCH et al., Respondents.

LOUISE F. ELDREDGE et al., Appellants, v EDWARD I. KOCH et al., Respondents.

Submitted December 22, 2008; decided January 13, 2009

Reported below, 53 AD3d 404.

Motion for leave to waive the filing fee required by section 500.3 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.3) granted.

In the Matter of CITY OF NEW YORK, Appellant, Relative to the Melrose Commons Urban Renewal Area, Phase II. KAISER WOODCRAFT CORP., Respondent.

Submitted December 1, 2008; decided January 13, 2009

Reported below, 39 AD3d 131.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 11 NY3d 353 (2008)].

GEORGE EREMEYEV et al., Appellants, v MANHATTAN EYE, EAR & THROAT HOSPITAL, et al., Respondents.

Submitted November 17, 2008; decided January 13, 2009

Reported below, 2008 NY Slip Op 86729(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MILIHA FERLUCKAJ, Respondent, v GOLDMAN SACHS & Co., Appellant, et al., Defendant. GOLDMAN SACHS & Co., Third-Party Plaintiff, v AMERICAN BUILDING MAINTENANCE Co., Third-Party Defendant.

Submitted January 5, 2009; decided January 13, 2009

Reported below, 53 AD3d 422.

Motion by Defense Association of New York for leave to file a

brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NAÚTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted January 5, 2009; decided January 13, 2009

Reported below, 55 AD3d 26.

Motion by Deutscher Challenger Yacht Club et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ALAN M. GOLDSTON, as Assignee of GOLDSTON & SCHWAB, LLP, Respondent, v BANDWIDTH TECHNOLOGY CORP. et al., Appellants.

Submitted November 3, 2008; decided January 13, 2009

Reported below, 52 AD3d 360.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v J.W. HARDY, JR., Appellant.

Submitted December 29, 2008; decided January 13, 2009

Reported below, 49 AD3d 1232.

Motion for assignment of counsel granted and James S. Hinman, Esq., 16 East Main Street, Suite 260, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v L. DENNIS KOZLOWSKI, Appellant.

Submitted December 8, 2008; decided January 13, 2009

Reported below, 47 AD3d 111.

Motion for reargument denied [*see* 11 NY3d 223 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES LLOYD, Appellant.

Submitted December 15, 2008; decided January 13, 2009

Reported below, 45 AD3d 490.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY WAYNE SMITH, Appellant.

Submitted January 5, 2009; decided January 13, 2009

Reported below, 54 AD3d 974.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK H. SWARTZ, Appellant.

Submitted December 8, 2008; decided January 13, 2009

Reported below, 47 AD3d 111.

Motion for reargument denied [*see* 11 NY3d 223 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID C. WILLIAMS, Appellant.

Submitted December 29, 2008; decided January 13, 2009

Reported below, 55 AD3d 1449.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WALTER J. ROACHE, Appellant, v GEORGE B. ALEXANDER, as Chair of the Division of Parole, et al., Respondents.

Submitted November 17, 2008; decided January 13, 2009

Reported below, 2008 NY Slip Op 82665(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DEAN ROSS, Appellant, v ERIC NELSON et al., Respondents.

Decided January 13, 2009

Reported below, 54 AD3d 258.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JOSEPHINE T. ROSSI, Appellant, v BUDGET RENT A CAR/BUDGET CAR AND TRUCK RENTAL, Respondent, et al., Defendants.

Submitted December 8, 2008; decided January 13, 2009

Reported below, 49 AD3d 1088.

Motion for reargument of motion for leave to appeal denied [*see* 11 NY3d 709 (2008)].

In the Matter of WALTER SELF, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted December 8, 2008; decided January 13, 2009

Reported below, 2008 NY Slip Op 75333(U).

Motion for reargument denied [*see* 11 NY3d 810 (2008)].

[901 NE2d 1274, 873 NYS2d 522]

TRINITY ASSOCIATES, INC., Respondent, v TELESECTOR RESOURCES GROUP, INC., Doing Business as VERIZON SERVICES GROUP, INC., Appellant.

Decided January 15, 2009

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered

August 26, 2008. The Appellate Division, with two Justices dissenting, (1) affirmed a judgment of the Supreme Court, New York County (Richard B. Lowe, III, J.), which had awarded plaintiff the principal sum of \$1,251,895, and (2) dismissed, as subsumed in the appeal from the judgment, an appeal from an order of that court to the extent that it had denied, in part, defendant's motion to set aside the jury's verdict.

In 1999, plaintiff entered into a maintenance agreement with defendant. At trial, evidence was presented that defendant advised plaintiff in 2001 by letter that it wanted to retain plaintiff's emergency repair services and requested a quote for the cost of retaining those services. Plaintiff provided defendant a quote by letter, and defendant utilized the services without interposing any objection to the price quoted.

The Appellate Division majority concluded that the jury could have reasoned that plaintiff's letter set forth its yearly fee, and that defendant accepted the offer without objection and subsequently ordered continuation of plaintiff's emergency services.

Trinity Assoc., Inc. v Telesector Resources Group, Inc., 54 AD3d 280, affirmed.

HEADNOTE

Contracts — Breach or Performance of Contract

In a breach of contract action, the evidence was sufficient to support the jury's conclusions that the parties' 1999 maintenance agreement was modified by correspondence in 2001, and that defendant breached the agreement as modified. Two years after entering the agreement, defendant advised plaintiff by letter that it wanted to retain plaintiff's emergency repair services and requested a quote for the services. After plaintiff provided defendant a quote by letter, defendant utilized the services without interposing any objection to the price quoted.

APPEARANCES OF COUNSEL

Dewey & LeBoeuf, New York City (*Alan B. Howard* of counsel), and *Ledy-Gurren Bass & Siff, LLP* (*Nancy Ledy-Gurren* of counsel), for appellant.

Greenfield Stein & Senior, LLP, New York City (*Paul T. Shoemaker* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the

Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. Evidence supports the jury's conclusions that the 2001 correspondence modified the 1999 agreement and that defendant Verizon Services Group, Inc. breached the agreement as modified.

Concur: Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES.

JIOVON ANONYMOUS, an Infant, by His Father and Legal Guardian, THOMAS ANONYMOUS, et al., Respondents, v CITY OF ROCHESTER et al., Appellants.

Submitted December 8, 2008; decided January 15, 2009

Reported below, 56 AD3d 139.

Motion to vacate stay denied. Motion for a preference granted. Cross motion for a stay dismissed as academic.

ARTS4ALL, LTD., Appellant-Respondent, et al., Plaintiff, v JUDITH L. HANCOCK, Respondent-Appellant and Third-Party Respondent. DANIEL Y.C. NG et al., Third-Party Defendants.

Submitted October 20, 2008; decided January 15, 2009

Reported below, 54 AD3d 286.

Motion by Arts4All, Ltd. to dismiss the appeal taken as of right by Hancock granted and the appeal dismissed, without costs, upon the ground that the two-Justice dissent is not on a question of law and no substantial constitutional question is directly involved. On the Court's own motion, appeal taken as of right by Arts4All dismissed, without costs, upon the ground that the two-Justice dissent is not on a question of law.

In the Matter of DEVONTAY M., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; DEVON M., Appellant, et al., Respondent.

In the Matter of DEVONTAYA M., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; DEVON M., Appellant, et al., Respondent.

Submitted December 8, 2008; decided January 15, 2009

Reported below, 56 AD3d 561.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of GLORIA MARIE S., a Child Alleged to be Permanently Neglected. ALEX S., Appellant; LEAKE & WATTS SERVICES, INC., Respondent, et al., Respondent.

Submitted November 24, 2008; decided January 15, 2009

Reported below, 55 AD3d 320.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 55 AD3d 26.

Motion by New York Yacht Club for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 55 AD3d 26.

Motion by the San Diego Yacht Club Sailing Foundation et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 55 AD3d 26.

Motion by William I. Koch for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA, Intervenor-Defendant.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 55 AD3d 26.

Motion by Team French Spirit et al. for leave to file a second brief amici curiae on the appeal herein denied.

NORMA GORMAN et al., Respondents, v TOWN OF HUNTINGTON, Appellant.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 47 AD3d 30.

Motion by the Association of Towns of the State of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MARIO MIGUEL JARAMILLO, Appellant, v WEYERHAEUSER COMPANY et al., Respondents, et al., Defendant.

Submitted January 12, 2009; decided January 15, 2009

Motion by Product Liability Advisory Council Inc. for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of KIMALIN JONES et al., Appellants, v NIAGARA FALLS HOUSING AUTHORITY et al., Respondents.

Submitted November 17, 2008; decided January 15, 2009

Reported below, 55 AD3d 1282.

Motion for leave to appeal denied. Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

JAMES E. KELLEY et al., Respondents, v MARGARET ZAVALIDROGA, Appellant.

Submitted November 10, 2008; decided January 15, 2009

Motion for leave to appeal etc. dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

JAMES E. KELLEY et al., Respondents, v MARGARET ZAVALIDROGA, Appellant.

Submitted December 22, 2008; decided January 15, 2009

Reported below, 55 AD3d 1391, 1392.

Motion for leave to appeal etc. dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of JAYE MILLER, Appellant, v RICHARD SHAW, Respondent.

Submitted November 17, 2008; decided January 15, 2009

Reported below, 51 AD3d 927.

Motion for reargument of motion for leave to appeal denied [*see* 11 NY3d 706 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES KADARKO, Respondent.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 56 AD3d 102.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

JEANNE SCHIMICCI, Appellant, v DERMPATH, INC., et al., Respondents. (And a Third-Party Action.)

Submitted December 1, 2008; decided January 15, 2009

Reported below, 49 AD3d 626.

Motion for reargument of motion for leave to appeal denied [*see* 11 NY3d 710 (2008)].

In the Matter of 10 EAST REALTY, LLC, et al., Respondents, v INCORPORATED VILLAGE OF VALLEY STREAM et al., Appellants.

Submitted January 12, 2009; decided January 15, 2009

Reported below, 49 AD3d 764.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

HERBERT ALTMAN et al., Appellants, v NEW YORK BOARD OF TRADE, INC., Respondent, et al., Defendant.

Submitted December 8, 2008; decided January 20, 2009

Reported below, 52 AD3d 396.

Motion for leave to appeal dismissed upon the ground that movant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

LYDIA CICERO et al., Respondents, v GREAT AMERICAN INSURANCE COMPANY et al., Appellants.

Submitted December 1, 2008; decided January 20, 2009

Reported below, 53 AD3d 460, 461.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court order denying the motion to amend the answer, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

DELPHI RESTORATION CORPORATION et al., Respondents, v SUNSHINE RESTORATION CORPORATION, Defendant, and UTICA FIRST INSURANCE COMPANY, Appellant.

Submitted December 1, 2008; decided January 20, 2009

Reported below, 43 AD3d 851.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANDREA GOLDFEIN, Respondent, v UVAYD CAB CORP. et al., Appellants.

Submitted December 8, 2008; decided January 20, 2009

Reported below, 2008 NY Slip Op 78717(U).

Motions for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from a nonfinal order of the Appellate Division denying leave to appeal to that Court from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

SALVATORE IADICICCO et al., Plaintiffs, and VIOLET IADICICCO, Individually and as Parent and Natural Guardian of AUGIE IADICICCO, an Infant, Appellant, v OCCIDENTAL CHEMICAL CORPORATION et al., Respondents.

Submitted November 24, 2008; decided January 20, 2009

Reported below, 2008 NY Slip Op 83439(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JERRY KATZMAN, Appellant, v NEW YORK STATE
DEPARTMENT OF HEALTH et al., Respondents.

Submitted December 8, 2008; decided January 20, 2009

Reported below, 2008 NY Slip Op 87230(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LEEWARD ISLES RESORTS, LIMITED, Respondent, v CHARLES C.
HICKOX, Appellant.

Submitted October 27, 2008; decided January 20, 2009

Reported below, 49 AD3d 277.

Motion for leave to appeal dismissed upon the ground that the March 2008 Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution. The April 2008 Supreme Court order disposing of the remaining causes of action, which is the final paper in this action, cannot serve as the final paper pursuant to CPLR 5602 (a) (1) (ii) to bring up for review the prior nonfinal Appellate Division order because a motion for leave to appeal from that Supreme Court order would be untimely (*see* CPLR 5513 [b]).

LYNETTE LEMASTER, Individually and as Parent and Natural
Guardian of NICHOLE LEMASTER and Others, Infants, Ap-
pellant, et al., Plaintiff, v OCCIDENTAL CHEMICAL CORPORA-
TION et al., Respondents.

Submitted November 24, 2008; decided January 20, 2009

Reported below, 2008 NY Slip Op 83441(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CHARLENE McLEAN, as Mother and Natural Guardian of BRIANA HALL, an Infant, et al., Respondents, v CITY OF NEW YORK, Appellant, et al., Defendants.

Submitted December 22, 2008; decided January 20, 2009

Reported below, 49 AD3d 393.

Motion to vacate preclusion order granted.

MOTHER ZION TENANT ASSOCIATION et al., Appellants, v SHAUN DONOVAN, as Commissioner of the New York City Department of Housing Preservation and Development, Respondent, et al., Respondent.

Submitted December 1, 2008; decided January 20, 2009

Reported below, 55 AD3d 333.

Motion, insofar as it seeks leave to appeal as against Shaun Donovan, as Commissioner of the New York City Department of Housing Preservation and Development, dismissed as untimely; motion, insofar as it seeks leave to appeal as against Mother Zion Associates, L.P., denied.

NEW YORK COALITION FOR QUALITY ASSISTED LIVING, INC., et al., Appellants, v ANTONIA C. NOVELLO, as Commissioner of Health, Respondent.

Submitted January 12, 2009; decided January 20, 2009

Reported below, 53 AD3d 914.

Motion by Empire State Association of Assisted Living, Inc. for leave to file a memorandum of law amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

MICHAEL ORLIKOWSKI et al., Respondents, v CORNERSTONE COMMUNITY FEDERAL CREDIT UNION et al., Appellants.

Submitted December 1, 2008; decided January 20, 2009

Reported below, 55 AD3d 1245.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. TERENCE BODDIE, Appellant, v NEW YORK STATE DIVISION OF PAROLE, Respondent.

Decided January 20, 2009

Reported below, 2008 NY Slip Op 84314(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MAURICE BRYANT, Appellant, v ROBERT E. ERCOLE, Respondent.

Decided January 20, 2009

Reported below, 2008 NY Slip Op 84531(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of IGNACIO REYNOSO, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, et al., Respondents.

Decided January 20, 2009

Reported below, 55 AD3d 1201.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

STEVEN SOLOMON, Appellant, v URBAN DENTAL MANAGEMENT, INC., et al., Respondents.

Submitted November 17, 2008; decided January 20, 2009

Reported below, 54 AD3d 843; 39 AD3d 529.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's order denying appellant's postjudgment motion to set aside the verdict, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

[902 NE2d 435, 874 NYS2d 1]

In the Matter of ROBERT B. BERNSTEIN, Appellant, v PAUL J. FEINER, as Town Supervisor of the Town of Greenburgh, et al., Respondents.

Argued January 13, 2009; decided January 22, 2009

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 13, 2008. The Appellate Division (1) reversed, on the law, insofar as appealed from, an amended order and judgment (one paper) of the Supreme Court, Westchester County (Richard A. Molea, J.), entered in a hybrid action and proceeding pursuant to CPLR article 78, which had granted that branch of the petition which was for a judgment declaring that Town Law § 232 prohibited the Town of Greenburgh from financing the cost of acquiring property known as Taxter Ridge for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town of Greenburgh, (2) denied that branch of the petition, (3) denied the petition in its entirety, (4) declared that the Town of Greenburgh had correctly allocated the cost of the park to the residents of the unincorporated area of the Town of Greenburgh, (5) vacated an order of that court (Richard A. Molea, J.), made upon reargument, and (6) dismissed the appeal from that order as academic in light of the determination of the appeal from the amended order and judgment.

Petitioner argued on appeal that the Finneran Law (L 1982, ch 891), which permits the Town to finance the costs of acquiring property for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town, was unconstitutional on its face and as applied to the acquisition of the property for Taxter Ridge Park Preserve.

Matter of Bernstein v Feiner, 50 AD3d 212, appeal dismissed.

HEADNOTES

Appeal — Constitutional Questions — Substantial Constitutional Question

1. An appeal on constitutional grounds in a hybrid action and CPLR article 78 proceeding to declare that Town Law § 232 prohibited a Town from financing the cost of acquiring property for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town was dismissed by the Court of Appeals. Although petitioner's facial and as-applied constitutional challenges to the Finneran Law (L 1982, ch 891), which permits the Town of Greenburgh to finance the costs of acquiring property for public parks through that tax arrangement, were addressed by the Appellate Division, they were not substantial.

Appeal — Constitutional Questions — Direct Involvement of Constitutional Question

2. The Court of Appeals dismissed an appeal in a hybrid action and CPLR article 78 proceeding, wherein petitioner challenged the constitutionality of the Finneran Law (L 1982, ch 891), which permits the Town of Greenburgh to finance the costs of acquiring property for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town. Petitioner's facial constitutional challenge, insofar as it was predicated on New York Constitution, article VIII, § 3, was not raised at the Appellate Division and therefore was not directly involved.

APPEARANCES OF COUNSEL

Robert B. Bernstein, Hartsdale, appellant pro se.

Timothy W. Lewis, Town Attorney, Greenburgh (*Richard L. Marasse* of counsel), for respondents.

Keane & Beane, P.C., White Plains (*Nicholas M. Ward-Willis* and *Richard L. O'Rourke* of counsel), for intervenors-respondents.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

[1, 2] Although petitioner's facial and as-applied challenges to the Finneran Law (L 1982, ch 891) were addressed by the Appellate Division, they are not substantial. Petitioner's facial challenge, insofar as it is predicated on New York Constitution article VIII, § 3, was not raised at the Appellate Division and therefore was not directly involved.

Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Appeal dismissed, without costs, in a memorandum.

In the Matter of JOHN A. ARETAKIS, an Attorney, Appellant.
COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted January 12, 2009; decided January 22, 2009

Reported below, 57 AD3d 1160.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for a stay dismissed as academic.

GERDA B. CASSARA, Respondent, v JAMES I. WYNN, Also Known
as JAMES WYNN, SR., Appellant.

Submitted December 1, 2008; decided January 22, 2009

Reported below, 55 AD3d 1356 (Appeal No. 2).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RICHARD J. CONDON, as Special Commissioner
of Investigation for the New York City School District, Re-
spondent, v THE INTER-RELIGIOUS FOUNDATION FOR COM-
MUNITY ORGANIZATION, INC., Appellant.

In the Matter of RICHARD J. CONDON, as Special Commissioner
of Investigation for the New York City School District, Re-
spondent, v LUCIUS WALKER, JR., Appellant.

Submitted December 8, 2008; decided January 22, 2009

Reported below, 51 AD3d 465.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

DECANA INC. et al., Appellants, v SPYRO C. CONTOGOURIS et al.,
Defendants, and NORTH FORK BANK et al., Respondents.
(And a Third-Party Action.)

Submitted November 17, 2008; decided January 22, 2009

Reported below, 55 AD3d 325.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of EDMUND OROK EDEM, Appellant, v JANE PEARL,
as Justice of the Supreme Court of the State of New York,
et al., Respondents.

Submitted December 15, 2008; decided January 22, 2009

Reported below, 50 AD3d 793.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]). Motion for poor person relief dismissed as academic.

WILLIAM GARCIA, Respondent, v LEON C. DAVIS, Defendant, and
DANBURY FAIR HYUNDAI, LLC, Appellant.

Submitted December 1, 2008; decided January 22, 2009

Reported below, 53 AD3d 525.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

HUMPHREYS & HARDING, INC., Respondent, v UNIVERSAL BOND-
ING INSURANCE COMPANY, Defendant and Third-Party
Plaintiff-Respondent. WELCH CONSTRUCTION CORP. et al.,
Third-Party Defendants-Appellants.

Submitted November 24, 2008; decided January 22, 2009

Reported below, 52 AD3d 324.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

MARK HYNES, Appellant, v SONIDO, INC., Respondent.

Submitted December 8, 2008; decided January 22, 2009

Reported below, 50 AD3d 314.

Motion for reargument denied [*see* 11 NY3d 827 (2008)].

In the Matter of STATE OF NEW YORK, Appellant, v RANDY M.,
Respondent. (Proceeding No. 1.)

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RANDY M., Re-
spondent, v SUPERINTENDENT OF ULSTER CORRECTIONAL FA-
CILITY et al., Appellants. (Proceeding No. 2.)

Submitted December 29, 2008; decided January 22, 2009

Reported below, 57 AD3d 1157.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(January 1, 2009 through January 31, 2009)

Kelley v Zavalidroga	4th Dept: 55 AD3d 1391, 1392	1/15/09
Riley, Matter of, v Fabrizio	1st Dept: 54 AD3d 625	1/5/09

APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2009 through January 31, 2009)

Committee to Save St. Brigid's Inc. v Egan	1st Dept: 45 AD3d 375	1/28/09
People v Swan	4th Dept: 50 AD3d 1566	1/22/09

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2009 through January 31, 2009)

People v Alcequier	1st Dept: 43 AD3d 699 (NY)	denied 1/6/09 (Jones, J.)
People v Alicea	App Div, 1st Dept: 2008 NY Slip Op 76488(U) (NY)	denied 1/6/09 (Jones, J.)

People v Allen	2d Dept: 54 AD3d 868 (Kings)	denied 1/20/09 (Read, J.)
People v Alomar	2d Dept: 55 AD3d 617 (Orange)	denied 1/16/09 (Read, J.)
People v Archbold	App Div, 1st Dept: 2008 NY Slip Op 76477(U) (NY)	denied 1/6/09 (Jones, J.)
People v Autar	1st Dept: 54 AD3d 609 (Bronx)	denied 1/6/09 (Jones, J.)
People v Barnes (Arrello)	App Div, 2d Dept: 2008 NY Slip Op 82134(U) (Queens)	denied reconsideration 1/26/09 (Pigott, J.)
People v Barnes (Escalante)	App Div, 2d Dept: 2008 NY Slip Op 82134(U) (Queens)	denied reconsideration 1/26/09 (Pigott, J.)
People v Barrett	2d Dept: 56 AD3d 569 (Queens)	denied 1/16/09 (Read, J.)
People v Basagoitia	2d Dept: 55 AD3d 619 (Queens)	denied 1/28/09 (Grafteo, J.)
People v Baskerville	App Div, 1st Dept: 2008 NY Slip Op 86703(U) (NY)	denied 1/23/09 (Jones, J.)
People v Bassett	4th Dept: 55 AD3d 1434 (Erie)	denied 1/6/09 (Jones, J.)
People v Baum	1st Dept: 54 AD3d 605 (NY)	denied 1/13/09 (Read, J.)
People v Bedell	4th Dept: 55 AD3d 1397 (Monroe)	denied 1/20/09 (Read, J.)
People v Bell (Murray)	4th Dept: 56 AD3d 1163 (Ontario)	denied 1/23/09 (Smith, J.)
People v Bell (Rayshawn)	4th Dept: 56 AD3d 1180 (Onondaga)	denied 1/28/09 (Smith, J.)
People v Bermudez	App Div, 2d Dept: 2008 NY Slip Op 89410(U) (Queens)	dismissed 1/6/09 (Jones, J.)
People v Biscombe	2d Dept: 54 AD3d 1051 (Kings)	denied 1/13/09 (Read, J.)
People v Bland	1st Dept: 55 AD3d 428 (NY)	denied 1/15/09 (Read, J.)
People v Blue	1st Dept: 55 AD3d 391 (NY)	denied 1/16/09 (Grafteo, J.)
People v Bobbitt	1st Dept: 49 AD3d 265 (Bronx)	denied 1/6/09 (Jones, J.)
People v Boo	3d Dept: 51 AD3d 1279 (Schenectady)	denied 1/6/09 (Jones, J.)
People v Booker	2d Dept: 57 AD3d 796 (Suffolk)	denied 1/28/09 (Grafteo, J.)
People v Brady (Kevin)	County Ct: 19 Misc 3d 1139(A), 2008 NY Slip Op 51072(U) (Monroe)	denied 1/23/09 (Jones, J.)
People v Brady (Kevin)	County Ct: 19 Misc 3d 1139(A), 2008 NY Slip Op 51073(U) (Monroe)	denied 1/23/09 (Jones, J.)

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People v Brooks	County Ct, 7/18/08 (Broome)	denied 1/22/09 (Smith, J.)
People v Brown (Harry)	4th Dept: 52 AD3d 1175 (Oneida)	denied 1/6/09 (Jones, J.)
People v Brown (Jeffrey)	1st Dept: 55 AD3d 393 (NY)	denied 1/22/09 (Smith, J.)
People v Brown (Kerrell)	1st Dept: 54 AD3d 621 (Bronx)	denied 1/6/09 (Jones, J.)
People v Burnett	2d Dept: 55 AD3d 847 (Kings)	denied 1/20/09 (Read, J.)
People v Caldwell	2d Dept: 54 AD3d 1053 (Rockland)	denied 1/13/09 (Read, J.)
People v Cameron	4th Dept: 55 AD3d 1382 (Wyoming)	denied 1/6/09 (Jones, J.)
People v Caraway	App Div, 2d Dept: 2008 NY Slip Op 83628(U) (Kings)	dismissed 1/20/09 (Read, J.)
People v Carelock	4th Dept: 55 AD3d 1371 (Monroe)	denied 1/22/09 (Pigott, J.)
People v Caroselli	4th Dept: 56 AD3d 1167 (Cayuga)	denied 1/27/09 (Pigott, J.)
People v Carroll	App Div, 3d Dept, 10/30/08 (Rensselaer)	denied 1/15/09 (Read, J.)
People v Caswell	4th Dept: 56 AD3d 1300 (Monroe)	denied 1/28/09 (Smith, J.)
People v Catala	1st Dept: 55 AD3d 513 (Bronx)	denied 1/20/09 (Read, J.)
People v Chandler	1st Dept: 56 AD3d 284 (NY)	denied 1/27/09 (Jones, J.)
People v Chappotin	1st Dept: 56 AD3d 327 (NY)	denied 1/29/09 (Smith, J.)
People v Clancy	App Term, 2d Dept: 20 Misc 3d 131(A) (Suffolk)	denied 1/6/09 (Jones, J.)
People v Clark	3d Dept: 54 AD3d 1099 (Rensselaer)	denied 1/6/09 (Jones, J.)
People v Clarke (Alvin)	4th Dept: 55 AD3d 1447 (Onondaga)	denied 1/27/09 (Jones, J.)
People v Clarke (Owen)	1st Dept: 55 AD3d 370 (NY)	denied 1/13/09 (Read, J.)
People v Coleman	2d Dept: 54 AD3d 961 (Nassau)	denied 1/16/09 (Read, J.) (Case No. 57)
People v Collins	3d Dept: 56 AD3d 809 (Otsego)	denied 1/6/09 (Jones, J.)
People v Colon (Juan)	1st Dept: 54 AD3d 621 (NY)	denied 1/23/09 (Ciparick, J.)
People v Colon (Rafel)	1st Dept: 54 AD3d 621 (NY)	denied 1/23/09 (Ciparick, J.)
People v Cordero	1st Dept: 54 AD3d 654 (NY)	denied 1/15/09 (Read, J.)

People v Correa	4th Dept: 55 AD3d 1380 (Monroe)	denied 1/6/09 (Jones, J.)
People v Coston	3d Dept: 55 AD3d 943 (Ulster)	denied 1/20/09 (Read, J.)
People v Cruz (Nelson)	1st Dept: 55 AD3d 365 (NY)	denied 1/6/09 (Jones, J.)
People v Cruz (Rudy)	2d Dept: 54 AD3d 962 (Kings)	denied 1/6/09 (Jones, J.)
People v D'Agostino	1st Dept: 55 AD3d 353 (NY)	denied 1/30/09 (Pigott, J.)
People v Daniels	App Div, 4th Dept, 11/13/08 (Monroe)	dismissed 1/28/09 (Grafteo, J.)
People v Danzy	2d Dept: 56 AD3d 570 (Queens)	denied 1/20/09 (Read, J.)
People v Davis	1st Dept: 54 AD3d 575 (NY)	granted 1/22/09 (Jones, J.)
People v Deas	1st Dept: 56 AD3d 299 (NY)	denied 1/23/09 (Jones, J.)
People v DeGrijze	App Div, 2d Dept: 2008 NY Slip Op 83889(U) (Queens)	denied reconsideration 1/26/09 (Pigott, J.)
People v DeJean	2d Dept: 55 AD3d 749 (Nassau)	denied 1/22/09 (Pigott, J.)
People v Dickerson	4th Dept: 55 AD3d 1276 (Monroe)	denied 1/6/09 (Jones, J.)
People v Dombrowski	4th Dept: 55 AD3d 1358 (Erie)	denied 1/22/09 (Pigott, J.)
People v Dominique	2d Dept: 56 AD3d 571 (Nassau)	denied 1/28/09 (Grafteo, J.)
People v Dugan	1st Dept: 57 AD3d 300 (NY)	denied 1/28/09 (Grafteo, J.)
People v Duncan	1st Dept: 54 AD3d 593 (NY)	denied 1/6/09 (Jones, J.)
People v Edwards	4th Dept: 55 AD3d 1337 (Ontario)	denied 1/6/09 (Jones, J.)
People v Eldredge	County Ct, 12/1/08 (Ontario)	denied 1/27/09 (Jones, J.)
People v Ellison	1st Dept: 57 AD3d 226 (NY)	denied 1/28/09 (Grafteo, J.)
People v Faulkner	2d Dept: 55 AD3d 924 (Queens)	denied 1/28/09 (Smith, J.)
People v Franklin	2d Dept: 54 AD3d 964 (Kings)	denied 1/20/09 (Read, J.)
People v Fuentes	2d Dept: 54 AD3d 382 (Suffolk)	denied 1/6/09 (Jones, J.)
People v Gallagher	4th Dept: 56 AD3d 1229 (Onondaga)	denied 1/30/09 (Pigott, J.)
People v Garcia (Carlos)	App Div, 1st Dept: 2008 NY Slip Op 88903(U) (NY)	dismissed 1/13/09 (Read, J.)

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People v Garcia (David)	2d Dept: 54 AD3d 1056 (Kings)	denied 1/6/09 (Jones, J.)
People v Gaskin	2d Dept: 54 AD3d 1056 (Suffolk)	denied 1/23/09 (Jones, J.)
People v Gomez	1st Dept: 55 AD3d 328 (NY)	denied 1/20/09 (Read, J.)
People v Gonzalez	4th Dept: 57 AD3d 1477 (Erie)	denied 1/6/09 (Read, J.)
People v Grant (Lawrence)	1st Dept: 56 AD3d 276 (NY)	denied 1/27/09 (Jones, J.)
People v Grant (Ricardo)	2d Dept: 55 AD3d 751 (Rockland)	denied 1/22/09 (Ciparick, J.)
People v Grant (Roosevelt)	1st Dept: 54 AD3d 589 (NY)	denied 1/13/09 (Read, J.)
People v Green	App Term, 1st Dept: 21 Misc 3d 130(A) (NY)	denied 1/6/09 (Jones, J.)
People v Greene	1st Dept: 55 AD3d 442 (Bronx)	denied 1/22/09 (Pigott, J.)
People v Gregory	2d Dept: 55 AD3d 752 (Kings)	denied 1/13/09 (Jones, J.)
People v Grimes	App Term, 2d Dept: 21 Misc 3d 136(A) (Suffolk)	denied 1/16/09 (Read, J.)
People v Guarino	1st Dept: 55 AD3d 473 (NY)	denied 1/23/09 (Jones, J.)
People v Guzzo	4th Dept: 55 AD3d 1349 (Niagara)	denied 1/13/09 (Read, J.)
People v Hamilton	1st Dept: 55 AD3d 468 (NY)	denied 1/27/09 (Jones, J.)
People v Hamms	3d Dept: 55 AD3d 1142 (Essex)	denied 1/27/09 (Pigott, J.)
People v Harris (Lafate)	1st Dept: 55 AD3d 503 (NY)	denied 1/15/09 (Read, J.)
People v Harris (Troy)	2d Dept: 54 AD3d 968 (Suffolk)	denied 1/22/09 (Ciparick, J.)
People v Harris (Vaughn)	4th Dept: 56 AD3d 1267 (Onondaga)	denied 1/16/09 (Grafteo, J.)
People v Harrison	1st Dept: 54 AD3d 623 (Bronx)	denied 1/22/09 (Ciparick, J.)
People v Hart	App Term, 2d Dept: 21 Misc 3d 134(A) (Kings)	denied 1/29/09 (Smith, J.)
People v Hathaway	4th Dept: 55 AD3d 1286 (Monroe)	denied 1/22/09 (Pigott, J.)
People v Haynes	4th Dept: 56 AD3d 1227 (Ontario)	denied 1/20/09 (Read, J.)
People v Herion	App Div, 2d Dept: 2008 NY Slip Op 89413(U) (Kings)	dismissed 1/26/09 (Pigott, J.)
People v Hernandez	2d Dept: 55 AD3d 849 (Kings)	denied 1/22/09 (Smith, J.)
People v Hill	1st Dept: 54 AD3d 607 (NY)	denied 1/6/09 (Jones, J.)

People v Hodge	2d Dept: 53 AD3d 507 (Richmond)	denied 1/6/09 (Jones, J.)
People v Howell (David)	2d Dept: 54 AD3d 968 (Kings)	denied 1/20/09 (Smith, J.)
People v Howell (Donald)	2d Dept: 54 AD3d 968 (Kings)	denied 1/20/09 (Smith, J.)
People v Huggins	App Div, 1st Dept, 9/15/08 (Bronx)	dismissed 1/13/09 (Read, J.)
People v Iverson	2d Dept: 56 AD3d 491 (Kings)	denied 1/16/09 (Read, J.)
People v Jackson	2d Dept: 56 AD3d 492 (Suffolk)	denied 1/16/09 (Read, J.)
People v Jacobs (Henry)	2d Dept: 54 AD3d 969 (Kings)	denied 1/6/09 (Jones, J.)
People v Jacobs (Peter)	4th Dept: 52 AD3d 1182 (Erie)	denied 1/6/09 (Jones, J.)
People v Jenkins	2d Dept: 55 AD3d 624 (Queens)	denied 1/16/09 (Read, J.)
People v Jermain	4th Dept: 56 AD3d 1165 (Niagara)	denied 1/29/09 (Smith, J.)
People v Johnson (Robert)	1st Dept: 55 AD3d 328 (NY)	denied 1/28/09 (Grafteo, J.)
People v Johnson (Virgil)	4th Dept: 56 AD3d 1172 (Ontario)	denied 1/30/09 (Pigott, J.)
People v Kaleda	App Term, 2d Dept: 21 Misc 3d 126(A) (Kings)	denied 1/2/09 (Read, J.)
People v Killings	2d Dept: 55 AD3d 852 (Kings)	denied 1/16/09 (Grafteo, J.)
People v King (Anthony)	4th Dept: 56 AD3d 1193 (Niagara)	denied 1/16/09 (Grafteo, J.)
People v King (Kevin)	1st Dept: 55 AD3d 362 (NY)	denied 1/6/09 (Jones, J.)
People v Knox	2d Dept: 56 AD3d 799 (Dutchess)	denied 1/28/09 (Grafteo, J.)
People v Kowal	4th Dept: 56 AD3d 1208 (Erie)	denied 1/27/09 (Jones, J.)
People v Kyser	4th Dept: 56 AD3d 1216 (Erie)	denied 1/15/09 (Read, J.)
People v Lacayo	1st Dept: 55 AD3d 393 (Bronx)	denied 1/22/09 (Pigott, J.)
People v Lane	4th Dept: 55 AD3d 1409 (Livingston)	denied 1/22/09 (Ciparick, J.)
People v Lassalle	4th Dept: 55 AD3d 1286 (Erie)	denied 1/22/09 (Ciparick, J.)
People v Lee	4th Dept: 56 AD3d 1192 (Chautauqua)	denied 1/15/09 (Read, J.)
People v Levi	2d Dept: 55 AD3d 625 (Kings)	denied 1/28/09 (Smith, J.)
People v Lewis	2d Dept: 55 AD3d 626 (Orange)	denied 1/23/09 (Ciparick, J.)

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People v Loret (David)	4th Dept: 56 AD3d 1283 (Monroe)	denied 1/28/09 (Grafteo, J.)
People v Loret (David)	App Div, 4th Dept, 12/1/08 (Monroe)	dismissed 1/28/09 (Grafteo, J.)
People v MacKenzie (Edward)	2d Dept: 55 AD3d 929 (Nassau)	denied 1/16/09 (Read, J.)
People v MacKenzie (Edward)	App Div, 2d Dept: 2008 NY Slip Op 91186(U) (Nassau)	dismissed 1/13/09 (Read, J.)
People v Maldonado	2d Dept: 55 AD3d 626 (Kings)	denied 1/20/09 (Read, J.)
People v Marrero	1st Dept: 56 AD3d 363 (NY)	denied 1/29/09 (Smith, J.)
People v Marshall	App Div, 4th Dept, 10/17/08 (Monroe)	dismissed 1/20/09 (Read, J.)
People v Martin (Floyd)	4th Dept: 55 AD3d 1236 (Erie)	denied 1/6/09 (Jones, J.)
People v Martin (Floyd)	4th Dept: 55 AD3d 1238 (Erie)	denied 1/6/09 (Jones, J.)
People v Martin (Laura)	2d Dept: 55 AD3d 853 (Queens)	denied 1/16/09 (Read, J.)
People v Martinez	4th Dept: 55 AD3d 1334 (Ontario)	denied 1/20/09 (Read, J.)
People v Mason (Marlon)	4th Dept: 56 AD3d 1201 (Onondaga)	denied 1/16/09 (Grafteo, J.)
People v Mason (Marlon)	4th Dept: 56 AD3d 1202 (Onondaga)	denied 1/16/09 (Grafteo, J.)
People v Mateo	1st Dept: 54 AD3d 598 (NY)	denied 1/9/09 (Read, J.)
People v Mays	2d Dept: 54 AD3d 778 (Nassau)	denied 1/16/09 (Read, J.)
People v McBride	App Div, 1st Dept: 2008 NY Slip Op 86115(U) (NY)	denied 1/22/09 (Ciparick, J.)
People v McCray	App Term, 1st Dept: 21 Misc 3d 127(A) (Bronx)	denied 1/6/09 (Jones, J.)
People v McGourty	3d Dept: 54 AD3d 440 (Saratoga)	denied 1/6/09 (Jones, J.)
People v McGuire	2d Dept: 55 AD3d 853 (Kings)	denied 1/20/09 (Read, J.)
People v McKnight	4th Dept: 55 AD3d 1315 (Monroe)	denied 1/27/09 (Jones, J.)
People v McLaughlin	1st Dept: 55 AD3d 377 (NY)	denied 1/13/09 (Jones, J.)
People v McMath	1st Dept: 54 AD3d 566 (NY)	denied 1/20/09 (Read, J.)
People v McNair	1st Dept: 55 AD3d 332 (NY)	granted 1/29/09 (Smith, J.)
People v Mears	1st Dept: 55 AD3d 439 (NY)	denied 1/21/09 (Grafteo, J.)

People v Meleance	2d Dept: 52 AD3d 845 (Rockland)	denied 1/27/09 (Pigott, J.)
People v Melendez	1st Dept: 56 AD3d 284 (Bronx)	denied 1/28/09 (Grafteo, J.)
People v Merrill	4th Dept: 55 AD3d 1333 (Steuben)	denied 1/20/09 (Read, J.)
People v Metwally	App Term, 2d Dept: 21 Misc 3d 134(A) (Queens)	denied 1/20/09 (Read, J.)
People v Miles (Ernest)	3d Dept: 55 AD3d 955 (Albany)	denied 1/6/09 (Jones, J.)
People v Miles (Randy)	1st Dept: 55 AD3d 307 (Bronx)	denied 1/13/09 (Read, J.)
People v Minson	2d Dept: 54 AD3d 971 (Queens)	denied 1/6/09 (Jones, J.)
People v Neary	4th Dept: 56 AD3d 1224 (Oneida)	denied 1/16/09 (Grafteo, J.)
People v Negron	1st Dept: 55 AD3d 464 (NY)	denied 1/23/09 (Jones, J.)
People v Nesbitt	3d Dept: 56 AD3d 816 (Ulster)	denied 1/23/09 (Smith, J.)
People v Nichols	1st Dept: 55 AD3d 380 (NY)	denied 1/15/09 (Read, J.)
People v Nicometo	4th Dept: 55 AD3d 1288 (Erie)	denied 1/20/09 (Read, J.)
People v Nisvis	2d Dept: 56 AD3d 574 (Kings)	denied 1/28/09 (Grafteo, J.)
People v Nunez (Claudio)	3d Dept: 56 AD3d 897 (Sullivan)	denied 1/16/09 (Grafteo, J.)
People v Nunez (Fausto)	1st Dept: 55 AD3d 395 (Bronx)	denied 1/20/09 (Read, J.)
People v Nunez (Jonathan)	2d Dept: 55 AD3d 756 (Queens)	denied 1/27/09 (Jones, J.)
People v Obbagy	4th Dept: 56 AD3d 1223 (Ontario)	denied 1/20/09 (Read, J.)
People v Odubogun	2d Dept: 55 AD3d 853 (Kings)	denied 1/28/09 (Grafteo, J.)
People v O'Kane	1st Dept: 55 AD3d 315 (NY)	denied 1/20/09 (Read, J.)
People v Perez (Javier)	1st Dept: 56 AD3d 263 (Bronx)	denied 1/30/09 (Pigott, J.)
People v Perez (Raymond)	2d Dept: 54 AD3d 972 (Kings)	denied 1/20/09 (Read, J.)
People v Perez (Thomas)	4th Dept: 52 AD3d 1244 (Monroe)	denied 1/13/09 (Read, J.)
People v Perez (Thomas)	4th Dept: 52 AD3d 1245 (Monroe)	denied 1/13/09 (Read, J.)
People v Pettus	App Div, 1st Dept, 4/24/08 (NY)	dismissed 1/28/09 (Smith, J.)
People v Phillips	4th Dept: 56 AD3d 1168 (Erie)	denied 1/23/09 (Smith, J.)

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People v Pinnock	2d Dept: 54 AD3d 421 (Kings)	denied 1/6/09 (Jones, J.)
People v Pittam	2d Dept: 55 AD3d 931 (Queens)	denied 1/27/09 (Jones, J.)
People v Polanco	2d Dept: 54 AD3d 1061 (Rockland)	denied 1/6/09 (Jones, J.)
People v Poole (Christopher)	4th Dept: 55 AD3d 1349 (Monroe)	denied 1/20/09 (Read, J.)
People v Poole (Christopher)	4th Dept: 55 AD3d 1354 (Monroe)	denied 1/16/09 (Read, J.)
People v Povoski	4th Dept: 55 AD3d 1221 (Ontario)	denied 1/27/09 (Jones, J.)
People v Powell (Leighton)	2d Dept: 54 AD3d 878 (Suffolk)	denied 1/6/09 (Jones, J.)
People v Powell (Nathan)	2d Dept: 55 AD3d 632 (Nassau)	denied 1/23/09 (Jones, J.)
People v Prince (Christopher)	2d Dept: 55 AD3d 635 (Queens)	denied 1/9/09 (Read, J.)
People v Prince (James)	1st Dept: 57 AD3d 249 (NY)	dismissed 1/28/09 (Grafteo, J.)
People v Pugliese	2d Dept: 55 AD3d 853 (Kings)	denied 1/22/09 (Pigott, J.)
People v Purr Fect World Inc.	County Ct, 10/22/08 (Cortland)	denied 1/23/09 (Smith, J.)
People v Ramsunder (Rahini)	2d Dept: 55 AD3d 757 (Queens)	denied 1/22/09 (Smith, J.)
People v Ramsunder (Rohini)	2d Dept: 55 AD3d 757 (Queens)	denied 1/22/09 (Smith, J.)
People v Reddick	1st Dept: 56 AD3d 344 (NY)	denied 1/30/09 (Pigott, J.)
People v Reyes	App Div, 1st Dept: 2008 NY Slip Op 86109(U) (NY)	denied 1/23/09 (Jones, J.)
People v Richardson	1st Dept: 55 AD3d 352 (NY)	denied 1/6/09 (Jones, J.)
People v Ring	County Ct, 10/7/08 (Erie)	denied 1/16/09 (Read, J.)
People v Ritchie	1st Dept: 56 AD3d 306 (Bronx)	denied 1/30/09 (Pigott, J.)
People v Rivera	1st Dept: 55 AD3d 356 (NY)	denied 1/6/09 (Jones, J.)
People v Riviere	County Ct: 21 Misc 3d 847 (Albany)	denied 1/22/09 (Pigott, J.)
People v Roa	App Div, 1st Dept: 2008 NY Slip Op 86705(U) (NY)	denied 1/16/09 (Read, J.)
People v Robinson (Ernest)	1st Dept: 55 AD3d 356 (NY)	denied 1/6/09 (Jones, J.)
People v Robinson (Paul)	4th Dept: 55 AD3d 1418 (Monroe)	denied 1/9/09 (Read, J.)
People v Rogers	2d Dept: 54 AD3d 973 (Rockland)	denied 1/13/09 (Read, J.)

People v Rollins	3d Dept: 51 AD3d 1279 (Schenectady)	denied 1/6/09 (Jones, J.)
People v Romero (Michael)	2d Dept: 54 AD3d 781 (Kings)	denied 1/16/09 (Read, J.)
People v Romero (Ubaldo)	App Div, 1st Dept, 11/7/08 (NY)	dismissed 1/30/09 (Pigott, J.)
People v Roulette	1st Dept: 55 AD3d 394 (NY)	denied 1/15/09 (Read, J.)
People v Rowley	4th Dept: 56 AD3d 1191 (Monroe)	denied 1/20/09 (Read, J.)
People v Rufus	4th Dept: 56 AD3d 1175 (Onondaga)	denied 1/28/09 (Smith, J.)
People v Russell	4th Dept: 55 AD3d 1314 (Orleans)	denied 1/22/09 (Pigott, J.)
People v Sanchez (Alberto)	1st Dept: 54 AD3d 638 (NY)	denied 1/20/09 (Read, J.)
People v Sanchez (Jesus)	1st Dept: 55 AD3d 326 (Bronx)	denied 1/15/09 (Read, J.)
People v Sanchez (Zaida)	1st Dept: 55 AD3d 460 (Bronx)	denied 1/16/09 (Grafteo, J.)
People v Sandoval	1st Dept: 56 AD3d 253 (NY)	denied 1/27/09 (Jones, J.)
People v Santiago	App Div, 1st Dept: 2008 NY Slip Op 87029(U) (NY)	denied reconsideration 1/21/09 (Ciparick, J.)
People v Santos (Regina)	1st Dept: 57 AD3d 215 (NY)	denied 1/28/09 (Grafteo, J.)
People v Santos (Ruben)	2d Dept: 54 AD3d 962 (Kings)	denied 1/6/09 (Jones, J.)
People v Siriani	2d Dept: 47 AD3d 647 (Kings)	denied reconsideration 1/6/09 (Jones, J.)
People v Smith (Benjamin)	4th Dept: 55 AD3d 1409 (Erie)	denied 1/16/09 (Smith, J.)
People v Smith (Jeffrey)	4th Dept: 56 AD3d 1218 (Seneca)	denied 1/28/09 (Smith, J.)
People v Smith (Todd)	1st Dept: 55 AD3d 503 (NY)	denied 1/15/09 (Read, J.)
People v Snovitch	1st Dept: 56 AD3d 328 (NY)	denied 1/27/09 (Jones, J.)
People v Sorey	3d Dept: 55 AD3d 1063 (Schenectady)	denied 1/22/09 (Smith, J.)
People v Sosa	App Div, 1st Dept: 2008 NY Slip Op 80492(U) (NY)	dismissed 1/7/09 (Ciparick, J.)
People v Speights	4th Dept: 56 AD3d 1232 (Onondaga)	denied 1/23/09 (Jones, J.)

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People v Tarafa	App Div, 1st Dept: 2008 NY Slip Op 75059(U) (Bronx)	dismissed 1/26/09 (Pigott, J.)
People v Taylor	4th Dept: 56 AD3d 1235 (Monroe)	denied 1/16/09 (Grafteo, J.)
People v Terrell T.	4th Dept: 56 AD3d 1172 (Erie)	denied 1/30/09 (Pigott, J.)
People v Terry	3d Dept: 55 AD3d 1149 (Albany)	denied 1/28/09 (Smith, J.)
People v Tillman	1st Dept: 55 AD3d 346 (Bronx)	denied 1/6/09 (Jones, J.)
People v Torres	4th Dept: 55 AD3d 1418 (Onondaga)	denied 1/21/09 (Pigott, J.)
People v VanDeViver	4th Dept: 56 AD3d 1118 (Oswego)	denied 1/16/09 (Grafteo, J.)
People v Vazquez (Vasquez)	1st Dept: 55 AD3d 388 (NY)	denied 1/27/09 (Pigott, J.)
People v Walker (Allen)	1st Dept: 55 AD3d 343 (NY)	denied 1/16/09 (Smith, J.)
People v Walker (Johnny)	4th Dept: 50 AD3d 1452 (Orleans)	denied reconsideration 1/6/09 (Jones, J.)
People v Warfield	1st Dept: 55 AD3d 406 (NY)	denied 1/22/09 (Ciparick, J.)
People v Washington (Bernard)	1st Dept: 56 AD3d 258 (NY)	denied 1/28/09 (Grafteo, J.)
People v Washington (James)	2d Dept: 54 AD3d 886 (Queens)	denied 1/23/09 (Jones, J.)
People v Washington (James)	App Div, 4th Dept, 11/15/08 (Monroe)	dismissed 1/16/09 (Ciparick, J.)
People v Webster	4th Dept: 56 AD3d 1242 (Erie)	denied 1/28/09 (Smith, J.)
People v Wesley	2d Dept: 55 AD3d 758 (Queens)	denied 1/23/09 (Ciparick, J.)
People v Wheatley	3d Dept: 55 AD3d 947 (Albany)	denied 1/22/09 (Pigott, J.)
People v White	1st Dept: 55 AD3d 390 (NY)	denied 1/29/09 (Smith, J.)
People v Wiggins	2d Dept: 54 AD3d 1066 (Orange)	denied 1/13/09 (Jones, J.)
People v Wighfall	1st Dept: 55 AD3d 347 (Bronx)	denied 1/20/09 (Read, J.)
People v Wilson	4th Dept: 55 AD3d 1273 (Monroe)	denied 1/6/09 (Jones, J.)
People v Witt	1st Dept: 56 AD3d 324 (NY)	denied 1/16/09 (Grafteo, J.)
People v Woodring	4th Dept: 55 AD3d 1381 (Allegany)	denied 1/23/09 (Smith, J.)
People v Wosu	4th Dept: 55 AD3d 1253 (Erie)	denied 1/23/09 (Jones, J.)

People v Wright	App Div, 2d Dept: 2008 NY Slip Op 93124(U) (Queens)	dismissed 1/29/09 (Ciparick, J.)
People v Wynder	App Div, 1st Dept: 2008 NY Slip Op 78321(U) (NY)	denied 1/27/09 (Jones, J.)
People v Yancey	App Term, 1st Dept: 21 Misc 3d 130(A) (NY)	denied 1/16/09 (Read, J.)

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ABUSE OF PROCESS.

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ACCOUNTS AND ACCOUNTING.

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See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATIVE LAW.

RULE MAKING.

1. Interpretive Statements.—In making certain determinations regarding the obligations of regional Off-Track Betting Corporations with respect to maintenance of effort payments, separate payment distribution, and dark day payments, respondent New York State Racing and Wagering Board was not obligated to follow the procedures mandated by the State Constitution and the State Administrative Procedure Act for the promulgation of rules and regulations. Respondent did not promulgate rules or regulations when it made those determinations, but rather interpreted the requirements of the statutes in issue. *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

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See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

CONSTITUTIONAL QUESTIONS.

1. Direct Involvement of Constitutional Question.—The Court of Appeals dismissed an appeal in a hybrid action and CPLR article 78 proceeding, wherein petitioner challenged the constitutionality of the Finneran Law (L 1982, ch 891), which permits the Town of Greenburgh to finance the costs of acquiring property for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town. Petitioner's facial constitutional challenge, insofar as it was predicated on New York Constitution, article VIII, § 3, was not raised at the Appellate Division and therefore was not directly involved. *Matter of Bernstein v Feiner*, 11 NY3d 917.

2. Substantial Constitutional Question.—An appeal on constitutional grounds in a hybrid action and CPLR article 78 proceeding to declare that Town Law § 232

APPEAL—Cont'd

prohibited a Town from financing the cost of acquiring property for parkland by imposing a tax solely upon property owners residing in the unincorporated area of the Town was dismissed by the Court of Appeals. Although petitioner's facial and as-applied constitutional challenges to the Finneran Law (L 1982, ch 891), which permits the Town of Greenburgh to finance the costs of acquiring property for public parks through that tax arrangement, were addressed by the Appellate Division, they were not substantial. *Matter of Bernstein v Feiner*, 11 NY3d 917.

COURT OF APPEALS.

3. Relief Available upon Modification of Order Affirming Grant of Motion for Summary Judgment and Denial of Cross Motion for Summary Judgment.—In an Insurance Law § 3420 action where the Court of Appeals modified an Appellate Division order, which had affirmed Supreme Court's order granting plaintiffs' motion for summary judgment and denying defendant's cross motion for summary judgment dismissing the complaint, by denying plaintiffs' motion for summary judgment, the Court declined to grant defendant insurer's cross motion for summary judgment inasmuch as plaintiffs' arguments in opposition to the cross motion were not addressed by the courts below. *Gaston v American Tr. Ins. Co.*, 11 NY3d 866.

PRESERVATION OF ISSUE FOR REVIEW.

4. Legal Sufficiency of Evidence.—Defendant failed to preserve for review by the Court of Appeals his argument that the evidence presented at trial was insufficient to support his conviction for depraved indifference murder. *People v Castellano*, 11 NY3d 850.

ARBITRATION.

See, also, INSURANCE.

STAY OF ARBITRATION.

1. Timeliness.—The petition was properly denied as time-barred pursuant to CPLR 7503 (c) in a proceeding pursuant to CPLR article 75 to permanently stay arbitration commenced more than three months after petitioner had been served with a demand for arbitration. The exception to the 20-day statutory limitation period, which allows a court to consider an untimely petition to stay arbitration where the parties never agreed to arbitrate, was inapplicable here because the contracts at issue contained an agreement to arbitrate. Although the contracts had expired, an arbitration clause in a written agreement is enforceable when it is evident that the parties intended to be bound by the contract. *Matter of Fiveco, Inc. v Haber*, 11 NY3d 140.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY AND CLIENT.**COMPENSATION.**

1. Unconscionability of Contingent Fee Agreement.—Motions to dismiss the petition in a proceeding to recover over \$40 million in legal fees due pursuant to the parties' revised retainer agreement were properly denied. A fee arrangement can be deemed unconscionable when entered into or in retrospect. Here, following a long professional relationship and \$18 million in fees, the parties entered the revised retainer agreement which provided for a 40% contingent fee, and several months later, petitioner law firm secured a settlement in the underlying matter exceeding \$100 million and sought to collect legal fees exceeding \$40 million. In light of the applicable standard of review in resolving a motion to dismiss a petition, the facts and circumstances surrounding the revised retainer agreement had not been sufficiently developed to determine whether the agreement was unconscionable at the time it was made. Further, circumstances arising after contract formation can render a contingent fee agreement—not unconscionable when entered into—unenforceable where the amount of the fee, combined with the large percentage of

ATTORNEY AND CLIENT—Cont'd

the recovery it represents, seems disproportionate to the value of the services rendered. Although, on its face, the amount of the fee here seemed disproportionate to the several months of work since the agreement's revision, there were no facts to refute or support this hypothesis, or to evaluate the agreement's unconscionability. *Lawrence v Graubard Miller*, 11 NY3d 588.

DISQUALIFICATION.

2. Standing as Prior Client.—Plaintiff police lieutenant, who had commenced the underlying police disciplinary proceeding against defendant police officer, had standing as a former client of defendant's attorney to bring an action seeking a declaration that the attorney had a conflict of interest precluding him from representing defendant in the disciplinary proceeding. Code of Professional Responsibility DR 5-108 (a) (1) (22 NYCRR 1200.27 [a] [1]) requires a party seeking disqualification of an opponent's lawyer to show that there was a prior attorney-client relationship, that the matters involved in both representations are substantially related, and that the present interests of the attorney's past and present clients are materially adverse. Here, plaintiff previously sought legal advice from defendant's attorney at least partly in a professional capacity, with their conversations touching on the matter of disciplining defendant. Moreover, seeking advice about a potential disciplinary case against defendant for insubordination was "substantially related" to actually bringing just such a case a couple of years later, and the parties' interests in the disciplinary proceeding were materially adverse. *Falk v Chittenden*, 11 NY3d 73.

ATTORNEY GENERAL.**POWERS.**

1. Authority to Sue Officer or Director of Not-For-Profit Corporation — Nonstatutory Causes of Action.—In an action brought by the New York State Attorney General challenging as excessive the compensation paid to defendant, the former chairman and chief executive officer of the New York Stock Exchange (NYSE), a New York not-for-profit corporation regulated by the Not-For-Profit Corporation Law, in which both statutory and nonstatutory causes of action were alleged, the Attorney General lacked authority to assert the complaint's four nonstatutory causes of action against defendant. The four nonstatutory claims were premised on provisions of the N-PCL but clothed in the common law, and included causes of action for a constructive trust and payment had and received, based on a theory of unjust enrichment; a cause of action seeking restitution of certain benefit awards alleging that a majority of the Board failed to approve them; and a cause of action alleging that the NYSE's advance payments from a retirement plan violated the prohibition against loans to officers and that the NYSE was entitled to reasonable interest thereon. The two statutory claims, alleging an unlawful transfer and breach of fiduciary duty, were brought pursuant to specific provisions of the N-PCL and required the Attorney General to prove defendant's fault. The nonstatutory causes of action, however, were devoid of any fault-based elements. As such, they were fundamentally inconsistent with the N-PCL, and reached beyond the bounds of the Attorney General's authority. *People v Grasso*, 11 NY3d 64.

BANKS AND BANKING.

See, also, Bills, Notes and Checks.

BILLS, NOTES AND CHECKS.

See, also, Banks and Banking.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL RIGHTS.**FEDERAL CIVIL RIGHTS CLAIM.**

1. Counsel Fees — Failure to Determine 42 USC § 1983 Claim.—In a CPLR article 78 proceeding brought against respondent Commissioner of New York State Department of Health, in her official capacity as the head of a state agency, to review and annul a fair hearing decision affirming the denial of petitioner's Medicaid application based on excess income and resources, Supreme Court did not have discretion to award attorney's fees pursuant to 42 USC § 1988 in conjunction with its annulment of the fair hearing decision, as it was not clear that petitioner prevailed against respondent on a claim under 42 USC § 1983, and that the Department of Health was a "person" which, while acting under color of state law, deprived petitioner of the federal right to Medicaid. Petitioner's request for attorney's fees was premised on his claim that respondent's calculation of his wife's "community spouse resource allowance" violated a specific federal Medicaid Act provision, namely 42 USC § 1396r-5 (e) (2) (C). However, Supreme Court made no determination that respondent violated that statutory provision and, consequently, did not make the determination of petitioner's section 1983 claim to which petitioner was entitled. *Matter of Giaquinto v Commissioner of N.Y. State Dept. of Health*, 11 NY3d 179.

2. Counsel Fees — Right to Recover Counsel Fees from State Official Acting in Official Capacity.—In a CPLR article 78 proceeding brought against respondent Commissioner of New York State Department of Health, in her official capacity as the head of a state agency, to review and annul a fair hearing decision affirming the denial of petitioner's Medicaid application based on excess income and resources, the Eleventh Amendment did not bar petitioner's right to recover attorney's fees pursuant to 42 USC § 1988. State officials acting in their official capacities may be sued under 42 USC § 1983 only for injunctive or prospective relief. The relief petitioner sought was prospective in nature, as he primarily sought to stop not only an ongoing violation of federal law by a state official acting in her official capacity but also to vindicate his right to Medicaid eligibility under the federal law and receive ongoing current and future Medicaid payments. The fact that petitioner's Medicaid eligibility would be retroactive to the date of his application was only incidental to the primary relief sought, namely, the annulment of the fair hearing decision. *Matter of Giaquinto v Commissioner of N.Y. State Dept. of Health*, 11 NY3d 179.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

DISCIPLINARY PUNISHMENT.

1. Termination of Employment.—In a CPLR article 78 proceeding to review a determination of respondent Commissioner of the Westchester County Department of Social Services which had adopted the finding and recommendation of a hearing officer finding petitioner guilty of acts of incompetence and terminating her employment, the Appellate Division lacked discretionary authority or interest of justice jurisdiction to review and annul the penalty imposed. Further, it could not be concluded that the penalty of termination shocked the judicial conscience where petitioner, employed as an eligibility examiner, processed food stamp applications in particularly late fashion, even after multiple warnings concerning her poor performance. *Matter of Ellis v Mahon*, 11 NY3d 754.

POLICE.

2. Discipline of Police — No Right to Counsel for State Troopers in "Critical Incident Reviews."—State troopers do not have a right to counsel or union representation in "critical incident reviews," which take place following critical incidents

CIVIL SERVICE—Cont'd

when a critical incident investigation team obtains written and oral statements from the involved troopers, prior to any criminal or administrative investigation. Although discipline is a prohibited subject of collective bargaining when legislation commits police discipline to the discretion of local authorities, critical incident reviews do not relate to discipline and are subject to collective bargaining. Here, the parties negotiated a right to representation for administrative interrogations, but failed to enumerate any such right with regard to critical incident reviews. Because petitioner union agreed to a right to counsel only during administrative interrogations, it necessarily waived any representation right troopers may have had during critical incident reviews. *Police Benevolent Assn. of N.Y. State Troopers, Inc. v Division of N.Y. State Police*, 11 NY3d 96.

RETIREMENT AND PENSION BENEFITS.

3. Accidental Disability Retirement.—In a CPLR article 78 proceeding, the Appellate Division properly confirmed respondent State Comptroller's determination denying petitioner police detective's application for accidental disability retirement benefits. For purposes of such benefits, an injury which occurs without an unexpected event as the result of activity undertaken in the performance of ordinary employment duties, considered in view of the particular employment, is not an accidental injury. Respondent's conclusion that the incident was not an unexpected event was supported by substantial evidence in the record. Petitioner, who slipped on a wet ramp while exiting a restaurant, knew that the ramp was wet and therefore knew of the hazard that led to his injury before the incident occurred. *Matter of Kenny v DiNapoli*, 11 NY3d 873.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

BREACH OR PERFORMANCE OF CONTRACT.

1. In a breach of contract action, the evidence was sufficient to support the jury's conclusions that the parties' 1999 maintenance agreement was modified by correspondence in 2001, and that defendant breached the agreement as modified. Two years after entering the agreement, defendant advised plaintiff by letter that it wanted to retain plaintiff's emergency repair services and requested a quote for the services. After plaintiff provided defendant a quote by letter, defendant utilized the services without interposing any objection to the price quoted. *Trinity Assoc., Inc. v Telesector Resources Group, Inc.*, 11 NY3d 906.

EMPLOYMENT CONTRACTS.

2. Continuation of Employment Following Termination of Agreement.—The expiration of a two-year employment contract did not give rise to successive one-year implied contracts when plaintiff employee continued working for defendant employer without a new agreement, because the language of the contract unambiguously indicated that the parties understood that the contract would end at the conclusion of the two-year period unless an extension was agreed upon. Rather, plaintiff became an at-will employee at the end of the two-year period. Because the parties agreed that the contract memorialized their understanding, that it could be modified only in writing and that it expired on a specified date absent additional ne-

CONTRACTS—Cont'd

gotiations for a new agreement, application of the common-law presumption that they intended to renew the agreement for an additional year when plaintiff continued to work after expiration of the contract would have been contrary to principles of contract interpretation and the employment-at-will doctrine. *Goldman v White Plains Ctr. for Nursing Care, LLC*, 11 NY3d 173.

CORPORATIONS.

CAPACITY TO SUE. *See* JUDGMENTS, 5.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

COURTS.

RETROACTIVE APPLICATION OF JUDICIAL DECISION.

1. Depraved Indifference Murder.—In a prosecution based on defendant's shooting of the victim in the abdomen during an altercation on defendant's property, the Appellate Division properly evaluated defendant's sufficiency challenge in light of current decisional law on depraved indifference murder. Defendant's conviction, which preceded a change in the law regarding depraved indifference murder, was on direct appeal to the Appellate Division and, thus, not a final conviction. *People v George*, 11 NY3d 848.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Preservation of Issue for Review — Court of Appeals.—In order to preserve for review by the Court of Appeals a challenge to the legal sufficiency of a conviction, a defendant must move for a trial order of dismissal, and the argument must be specifically directed at the error being urged. General motions do not create questions of law for review by the Court of Appeals. A specific motion brings the claim to the trial court's attention, alerting all parties in a timely fashion to any alleged deficiency in the evidence, thereby advancing both the truth-seeking purpose of the trial and the goal of swift and final determination of guilt or nonguilt of a defendant. *People v Hawkins*, 11 NY3d 484.

2. Preservation of Issue for Review.—Defendant's claim that the evidence was legally insufficient to support his conviction of depraved indifference murder was not preserved for review when his counsel objected that the People "failed to prove that [defendant] acted with Depraved Indifference Murder." Defendant's motion did little more than argue that the People failed to prove the essential elements of depraved indifference murder. The objection could have been directed at either the reckless mens rea element, or the objective circumstances evincing a wanton, depraved indifference to human life, and did not alert the trial court to the argument being advanced on appeal. *People v Hawkins*, 11 NY3d 484.

3. Preservation of Issue for Review.—In a prosecution arising out of the sale of cocaine to an undercover officer, defendant's claim that the evidence was legally insufficient to support his conviction of criminal sale of a controlled substance in the third degree was preserved for review by his motion for a trial order of dismissal, despite the fact that defendant's effort to specify his objection was frustrated by the trial judge. The trial judge was plainly aware of, and expressly decided, the question raised on appeal. *People v Hawkins*, 11 NY3d 484.

CRIMES—Cont'd

4. Preservation of Issue for Review.—In a criminal prosecution, defendant properly preserved for review by the Court of Appeals his challenge to the legal sufficiency of his depraved indifference murder conviction. *People v George*, 11 NY3d 848.

ARGUMENT AND CONDUCT OF COUNSEL.

5. In the prosecution of defendants for crimes associated with corporate wrongdoing, the prosecutor's summation comments on the testimony of an attorney retained to conduct a corporate internal investigation were not prejudicial. The prosecutor's statement in response to defendants' assertion that the corporation's directors had branded them as scapegoats to avoid their own civil and criminal liability, as well as the prosecutor's references to the attorney's factual testimony, did not convey a personal belief or opinion regarding the trial evidence or defendants' guilt. Instead, it properly concentrated, in argument, on proved facts and circumstances and the inferences to be drawn therefrom. *People v Kozlowski*, 11 NY3d 223.

CONFESSION.

6. In the prosecution of defendant for attempted murder and attempted burglary, suppression of certain evidence as violative of defendant's *Miranda* rights was not warranted. Record evidence supported the Appellate Division's conclusion that the police engaged in threshold questioning designed to clarify the situation—not interrogation—while frisking defendant. *People v Naradzay*, 11 NY3d 460.

CONSOLIDATION AND SEVERANCE.

7. Defendant failed to establish good cause in support of his request to sever the trials of charges in a single indictment related to two successive robberies (CPL 200.20 [3] [a]). There was no material variance in the quantity of proof for the separate incidents. Moreover, the evidence as to the two crimes was presented separately and was readily capable of being segregated in the minds of the jury. The incidents occurred on different dates and the evidence as to each incident was presented through different witnesses. *People v Ford*, 11 NY3d 875.

CONTROLLED SUBSTANCES.

8. Sufficiency of Evidence.—In a prosecution arising out of the sale of cocaine to an undercover officer, defendant's conviction of criminal sale of a controlled substance in the third degree was supported by legally sufficient evidence. While defendant claimed that no one heard his conversation with his two codefendants, that he never handled money or drugs and that the police recovered neither drugs nor money from him, a rational trial factfinder could have inferred from the evidence that, based on the timing, defendant's conversation must have been about the drug sale, that defendant's looking around was for the purpose of detecting law enforcement and that, by leaving the scene with one of his codefendants, he shared that codefendant's intent to sell drugs. Thus the jury could have concluded beyond a reasonable doubt that defendant aided in the sale and shared a community of purpose with his codefendants to sell cocaine. *People v Hawkins*, 11 NY3d 484.

DISCLOSURE.

9. Failure to Disclose Exculpatory Material.—In the prosecution of defendant, who was convicted of sodomy after the complainant testified that he raped and assaulted her during a visit to his home, the People violated their obligations under *Brady v Maryland* (373 US 83 [1963]) when they learned before defendant's trial but did not tell defendant that the complainant had recently accused another man of raping her in that man's home. The other man's guilty plea to attempted rape months after defendant's trial was irrelevant to what the People's duties under *Brady* were at the time of trial and before. The information known to the People when defendant's case was tried was "favorable to the accused" and "material" within the meaning of *Brady*. Defendant had a due process right to obtain it, and that right could not be nullified by post-trial events. It would not have been an abuse of discretion for the trial court to permit defendant to confront the complainant on cross-examination with the facts concerning her charge against the other man. If defendant had used the information about the other man to impeach the

CRIMES—Cont'd

complainant, there was a reasonable probability he would have been acquitted. The fact that the jury heard the complainant's father testify that she threatened to accuse him falsely of rape did not render the information about the other man cumulative. *People v Hunter*, 11 NY3d 1.

10. Subpoena Duces Tecum — Material Exempt from Disclosure — Material Prepared for Litigation.—In the prosecution of defendants for crimes associated with corporate wrongdoing, including the theft of four multi-million dollar “bonuses,” Supreme Court did not abuse its discretion in quashing defendants’ subpoena duces tecum, which sought the factual portions of certain interview notes and a memorandum prepared during the course of a corporate internal investigation. Defendants sought to challenge the testimony of certain corporate director-witnesses that they did not approve the four charged bonuses, evidence that bore directly on the question of whether defendants took those bonuses under a good faith claim of right. Although defendants satisfied the minimal threshold showing necessary for enforcement, in that they identified specific director-witness statements and proffered facts that permitted an inference that those statements were reasonably likely to contain material that could contradict the statements of key witnesses for the People, the materials defendants requested were shielded from production by the qualified privilege covering trial preparation materials (see CPLR 3101 [d] [2]). *People v Kozlowski*, 11 NY3d 223.

11. Subpoena Duces Tecum — Material Exempt from Disclosure — Material Prepared for Litigation.—In the prosecution of defendants for crimes associated with corporate wrongdoing, including the theft of four multi-million dollar “bonuses,” Supreme Court did not abuse its discretion in quashing defendants’ subpoena duces tecum, which sought the factual portions of certain interview notes and a memorandum prepared by a law firm during the course of a corporate internal investigation. The requested materials were shielded from production by the qualified privilege covering trial preparation materials (see CPLR 3101 [d] [2]). Defendants made no effort to show any “undue hardship” that would have prevented them from securing their own “substantial[ly] equivalent” interviews with the corporate director-witnesses (see CPLR 3101 [d] [2]), and Supreme Court properly determined that the corporation had not waived the qualified privilege covering those documents. No waiver occurred when the corporation produced attorney-client and work product privileged materials to the People in response to their grand jury subpoena, as those materials did not refer to the corporate internal investigation at issue. Disclosure of historical privileged documents did not waive the privilege covering trial preparation materials created in a subsequent internal investigation. Moreover, no waiver occurred through the corporation’s cooperation with the District Attorney’s investigation. Nor did “testimonial” waivers occur at defendants’ first trial when the corporation’s lawyers and employees testified regarding privileged communications that occurred prior to the internal investigation. *People v Kozlowski*, 11 NY3d 223.

DOUBLE JEOPARDY.

12. Retrial of petitioner for murder was not precluded by double jeopardy principles where petitioner’s trial on charges of murder and lesser included manslaughter offenses ended with a mistrial based on jury deadlock. The trial judge did not abuse his discretion when he declared a mistrial without first asking the jury whether it had reached a partial verdict, as requested by defense counsel. The jury’s deliberations—lasting nearly six days—exceeded the duration of the trial itself. During this period, the jury informed the court on three occasions that it could not reach a unanimous verdict. There was no clear indication that the jury had reached a partial verdict, and the jury requested reinstruction on all three charges on three separate occasions. The court appropriately explored alternatives to a mistrial by, among other things, directing the jury to continue deliberating and giving the jury an *Allen* charge. Under the circumstances, and reasoning that further deliberations would be futile or could lead to a coerced verdict, the trial court reasonably determined that there was a manifest necessity to declare a mistrial. *Matter of Rivera v Firetog*, 11 NY3d 501.

CRIMES—Cont'd

13. Mistrial.—In a proceeding to bar retrial of petitioner in an underlying criminal prosecution on double jeopardy grounds, the Appellate Division correctly concluded that petitioner failed to meet his burden of demonstrating that any alleged prosecutorial misconduct was conducted in a deliberate attempt to provoke him to move for a mistrial. *Matter of DeFilippo v Rooney*, 11 NY3d 775.

EVIDENCE.

14. Chain of Custody.—In the prosecution of defendant for murder and burglary, the People adequately established a chain of custody for blood evidence that was collected on a swab and placed in a box at the scene of the crime, left behind when the police departed and retrieved hours later by the police. Gaps in the chain of custody go to the weight of the evidence, not its admissibility, and may be excused when circumstances provide reasonable assurances of the identity and unchanged condition of the evidence. Here, the short time period between collecting and retrieving the lost sample from the victim's home, when combined with a lack of evidence of tampering, was sufficient to establish the necessary foundation. *People v Hawkins*, 11 NY3d 484.

INDICTMENT.

15. Sufficiency of Indictment — First Degree Murder Based upon Death of Kidnapping Victim.—An indictment charging defendant with first degree murder (Penal Law § 125.27 [1] [a] [vii]) based upon his killing of a person he had abducted was not legally insufficient because it “double counted” the death of the victim, relying on it both as an element of first degree murder and as an element of first degree kidnapping (Penal Law § 135.25 [3]). The indictment tracked the language of the statutes, alleging the elements of murder in the first degree, including a killing “in the course of” and “in furtherance of” a first degree kidnapping, and also alleging the elements of first degree kidnapping, including the abduction and the death of the person abducted. In defining first degree murder, the Legislature required murder and an additional aggravating factor—murder “plus.” Although a defendant's crime has not been “aggravated” to first degree murder where the same mens rea—the intent to kill—is used to define both the murder and the aggravating factor, here, the murder that defendant committed and the predicate crime that served as an aggravation arose from two distinct intents—the intent to kill the victim and the intent to abduct him. *People v Lucas*, 11 NY3d 218.

INSTRUCTIONS. See, also, CRIMES, 24.

16. First-Degree Robbery.—A robbery in the first degree jury charge, which parroted the statute by stating that in order to find defendant guilty the jury would have to conclude that in the course of the crime the defendant “used or threatened the immediate use of a knife . . . [and] that under the circumstances *the* knife was a dangerous instrument,” failed to instruct the jury that “actual possession” of a dangerous instrument was a required element of the crime. Although not explicit in the statute, actual possession is a requirement based on judicial interpretation in decisional law. The charge did not use the term “actual possession,” or in any other way convey that requirement to the jury. More than a subtle verbal clue, such as referencing “*the* knife,” was necessary. *People v Ford*, 11 NY3d 875.

JURORS.

17. Selection of Jury — Batson Procedure.—In a criminal prosecution, defendant failed to meet his burden of establishing a prima facie case of discrimination pursuant to *Batson v Kentucky* (476 US 79 [1986]). Although a defendant need not establish a pattern of discrimination, sketchy assertions, standing alone, are insufficient. Here, defense counsel's contentions that the prosecutor's peremptory challenge of an African-American prospective juror was based on her race because the challenged juror's answers were “neutral” and “would not give [the prosecutor] any reason to believe that she could [not] be impartial” were vague and conclusory. *People v Jones*, 11 NY3d 822.

18. Selection of Jury.—Defendant failed to meet his burden of establishing, during jury selection, a prima facie case of discrimination under step one of the three-

CRIMES—Cont'd

step protocol in *Batson v Kentucky* (476 US 79 [1986]). Thus, although the Appellate Term incorrectly proceeded to steps two and three of the *Batson* inquiry for the first time on defendant's appeal from his judgment of conviction, reversal of the conviction was not required. Defense counsel asserted that the prosecutor had eliminated two male prospective jurors "for no good reason" because "she wants a female jury." However, he failed to articulate facts and circumstances that raised an inference that the prosecutor excused those jurors for a discriminatory reason. Accordingly, the prosecutor was not required to provide gender-neutral reasons for her challenges to those prospective jurors. *People v MacShane*, 11 NY3d 841.

LESSER INCLUDED OFFENSE.

19. Robbery.—In a criminal prosecution, the trial court did not err in declining to submit to the jury a charge of robbery in the third degree as a lesser included offense of robbery in the first degree. To establish a charge on a lesser included offense, a defendant must show both that the greater crime cannot be committed without having concomitantly committed the lesser by the same conduct, and that a reasonable view of the evidence supports a finding that he or she committed the lesser, but not the greater, offense. Although robbery in the third degree is a lesser included crime of robbery in the first degree, there was no reasonable view of the evidence to support a jury finding that defendant committed the former and not the latter. The victim testified that defendant had a gun. No other evidence, viewed reasonably, contradicted that testimony. Although a coperpetrator and lookout person claimed not to have seen defendant with a gun from his vantage points, even he acknowledged overhearing a codefendant say to the victim that defendant had a gun. *People v James*, 11 NY3d 886.

MURDER.

20. Depraved Indifference Murder.—In the prosecution of defendant, who shot the victim at close range while the two were attending a party in the basement of a home, defendant's conviction was properly reduced from depraved indifference murder (Penal Law § 125.25 [2]) to manslaughter in the second degree (Penal Law § 125.15 [1]) because the evidence at trial was legally insufficient to establish defendant's guilt pursuant to the standard for depraved indifference murder applicable at the time of defendant's appeal. The standard by which depraved indifference murder is measured changed between the time of defendant's conviction and the time of his appeal from the objective standard as charged to the jury (see *People v Register*, 60 NY2d 270 [1983]) to a subjective standard as articulated in *People v Feingold* (7 NY3d 288 [2006]). Pursuant to traditional common-law principles the decision in *Feingold* is applicable to cases pending on direct appeal in which the defendant has adequately challenged the sufficiency of the proof as to his depraved indifference murder conviction. Because defendant herein made a specific motion to dismiss for legal insufficiency at trial, anticipating the change in the law brought by *Feingold*, defense counsel did not additionally have to take an exception to the court's depraved indifference murder charge. *People v Jean-Baptiste*, 11 NY3d 539.

21. Depraved Indifference Murder.—In a prosecution based on defendant's shooting of the victim in the abdomen during an altercation on defendant's property after the victim arrived there in the company of defendant's estranged wife, the evidence was insufficient to establish that defendant acted with depraved indifference to human life, but was legally sufficient to convict him of the lesser included offense of manslaughter in the second degree (Penal Law § 125.15 [1]). *People v George*, 11 NY3d 848.

PLEA BARGAINING.

22. Enforcement of Agreement.—Supreme Court was not compelled to grant defendant specific performance of a plea agreement providing for dismissal of an indictment upon his alleged successful completion of a drug treatment program, and acted within its discretion in denying dismissal upon defendant's failure to fulfill certain of his other obligations under the agreement. The language of the plea agreement gave broad discretion to the court and the People to decide whether defendant had complied with it. Because defendant failed to provide satisfactory proof

CRIMES—Cont'd

that he completed all of the conditions of his agreement, the People were entitled to an adjournment and not required to join in defendant's motion to dismiss the indictment. Following the adjournment, when defendant violated his plea agreement by being rearrested and failing to comply with the requirement that he maintain "suitable" housing, the court was no longer bound by the plea promise and could properly impose an enhanced sentence. Supreme Court's recommendation that defendant seek counseling services with his girlfriend to prevent a relapse was well within the discretion afforded the court. Furthermore, the additional agreement to obtain counseling services that defendant chose to enter into after he breached his plea agreement did not violate the original agreement. In view of defendant's breach of the plea agreement, Supreme Court had the discretion to offer defendant an opportunity to obtain counseling services in lieu of sentencing him to jail. Nor did Supreme Court violate defendant's right to specific performance of his plea agreement when he violated the second agreement. *People v Jenkins*, 11 NY3d 282.

PLEA OF GUILTY.

23. Withdrawal of Plea.—Where defendant and his codefendant had been offered a connected plea that would fail if either declined the offer, defendant's motion to withdraw his plea on the ground that it was the result of threats made by his codefendant was properly denied without a hearing. Defendant's affidavit in support of his motion suggested, but did not unequivocally say, that he pleaded guilty only because he was afraid that his codefendant would have killed or injured him if he did not. Moreover, the affidavit did not say what basis defendant had for believing the threat, and the threat itself was couched in ambiguous language, without any specific context. There was, accordingly, no basis to disturb the conclusion of the courts below that defendant's showing of involuntariness did not warrant further inquiry. *People v Baret*, 11 NY3d 31.

PROOF OF OTHER CRIMES.

24. Evidence of Uncharged Burglaries to Demonstrate Defendant's Knowing Possession of Stolen Property — Necessity of Limiting Instruction.—In the prosecution of defendant for attempted burglary, possession of burglar's tools, and criminal possession of stolen property after the police officers who had observed defendant standing in an office doorway and poking at the lock with a pocketknife apprehended him and recovered certain items that had been stolen during prior burglaries for which defendant was never charged, Supreme Court erred by allowing the People to introduce detailed evidence regarding the uncharged burglaries without issuing a limiting instruction to cure the potential prejudicial effect of that evidence on the attempted burglary and possession of burglar's tools counts. Supreme Court should have advised the jury that it could consider the evidence for the possession of stolen property counts, but that it could not consider the prior burglaries with respect to the attempted burglary and possession of burglar's tools counts. *People v Giles*, 11 NY3d 495.

PROOF OF PRIOR CONVICTIONS.

25. Prior Gun-Related Convictions Relevant to Defendant's Claim That Shooting Was Accidental.—In the prosecution of defendant for attempted second-degree murder, first-degree assault, and criminal possession of a weapon in the second and third degrees in connection with a shooting incident, Supreme Court did not err by permitting the jury to consider evidence that defendant, who had confessed to the shooting but claimed that the revolver discharged accidentally, had previously been convicted of three gun-related offenses. The evidence of defendant's prior gun-related convictions was highly probative of his intent, given that he claimed that the shooting was accidental, and had at least suggested in a videotaped statement admitted at trial that he was unaccustomed to handling firearms. Moreover, the witnesses to the shooting were extremely impeachable. Supreme Court limited the potential for prejudice by reading into the record a bare-bones stipulation consisting only of the conviction dates, the names of the crimes and, in two cases, the type of gun involved, and by repeatedly instructing the jurors to consider that evidence

CRIMES—Cont'd

only in relation to the issue of accident, not propensity. *People v Diggins*, 11 NY3d 518.

RIGHT OF CONFRONTATION.

26. Autopsy Report Prepared by Nontestifying Expert.—An autopsy report redacted to eliminate the opinions of the doctor who prepared the report as to the cause and manner of the victim's death did not constitute "testimonial" evidence within the meaning of *Crawford v Washington* (541 US 36 [2004]) and thus was properly received in evidence at defendant's trial over his Confrontation Clause objection where the doctor who prepared the report did not testify. The Confrontation Clause does not bar the use of out-of-court statements by declarants who are not "witnesses"; and witnesses are those who bear testimony. The duties of the Office of the Chief Medical Examiner, the doctor's employer, are independent of and not subject to the control of the office of the prosecutor; the agency is not a law enforcement agency. The doctor's report, as redacted, was largely a contemporaneous, objective account of observable facts. Moreover, the report did not directly link defendant to the crime at issue. *People v Freycinet*, 11 NY3d 38.

RIGHT TO COUNSEL.

27. Conflict of Interest.—Defendant's claim that defense counsel failed to make appropriate use of potentially exculpatory information discovered during trial did not warrant reversal on the ground that a conflict of interest arose that significantly impacted the defense. The conflict of interest purportedly arose when defense counsel learned, during trial, of a statement by a codefendant to authorities exculpating defendant and promised codefendant's counsel that he would not reveal information about the statement until the trial ended. The personal dilemma of defense counsel stemming from the assurance of confidentiality was markedly different from the types of conflicts that have been recognized as triggering conflict of interest analysis because it was entirely subjective. The purported conflict of interest did not arise from objective facts or circumstances external to defense counsel. Defendant's argument that defense counsel's failure to raise a *Brady* violation or to otherwise attempt to use the exculpatory information at trial was a result of the purported conflict, was rejected. The actions defendant claimed that his trial counsel should have taken would not have advanced his defense. *People v Ennis*, 11 NY3d 403.

28. Effective Representation.—Defendant's claim that defense counsel's performance fell below constitutionally adequate levels based on his assertion that his lawyer failed to make appropriate use of potentially exculpatory information discovered during trial did not warrant reversal. Defense counsel learned, during trial, of a statement by a codefendant to authorities exculpating defendant and promised codefendant's counsel that he would not reveal information about the statement until the trial ended. Defense counsel performed as an effective advocate in many significant respects. If defense counsel had sought a severance based on the purported *Brady* violation the codefendant would undoubtedly have asserted his Fifth Amendment privilege against self-incrimination. Because the codefendant could not have been compelled to testify on defendant's behalf and his statements would not have been admissible through a third party, defense counsel could not be deemed ineffective for failing to seek a severance or to otherwise attempt to admit the statements into evidence. Nor could the representation be deemed constitutionally deficient based on defense counsel's failure to raise the *Brady* argument during trial. Had the statement been turned over, there would have been no avenue for defense counsel to admit it into evidence. *People v Ennis*, 11 NY3d 403.

ROBBERY.

29. Sufficiency of Evidence.—In a prosecution for robbery in the first degree in which the trial court's charge failed to convey to the jury that "actual possession" of a dangerous weapon was a required element of the crime, defendant's conviction of that crime was nonetheless supported by legally sufficient evidence when viewed in light of the court's charge as given without exception because defendant failed to object to the charge. During the course of the robbery, defendant stated, "I got a

CRIMES—Cont'd

knife,” while simultaneously moving his hand toward his pants pocket. These acts, considered together, provided legally sufficient evidence to establish that defendant “used or threatened the immediate use” of a knife in the course of the robbery, as the trial court charged. *People v Ford*, 11 NY3d 875.

SENTENCE.

30. Fine.—In the prosecution of defendants for crimes associated with corporate wrongdoing, in which defendants contended that the imposition of fines upon them pursuant to Penal Law § 80.00 contravened their constitutional right to a jury trial, any violation of *Apprendi v New Jersey* (530 US 466 [2000]), which delineates circumstances when judicial fact-finding in sentencing is impermissible under the Sixth Amendment to the US Constitution, was harmless because defendants’ trial testimony—with respect to each of those counts upon which the trial court imposed fines—established gains that corresponded to or exceeded the fine amounts. *People v Kozlowski*, 11 NY3d 223.

31. Persistent Violent Felony Offender — Challenge to Predicate Felony Conviction.—Supreme Court did not abuse its discretion in denying defendant’s request at his sentencing for an adjournment in order to “file motions,” presumably aimed at gathering evidence to prove that one of his prior felony convictions was secured in violation of his constitutional right to counsel and therefore could not serve as a basis for sentencing him as a persistent violent felony offender. Defendant had received the People’s predicate violent felony conviction statement four months earlier, and CPL 400.15 (6) puts defense counsel who controvert an allegation in a predicate violent felony conviction statement on notice to be prepared to proceed with an evidentiary hearing so long as the statement is received at least two days before the preliminary examination. While it may not always be feasible for counsel to obtain minutes or other documents in time for a hearing that immediately follows a preliminary examination, defense counsel here did not suggest that he had made any effort to obtain the minutes from the relevant prior trial, or even specifically request the adjournment for the purpose of procuring the minutes. Nor did counsel provide the judge with an affidavit from the attorney who represented defendant in the earlier trial, or secure that attorney’s live testimony, but rather simply asserted that the attorney completely failed to participate in the earlier trial. Defendant, however, was concededly tried in absentia at that trial, giving rise to an inference that the attorney’s nonparticipation was a protest strategy that would not support a claim of ineffective assistance. *People v Diggins*, 11 NY3d 518.

32. Drug Law Reform Act.—Defendant, who pleaded guilty in 1995 to a class A-II drug felony in exchange for the promised sentence of an indeterminate term of three years to life in prison was not eligible for resentencing under the Drug Law Reform Act of 2005 (see L 2005, ch 643 [the 2005 DLRA]). Defendant was less than three years from parole eligibility when he applied for resentencing and was required to receive a parole hearing every two years. Thus, in accordance with the plain meaning of the 2005 DLRA, defendant was not “more than twelve months from being an eligible inmate as that term is defined in subdivision 2 of section 851 of the correction law” and therefore did not qualify for resentencing. *People v Mills*, 11 NY3d 527.

33. Drug Law Reform Act.—Defendant, who was sentenced to an indeterminate term of imprisonment upon his conviction in 2003 for a class A-II drug felony that he committed while released on parole from a 1999 conviction for another class A-II drug felony, was ineligible for resentencing under the Drug Law Reform Act of 2005 (see L 2005, ch 643 [the 2005 DLRA]). Defendant was not entitled to seek resentencing under the 2005 DLRA for both the 1999 conviction—which he claimed was, in effect, revived for purposes of the 2005 DLRA by the time assessment imposed for the parole violation—and the 2003 conviction. In order to be eligible for resentencing, an inmate must be more than three years from parole eligibility for the same class A-II drug felony for which resentencing is sought. Once a defendant has been released to parole supervision for a class A-II drug felony conviction, he or she no longer qualifies for 2005 DLRA relief for that particular conviction. *People v Mills*, 11 NY3d 527.

CRIMES—Cont'd

34. Drug Law Reform Act.—In order to qualify for resentencing under the Drug Law Reform Act of 2005 (*see* L 2005, ch 643 [the 2005 DLRA]), which allows eligible nonviolent A-II felons (*see* Correction Law § 851 [2]) sentenced to indeterminate terms under the old Rockefeller Drug Laws to seek resentencing to determinate terms under the provisions of the Rockefeller Drug Law Reform Act of 2004 (*see* L 2004, ch 738), class A-II felony drug offenders must not be eligible for parole within three years of their resentencing applications. Although as a result of such a reading the 2005 DLRA does not cover first-time felony drug offenders facing indeterminate three-years-to-life sentences, while second- and third-time offenders might be eligible for resentencing, the difference in treatment is not irrational since it ameliorates the conditions of those A-II offenders facing the longest prison time, as the Legislature intended when it enacted the 2005 DLRA. *People v Mills*, 11 NY3d 527.

35. Postrelease Supervision — Failure of Sentencing Court to Pronounce Term of Postrelease Supervision — Remittal for Resentencing.—In a criminal prosecution in which Supreme Court failed to pronounce the term of defendant's mandatory postrelease supervision in his presence, the matter was remitted to that court for a resentencing proceeding. *People v Collado*, 11 NY3d 888.

SEX OFFENDERS.

36. Sex Offender Registration Act — Application of "Relationship Between Offender and Victim" Risk Factor to Possessor of Child Pornography.—Defendant, a convicted sex offender whose crime consisted of possessing pornographic images of children, was properly assessed 20 points under the "Relationship Between Offender and Victim" factor 7 of the Risk Assessment Guidelines for having committed a crime "directed at . . . stranger[s]." Although most sex crimes involve criminals who subject their victims to sexual contact without the victims' consent, and people who do that to people they do not know pose a special danger to the community justifying the assessment of points under factor 7, the truth of that generalization is not at all obvious when the offense in question is the possession of child pornography. Most people who commit such crimes never have any contact with the children whose images they look at. However, while factor 7 unambiguously required the assessment of 20 points against defendant, neither the Board of Examiners of Sex Offenders nor the court making the risk level determination was bound to choose the risk level indicated by defendant's point total. Defendant could have, but failed to, argue for a downward departure from that level under the theory that the application of factor 7 to child pornography cases like his produced a seemingly anomalous result, one the authors of the Guidelines might not have intended or foreseen. Nevertheless, he still had a statutory right to petition County Court for an order modifying his designation (Correction Law § 168-o [2]). *People v Johnson*, 11 NY3d 416.

37. Sex Offender Registration Act — Applicability.—Defendant, whose sentence for his 1983 sexual abuse conviction would have expired before the effective date of the Sex Offender Registration Act (SORA) had he not committed another crime in 1987 for which he was given a 10-to-20-year sentence running consecutively to the undischarged part of his 1983 sentence, was subject to SORA. Penal Law § 70.30 provides for the calculation of terms of imprisonment by the merging of concurrent sentences and addition of consecutive sentences, with the result that two or more sentences are made into one. For SORA purposes a prisoner serving multiple sentences is subject to all the sentences, whether concurrent or consecutive, that make up the merged or aggregate sentence he or she is serving. Defendant, therefore, was still serving a sentence for his 1983 sex crime at the time SORA became effective in 1996. *People v Buss*, 11 NY3d 553.

38. Sex Offender Registration Act.—In adjudicating defendant a level two sex offender (Correction Law art 6-C), County Court failed to adequately set forth the findings of fact and conclusions of law (Correction Law § 168-n [3]) on which it based its decision to assess defendant 20 points under risk factor 7 pertaining to defendant's relationship with the victim, the evidence upon which the court found that the victim was a stranger or determined that defendant had "established or

CRIMES—Cont'd

promoted” the relationship for the primary purpose of victimization. Defendant had pleaded guilty to rape after admitting that he was 31 years old when he engaged in sexual intercourse with the 16-year-old victim. His classification turned on whether he should have been assessed additional points based on this relationship. *People v Smith*, 11 NY3d 797.

UNLAWFUL SEARCH AND SEIZURE.

39. In a criminal prosecution, the hearing court’s determination that the police possessed founded suspicion of criminality justifying a common-law inquiry involved a mixed question of law and fact supported by the record. Thus, the issue was beyond review by the Court of Appeals. *People v Jones*, 11 NY3d 822.

40. In a criminal prosecution, the lower courts’ determination that the police lacked reasonable suspicion to believe that the defendant had committed or was about to commit a crime to justify a stop and frisk involved a mixed question of law and fact and was supported by record evidence. Thus, the issue was beyond review by the Court of Appeals. *People v Silvestry*, 11 NY3d 902.

VERDICT.

41. Attempt — Sufficiency of Evidence.—Defendant’s convictions of attempted murder and attempted burglary were supported by legally sufficient evidence inasmuch as defendant’s actions prior to the arrival of a sheriff’s deputy on the scene came “dangerously near” commission of murder and burglary (*see* Penal Law § 110.00). A rational jury could reasonably infer from defendant’s conduct and the surrounding circumstances that defendant intended to commit murder and burglary. In accordance with his “to-do” list, defendant borrowed a vehicle, obtained a shotgun and ammunition and drove to the immediate vicinity of his intended victims’ house. In the few minutes that elapsed between a passing motorist’s 911 call and the arrival of the deputy, defendant brought his loaded shotgun within 20 feet of his intended victims’ house. Defendant’s actions could be characterized as potentially and immediately dangerous: he filled his pockets with 25 sabot slugs, loaded a shotgun capable of hitting a target accurately at a distance of 100 yards with four of these slugs, including one in the chamber, and stood mere steps away from the property of his intended victims, thereby placing it in his power to commit the offense unless interrupted. The jury might have reasonably concluded that there was no homicide here only because an observant motorist made a 911 call and law enforcement authorities responded promptly, cornering defendant before he could burst into his intended victims’ house, armed with a shotgun, the next step on his “to-do” list. *People v Naradzay*, 11 NY3d 460.

WITNESSES.

42. Corporate Wrongdoing — Attorney Retained to Conduct Internal Corporate Investigation — Background Information.—In the prosecution of defendants for crimes associated with corporate wrongdoing, in which testimony of an attorney retained to conduct an internal corporate investigation was admitted, the People were properly permitted to elicit testimony regarding the attorney’s background, a general overview of internal investigations and the scope of the subject investigation. This background testimony provided a helpful context for the jury about a complex subject matter. In addition, such evidence was also admissible to allow the jury to evaluate defendants’ contention that the attorney’s representation of the corporation in ancillary civil litigation gave him a motive to slant his testimony in favor of the People. *People v Kozlowski*, 11 NY3d 223.

43. Corporate Wrongdoing — Testimony of Attorney Retained to Conduct Internal Corporate Investigation.—In the prosecution of defendants for crimes associated with corporate wrongdoing, including the theft of four multi-million dollar “bonuses,” the admission into evidence of testimony of an attorney retained to conduct a corporate internal investigation did not improperly convey to the jury an opinion regarding defendants’ guilt. The attorney’s testimony, which was used to undercut defendants’ claim that they had taken the bonuses in good faith and to establish how the company reacted once it became aware of evidence suggesting that one defendant had violated company compensation procedures, was properly limited

CRIMES—Cont'd

to a firsthand factual account. Although defendants complained that the attorney was permitted to rebut their testimony and theory of the case with certain facts that may have led the jury to convict, that was not prohibited. *People v Kozlowski*, 11 NY3d 223.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCLOSURE.**SCOPE OF DISCLOSURE.**

1. An order of the Appellate Division that affirmed an order of the Supreme Court which had denied plaintiffs' motion to confirm the report of a special referee regarding disclosure was affirmed. The trial court has broad discretion in supervising disclosure, and its determinations will not be disturbed absent a clear abuse of that discretion. Deference regarding disclosure extends to a trial court's decision to confirm a referee's report, so long as the report has record support. However, the Appellate Division is vested with its own discretion and corresponding power to substitute its own discretion for that of the trial court, even in the absence of abuse. Here, the Appellate Division correctly exercised its discretion and found that Supreme Court properly determined that the evidence did not support the special referee's report recommending that defendant be compelled to produce a resident of Belgium for an oral deposition and testimony and documents relating to a Belgian arbitration in which defendant was not a party. *Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DISMISSAL AND NONSUIT.**ABANDONED CASES.**

1. Judgment Not Subject to 60-Day Time Limit.—The Appellate Division erred in vacating a judgment in plaintiff's favor against defendant and dismissing the underlying claim as abandoned pursuant to 22 NYCRR 202.48 based on plaintiff's failure to submit the proposed judgment for signature within 60 days after the signing and filing of the decision directing that the order be settled, as the judgment was not subject to the 60-day requirement. That decision was not the first decision giving plaintiff the right to enter a money judgment against defendant, her former husband, for the total amount the parties owed to a certain bank if defendant failed to satisfy the debt. A decision issued after the parties' divorce trial gave plaintiff the right to enter a money judgment and directed the parties to "[s]ettle judgment." That direction was carried out in a subsequent judgment granting the divorce and

DISMISSAL AND NONSUIT—Cont'd

an amended judgment of divorce, both of which included language stating that plaintiff, under certain circumstances, was “entitled to enter a money judgment against [defendant] for the total amount due and owing to [the bank] without further order.” As the decretal paragraph in those judgments set out a simple judgment for a sum of money which spoke for itself, they fell outside the ambit of Rule 202.48 and were not subject to the 60-day requirement. Plaintiff, however, subsequently and unnecessarily moved for an order to show cause allowing her to enter a judgment against defendant for the bank monies even though she was already entitled to that relief without a limitations period. The Supreme Court then issued an order stating, for the third time, that plaintiff was entitled to the monies owed to the bank without further order, while at the same time ordering plaintiff to “settle . . . judgment” for that very relief. Plaintiff’s failure to timely settle the judgment could not deprive her of the judgment as Rule 202.48 was improperly or unnecessarily invoked. *Farkas v Farkas*, 11 NY3d 300.

RESTORING ACTION TO CALENDAR.

2. In a breach of contract action wherein a note of issue was filed in July 2004, Supreme Court struck the action from the trial calendar in May 2005 based on plaintiff’s counsel’s failure to appear at four pretrial conferences, and defendant moved in January 2007 to dismiss the action as abandoned based on plaintiff’s failure to restore the action to the calendar within one year; plaintiff’s cross motion to restore was denied and defendant’s motion to dismiss on the ground of abandonment was dismissed as unnecessary. Plaintiff’s conclusory and unsubstantiated claim of law office failure did not constitute a reasonable excuse for the 20-month delay in pursuing the action. Further, plaintiff’s inactivity between the time the action was marked off the calendar and defendant’s motion to dismiss failed to rebut the presumption of abandonment (CPLR 3404). *Okun v Tanners*, 11 NY3d 762.

DIVORCE.

See HUSBAND AND WIFE.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

ELECTIONS.**PRIMARY ELECTIONS.**

1. A proceeding pursuant to Election Law § 16-102 to set aside the results of a primary election for the nomination of the Independence Party candidate for the public office of Surrogate, County of Orange, was remitted to Supreme Court with directions to dismiss the proceeding. The voting machines in eight election districts where no members of the Independence Party signed in to vote recorded a total of seven votes for the cross petitioner and a total of two votes for petitioner. In seven other election districts where at least one member of the Independence Party did sign in to vote, there were 17 more votes recorded by the voting machines than Independence Party voter signatures. Including the irregular votes and three challenged absentee ballots, cross petitioner received 222 votes and petitioner received 213 votes. Under these circumstances, it was impossible to render meaningful relief in compliance with the Election Law. *Matter of Hunter v Orange County Bd. of Elections*, 11 NY3d 813.

EMINENT DOMAIN.**FIXTURES.**

1. Machinery and Equipment Used in Woodworking Business.—In a condemnation proceeding involving a woodworking shop, claimant’s standard woodshop

EMINENT DOMAIN—Cont'd

machinery and equipment did not qualify as compensable trade fixtures under the category of improvements used for business purposes that would lose substantial value if removed. Although the machines were placed in a particular order in the shop in order to maximize efficiency and would sell for less on a secondhand market, use in connection with a business or efficiency of operation is not the test of compensability. The common thread of items qualifying under the “substantial loss” category of compensable fixtures is devaluation of functional utility if the item is removed. Here, there was no claim of special design, and the placement of the equipment in a certain order to maximize efficiency did not make it an integrated operation. Nor did the fact that many of the listed items would lose value because they were worth less as secondhand goods than they were in claimant’s shop, and that additional costs would be incurred to have the machinery removed, shipped and stored, qualify them as losing substantial value. *Matter of City of New York*, 11 NY3d 353.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

RESPONDEAT SUPERIOR.

1. Vicarious Liability — Independent Contractor.—Plaintiff, an employee of an independent contractor hired by defendant utility to clear trees and shrubbery alongside a state highway who was injured when he was struck by a truck driven by a coworker, may not hold defendant vicariously liable for his employer’s alleged negligence. Although the highway work permit obtained by defendant required it to comply with federal and state worker safety regulations, a contractual obligation does not necessarily constitute a nondelegable duty in tort. The determination of whether a duty is nondelegable turns on policy considerations, and here several policy considerations militated against imposing vicarious liability on defendant for the independent contractor’s negligence. Expanding vicarious liability to cover highway work permits obtained by utilities would make defendant potentially liable to a large class of plaintiffs, thus extending its duty beyond any reasonable limit. The fact that an injured employee’s recovery from an independent contractor that contracted with a utility is limited by workers’ compensation is not sufficient justification to impose vicarious liability on a utility that does not supervise or control the injury-causing work. Moreover, the Highway Law requires utilities to obtain permits, and they do not have the ability to bargain for terms and conditions. Defendant did not have a choice in whether or not to assume a duty to comply with the safety regulations recited in the permit, as it could not shirk maintenance work in state highway rights-of-way. *Brothers v New York State Elec. & Gas Corp.*, 11 NY3d 251.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GRAND JURY.

RIGHT TO APPEAR BEFORE GRAND JURY.

1. In a perjury prosecution, the Appellate Division properly affirmed an order which had granted defendant's motion to dismiss the indictment, with leave to re-present. There was record support for the finding below that the District Attorney failed to accord the defendant reasonable time to exercise his right to appear as a witness before the grand jury. Defendant experienced two changes of counsel over the two-week period between when he notified the People that he intended to appear and testify before the grand jury, and the start of the eight-day Passover holiday, during which time defendant was unavailable to testify due to his religious beliefs. The People refused defendant's offer to testify on the day after Passover, the last day of the grand jury term, presented the case without defendant's testimony, and the grand jury voted to indict. *People v Shemesh*, 11 NY3d 774.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HIGHWAYS.

MAINTENANCE.

1. In actions arising out of a motor vehicle accident that occurred after decedent driver allegedly lost control of her vehicle when she drove onto the shoulder of the roadway and attempted to return to the traveled portion of the roadway, that part of defendant paving company's motion for summary judgment seeking to dismiss the complaint against it was denied. At the time of the incident, defendant County had halted defendant paving company's operation in order to make unrelated repairs to the shoulder of the roadway, and there was a height differential of 4½ inches between the paved portion of the roadway and the gravel shoulder of the roadway. A triable issue of fact existed as to whether the paving company created or exacerbated a dangerous condition. *Schosek v Amherst Paving, Inc.*, 11 NY3d 882.

HORSE RACING.

OFF-TRACK BETTING.

1. Dark Day Payments.—Petitioners, regional Off-Track Betting Corporations (OTBs), were obligated to make dark day payments to their respective regional harness tracks in accordance with a statutory formula set forth in Racing, Pari-Mutuel Wagering and Breeding Law § 1017 when they broadcast out-of-state thoroughbred races on days that the State Racing Association was not conducting a thoroughbred race meeting and no licensed harness track was accepting wagers on or displaying the signal of any thoroughbred track. Although some of the headings within section 1017 required dark day payments only of "facilities licensed in accordance with section [1007] of this article," and OTBs do not operate facilities under section 1007, those headings stand in marked contrast to other headings within section 1017 that govern the distribution of wagers placed at "facilities licensed in accordance with sections [1008] and [1009]," meaning OTB branch offices and simulcast theaters. A statute's heading may help in ascertaining the intent of an otherwise ambiguous statute, but a heading cannot trump the clear language of the statute. Here, section 1017 specifies that dark day payments are a percentage of "total regional handle," which is a term of art used in the Racing, Pari-Mutuel Wagering and Breeding Law in relation to the concept of payments by OTBs to tracks. *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559.

2. Maintenance of Effort Payments to Regional Harness Tracks — No Credit for Daytime Harness Racing Commissions.—Petitioners, regional Off-Track Betting

HORSE RACING—Cont'd

Corporations (OTBs) that accepted wagers on the simulcasts of nighttime thoroughbred races and were obligated under Racing, Pari-Mutuel Wagering and Breeding Law § 1017-a (2) (a) to make maintenance of effort payments to their regional harness tracks in order to hold the tracks harmless from the new competition, could not credit commissions from daytime harness racing against their maintenance of effort payments. The statute sets the baseline, or minimum, amount that OTBs must pay to harness tracks for the privilege of simulcasting evening thoroughbred racing; it must be at least the same level of payments received in 2002 from evening simulcasting. The amount of daytime harness racing commissions an OTB pays to a harness track is irrelevant in determining whether the OTB met its promised nighttime revenues threshold. *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559.

3. Maintenance of Effort Payments to Regional Harness Tracks — Payments to be Distributed on Track-by-Track Basis.—Petitioners, regional Off-Track Betting Corporations (OTBs) that accepted wagers on the simulcasts of nighttime thoroughbred races and were obligated under Racing, Pari-Mutuel Wagering and Breeding Law § 1017-a (2) (a) to make maintenance of effort payments to their regional harness tracks in order to hold the tracks harmless from the new competition, were required to make the maintenance of effort payments on a track-by-track basis, not a regional basis. Track-by-track payments are required by the explicit language of Racing, Pari-Mutuel Wagering and Breeding Law § 1017-a (2) (b), the purpose of which is to hold each track harmless from the potentially negative impact of permitting OTBs to simulcast nighttime out-of-state thoroughbred races. *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

COUNSEL FEES.

1. In a divorce action in which the parties disputed whether the terms of their prenuptial agreement applied to the ownership of assets upon divorce, plaintiff wife should not have been precluded as a matter of law from recovering counsel fees under Domestic Relations Law § 237 for services provided in opposing defendant husband's affirmative defense predicated on the prenuptial agreement. *Van Kipnis v Van Kipnis*, 11 NY3d 573.

EQUITABLE DISTRIBUTION.

2. Valuation of Assets — Commencement of Prior, Discontinued Divorce Action Not Proper Valuation Date.—The commencement of a prior, discontinued divorce action may not serve as the valuation date for marital property for purposes of equitable distribution in a later, successful divorce action. The trial court in a divorce action has broad discretion to select an appropriate date for measuring the value of marital property, provided it is between “the date of commencement of the action [and] the date of trial” (Domestic Relations Law § 236 [B] [4] [b]). Equitable distribution is available “in an action wherein all or part of the relief granted is divorce” (Domestic Relations Law § 236 [B] [5] [a]), and where there is no divorce, there can be no equitable distribution. To permit the commencement date of the prior, unsuccessful divorce action to govern the valuation date of marital property for the purposes of a later, successful action in which equitable distribution is available would be inconsistent with the statutory scheme. Although the commencement date of the later, successful action must serve as the earliest valuation date, the circumstances surrounding the commencement of the earlier action can and should be considered as a factor in the equitable distribution of marital property acquired after the start of such an action by either spouse. *Mesholam v Mesholam*, 11 NY3d 24.

HUSBAND AND WIFE—Cont'd

3. In a divorce action, the order of the Appellate Division brought up for review that affirmed a Supreme Court judgment with respect to the distribution of the parties' property was affirmed. Supreme Court did not abuse its discretion as a matter of law when distributing the marital property, as the record fully supported its affirmed findings and conclusions of law. *Farkas v Farkas*, 11 NY3d 300.

SUPPORT.

4. Maintenance — Termination of Support upon Cohabitation with Unrelated Adult.—Based upon her alleged cohabitation with an unrelated male, plaintiff former wife did not forfeit her right to spousal support payments under the parties' settlement agreement, which provided that such payments would terminate if she cohabited with an unrelated adult for a period of 60 consecutive days, in the absence of a definition of the term "cohabitation" in the agreement. The word "cohabitation" was ambiguous as used in the parties' agreement. Cohabitation is not necessarily determined by whether a couple shares household expenses or functions as a single economic unit. Neither the dictionary nor New York case law supplies an authoritative or "plain" meaning. Although the common element in various definitions of the word "cohabit" is "to live together," particularly in a relationship or manner resembling or suggestive of marriage, both bring to mind a variety of physical, emotional and material factors, and might mean any number of things in a separation or settlement agreement, where unexplained in the text, depending on the parties' intent. Nor does New York case law establish a distinct meaning—"changed economic circumstances"—for "cohabitation." *Graev v Graev*, 11 NY3d 262.

IMMIGRATION.

See ALIENS.

INDEMNITY.**CONTRACTUAL INDEMNIFICATION.**

1. Pursuant to section 5-322.1 of the General Obligations Law, a general contractor who had been found to be partially at fault for injuries sustained by its subcontractor's employee was allowed to enforce an indemnification provision against the subcontractor for that portion of damages attributable to the negligence of the subcontractor, since the indemnification provision obligated the subcontractor to indemnify the general contractor when the damages were caused by the subcontractor's own negligence and did not require the subcontractor to indemnify the general contractor for its own negligence. Leaving the general contractor liable for the negligent actions of its subcontractor would be contrary to the intent of General Obligations Law § 5-322.1 that payment of damages be made according to fault. The language of the indemnification provision which stated that "[t]he Subcontractor shall, to the fullest extent permitted by law, hold the Contractor . . . harmless from any and all liability" did not broaden the subcontractor's liability to require full contractual indemnification. Rather, that language contemplated partial indemnification and was intended to limit the subcontractor's contractual indemnity obligation solely to the subcontractor's own negligence. *Brooks v Judlau Contr., Inc.*, 11 NY3d 204.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DISCLAIMER OF COVERAGE.

1. Failure to Give Timely Notice of Lawsuit.—Defendant liability insurer was not required to defend plaintiff insured in the underlying personal injury action, and

INSURANCE—Cont'd

properly disclaimed coverage where plaintiff, as a result of its own error in failing to update the address it had listed with the Secretary of State as its agent to receive service of process (Limited Liability Company Law § 301), did not comply with a policy condition requiring timely notice of a lawsuit. Because plaintiff did not notify the Secretary of State of its change in address it did not know of the existence of the personal injury action until it was served directly with a motion for a default judgment some nine months after the action was commenced. Plaintiff failed to comply with the condition of the policy requiring it to give notice of a lawsuit to defendant “as soon as practicable.” While plaintiff’s mistake may have been understandable and caused no prejudice to the insurer, an insurer that does not receive timely notice in accordance with the policy provision may disclaim coverage, whether it is prejudiced by the delay or not. *Briggs Ave. LLC v Insurance Corp. of Hannover*, 11 NY3d 377.

2. Timeliness of Disclaimer on Basis of Noncooperation.—In an action by plaintiff insurer seeking a judgment declaring that its insured’s lack of cooperation in the two underlying dental malpractice actions brought against him terminated plaintiff’s obligation to defend and indemnify him in those actions, the Appellate Division erred in holding that plaintiff’s approximately two-month delay in disclaiming was unreasonable as a matter of law. Plaintiff was entitled to disclaim due to the insured’s noncooperation, and the time for disclaimer ran from the date when what became its final letters to the insured were returned unclaimed, but a question of fact remained regarding the amount of time required for plaintiff to complete its evaluation of the conduct of the insured over a period of almost six years. Had the insured openly disavowed his duty to cooperate, little time would have been needed to evaluate his noncooperative conduct before disclaiming. Here, however, he punctuated periods of noncompliance with sporadic cooperation or promises to cooperate, and some reasonably longer period for analysis may have been warranted. *Continental Cas. Co. v Stradford*, 11 NY3d 443.

DUTY TO DEFEND AND INDEMNIFY.

3. Defendant insurer was not required to defend or indemnify plaintiff insured in an underlying personal injury action. Plaintiff’s failure to give defendant notice of the accident until 5½ years after its occurrence when plaintiff was sued in a third-party action was unreasonable as a matter of law. Failure to give notice of an occurrence as soon as practicable relieves the insurer of its obligations under the contract, regardless of whether the insurer was prejudiced by the delay. Notice provided under the workers’ compensation policy at the time of the incident did not constitute notice under the liability policy even though both policies were written by the same carrier. Similarly, an additional insured’s notice to the carrier under a different policy did not excuse the insured’s obligation. *Sorbara Constr. Corp. v AIU Ins. Co.*, 11 NY3d 805.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.**DISCIPLINARY PROCEEDINGS.**

1. A determination of the State Commission on Judicial Conduct that petitioner Town Justice should be removed from office was accepted. Petitioner engaged in serious misconduct when he sat on a criminal matter involving his two stepgrandchildren and intervened in a case against his stepgrandson pending in another court through ex parte contact with the other judge. Petitioner also presided at the arraignment and bail proceeding of a former coworker’s son, even though he believed recusal would have been warranted had the case been before him on the merits, and subsequently vacated the bail order and released the defendant on his own

JUDGES—Cont'd

recognizance after participating in ex parte communications with the defendant's mother. Moreover, petitioner, after being involved in a minor motor vehicle accident with another motorist, repeatedly invoked his judicial status in an attempt to intimidate the other motorist. *Matter of LaBombard (State Commn. on Jud. Conduct)*, 11 NY3d 294.

2. A determination of the State Commission on Judicial Conduct that petitioner Family Court Judge should be removed from office was accepted. In five family offense proceedings petitioner violated litigants' rights either to be heard or to counsel or both when he entered defaults and sentenced them, in absentia, to jail. In denying litigants those rights he also violated Rules Governing Judicial Conduct (22 NYCRR) §§ 100.1, 100.2 (A), and § 100.3 (B) (1), (3), and (6). In four out of five of the proceedings, the due process violations resulted from two policies that petitioner effectuated in his courtroom for many years. One was a long-standing, unwritten policy that an incarcerated litigant would not be produced for a proceeding unless he or she specifically asked to be produced, and the other was that a litigant seeking assigned counsel in a family offense proceeding had to apply for a public defender within two weeks of initial appearance, regardless of the date of the hearing. Petitioner's steadfast adherence to long-standing policies that seriously compromised the due process rights of litigants evidenced a pattern of injudicious behavior justifying removal. *Matter of Jung (State Commn. on Jud. Conduct)*, 11 NY3d 365.

RECUSAL.

3. In a criminal prosecution, Appellate Term erred by seemingly considering a confidential opinion of the Advisory Committee on Judicial Ethics when deciding that the trial judge did not abuse his discretion in denying defendant's recusal motion. The opinion was not part of the record on appeal. However, the court correctly concluded that there was no legal disqualification under Judiciary Law § 14, and that the trial judge did not abuse his discretion when he made the discretionary recusal decision within the personal conscience of the court. *People v MacShane*, 11 NY3d 841.

SUSPENSION FROM OFFICE.

4. The Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8) (a), (c), suspended a Surrogate from office. *Matter of Anderson*, 11 NY3d 894.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

COLLATERAL ESTOPPEL.

1. Ruling Serving as Alternative Basis for Trial-Level Determination That Was Not Reviewed on Appeal.—In a legal malpractice action alleging that defendant law firm's negligence in defending a proceeding to compel a trust accounting from plaintiff caused her damage, the doctrine of collateral estoppel did not prevent relitigation of the ruling in the underlying proceeding that plaintiff had failed to show the statute of limitations had expired before the proceeding to compel was begun, as that was an alternative basis for the Surrogate's denial of plaintiff's motion to dismiss the objections to her accounting, and the Appellate Division affirmed the Surrogate's Court decision without addressing that ruling. When a decision rests on two independent grounds, either of which could support it alone, the general rule is that neither holding is binding for collateral estoppel purposes. That rule would not be rigidly applied if it were clear that the prior determination squarely addressed and specifically decided the issue to be determined in the subsequent action or proceeding. Here, however, plaintiff tried, unsuccessfully, to get appellate review of the alternative holding that subsequently was invoked against her. *Tydings v Greenfield, Stein & Senior, LLP*, 11 NY3d 195.

2. In an Insurance Law § 3420 action to recover an unsatisfied judgment against defendant's insured, collateral estoppel was erroneously applied to preclude defendant from litigating the issue of whether the car that collided with the bus in which the injured plaintiffs were traveling was insured on the date of the accident. Three

JUDGMENTS—Cont'd

prior judgments involving different parties' claims arising from the same bus accident had been submitted to the court. Two default judgments resolved the coverage issue against the insurer. In a third proceeding, the same coverage question had been adjudicated, resulting in a judgment in the insurer's favor. In light of these conflicting judgments on the same issue, application of the doctrine of collateral estoppel was not warranted. *Gaston v American Tr. Ins. Co.*, 11 NY3d 866.

FOREIGN JUDGMENT.

3. Comity — Judgment Unenforceable in Rendering Jurisdiction Not Subject to Enforcement in New York.—The doctrine of comity did not require New York courts to enforce a money judgment against a State of Louisiana agency that was unenforceable in Louisiana due to constitutional and statutory limitations. Comity is a voluntary decision by one state to defer to the policy of another, especially in the face of a strong assertion of interest by the other jurisdiction. Here, Louisiana had expressed its public policy and its own courts had recognized the validity of that policy. There was no compelling interest in providing New York as a forum for redress. The flood that caused damages to plaintiffs' homes and properties, and resulted in the judgment at issue, occurred in Louisiana and all litigation that arose from the flood was brought in Louisiana. The rights of New Yorkers were not involved in the matter. *Boudreaux v State of La., Dept. of Transp.*, 11 NY3d 321.

4. Full Faith and Credit — Judgment Unenforceable in Rendering Jurisdiction Not Subject to Enforcement in New York.—Neither the Full Faith and Credit Clause of the United States Constitution (US Const, art IV, § 1) nor CPLR article 54 required New York courts to enforce a money judgment against a State of Louisiana agency that was unenforceable in Louisiana due to constitutional and statutory limitations. Plaintiffs could not circumvent Louisiana's clear mandate that no judgment rendered against it shall be paid unless its Legislature appropriates funds. The Full Faith and Credit Clause requires that a court provide a foreign judgment with the same credit, validity and effect that it would have in the state that pronounced it. *Boudreaux v State of La., Dept. of Transp.*, 11 NY3d 321.

RES JUDICATA.

5. Dismissal without Prejudice Due to Corporation's Lack of Capacity No Bar to Subsequent Action by Successor Corporation.—A judgment dismissing the complaint in a legal malpractice action "without prejudice," on the basis of the corporate plaintiff's lack of capacity, did not have res judicata effect on the subsequent legal malpractice action brought by the corporation's successor. Here, there was no valid final judgment deciding the merits of the claim asserted by the successor corporation. Although the successor corporation initially lacked capacity to initiate the subject litigation because it had been dissolved for failure to pay franchise taxes, this deficiency was cured when it paid the required fees (*see* Tax Law § 203-a [7]). A dismissal "without prejudice" lacks a necessary element of res judicata—by its terms such a judgment is not a final determination on the merits. The only matters litigated below concerned the standing and/or capacity of the original corporate plaintiff, its principal and the successor corporation to assert a legal malpractice cause of action against defendants. The merit of the successor corporation's legal malpractice claim was not previously addressed. *Landau, PC. v LaRossa, Mitchell & Ross*, 11 NY3d 8.

6. Privity — Attorney General in Privity with Consumers Who Settled Class Action Suit.—In a special proceeding initiated by the Attorney General alleging that respondents engaged in a fraudulent and deceptive credit card solicitation scheme and seeking restitution, civil penalties, and injunctive relief for violations of the Executive Law and Consumer Protection Act (*see* Executive Law § 63 [12]; General Business Law §§ 349, 350), petitioner was precluded under the doctrine of res judicata from recovering restitution on behalf of the consumers who were part of the settling class in a prior nationwide class action settlement agreement against respondents. Although petitioner's interest in seeking restitution on behalf of the settling consumers might have been broader than the consumers' individual pecuniary concerns, the consumers were entitled to only one opportunity to obtain make-whole relief, and to allow petitioner to seek additional restitution on their behalf

JUDGMENTS—Cont'd

would destroy or impair rights conclusively established in the class action. As one specific portion of the relief sought by petitioner was identical to that which the New York members of the settlement class had already pursued to a final and binding judgment, there was privity as to that measure of relief. *Matter of People v Applied Card Sys., Inc.*, 11 NY3d 105.

SUMMARY JUDGMENT.

7. Timeliness of Motion.—In a Human Rights Law action commenced in Supreme Court, defendants timely filed a motion for summary judgment 62 days after plaintiff filed the note of issue. At the time that the IAS Judge issued a preliminary conference order (PCO) directing that motions be made “per local rule,” Rules of the Justices of the Supreme Court, Civil Branch, New York County, rule 17 provided that summary judgment motions be made no later than 60 days after the filing of the note of issue. The IAS Judge had no individual part rule regarding summary judgment motions. Shortly before plaintiff filed her note of issue, rule 17 was amended to provide a 120-day window and the IAS Judge had modified her part rules to provide for a 60-day summary judgment window. Inasmuch as the IAS Judge had no individual part rule at the time of the PCO, “per local rule” could only have referred to rule 17. In that the 120-day amended rule 17 was in effect at the time the note of issue was filed, defendants’ motion was timely. *Crawford v Liz Claiborne, Inc.*, 11 NY3d 810.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. Volunteers.—Plaintiff, who had agreed to construct a shed on defendants’ property in exchange for being allowed to participate in a turkey hunt on the property, was not covered by the strict liability provisions of Labor Law § 240 (1) in his action to recover damages for injuries he sustained when he fell from a ladder while constructing the shed. The strict liability provisions of Labor Law § 240 (1) apply to employees but not to persons who volunteer to work on a project. An individual does not become an employee covered by Labor Law § 240 (1) by providing casual, uncompensated assistance to another person with a repair or construction project in an informal arrangement that does not give rise to mutual duties or obligations between them and bears none of the traditional hallmarks of an employment relationship. Here, plaintiff was interested in hunting turkeys, and in return for being allowed to do so, he volunteered to construct a shed with no expectation of being paid a wage or salary. It was an informal arrangement between plaintiff and the individual defendant’s son, who did not control or supervise plaintiff’s efforts, and neither man assumed a contractual obligation to the other. *Stringer v Musacchia*, 11 NY3d 212.

2. Falling Object.—In an action to recover damages for injuries sustained when plaintiff allegedly was struck by falling planks that had been placed over open doors as a makeshift shelf to facilitate the installation of an air conditioner above a doorway, plaintiff was properly denied partial summary judgment on his Labor Law § 240 (1) claim. “Falling object” liability under Labor Law § 240 (1) is not limited to cases in which the falling object is in the process of being hoisted or secured. Here, triable questions of fact existed, including whether the planks were adequately secured in light of the purposes of the plank assembly and whether plaintiff caused the accident by jostling the doors after disregarding a warning not to enter the doorway area. *Quattrocchi v F.J. Sciamè Constr. Corp.*, 11 NY3d 757.

3. Defendants’ motion for summary judgment dismissing plaintiff laborer’s Labor Law § 240 (1) claim was granted. Plaintiff, who had been installing ceiling racks, fell while descending a ladder which was placed in a position where two uncon-

LABOR—Cont'd

nected pipes protruded from the wall near the lower two rungs. No Labor Law § 240 (1) liability exists where an injury results from a separate hazard wholly unrelated to the risk which brought about the need for the safety device in the first place. The pipes' presence was not the risk which brought about the need for the ladder, but was one of the usual and ordinary dangers at a construction site to which the protections of Labor Law § 240 (1) do not extend. *Cohen v Memorial Sloan-Kettering Cancer Ctr.*, 11 NY3d 823.

WHISTLEBLOWER LAW.

4. Election of Remedies.—Plaintiff did not waive her right to pursue a Labor Law § 741 (Health Care Whistleblower Law) claim against her former employer by having asserted a time-barred, and subsequently withdrawn, Labor Law § 740 (Whistleblower Law) claim in her original complaint. Although Labor Law § 740 (7) contains an election-of-remedies provision, thus contemplating that a plaintiff will choose whether to file a section 740 whistleblower claim or some other claim, no election of remedies is implicated when sections 741 and 740 are pleaded together, or when section 741 is pleaded after a plaintiff has instituted a section 740 claim. Labor Law § 741 does not create its own private right of action, but rather contemplates enforcement through a Labor Law § 740 (4) civil suit. The elements of sections 740 and 741 are uniquely interconnected in that every section 741 claim expressly relies on and incorporates section 740 for purposes of enforcement. *Reddington v Staten Is. Univ. Hosp.*, 11 NY3d 80.

5. Health Care Whistleblower Law — Covered Employee.—Plaintiff, who was formerly employed by defendant hospital as the coordinator and manager of volunteer services and then director of the International Patient Program, was not entitled to bring a claim for retaliatory personnel action against defendant under Labor Law § 741 (Health Care Whistleblower Law). The exceptional and specialized whistleblower protection of Labor Law § 741 is over and above the generalized protection afforded by Labor Law § 740 (Whistleblower Law), and is meant to safeguard only those employees who are qualified by virtue of training and/or experience to make knowledgeable judgments as to the quality of patient care, and whose jobs require them to make these judgments. It extends only to those health care employees who “perform[] health care services” (Labor Law § 741 [1] [a]), meaning the employee must actually supply health care services, and not merely coordinate with those who do. *Reddington v Staten Is. Univ. Hosp.*, 11 NY3d 80.

LABOR UNIONS.**INJUNCTION IN LABOR DISPUTE.**

1. Federal Preemption.—Plaintiffs' private nuisance cause of action, stemming from defendant Union's loud drumming outside of plaintiff managing agent's premises publicizing the Union's efforts to organize employees of the private security firm retained by plaintiff, was not preempted by the National Labor Relations Act. State regulations or causes of action may be maintained if the behavior to be regulated is of only peripheral concern to the federal law or touches interests deeply rooted in local feeling and responsibility. The controversy at issue—whether the drumming constituted a private nuisance—was distinctly different from the unfair labor practice charges against the Union filed by the private security firm with the National Labor Relations Board (NLRB), which involved allegations that the Union engaged in impermissible picketing and coercive conduct. There was no risk that the trial court's adjudication of the nuisance action would result in a significant risk of misinterpretation of federal labor law or in the consequent prohibition of protected conduct because the trial court restricted its imposition of the preliminary injunction to the drumming. The finding of the NLRB that “the use of the drum . . . was [not] sufficient to transform the leafleting activity into unlawful conduct” did not, ipso facto, render the drumming protected conduct. Moreover, plaintiffs' nuisance claim involved local interests such that it could not be inferred that Congress intended to deprive the State of the power to act. *Helmsley-Spear, Inc. v Fishman*, 11 NY3d 470.

2. Federal Preemption.—Plaintiffs' private nuisance cause of action, stemming from defendant Union's loud drumming outside of plaintiff managing agent's

LABOR UNIONS—Cont'd

premises publicizing the Union's efforts to organize employees of the private security firm retained by plaintiff, was not preempted by the proscription against state regulation and state law causes of action concerning employers' and unions' use of economic weapons and self-help remedies. The drumming at issue did not constitute such an economic weapon or self-help remedy. *Helmsley-Spear, Inc. v Fishman*, 11 NY3d 470.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

RENT REGULATION.

1. Primary Residence.—Absent unusual facts not present here, defendant, a foreign national in the United States on a B-2 tourist visa, could not meet the "primary residence" requirement of New York City's rent regulations and could be ejected from her rent stabilized apartment on the ground that the premises were not occupied as her primary residence (Rent Stabilization Code [9 NYCRR] § 2524.4 [c]). The holder of a B-2 visa is required to have a "principal, actual dwelling place" outside the United States (*see* 8 USC § 1101 [a] [15] [B]; [a] [33]). Thus, if her B-2 visa were valid, defendant had a "principal, actual dwelling place in fact" outside the United States. Defendant did not explain how she could at the same time have a "primary residence" in New York City. Accordingly, at least absent some unusual circumstance, a primary residence in New York and a B-2 visa are logically incompatible. *Katz Park Ave. Corp. v Jagger*, 11 NY3d 314.

2. In a proceeding seeking to annul a determination of respondent Division of Housing and Community Renewal (DHCR) directing the landlord to refund rent overcharges, DHCR properly applied the Rent Regulation Reform Act of 1997, which prohibits examination of rental events occurring more than four years prior to the filing of a complaint, to the overcharge complaint filed in 1987. The proceeding was pending before DHCR at the time of the Act's enactment. Moreover, DHCR had record support to conclude that, in arguing for a higher base rent, the owner had relied on an illusory tenancy given that the tenant never occupied the apartment in the prior five-year tenancy but re-leased it at a profit to corporate entities. Thus, DHCR appropriately applied the default formula to set the base rent since no reliable rent records were available. *Matter of Partnership 92 LP v State of N.Y. Div. of Hous. & Community Renewal*, 11 NY3d 859.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.**WHEN CAUSE OF ACTION ACCRUES.**

1. Proceeding to Compel Accounting.—In a legal malpractice action alleging that defendant law firm's negligence in defending a proceeding to compel a trust accounting from plaintiff caused her damage, the Court of Appeals reaffirmed the ruling in *Spallholz v Sheldon* (216 NY 205 [1915]) that the six-year statute of limitations applicable to an accounting proceeding against a former trustee (*see* CPLR 213 [1]) begins to run when the trust relation is at an end, and the trustee has yielded the estate to a successor. *Tydings v Greenfield, Stein & Senior, LLP*, 11 NY3d 195.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MARRIAGE.**PRENUPTIAL AGREEMENT.**

1. Enforceability of French Prenuptial Agreement Providing for Separation of Estates Regime.—A prenuptial agreement that was executed in France and provided for the separate ownership of assets held in the parties' respective names during the course of the marriage was enforceable in a subsequent divorce action to preclude equitable distribution of the parties' separately owned assets. The Domestic Relations Law contains no categorical requirement that a prenuptial agreement must set forth an express waiver of equitable distribution. Rather, when read together, Domestic Relations Law § 236 (B) (1) (d) (4) and (5) (b) provide that assets designated as separate property by a prenuptial agreement will remain separate after dissolution of the marriage. Here, with the exception of two jointly owned residences, which were distributed as marital property, the parties did not commingle their separately owned assets throughout their marriage. *Van Kipnis v Van Kipnis*, 11 NY3d 573.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**COLLISION.**

1. Proximate Cause.—In an action arising out of a three-car accident, which occurred on a slush-covered roadway while it was snowing, defendant corporation and its driver were not entitled to summary judgment dismissing the complaint against them. Defendant driver lost control of her eastbound vehicle, in which the infant plaintiff was a passenger, collided with a nonparty's westbound vehicle, caromed off that vehicle back into the eastbound lane, and collided with codefendant corporation's vehicle, whose driver had been traveling westbound behind the nonparty but had moved into the eastbound lane to avoid the collision. Plaintiffs raised triable issues of fact concerning whether the codefendant's driver acted negligently in traveling at an excessive speed and in following too closely to the nonparty's vehicle, given the road and weather conditions and, if so, whether such negligence was a proximate cause of the accident. *Frutchey v Felicita*, 11 NY3d 764.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

BIDS AND BIDDERS.

1. Recycling Contract.—Respondent Town, which passed a resolution authorizing the use of the request for proposals (RFP) procedures under General Municipal Law § 104-b for the procurement of goods and services not subject to competitive bidding, properly awarded a contract to respondent recycling company using an RFP that had been issued by the Town's Department of Public Works. Public work contracts that require the exercise of specialized or technical skills, expertise or knowledge are not subject to the sealed, competitive bidding requirements under General Municipal Law § 103 and may be awarded using the RFP process. Based on the particular services to be rendered in the RFP, including recycling newspaper, mixed paper, corrugated cardboard, commingled glass, ferrous and nonferrous metal and rigid plastic containers, the recycling contract fell within the special skills

MUNICIPAL CORPORATIONS—Cont'd

exception to the “lowest responsible bidder” requirement of section 103 (1). *Matter of Omni Recycling of Westbury, Inc. v Town of Oyster Bay*, 11 NY3d 868.

SIDEWALKS.

2. Prior Notice of Defective Condition.—Plaintiffs, who fell while walking in New York City, could not recover damages from the City for their resultant injuries because the maps submitted to the City by Big Apple Pothole and Sidewalk Protection Corporation before each plaintiff’s accident did not give the City the requisite prior written notice of the sidewalk defects at issue (*see* Administrative Code of City of NY § 7-201 [c] [2]). The symbol indicating “[r]aised or uneven portion of sidewalk” where one plaintiff fell was insufficient in the absence of evidence that such a defect caused that plaintiff’s injury. With respect to the other plaintiff, who tripped over an “elevation on the sidewalk,” no unadorned straight line, the symbol for a raised portion of the sidewalk, appeared on the Big Apple map at the relevant location. *D’Onofrio v City of New York*, 11 NY3d 581.

WATER AND SEWER RATES.

3. Exemption.—Petitioner Church, which owned and operated a building used for religious instruction and worship, was not entitled to an exemption from city water and sewer charges for the building pursuant to laws exempting from such charges real property used by a religious corporation exclusively as a place of public worship (*see* L 1887, ch 696, as amended [water exemption statute]; Administrative Code of City of NY § 24-514 [e]), where the building contained two apartments for two caretakers. The City agencies responsible for implementing the water exemption statute had consistently interpreted it sparingly, reading the phrase “*actually dedicated and used . . . exclusively* as a place of public worship” (emphasis added) to exempt from water charges only that portion of a religious corporation’s property in fact used for public worship, plus a single caretaker residence. Having permitted the exemption for a single caretaker residence—an interpretation neither mandated nor prohibited by the statute—the agencies were not compelled to allow additional incidental uses. Furthermore, although Real Property Tax Law § 420-a (1) exempts from taxation any real property owned by a corporation or association organized or conducted exclusively for religious purposes, if used exclusively for such purposes, and the term “exclusively,” in this context, has been broadly defined to connote “principal” or “primary,” there was no basis, as a matter of legislative intent, to conclude that “exclusively” was to mean the same thing in the two statutes. *Matter of Brooklyn Assembly Halls of Jehovah’s Witnesses, Inc. v Department of Envtl. Protection of City of N.Y.*, 11 NY3d 327.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

MAINTENANCE OF PREMISES.

1. Failure to Keep Light in Apartment Building Fire-Stairs Burning Continuously — Defense of Owner’s Lack of Knowledge or Consent.—In an action to recover damages for injuries plaintiff sustained when she fell down the unlit fire-stairs of defendants’ apartment building, defendants were entitled to assert the lack of “knowledge or consent” defense contained in Multiple Dwelling Law § 37 (2) to the allegation that they were guilty of negligence per se for having violated the requirement of Multiple Dwelling Law § 37 (3) that “[e]very light in every fire-stair . . . shall be kept burning continuously.” Subdivision (1) of Multiple Dwelling Law § 37 imposes a requirement that lights be provided in certain public areas, including “every . . . fire-stair,” and subdivision (2) states a durational requirement for the turning on of the lights, subject to the exception provided in subdivision (3). Subdivision (2) also provides for a defense to an action premised on a violation of the statute that relieves an owner from liability if the light “becomes extinguished and remains so without the knowledge or consent of the owner.” That defense applies to

NEGLIGENCE—Cont'd

the extinguishment of any lights required by subdivision (1), whether they are required to be on only at night per subdivision (2), or continuously per subdivision (3). The statement in subdivision (3) that lights in windowless areas “shall be kept burning continuously” is an exception to the rule that lights need be on only at night and does not create a new liability to which there is no defense. *Kopsachilis v 130 E. 18 Owners Corp.*, 11 NY3d 512.

2. Lead Paint Poisoning.—In an action arising from the infant plaintiffs’ alleged ingestion of lead paint while residing in a building owned by the City of New York, an Appellate Division order which affirmed an order dismissing plaintiffs’ claim against the City, except those claims relating to plaintiffs’ second period of occupancy in the City’s building, and granted plaintiffs’ cross motion to the extent of deeming the notices of claim timely served, was affirmed for the reasons stated at the Appellate Division. That Court concluded that whether the City had notice of an infant resident was a triable issue of fact which precluded summary judgment; and that the small size of the building, and the fact that the superintendent was familiar with plaintiffs from a prior period of occupancy, as well as the uncontroverted affidavits and deposition testimony indicating that the superintendent was aware of the plaintiffs’ presence on the premises at the time in question, all served to create an issue of fact on the question of notice to the City. *Peri v City of New York*, 11 NY3d 756.

3. In a personal injury action in which plaintiff allegedly tripped on a metal sidewalk grating owned by defendant power company, defendant’s evidentiary submissions, including uncontested testimony of an employee that he had inspected the grate less than five months before the accident and found no defect, were sufficient to establish its prima facie entitlement to judgment as a matter of law on the ground that it neither created nor had actual or constructive notice of the one-inch bulge in the sidewalk grating. Plaintiff’s introduction of postaccident photographs, which were not probative of the duration of the bulge, and the conclusory affidavit from his expert, were insufficient to raise a triable issue of fact. *Di Sanza v City of New York*, 11 NY3d 766.

4. Defendant apartment owners and managers were entitled to summary judgment dismissing plaintiff tenant’s personal injury action to recover damages for a toxic mold condition in her apartment. Plaintiff failed to raise any triable factual issues regarding whether defendants created, or had notice of persistent water leaks that foreseeably could result in, a hazardous mold condition. In April, plaintiff notified landlord about a small spot with surrounding wetness in her wall. Once the steam was turned on in October, and a cracked steam pipe was repaired, there was no further complaint. Additionally, in response to plaintiff’s complaint that during summer months the air conditioners dripped, building staff from time to time changed the filters. However, plaintiff never complained that the air conditioners dampened her carpet, or that the areas smelled musty or moldy. Further, she vacated the apartment three months before notifying defendants of the claimed mold condition. *Litwack v Plaza Realty Invs., Inc.*, 11 NY3d 820.

5. Slip and Fall.—In an action to recover for injuries plaintiff sustained when she slipped and fell on a small piece of carpet lying in the walkway to an outdoor dump site on defendant’s premises as she returned from leaving a trash bag at the site, an Appellate Division order which had granted defendant’s motion for summary judgment dismissing the complaint against it was affirmed. Plaintiff failed to raise a triable issue of fact that defendant caused or created, or had constructive notice of a dangerous recurring condition. *DeJesus v New York City Hous. Auth.*, 11 NY3d 889.

PROXIMATE CAUSE.

6. In an action to recover damages for injuries plaintiff construction worker sustained when defendant power company’s driver stopped his van in the street near plaintiff’s work truck to give plaintiff pipe hangers, and plaintiff, who was standing between his truck and defendant’s van, took the hangers, walked away two or three steps, turned his back toward the van to work on a vise, was knocked over and his foot was crushed, an Appellate Division order, which affirmed an order granting defendants summary judgment, was reversed. The plaintiff presented is-

NEGLIGENCE—Cont'd

sues of fact as to how his foot was crushed and whether his injuries were a result of the power company driver's negligence. *McCleery v Consolidated Edison of N.Y., Inc.*, 11 NY3d 778.

WHAT CONSTITUTES.

7. Failure of Indenture Trustee to Deliver Debt Transaction Registration Statements.—In an action arising out of the issuance of a series of debt securities, plaintiffs stated a claim for negligence against defendant indenture trustee based on defendant's alleged failure to deliver debt transaction registration statements arguably required to secure the debt, where plaintiffs had approved the issuers' bankruptcy reorganization plan, settled their claims against the issuers by accepting a discounted value for the notes at issue and agreed to "release" defendant indenture trustee in accordance with the reorganization plan. The release executed by plaintiffs did not shield defendant from its own acts of negligence since it only applied to claims for which the issuers would have to indemnify defendant under the respective indentures, which specifically excluded acts of negligence from the issuers' indemnification obligations. Because it was undisputed that defendant and the issuers executed the debt transaction registration statements, that the statements called for defendant to deliver same to the collateral trustee and that defendant failed to deliver the statements or ensure that the statements were delivered, there were issues of fact as to whether defendant, separate and apart from its contractual duty under the statements, undertook and breached a duty of care, connected with and dependent upon the statements, to act in accordance with the statements and the Collateral Trust Agreement (CTA) registration requirements to protect plaintiffs' security rights in the CTA collateral and whether plaintiffs sustained significant losses as a result of this alleged breach. *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

PARENT AND CHILD.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

PAROLE.**DENIAL.**

1. Consideration of Parole Board's Written Determination.—In denying a petition to annul the Parole Board's determination which had denied petitioner's parole request, the courts below applied the correct legal standards and properly considered the Board's written determination, which, when evaluated in the context of the parole hearing transcript, demonstrated that the Board considered the required statutory factors (Executive Law § 259-i). The Board's written determination, while less detailed than it might have been, was not merely "conclusory" and so did not violate Executive Law § 259-i (2) (a) (i). *Matter of Siao-Pao v Dennison*, 11 NY3d 777.

PARTIES.**NECESSARY PARTIES.**

1. Effect of Expiration of Statute of Limitations.—A CPLR article 78 proceeding to review a town assessor's assessment methodology was properly dismissed, without

PARTIES—Cont'd

considering the five discretionary factors under CPLR 1001 (b), based on petitioners' failure to join the county and school district as necessary parties prior to the expiration of the four-month limitations period. Where a necessary party is subject to the jurisdiction of the court, CPLR 1001 (b) directs that the court "order him summoned," and the party must be joined. Joinder of a necessary party may be excused "[i]f jurisdiction over him can be obtained only by his consent or appearance," upon the court's consideration of five discretionary factors (CPLR 1001 [b]). Inasmuch as a statute of limitations does not deprive a court of jurisdiction, the county and school district were subject to the court's jurisdiction. Since the county and school district established their right to dismissal of the amended petition against them due to the expiration of the limitations period, the case against the assessor was properly dismissed due to petitioners' failure to join them as necessary parties (CPLR 1003). *Windy Ridge Farm v Assessor of Town of Shandaken*, 11 NY3d 725.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCEEDING AGAINST BODY OR OFFICER.

PROHIBITION.

1. In a proceeding to bar retrial of petitioner in an underlying criminal prosecution, the Appellate Division properly concluded that petitioner failed to demonstrate a clear legal right to the remedy of prohibition. *Matter of DeFilippo v Rooney*, 11 NY3d 775.

PROCESS.

SERVICE WITHOUT STATE.

1. Forfeiture of Proceeds or Instrumentality of Crime.—In a forfeiture proceeding instituted pursuant to CPLR article 13-A in which plaintiff District Attorney sought to obtain proceeds of an allegedly illegal international money transfer scheme engaged in by defendants, operating out of Brazil, service of process pursuant to CPLR 313 on defendants in Brazil was sufficient to confer personal jurisdiction in the absence of treaties or international agreements supplanting New York's service requirements. CPLR 313 contains no requirement that a foreign locale's service of process requirements be fulfilled in order to effectuate service in a New York action upon a defendant in another country. The statute clearly states that service may be made without the state in the same manner as service is made within the state. Principles of international comity did not mandate a different result. The doctrine has never been applied to import the laws of a foreign country into a New York lawsuit. All due process requirements were met and proper service upon those defendants timely served was effected. *Morgenthau v Avion Resources Ltd.*, 11 NY3d 383.

PRODUCTS LIABILITY.

DEFECTIVELY DESIGNED PRODUCT.

1. Cigarettes — Failure to Prove Alternative Equivalence in Function or Utility.—Defendant tobacco companies were entitled to a directed verdict and judgment

PRODUCTS LIABILITY—Cont'd

notwithstanding the verdict with respect to plaintiffs' claims for negligent product design in an action premised upon the deceased plaintiff's development of lung cancer and another condition allegedly caused by smoking. While plaintiffs claimed that defendants should have used lower levels of tar and nicotine in their products, plaintiffs failed to prove that light cigarettes—cigarettes containing significantly lower levels of tar and nicotine—were equivalent in function, or utility, to regular cigarettes. The function of a cigarette is to give pleasure to a smoker, and plaintiffs made no attempt to prove that light cigarettes perform that function as well as regular cigarettes. *Adamo v Brown & Williamson Tobacco Corp.*, 11 NY3d 545.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

ETHICS.

1. Lifetime Bar Provision.—Respondent New York State Ethics Commission properly determined that petitioner, a former employee of the New York State Department of Health who had served as executive director of a project that developed and implemented the system used to determine Medicaid reimbursement rates for nursing homes, violated the “lifetime bar” provision of Public Officers Law § 73 (8) (a) (ii) when he was compensated by a group of nursing homes for executing an expert affidavit to support their litigation challenging that system which took “unfair advantage of his insider’s knowledge.” Public Officers Law § 73 (18) provides that “any person who knowingly and intentionally violates the provisions of subdivision[] . . . eight . . . shall be subject to a civil penalty.” In imposing a civil penalty upon petitioner under Public Officers Law § 73 (18) for that violation, respondent needed only to show that petitioner was aware of the nature or circumstances regarding the submission of the expert affidavit on the Medicaid reimbursement system, a matter in which he personally participated, and had the conscious objective to prepare the expert affidavit. Respondent was not required to show that petitioner knew the statements in the affidavit violated the lifetime bar or that he purposely acted to violate the law. *Matter of Gormley v New York State Ethics Commn.*, 11 NY3d 423.

VACANCY IN OFFICE.

2. Member of Assembly.—The Board of Elections in the City of New York was not required to conduct primary and general elections to fill a vacancy in the public office of Member of the New York State Assembly for the 40th District for the term of office ending December 31, 2008, where the vacancy occurred on April 8, 2008. Although Public Officers Law § 42 (1) generally provides for the filling of vacancies at the next general election if the vacancy occurs before September 20th, subdivision (4) modifies the general rule for vacancies occurring in the office of Member of the Assembly. Under subdivision (4), a special election to fill a vacancy occurring in such office can be held only in limited circumstances, not present here, and if such special election is not held as required by law, the office—meaning the new upcoming Assembly term, not the vacancy—shall be filled at the next general election. The words “term,” “office” and “vacancy” were not used by the Legislature interchangeably in the statute. *Matter of Barron v Board of Elections in City of N.Y.*, 11 NY3d 745.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECORDS.**FREEDOM OF INFORMATION LAW.**

1. Insurers' Regulation 90 Reports.—Petitioner was entitled to disclosure under the Freedom of Information Law (FOIL) of reports filed annually by insurers with the State Insurance Department pursuant to 11 NYCRR 218.7 (Regulation 90 reports) consisting of information, compiled by zip code, concerning automobile insurance policies that had been issued, renewed, cancelled (other than for nonpayment of premium) or nonrenewed. Although Regulation 90 reports are public records (see 11 NYCRR 218.7 [d]), an insurer has the right to assert that some information required to be included in the reports is exempt from disclosure under FOIL. In this case the Department and the insurers failed to meet their burden of establishing that the reports were exempt from disclosure under Public Officers Law § 87 (2) (d) as they alleged. Although the insurers claimed that competitors could use information regarding zip codes of areas where relatively few policies were issued to exploit an insurer's geographic weak spot, it was not shown that disclosure of the zip code data, without more, would necessarily put an insurer at a competitive disadvantage. *Matter of Markowitz v Serio*, 11 NY3d 43.

SEALING OF RECORDS UPON TERMINATION OF CRIMINAL ACTION IN FAVOR OF ACCUSED.

2. In a special civil proceeding brought pursuant to CPL 160.50 to vacate a sealing order after the dismissal of criminal charges against respondent police officer, petitioners, who had commenced a disciplinary proceeding against respondent arising from the same matters underlying the criminal charges, were entitled to certain sealed records, including property tags, bags and logs showing the chain of custody of money surrendered by persons arrested by respondent, and other records generated in the investigations of those arrests. These records were not "official records" within the meaning of CPL 160.50 (1) (c) and, thus, were not subject to a CPL 160.50 seal. *Matter of City of Elmira v Doe*, 11 NY3d 799.

REFERENCES.**CONFIRMATION OF REPORT.**

1. Where a trial court appoints a special referee pursuant to CPLR 3104 ("Supervision of disclosure"), and not CPLR 4320 ("Reference to report"), there is no requirement that the referee's order be confirmed by the court in the absence of a request for review by a party. *Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843.

RELEASE.**SCOPE OF RELEASE.**

1. Failure of Indenture Trustee to Deliver Debt Transaction Registration Statements — Release of Indenture Trustee Following Issuer's Bankruptcy.—In an action arising out of the issuance of a series of debt securities, plaintiffs did not have viable claims against defendant indenture trustee for breach of contract and violation of the federal Trust Indenture Act (15 USC § 77aaa *et seq.*) based on defendant's alleged failure to deliver debt transaction registration statements arguably required to secure the debt, where plaintiffs had approved the issuers' bankruptcy reorganization plan, settled their claims against the issuers by accepting a discounted value for the notes at issue and agreed to "release" defendant in accordance with the reorganization plan. Under the plain terms of the release, its scope was based on the

RELEASE—Cont'd

terms of the indemnification provision set forth in each indenture. The indentures provided that the issuers would indemnify defendant for and hold it harmless against all claims except those based on defendant's negligence, bad faith or willful misconduct. As plaintiffs' breach of contract and Trust Indenture Act claims against defendant were not based on defendant's negligence, bad faith or willful misconduct, these claims fell under the category of "allowed claim for indemnification" and were barred pursuant to the release. *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146.

RELIGIOUS CORPORATIONS AND ASSOCIATIONS.**DETERMINATION OF CLAIM TO REAL PROPERTY.**

1. Express Trust.—Defendant local Episcopal parish held its real and personal property in trust for the benefit of plaintiff Diocese and nonparty Protestant Episcopal Church in the United States of America (National Church), such that upon defendant's separation from the Diocese its property reverted back to the Diocese or the National Church. Application of the neutral principles doctrine to church property disputes requires a court to focus on the language of the deeds, the terms of the local church charter, the state statutes governing the holding of church property, and the provisions in the constitution of the general church concerning the ownership and control of church property, and to determine whether those documents indicate that the parties intended to create a trust or restriction. Here, nothing in the deeds established an express trust, defendant's certificate of incorporation did not indicate that the church property was to be held in trust, and there was no provision of the Religious Corporations Law that conclusively established a trust in favor of either the Diocese or the National Church. However, under the Dennis Canons, adopted in 1979 by the General Convention of the National Church, a parish holds its property in trust for the Diocese and the National Church, and defendant agreed to abide by the express trust established by the Dennis Canons either upon incorporation or upon recognition as a parish in spiritual union with the Diocese. Although the Dennis Canons were adopted nearly 30 years after defendant became a parish, defendant had agreed to abide by all "canonical and legal enactments," and it was unlikely that the parties intended that defendant could reserve a veto over every future change in the canons. Moreover, defendant never objected to the applicability or attempted to remove itself from the reach of the Dennis Canons in the more than 20 years since the National Church adopted the express trust provision. *Episcopal Diocese of Rochester v Harnish*, 11 NY3d 340.

ELECTIONS.

2. In a proceeding commenced under the Not-for-Profit Corporation Law in 2001, because the Hindu Temple Society of North America was incorporated in 1970 under article 9 of the Religious Corporations Law, which provides for self-perpetuating boards of trustees, the Appellate Division erred in requiring the conduct of an election of trustees by members as prescribed by bylaws adopted in 1970 that were never implemented. The provisions of the Society's 1970 bylaws that called for election of trustees contradicted article 9 of the Religious Corporations Law and were invalid from their inception. In any event, the 1970 bylaws had long since been abandoned. The Society was run in accordance with bylaws first adopted in 1978, which provided for a self-perpetuating board. Resuscitation of the 1970 bylaws was not warranted. *Matter of Venigalla v Nori*, 11 NY3d 55.

JUDICIAL REVIEW.

3. Resolution Dissolving Parish.—The resolution by a diocese deeming a local Episcopal parish "extinct" was an ecclesiastical determination not subject to judicial review. *Episcopal Diocese of Rochester v Harnish*, 11 NY3d 340.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

SECURED TRANSACTIONS.**SECURITY AGREEMENTS.**

1. Breach of Fiduciary Duty — Failure of Indenture Trustee to Deliver Debt Transaction Registration Statements.—In an action arising out of the issuance of a series of debt securities, plaintiffs did not have a viable claim against defendant for breach of fiduciary duty as indenture trustee based on defendant's alleged failure to deliver debt transaction registration statements arguably required to secure the debt, where plaintiffs had approved the issuers' bankruptcy reorganization plan, settled their claims against the issuers by accepting a discounted value for the notes at issue and agreed to "release" defendant in accordance with the reorganization plan. An indenture trustee owes a duty to perform its ministerial functions with due care, and if this duty is breached the trustee will be subjected to tort liability. There was no provision in the indentures at issue that placed fiduciary obligations on defendant prior to an event of default. Further, fiduciary obligations are wholly different from the performance of ministerial functions with due care. Finally, mere allegations that a fiduciary duty exists, with nothing more, are insufficient to withstand summary judgment. *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146.

2. Breach of Fiduciary Duty — Secured Party Representative — Failure of Indenture Trustee to Deliver Debt Transaction Registration Statements.—In an action arising out of the issuance of a series of debt securities, plaintiffs did not have a viable claim against defendant indenture trustee for breach of fiduciary duty as secured party representative based on defendant's alleged failure to deliver debt transaction registration statements arguably required to secure the debt, where plaintiffs had approved the issuers' bankruptcy reorganization plan, settled their claims against the issuers by accepting a discounted value for the notes at issue and agreed to "release" defendant in accordance with the reorganization plan. A fiduciary relationship exists between two persons when one of them is under a duty to act for or to give advice for the benefit of another upon matters within the scope of the relation. Inasmuch as defendant never became a secured party representative, as defined by the applicable Collateral Trust Agreement, in the first instance, defendant never undertook a duty to act for or to give advice for the benefit of another in that capacity. *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146.

SEPARATION.

See HUSBAND AND WIFE.

SLANDER.

See LIBEL AND SLANDER.

SOCIAL SERVICES.**MEDICAL ASSISTANCE.**

1. Satisfaction of Medicaid Lien upon Death of Beneficiary of Supplemental Needs Trust.—The State was entitled to reimbursement for Medicaid payments made for the care of petitioner's decedent, who was born with spastic quadriplegic cerebral palsy and was the recipient of a substantial malpractice award, during the period from the day after the jury's malpractice verdict through the date a supplemental needs trust (SNT) was funded on the infant's behalf. The State's recovery was not limited to the amount expended for the infant's care after the SNT was funded. Pursuant to federal and state law, the State held a remainder interest in all amounts remaining in the SNT "up to an amount equal to the total medical assistance paid" (42 USC § 1396p [d] [4] [A]) or "up to the total value of all medical assistance paid" (Social Services Law § 366 [2] [b] [2] [iii] [A]) on behalf of the decedent. The "total medical assistance paid" was not limited by the date of the trust's creation, but rather extended to the lifetime benefits paid on behalf of decedent. When an SNT is established pursuant to federal or state law, the beneficiary explicitly provides the State with a right to recover the total Medicaid paid on behalf of that individual. There is no temporal limitation on the State's recovery. If trust assets are available upon the beneficiary's death, the statute permits the State to recover the total amount of benefits paid throughout the beneficiary's lifetime. Nor do the anti-recovery provisions of the federal and state Medicaid statutes limit the State's recovery to the amount expended after the SNT was funded (*see* 42 USC § 1396p [b] [1]; Social Services Law § 369 [2] [b] [i]). The anti-recovery provisions are rules of general applicability for all Medicaid recipients regardless of the severity of disability, and are not applicable to the unique context of SNTs created for severely disabled individuals with assets that are sufficient to end their Medicaid eligibility but insufficient to account for their medical costs. *Matter of Abraham XX*, 11 NY3d 429.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**FEDERAL PREEMPTION.**

1. Fraudulent and Deceptive Credit Card Solicitation Scheme.—In a special proceeding initiated by the Attorney General alleging that defendants engaged in a fraudulent and deceptive credit card solicitation scheme, petitioner's claims for restitution, civil penalties and injunctive relief for violations of the Executive Law and Consumer Protection Act (*see* Executive Law § 63 [12]; General Business Law §§ 349, 350) were not preempted by the federal Truth-in-Lending Act (TILA). The express preemption provision contained in TILA preempts state laws "relating to the disclosure of information" in credit card applications and solicitations "subject to the requirements of section 1637 (c)," not laws that prevent fraud, deception and false advertising (15 USC § 1610 [e]). Although the petition made reference to the fact that many consumers were "unaware" of the manner in which certain credit terms were applied against their accounts, petitioner took no issue with the substance or sufficiency of respondents' TILA disclosures and did not obtain any relief based upon consumers' purported lack of awareness. The mere fact that a complaint makes reference to certain matters that are preempted by a federal statute does not transform a state law action into one that is preempted under federal law. Nor does inclusion of the phrase "relating to" in 15 USC § 1610 (e) support preemption, as petitioner's claims did not relate to the disclosure of federally

STATUTES—Cont'd

mandated information in credit card applications or solicitations, but rather to the inclusion in those materials of certain fraudulent and deceptive misinformation. *Matter of People v Applied Card Sys., Inc.*, 11 NY3d 105.

STIPULATIONS.**ENFORCEMENT.**

1. Enforcement against Nonparty Signatory to Stipulation.—In an unjust enrichment action brought by plaintiff as owner of part of a building lot against the owners of the other part seeking to recover plaintiff's pro rata share of the real property taxes that it had been paying on the lot, the stipulation of settlement resolving the action could be enforced against the church that had entered into a contract with defendants to purchase their share of the lot, as the church, although not a party to the unjust enrichment action, expressly agreed to make itself a party to the stipulation. Given the power of a trial court to exercise supervisory control over all phases of pending actions and proceedings, including discretionary power to relieve parties from the consequences of a stipulation effected during litigation, Supreme Court's judgment resolving both plaintiff's motion by order to show cause to enforce the stipulation against defendants and the church, and defendants' "cross motion" within that action for a declaration that the church was in default of the purchase contract, the amendment to the contract and the stipulation, was proper only to the extent that it enforced the terms of the stipulation against the church. The church was given notice and an opportunity to appear in proceedings regarding the stipulation, and any relief directed merely toward enforcement of the stipulation did not offend its due process rights. So much of the judgment, however, as ordered remedies against the church for its purported breach of the purchase contract and the contract amendment was inappropriate. In order to pursue a claim against the church for breach of contract, defendants would have to commence a plenary action against it. *White House Manor, Ltd. v Benjamin*, 11 NY3d 393.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TORTS.**BREACH OF FIDUCIARY DUTY.**

1. Extended Sexual Relationship with Cleric.—Plaintiff failed to state a viable cause of action for breach of fiduciary duty against defendant, an Orthodox Jewish rabbi, premised upon their alleged 3½-year sexual relationship. A fiduciary relationship exists between two persons when one of them is under a duty to act for or to give advice for the benefit of another upon matters within the scope of the relation. Plaintiff's claim that defendant acted as a counselor and advisor to her was inadequate to cast defendant as a fiduciary beyond that of ordinary cleric-congregant affiliations. The facts alleged and the inferences derived therefrom demonstrated that plaintiff voluntarily consented to an intimate relationship with defendant because she subjectively believed that the "therapy" he suggested would help her find a husband. Although she contended that defendant's ulterior motive for inducing the sexual relationship was the fulfillment of his own gratification, plaintiff showed only that she was deceived by defendant, not that she was so vulnerable as to surrender her will and capacity to determine her own best interests. In the absence of a prima facie showing that a fiduciary obligation was owed by defendant, no cause of action could be maintained for an extended voluntary sexual affair between consenting adults. *Marmelstein v Kehillat New Hempstead: The Rav Aron Jofen Community Synagogue*, 11 NY3d 15.

TORTS—Cont'd

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS.

2. Extended Sexual Relationship with Cleric.—Plaintiff failed to state a viable cause of action for intentional infliction of emotional distress against defendant, an Orthodox Jewish rabbi, premised upon their alleged 3½-year sexual relationship. The complaint did not establish that defendant's conduct was so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and was utterly intolerable in a civilized community. *Marmelstein v Kehillat New Hempstead: The Rav Aron Jofen Community Synagogue*, 11 NY3d 15.

TOWNS.

See MUNICIPAL CORPORATIONS.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

CONTRACT FOR SALE OF REAL PROPERTY.

1. Attorney Approval Contingency.—The timely disapproval of the parties' real estate contract by defendants' attorney at defendants' request after they decided to buy a different residence was valid, as no explicit limitations were placed on the attorney approval contingency contained in a rider to the contract. A real estate contract that contains an attorney approval contingency providing that the contract is "subject to" or "contingent upon" attorney approval within a specified time period and without further limitations may be timely disapproved by an attorney for either party for any reason or for no stated reason. The implied covenant of good faith and fair dealing between parties to a contract does not implicitly limit an attorney's ability to approve or disapprove a real estate contract pursuant to an attorney approval contingency. *Moran v Erk*, 11 NY3d 452.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.

EXTENT OF DISABILITY.

1. Additional Compensation Not Available to Undocumented Alien.—The Workers' Compensation Board properly determined that claimant, an undocumented alien who sustained a compensable hand injury, was not entitled to recover "additional compensation" under Workers' Compensation Law § 15 (3) (v) after his schedule award was fully paid. Even if claimant could establish that the impairment of his wage-earning capacity was due solely to the compensable injury he sustained, as required by the statute, he could not meet the statute's requirement that he participate in a "Board approved rehabilitation program" because he was ineligible for work in the United States. Moreover, even if claimant cooperated to the extent he

WORKERS' COMPENSATION—Cont'd

could, his inability to participate was not because rehabilitation was not feasible, but because no rehabilitation program is available to those who are not legally employable. It could not have been the intent of the Legislature to restore to reemployment a worker who may not be lawfully employed. Additionally, Workers' Compensation Law § 17, which was amended to ensure that an alien's relocation outside the country (or Canada) would not result in diminished "compensation" to that alien, was inapplicable here, based on the legislative purpose of section 17 and because claimant was a New York State resident. *Matter of Ramroop v Flexo-Craft Print., Inc.*, 11 NY3d 160.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

CIVIL PRACTICE LAW AND RULES.

- Art 54 (Enforcement of judgments entitled to full faith and credit). *Boudreaux v State of La., Dept. of Transp.*, 11 NY3d 321.
- 213 (1) (Actions to be commenced within six years; action for which no limitation is specifically prescribed by law). *Tydings v Greenfield, Stein & Senior, LLP*, 11 NY3d 195.
- 313 (Service without state giving personal jurisdiction). *Morgenthau v Avion Resources Ltd.*, 11 NY3d 383.
- 1001 (b) (Necessary joinder of parties; when joinder excused). *Windy Ridge Farm v Assessor of Town of Shandaken*, 11 NY3d 725.
- 1003 (Nonjoinder and misjoinder of parties). *Windy Ridge Farm v Assessor of Town of Shandaken*, 11 NY3d 725.
- 3101 (d) (2) (Scope of disclosure; trial preparation; materials). *People v Kozlowski*, 11 NY3d 223.
- 3104 (Supervision of disclosure). *Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843.
- 3404 (Dismissal of abandoned cases). *Okun v Tanners*, 11 NY3d 762.
- 4320 (Reference to report). *Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843.
- 5513 (b) (Time to move for permission to appeal). *Yadid, LLC v GCW Bell Corp.*, 11 NY3d 733; *Waterman v Weinstein Mem. Chapel*, 11 NY3d 745; *McGarr v Guardian Life Ins. Co. of Am.*, 11 NY3d 771; *Brummer v Town of Tonawanda*, 11 NY3d 807; *Leeward Isles Resorts, Ltd. v Hickox*, 11 NY3d 914; *Matter of Edem v Pearl*, 11 NY3d 920.
- 5601 (Appeals to Court of Appeals as of right). *Matter of Jolley v Ind-Venture Communications, Inc.*, 11 NY3d 769; *Meiselman v Fogel*, 11 NY3d 783; *Matter of Self v New York State Div. of Human Rights*, 11 NY3d 810; *People v Mitchell*, 11 NY3d 818; *Matter of Hare v Champion Intl.*, 11 NY3d 863; *Matter of Kahen v Woutersz*, 11 NY3d 863; *Matter of Toriola v Supreme Ct. State of N.Y. Appellate Term 2nd & 11th Jud. Dists.*, 11 NY3d 866; *Matter of Gartmond v Conway*, 11 NY3d 892.
- 5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Moynihan v State of New York*, 11 NY3d 817.
- 5602 (Appeals to Court of Appeals by permission). *Matter of Flemming v Rizzo*, 11 NY3d 743; *Breytman v Olinville Realty, LLC*, 11 NY3d 768; *Matter of Self v New York State Div. of Human Rights*, 11 NY3d 810; *Mullayeva v Mullayev*, 11 NY3d 865; *Kelley v Zavalidroga*, 11 NY3d 911.
- 5602 (a) (Appeals to Court of Appeals by permission). *Batshever v Okin*, 11 NY3d 807; *People v Alcaraz*, 11 NY3d 828; *3657 Realty Co., LLC v Jones*, 11 NY3d 829; *Goldfein v Uvayd Cab Corp.*, 11 NY3d 913.
- 5602 (a) (1) (ii) (Appeals to Court of Appeals by permission). *Ramnarain v Ramnarain*, 11 NY3d 885; *Leeward Isles Resorts, Ltd. v Hickox*, 11 NY3d 914.
- 7503 (c) (Notice of intention to arbitrate). *Matter of Fiveco, Inc. v Haber*, 11 NY3d 140.

CODE OF PROFESSIONAL RESPONSIBILITY.

- DR 5-108 (a) (1) (22 NYCRR 1200.27 [a] [1]) (Conflict of interest; former client). *Falk v Chittenden*, 11 NY3d 73.